

THE

WORKS

OF

BENJAMIN FRANKLIN, LL.D.

VOL. 3.



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**The Project Gutenberg eBook of The Complete Works
in Philosophy, Politics and Morals of the late Dr.
Benjamin Franklin, Vol. 3 [of 3]**

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Of
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VOL. 3.



Stalker Sculptor.

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THE
COMPLETE
WORKS,
IN
PHILOSOPHY, POLITICS, AND MORALS,
OF THE LATE
DR. BENJAMIN FRANKLIN,
NOW FIRST COLLECTED AND ARRANGED:
WITH
MEMOIRS OF HIS EARLY LIFE,
WRITTEN BY HIMSELF.

IN THREE VOLUMES.

VOL. III.

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ERRATA.

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- [24](#) 8 from the bottom: for DAY, read LAY.
[39](#) 6, for iuppose, read suppose.
[60](#) 5 from the bottom: for Cruger, read Stuber.
[449](#) 7 from the bottom: for PLEIADS, read PLEIADES.
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PAPERS
ON
AMERICAN SUBJECTS
BEFORE THE
REVOLUTIONARY TROUBLES.

[The papers under the present head, of American Politics before the Troubles, in the volume of Dr. Franklin's works, printed for Johnson in 1799, from which they are nearly all taken, were divided into two parts, as if distinct from each other, viz. Papers on American Subjects before the Troubles; and Papers on Subjects of Provincial Politics. As we can see no grounds for this distinction, we have brought them together, and have placed them in the order of their dates, conceiving such to be the natural order of papers furnishing materials for history.]

PAPERS

ON

AMERICAN SUBJECTS,

BEFORE THE

REVOLUTIONARY TROUBLES.

ALBANY PAPERS.

Containing, I. Reasons and Motives on which the PLAN of UNION for the COLONIES was formed;—II. Reasons against partial Unions;—III. And the Plan of Union drawn by B. F. and unanimously agreed to by the Commissioners from New Hampshire, Massachusett's Bay, Rhode Island, New Jersey, Maryland, and Pensylvania^[1], met in Congress at Albany, in July 1754, to consider of the best Means of defending the King's Dominions in America, &c. a War being then apprehended; with the Reasons or Motives for each Article of the Plan.

B. F. was one of the four commissioners from Pensylvania^[2].

I. Reasons and Motives on which the Plan of Union was formed.

The commissioners from a number of the northern colonies being met at Albany, and considering the difficulties that have always attended the most necessary general measures for the common defence, or for the annoyance of the enemy, when they were to be carried through the several particular assemblies of all the colonies; some assemblies being before at variance with their governors or councils, and the several branches of the government not on terms of doing business with each other; others taking the opportunity, when their concurrence is wanted, to push for favourite laws, powers, or points, that they think could not at other times be obtained, and so creating disputes and quarrels; one assembly waiting to see what another will do, being afraid of doing more than its share, or desirous of doing less; or refusing to do any thing, because its country is not at present so much exposed as others, or because another will reap more immediate advantage; from one or other of which causes, the assemblies of six (out of seven) colonies applied to, had granted no assistance to Virginia, when lately invaded by the French, though purposely convened, and the

importance of the occasion earnestly urged upon them; considering moreover, that one principal encouragement to the French, in invading and insulting the British American dominions, was their knowledge of our disunited state, and of our weakness arising from such want of union; and that from hence different colonies were, at different times, extremely harassed, and put to great expence both of blood and treasure, who would have remained in peace, if the enemy had had cause to fear the drawing on themselves the resentment and power of the whole; the said commissioners, considering also the present incroachments of the French, and the mischievous consequences that may be expected from them, if not opposed with our force, came to an unanimous resolution,—*That an union of the colonies is absolutely necessary for their preservation.*

The manner of forming and establishing this union was the next point. When it was considered, that the colonies were seldom all in equal danger at the same time, or equally near the danger, or equally sensible of it; that some of them had particular interests to manage, with which an union might interfere; and that they were extremely jealous of each other; it was thought impracticable to obtain a joint agreement of all the colonies to an union, in which the expence and burthen of defending any of them should be divided among them all; and if ever acts of assembly in all the colonies could be obtained for that purpose, yet as any colony, on the least dissatisfaction, might repeal its own act and thereby withdraw itself from the union, it would not be a stable one, or such as could be depended on: for if only one colony should, on any disgust withdraw itself, others might think it unjust and unequal that they, by continuing in the union, should be at the expence of defending a colony, which refused to bear its proportionable part, and would therefore one after another, withdraw, till the whole crumbled into its original parts. Therefore the commissioners came to another previous resolution, viz. *That it was necessary the union should be established by act of parliament.*

They then proceeded to sketch out a *plan of union*, which they did in a plain and concise manner, just sufficient to show their sentiments of the kind of union that would best suit the circumstances of the colonies, be most agreeable to the people, and most effectually promote his majesty's service and the general interest of the British empire. This was respectfully sent to the assemblies of the several colonies for their consideration, and to

receive such alterations and improvements as they should think fit and necessary; after which it was proposed to be transmitted to England to be perfected, and the establishment of it there humbly solicited.

This was as much as the commissioners could do^[3].

* * * * *

II. *Reasons against partial Unions.*

It was proposed by some of the commissioners, to form the colonies into two or three distinct unions; but for these reasons that proposal was dropped even by those that made it: [viz.]

1. In all cases where the strength of the whole was necessary to be used against the enemy, there would be the same difficulty in degree, to bring the several unions to unite together, as now the several colonies; and consequently the same delays on our part and advantage to the enemy.

2. Each union would separately be weaker than when joined by the whole, obliged to exert more force, be oppressed by the expence, and the enemy less deterred from attacking it.

3. Where particular colonies have *selfish views*, as New York with regard to Indian trade and lands; or are less exposed, being covered by others, as New Jersey, Rhode Island, Connecticut, Maryland; or have particular whims and prejudices against warlike measures in general, as Pennsylvania, where the Quakers predominate; such colonies would have more weight in a partial union, and be better able to oppose and obstruct the measures necessary for the general good, than where they are swallowed up in the general union.

4. The Indian trade would be better regulated by the union of the whole than by partial unions. And as Canada is chiefly supported by that trade, if it could be drawn into the hands of the English (as it might be if the Indians were supplied on moderate terms, and by honest traders appointed by and acting for the public) that alone would contribute greatly to the weakening of our enemies.

5. The establishing of new colonies westward on the Ohio and the lakes (a matter of considerable importance to the increase of British trade and

power, to the breaking that of the French, and to the protection and security of our present colonies,) would best be carried on by a joint union.

6. It was also thought, that by the frequent meetings-together of commissioners or representatives from all the colonies, the circumstances of the whole would be better known, and the good of the whole better provided for; and that the colonies would by this connection learn to consider themselves, not as so many independent states, but as members of the same body; and thence be more ready to afford assistance and support to each other, and to make diversions in favour even of the most distant, and to join cordially in any expedition for the benefit of all against the common enemy.

These were the principal reasons and motives for forming the plan of union as it stands. To which may be added this, that as the union of the

The remainder of this article is lost.

III. Plan of a proposed Union of the several Colonies of Massachusetts Bay, New Hampshire, Connecticut, Rhode Island, New York, New Jersey, Pensylvania, Maryland, Virginia, North Carolina, and South Carolina, for their mutual Defence and Security, and for extending the British Settlements in North America, with the Reasons and Motives for each Article of the Plan [as far as could be remembered.]

It is proposed—That humble application be made for an act of parliament of Great Britain, by virtue of which one general government may be formed in America, including all the said colonies, within and under which government each colony may retain its present constitution, except in the particulars wherein a change may be directed by the said act, as hereafter follows^[4].

PRESIDENT GENERAL, AND GRAND COUNCIL.

That the said general government be administered by a president general, to be appointed and supported by the crown; and a grand council, to be chosen by the representatives of the people of the several colonies met in their respective assemblies.

It was thought that it would be best the president general should be supported as well as appointed by the crown; that so all disputes between him and the grand council concerning his salary might be prevented; as such disputes have been frequently of mischievous consequence in particular colonies, especially in time of public danger. The quit-rents of crown-lands in America might in a short time be sufficient for this purpose.—The choice of members for the grand council is placed in the house of representatives of each government, in order to give the people a share in this new general government, as the crown has its share by the appointment of the president-general.

But it being proposed by the gentlemen of the council of New York, and some other counsellors among the Commissioners, to alter the plan in this particular, and to give the governors and council of the several provinces a share in the choice of the grand council, or at least a power of approving and confirming or of disallowing the choice made by the house of representatives, it was said:

"That the government or constitution proposed to be formed by the plan, consists of two branches; a president general appointed by the crown, and a council chosen by the people, or by the people's representatives, which is the same thing.

"That by a subsequent article, the council chosen by the people can effect nothing without the consent of the president general appointed by the crown; the crown possesses therefore full one half of the power of this constitution.

"That in the British constitution, the crown is supposed to possess but one third, the lords having their share.

"That this constitution seemed rather more favorable for the crown.

"That it is essential, to English liberty, [that] the subject should not be taxed but by his own consent, or the consent of his elected representatives.

"That taxes to be laid and levied by this proposed constitution will be proposed and agreed to by the representatives of the people, if the plan in this particular be preserved:

"But if the proposed alteration should take place, it seemed as if matters may be so managed, as that the crown shall finally have the appointment

not only of the president general, but of a majority of the grand council; for seven out of eleven governors and councils are appointed by the crown:

"And so the people in all the colonies would in effect be taxed by their governors.

"It was therefore apprehended, that such alterations of the plan would give great dissatisfaction, and that the colonies could not be easy under such a power in governors, and such an infringement of what they take to be English liberty.

"Besides, the giving a share in the choice of the grand council would not be equal with respect to all the colonies, as their constitutions differ. In some, both governor and council are appointed by the crown. In others, they are both appointed by the proprietors. In some, the people have a share in the choice of the council; in others, both government and council are wholly chosen by the people. But the house of representatives is every where chosen by the people; and therefore, placing the right of choosing the grand council in the representatives is equal with respect to all.

"That the grand council is intended to represent all the several houses of representatives of the colonies, as a house of representatives doth the several towns or counties of a colony. Could all the people of a colony be consulted and unite in public measures, a house of representatives would be needless: and could all the assemblies conveniently consult and unite in general measures, the grand council would be unnecessary.

"That a house of commons or the house of representatives, and the grand council, are thus alike in their nature and intention. And as it would seem improper that the king or house of lords should have a power of disallowing or appointing members of the house of commons;—so likewise, that a governor and council appointed by the crown should have a power of disallowing or appointing members of the grand council (who, in this constitution, are to be the representatives of the people.)

"If the governors and councils therefore were to have a share in the choice of any that are to conduct this general government, it should seem more proper that they chose the president-general. But this being an office of great trust and importance to the nation, it was thought better to be filled by the immediate appointment of the crown.

"The power proposed to be given by the plan to the grand council is only a concentration of the powers of the several assemblies in certain points for the general welfare; as the power of the president general, is of the powers of the several governors in the same points.

"And as the choice therefore of the grand council by the representatives of the people, neither gives the people any new powers, nor diminishes the power of the crown, it was thought and hoped the crown would not disapprove of it."

Upon the whole, the commissioners were of opinion, that the choice was most properly placed in the representatives of the people.

ELECTION OF MEMBERS.

That within [] months after the passing such act, the house of representatives, that happen to be sitting within that time, or that shall be especially for that purpose convened, may and shall choose members for the grand council, in the following proportion, that is to say,

Massachusett's Bay	7
New Hampshire	2
Connecticut	5
Rhode Island	2
New York	4
New Jerseys	3
Pennsylvania	6
Maryland	4
Virginia	7
North Carolina	4
South Carolina	4
	48

It was thought, that if the least colony was allowed two, and the others in proportion, the number would be very great and the expence heavy; and that less than two would not be convenient, as a single person, being by any accident prevented appearing at the meeting, the colony he ought to appear

for would not be represented. That as the choice was not immediately popular, they would be generally men of good abilities for business, and men of reputation for integrity; and that forty-eight such men might be a number sufficient. But, though it was thought reasonable, that each colony should have a share in the representative body in some degree, according to the proportion it contributed to the general treasury: yet the proportion of wealth or power of the colonies is not to be judged by the proportion here fixed; because it was at first agreed, that the greatest colony should not have more than seven members, nor the least less than two: and the settling these proportions between these two extremes was not nicely attended to, as it would find itself, after the first election from the sums brought into the treasury, as by a subsequent article.

PLACE OF FIRST MEETING.

—who shall meet for the first time at the city of Philadelphia Pennsylvania, being called by the president-general as soon as conveniently may be after his appointment.

Philadelphia was named as being the nearer the centre of the colonies, where the commissioners would be well and cheaply accommodated. The high-roads, through the whole extent, are for the most part very good, in which forty or fifty miles a day may very well be and frequently are travelled. Great part of the way may likewise be gone by water. In summer time, the passages are frequently performed in a week from Charles Town to Philadelphia and New York; and from Rhode Island to New York through the Sound, in two or three days; and from New York to Philadelphia, by water and land, in two days, by stage boats and wheel-carriages that set out every other day. The journey from Charles Town to Philadelphia may likewise be facilitated by boats running up Chesapeake Bay three hundred miles. But if the whole journey be performed on horseback, the most distant members (viz. the two from New Hampshire and from South Carolina) may probably render themselves at Philadelphia in fifteen or twenty days; the majority may be there in much less time.

NEW ELECTION.

That there shall be a new election of the members of the grand council every three years; and on the death or resignation of any member, his place shall be supplied by a new choice at the next silting of the assembly of the colony he represented.

Some colonies have annual assemblies, some continue during a governor's pleasure; three years was thought a reasonable medium, as affording a new member time to improve himself in the business, and to act after such improvement; and yet giving opportunities, frequent enough, to change him, if he has misbehaved.

PROPORTION OF MEMBERS AFTER THE FIRST THREE YEARS.

That after the first three years, when the proportion of money arising out of each colony to the general treasury can be known, the number of members to be chosen for each colony shall from time to time, in all ensuing elections, be regulated by that proportion (yet so as that the number to be chosen by any one province be not more than seven, nor less than two.)

By a subsequent article it is proposed, that the general council shall lay and levy such general duties, as to them may appear most equal and least burthensome, &c. Suppose, for instance, they lay a small duty or excise on some commodity imported into or made in the colonies, and pretty generally and equally used in all of them; as rum perhaps, or wine; the yearly produce of this duty or excise, if fairly collected, would be in some colonies greater, in others less, as the colonies are greater or smaller. When the collector's accounts are brought in, the proportions will appear; and from them it is proposed to regulate the proportion of representatives to be chosen at the next general election, within the limits however of seven and two. These numbers may therefore vary in course of years, as the colonies may in the growth and increase of people. And thus the quota of tax from each colony would naturally vary with its circumstances; thereby preventing all disputes and dissatisfactions about the just proportions due from each; which might otherwise produce pernicious consequences, and destroy the harmony and good agreement that ought to subsist between the several parts of the union.

MEETINGS OF THE GRAND COUNCIL, AND CALL.

That the grand council shall meet once in every year, and oftener if occasion require, at such time and place as they shall adjourn to at the last preceding meeting, or as they shall be called to meet at by the president general on any emergency; he having first obtained in writing the consent of seven of the members to such call, and sent due and timely notice to the whole.

It was thought, in establishing and governing new colonies or settlements, regulating Indian trade, Indian treaties, &c. there would be every year sufficient business arise to require at least one meeting, and at such meeting many things might be suggested for the benefit of all the colonies. This annual meeting may either be at a time or place certain, to be fixed by the president general and grand council at their first meeting; or left at liberty, to be at such time and place as they shall adjourn to, or be called to meet at by the president general.

In time of war it seems convenient, that the meeting should be in that colony, which is nearest the seat of action.

The power of calling them on any emergency seemed necessary to be vested in the president general; but that such power might not be wantonly used to harass the members, and oblige them to make frequent long journies to little purpose, the consent of seven at least to such call was supposed a convenient guard.

CONTINUANCE.

That the grand council have power to choose their speaker; and shall neither be dissolved, prorogued, nor continued sitting longer than six weeks at one time, without their own consent or the special command of the crown.

The speaker should be presented for approbation; it being convenient, to prevent misunderstandings and disgusts, that the mouth of the council should be a person agreeable, if possible, both to the council and president general.

Governors have sometimes wantonly exercised the power of proroguing or continuing the sessions of assemblies, merely to harass the members and

compel a compliance; and sometimes dissolve them on slight disgusts. This it was feared might be done by the president general, if not provided against: and the inconvenience and hardship would be greater in the general government than in particular colonies, in proportion to the distance the members must be from home, during sittings, and the long journies some of them must necessarily take.

MEMBERS' ALLOWANCE.

That the members of the grand council shall be allowed for their service ten shillings sterling per diem, during their session and journey to and from the place of meeting; twenty miles to be reckoned a day's journey.

It was thought proper to allow *some* wages, lest the expence might deter some suitable persons from the service;—and not to allow *too great* wages, lest unsuitable persons should be tempted to cabal for the employment, for the sake of gain. Twenty miles was set down as a day's journey, to allow for accidental hinderances on the road, and the greater expences of travelling than residing at the place of meeting.

ASSENT OF PRESIDENT GENERAL AND HIS DUTY.

That the assent of the president general be requisite to all acts of the grand council; and that it be his office and duty to cause them to be carried into execution.

The assent of the president general, to all acts of the grand council was made necessary, in order to give the crown its due share of influence in this government, and connect it with that of Great Britain. The president general, besides one half of the legislative power, hath in his hands the whole executive power.

POWER OF PRESIDENT GENERAL AND GRAND COUNCIL. TREATIES OF PEACE AND WAR.

That the president general, with the advice of the grand council, hold or direct all Indian treaties in which the general interest of the colonies may be concerned; and make peace or declare war with Indian nations.

The power of making peace or war with Indian nations is at present supposed to be in every colony, and is expressly granted to some by charter, so that no new power is hereby intended to be granted to the colonies. But as, in consequence of this power, one colony might make peace with a nation that another was justly engaged in war with; or make war on slight occasions without the concurrence or approbation of neighbouring colonies, greatly endangered by it; or make particular treaties of neutrality in case of a general war, to their own private advantage in trade, by supplying the common enemy; of all which there have been instances—it was thought better, to have all treaties of a general nature under a general direction; that so the good of the whole may be consulted and provided for.

INDIAN TRADE.

That they make such laws as they judge necessary for regulating all Indian trade.

Many quarrels and wars have arisen between the colonies and Indian nations, through the bad conduct of traders, who cheat the Indians after making them drunk, &c. to the great expence of the colonies both in blood and treasure. Particular colonies are so interested in the trade as not to be willing to admit such a regulation as might be best for the whole; and therefore it was thought best under a general direction.

INDIAN PURCHASES.

That they make all purchases, from Indians for the crown, of lands not now within the bounds of particular colonies, or that shall not be within their bounds when some of them are reduced to more convenient dimensions.

Purchases from the Indians, made by private persons, have been attended with many inconveniences. They have frequently interfered, and occasioned uncertainty of titles, many disputes and expensive law-suits, and hindered the settlement of the land so disputed. Then the Indians have been cheated by such private purchases, and discontent and wars have been the consequence. These would be prevented by public fair purchases.

Several of the colony charters in America extend their bounds to the South Sea, which may be perhaps three or four thousand miles in length to one or two hundred miles in breadth. It is supposed they must in time be reduced to dimensions more convenient for the common purposes of government^[5].

Very little of the land in those grants is yet purchased of the Indians.

It is much cheaper to purchase of them, than to take and maintain the possession by force: for they are generally very reasonable in their demands for land^[6]; and the expence of guarding a large frontier against their incursions is vastly great; because all must be guarded, and always guarded, as we know not where or when *to expect them*^[7].

NEW SETTLEMENTS.

That they make new settlements on such purchases, by granting lands in the king's name, reserving a quit-rent to the crown for the use of the general treasury.

It is supposed better that there should be one purchaser than many; and that the crown should be that purchaser, or the union in the name of the crown. By this means the bargains may be more easily made, the price not enhanced by numerous bidders, future disputes about private Indian purchases, and monopolies of vast tracts to particular persons (which are prejudicial to the settlement and peopling of country) prevented; and the land being again granted in small tracts to the settlers, the quit-rents reserved may in time become a fund for support of government, for defence of the country, ease of taxes, &c.

Strong forts on the lakes, the Ohio, &c. may, at the same time they secure our present frontiers, serve to defend new colonies settled under their protection; and such colonies would also mutually defend and support such forts, and better secure the friendship of the far Indians.

A particular colony has scarce strength enough to extend itself by new settlements, at so great a distance from the old: but the joint force of the union might suddenly establish a new colony or two in those parts, or extend an old colony to particular passes, greatly to the security of our present frontiers, increase of trade and people, breaking off the French

communication between Canada and Louisiana, and speedy settlement of the intermediate lands.

The power of settling new colonies is therefore thought a valuable part of the plan, and what cannot so well be executed by two unions as by one.

LAWS TO GOVERN THEM.

That they make laws for regulating and governing such new settlements, till the crown shall think fit to form them into particular governments.

The making of laws suitable for the new colonies, it was thought, would be properly vested in the president general and grand council; under whose protection they will at first necessarily be, and who would be well acquainted with their circumstances, as having settled them. When they are become sufficiently populous, they may by the crown be formed into complete and distinct governments.

The appointment of a sub-president by the crown, to take place in case of the death or absence of the president general, would perhaps be an improvement of the plan; and if all the governors of particular provinces were to be formed into a standing council of state, for the advice and assistance of the president general, it might be another considerable improvement.

RAISE SOLDIERS AND EQUIP VESSELS, &C.

That they raise and pay soldiers and build forts for the defence of any of the colonies, and equip vessels of force to guard the coasts and protect the trade on the ocean, lakes^[8], or great rivers; but they shall not impress men in any colony, without the consent of the legislature.

It was thought, that quotas of men, to be raised and paid by the several colonies, and joined for any public service, could not always be got together with the necessary expedition. For instance, suppose one thousand men should be wanted in New Hampshire on any emergency; to fetch them by fifties and hundreds out of every colony, as far as South Carolina, would be inconvenient, the transportation chargeable and the occasion perhaps passed before they could be assembled; and therefore, that it would be best to raise

them (by offering bounty-money and pay) near the place where they would be wanted, to be discharged again when the service should be over.

Particular colonies are at present backward to build forts at their own expence, which they say will be equally useful to their neighbouring colonies; who refuse to join, on a presumption that such forts *will* be built and kept up, though they contribute nothing. This unjust conduct weakens the whole; but the forts being for the good of the whole, it was thought best they should be built and maintained by the whole, out of the common treasury.

In the time of war, small vessels of force are sometimes necessary in the colonies to scour the coast of small privateers. These being provided by the union will be an advantage in turn to the colonies which are situated on the sea, and whose frontiers on the land-side, being covered by other colonies, reap but little immediate benefit from the advanced forts.

POWER TO MAKE LAWS, LAY DUTIES, &C.

That for these purposes they have power to make laws, and lay and levy such general duties, imports, or taxes, as to them shall appear most equal and just (considering the ability and other circumstances of the inhabitants in the several colonies,) and such as may be collected with the least inconvenience to the people; rather discouraging luxury, than loading industry with unnecessary burthens.

The laws which the president general and grand council are impowered to make *are such only* as shall be necessary for the government of the settlements; the raising, regulating, and paying soldiers for the general service; the regulating of Indian trade; and laying and collecting the general duties and taxes. (They should also have a power to restrain the exportation of provisions to the enemy from any of the colonies, on particular occasions, in time of war.) But is it not intended that they may interfere with the constitution and government of the particular colonies; who are to be left to their own laws, and to lay, levy, and apply their own taxes as before.

GENERAL TREASURER AND PARTICULAR TREASURER.

That they may appoint a general treasurer and particular treasurer in each government when necessary; and from time to time may order the sums in the treasuries of each government into the general treasury; or draw on them for special payments, as they find most convenient.

The treasurers here meant are only for the general funds, and not for the particular funds of each colony, which remain in the hands of their own treasurers at their own disposal.

MONEY HOW TO ISSUE.

Yet no money to issue but by joint orders of the president general and grand council; except where sums have been appropriated to particular purposes, and the president general is previously empowered by an act to draw for such sums.

To prevent misapplication of the money, or even application that might be dissatisfactory to the crown or the people, it was thought necessary, to join the president general and grand council in all issues of money.

ACCOUNTS.

That the general accounts shall be yearly settled and reported to the several assemblies.

By communicating the accounts yearly to each assembly, they will be satisfied of the prudent and honest conduct of their representatives in the grand council.

QUORUM.

That a quorum of the grand council, empowered to act with the president general, do consist of twenty-five members; among whom there shall be one or more from a majority of the colonies.

The quorum seems large, but it was thought it would not be satisfactory to the colonies in general, to have matters of importance to the whole transacted by a smaller number, or even by this number of twenty-five, unless there were among them one at least from a majority of the colonies; because otherwise, the whole quorum being made up of members from

three or four colonies at one end of the union, something might be done that would not be equal with respect to the rest, and thence dissatisfactions and discords might rise to the prejudice of the whole.

LAWS TO BE TRANSMITTED.

That the laws made by them for the purposes aforesaid shall not be repugnant, but, as near as may be, agreeable to the laws of England, and shall be transmitted to the king in council for approbation as soon as may be after their passing; and if not disapproved within three years after presentation, to remain in force.

This was thought necessary for the satisfaction of the crown, to preserve the connection of the parts of the British empire with the whole, of the members with the head, and to induce greater care and circumspection in making of the laws, that they be good in themselves and for the general benefit.

DEATH OF THE PRESIDENT GENERAL.

That in case of the death of the president general, the speaker of the grand council for the time being shall succeed, and be vested with the same powers and authorities, to continue till the king's pleasure be known.

It might be better, perhaps, as was said before, if the crown appointed a vice president, to take place on the death or absence of the president general; for so we should be more sure of a suitable person at the head of the colonies. On the death or absence of both, the speaker to take place (or rather the eldest king's-governor) till his majesty's pleasure be known.

OFFICERS HOW APPOINTED.

That all military commission officers, whether for land or sea-service, to act under this general constitution, shall be nominated by the president general; but the approbation of the grand council is to be obtained, before they receive their commissions. And all civil officers are to be nominated by the grand council, and to receive the president general's approbation before they officiate.

It was thought it might be very prejudicial to the service, to have officers appointed unknown to the people, or unacceptable, the generality of Americans serving willingly under officers they know: and not caring to engage in the service under strangers, or such as are often appointed by governors through favour or interest. The service here meant, is not the stated settled service in standing troops; but any sudden and short service, either for defence of our own colonies, or invading the enemies country; (such as, the expedition to Cape Breton in the last war; in which many substantial farmers and tradesmen engaged as common soldiers under officers of their own country, for whom they had an esteem and affection; who would not have engaged in a standing army, or under officers from England.)—It was therefore thought best, to give the council the power of approving the officers, which the people will look upon as a great security of their being good men. And without some such provision as this, it was thought the expence of engaging men in the service on any emergency would be much greater, and the number who could be induced to engage much less; and that therefore it would be most for the king's service and general benefit of the nation, that the prerogative should relax a little in this particular throughout all the colonies in America; as it had already done much more in the charters of some particular colonies, viz. Connecticut and Rhode Island.

The civil officers will be chiefly treasurers and collectors of taxes; and the suitable persons are most likely to be known by the council.

VACANCIES HOW SUPPLIED.

But in case of vacancy by death, or removal of any officer civil or military under this constitution, the governor of the province in which such vacancy happens may appoint, till the pleasure of the president general and grand council can be known.

The vacancies were thought best supplied by the governors in each province, till a new appointment can be regularly made; otherwise the service might suffer before the meeting of the president general and grand council.

EACH COLONY MAY DEFEND ITSELF ON EMERGENCY, &C.

That the particular military as well as civil establishments in each colony remain in their present state, the general constitution notwithstanding; and that on sudden emergencies any colony may defend itself, and lay the accounts of expence thence arising before the president general and general council, who may allow and order payment of the same, as far as they judge such accounts just and reasonable.

Otherwise the union of the whole would weaken the parts, contrary to the design of the union. The accounts are to be judged of by the president general and grand council, and allowed if found reasonable: this was thought necessary to encourage colonies to defend themselves, as the expence would be light when borne by the whole; and also to check imprudent and lavish expence in such defences.^[9]

FOOTNOTES:

[1] The reader must be informed here, that this plan was intended for all the colonies; but, commissioners from some of them not attending (from causes which I cannot specify) their consent to it was not, in this respect, universally expressed. Governor Pownall, however, says, "That he had an opportunity of conversing with, and knowing the sentiments of the commissioners appointed by their respective provinces, to attend this congress, to which they were called by the crown; of learning from their experience and judgment, the actual state of the American business and interest; and of hearing amongst them, the grounds and reasons of that American union, which they then had under deliberation, and transmitted the plan of to England;" and he adds, in another place, "that the sentiments of our colonies were collected in an authentic manner on this subject in the plan proposed by Dr. Franklin, and unanimously agreed to in congress." See Governor Pownall's Administration of the British Colonies. Vol. I. p. 13. Edit. 4, 1774, and Vol. II. p. 86. B. V.

[2] "Mr. [since Governor] Hutchinson was one of the commissioners for Massachusetts Bay." Governor Pownall as above, Vol. II. p. 144. "Thomas Pownall, Esq.; brother to John Pownall, Esq.; one of the secretaries to the board of trade, and afterwards Governor of the Massachusetts, was upon the spot." History of the British Empire in North America, p. 25. B. V.

[3] Dr. Davenant was so well convinced of the expediency of an union of the colonies, that he recites, at full length, a plan contrived, as he says, with good judgment for the purpose. Davenant, Vol. I. p. 40, 41, of Sir C. Whitworth's Edition. B. V.

[4] The reader may perceive, by the difference of the type, which is the text of the plan, and which the *reasons and motives* mentioned in the title. They are thus

consolidated for his convenience. The editor has taken one or two farther liberties in *transposing* these Albany papers; but the sense remains as before. B. V.

[5] Mr. Baron M——, in page 200 of his account of the Proceedings at Quebec, for obtaining an Assembly, has the following hint: "The vast enlargement of the province of Quebec by adding to it a new territory that contains, according to Lord Hillsborough's estimation, of it, five hundred and eleven millions of acres (that is, more land than Spain, Italy, France, and Germany put together, and most of it good land) is a measure that would require an ample discussion."——That the reader may not suspect that these dimensions were convenient for uncommon purposes of government, I shall quote the motives assigned upon this occasion by the act regulating the government of Quebec. "By the arrangements made by the royal proclamation, a very large extent of [outlying] country, within which there were several colonies and settlements of the subjects of France, who claimed to remain therein under the faith of the said treaty, was left without any provision being made for the administration of civil government therein:" *i. e.* a few Indian traders were a pretext for this appropriation of a tract of country, which, according to the minister's estimate, was more than thirteen times larger than England and Wales united, nearly one hundred and twenty eight times larger than Jamaica, almost one-eighth part of Europe, and considerably more than one-thirty-eighth part of the whole habitable earth (comparing it with the several calculations in The Political Survey of Great Britain, by Dr. Campbell, and in that of Jamaica, by Mr. Long.) "Now *all* the inhabitants of the province of Quebec," says this very act, "amounted at the conquest to above sixty-five thousand [only,] professing the religion of the church of Rome, and enjoying an established form of constitution and system of laws." B.V.

[6] "Dr. Franklin (says Mr. Kalm the Swede,) and several other gentlemen, frequently told me, that a powerful Indian, who possessed Rhode Island, had sold it to the English for a pair of spectacles: it is large enough for a prince's domain, and makes a peculiar government at present. This Indian knew how to set a true value upon a pair of spectacles: for undoubtedly if those glasses were not so plentiful, and only a few of them could be found, they would, on account of their great use, bear the same price with diamonds." See Kalm's Travels into North America, Vol. I. p. 386, 387. "At the time when the Swedes first arrived, they bought land at a very inconsiderable price. For a piece of baize, or a pot full of brandy, or the like, they could get a piece of ground, which at present would be worth more than 290*l.* sterling." *Ib.* Vol. II. p. 118.—The truth is, that the Indians considered their lands as mere *hunting-manors*, and not as farms. B. V.

[7] To guard against the incursions of the Indians, a plan was sent over to America (and, as I think, by authority) suggesting the expediency of clearing away the woods and bushes from a tract of land, a mile in breadth, and extending along the back of the colonies. Unfortunately, besides the large expence of this undertaking (which, if one acre cost 2*l.* sterling, and six hundred and forty acres make a square mile, is 128,000*l.* *first cost* for every 100 miles) it was forgotten, that the Indians, like other people, knew the difference between day and night, and that a mile of advance and another of retreat were nothing to the celerity of such an enemy.—This plan, it is said, was the work of Dean Tucker; and possibly might contain many other particulars. The plans of Doctor Franklin and Governor Pownall appear much more feasible. B. V.

[8] "According to a plan which had been proposed by Governor Pownall, and approved of by congress."—Administration of the Colonies, Vol. II. p. 143. B. V.

[9] This plan of union, it will appear from the next page, was rejected; and another proposed to be substituted by the English minister, which had for its chief object, the taking power from the *people* in the colonies in order to give it to the *crown*. B. V.

ALBANY PAPERS CONTINUED.

I. LETTER to Governor Shirley, concerning the Imposition of direct Taxes upon the Colonies, without their Consent.^[10]

Tuesday Morning.

SIR,

I return you the loose Sheets of the plan, with thanks to your excellency for communicating them.

I apprehend, that excluding the people of the colonies from all share in the choice of the grand council will give extreme dissatisfaction; as well as the taxing them by act of parliament, where they have no representation. It is very possible, that this general government might be as well and faithfully administered without the people, as with them; but where heavy burdens are to be laid upon them, it has been found useful, to make it as much as possible their own act; for they bear better, when they have, or think they have, some share in the direction; and when any public measures are generally grievous, or even distasteful, to the people, the wheels of government move more heavily.

FOOTNOTE:

^[10] These letters to Governor Shirley first appeared in the London Chronicle for Feb. 6-8, 1766, with an introduction signed *A Lover of Britain*. In the beginning of the year 1776, they were republished in Almon's Remembrancer, with an additional prefatory piece, under the signature of *A Mourner over our Calamities*.—I shall explain the subject of them in the words of one of these writers. "The Albany Plan of Union was sent to the government here for approbation: had it been approved and established by authority from hence, English America thought itself sufficiently able to cope with the French, without other assistance; several of the colonies having alone, in former wars, withstood the whole power of the enemy, unassisted not only by the mother-country, but by any of the neighbouring provinces.—The plan, however, was not approved here;

but a *New one* was formed instead of it; by which it was proposed, that 'the governors of all the colonies, attended by one or two members of their respective councils, should assemble, and concert measures for the defence of the whole, erect forts where they judged proper, and raise what troops they thought necessary, with power to draw on the treasury here for the sums that should be wanted, and the treasury to be reimbursed by a *tax laid on the colonies by act of parliament*.'—This *New plan* being communicated by Governor Shirley to a gentleman of Philadelphia (Dr. Franklin) then in Boston (who hath very eminently distinguished himself, before and since that time, in the literary world, and whose judgment, penetration, and candor, as well as his readiness and ability to suggest, forward, or carry into execution, every scheme of public utility, hath most deservedly endeared him, not only to our fellow-subjects throughout the continent of North America, but to his numberless friends on this side the Atlantic) occasioned the following remarks from him, which perhaps may contribute in some degree to its being laid aside. As they very particularly show the then sentiments of the Americans on the subject of a parliamentary tax, before the French power in that country was subjected, and before the late restraints on their commerce; they satisfy me, and I hope they will convince your readers (contrary to what has been advanced by some of your correspondents) that those particulars have had no share in producing the present opposition to such a tax, nor in disturbances occasioned by it, which these papers indeed do almost prophetically foretel. For this purpose, having accidentally fallen into my hands, they are communicated to you by one who is, not *partially*, but in the *most enlarged sense*,

"A LOVER OF BRITAIN." B. V.

II. LETTER to the same; concerning direct Taxes in the Colonies imposed without Consent, indirect Taxes, and the Albany Plan of Union.

Wednesday Morning.

SIR,

I mentioned it yesterday to your excellency as my opinion, that excluding the people of the colonies from all share in the choice of the grand council would probably give extreme dissatisfaction, as well as the taxing them by act of parliament, where they have no representation. In matters of general concern to the people, and especially where burdens are to be laid upon them; it is of use to consider, as well what they will be apt to think and say, as what they ought to think: I shall therefore, as your excellency requires it of me, briefly mention what of either kind occurs to me on this occasion.

First, they will say, and perhaps with justice, that the body of the people in the colonies are as loyal, and as firmly attached to the present constitution, and reigning family, as any subjects in the king's dominions.

That there is no reason to doubt the readiness and willingness of the representatives they may choose, to grant from time to time such supplies for the defence of the country, as shall be judged necessary, so far as their abilities will allow.

That the people in the colonies, who are to feel the immediate mischiefs of invasion and conquest by an enemy, in the loss of their estates, lives, and liberties, are likely to be better judges of the quantity of forces necessary to be raised and maintained, forts to be built and supported, and of their own abilities to bear the expence than the parliament of England, at so great a distance.

That governors often come to the colonies merely to make fortunes, with which they intend to return to Britain; are not always men of the best abilities or integrity; have many of them no estates here, nor any natural connections with us, that should make them heartily concerned for our welfare; and might possibly be fond of raising and keeping up more forces

than necessary, from the profits accruing to themselves, and to make provision for their friends and dependents.

That the counsellors in most of the colonies, being appointed by the crown, on the recommendation of governors, are often persons of small estates, frequently dependent on the governors for offices, and therefore too much under influence.

That there is therefore great reason to be jealous of a power, in such governors and councils, to raise such sums as they shall judge necessary, by drafts on the lords of the treasury, to be afterwards laid on the colonies by act of parliament, and paid by the people here; since they might abuse it, by projecting useless expeditions, harassing the people, and taking them from their labour to execute such projects, merely to create offices and employments, and gratify their dependents, and divide profits.

That the parliament of England is at a great distance, subject to be misinformed and misled by such governors and councils, whose united interests might probably secure them against the effect of any complaint from hence.

That it is supposed an undoubted right of Englishmen, not to be taxed but by their own consent, given through their representatives:

That the colonies have no representatives in parliament.

That to propose taxing them by parliament, and refuse them the liberty of choosing a representative council, to meet in the colonies, and consider and judge of the necessity of any general tax, and the quantum, shows a suspicion of their loyalty to the crown, or of their regard for their country, or of their common sense and understanding; which they have not deserved.

That compelling the colonies to pay money without their consent, would be rather like raising contributions in an enemy's country, than taxing of Englishmen for their own public benefit.

That it would be treating them as a conquered people, and not as true British subjects.

That a tax laid by the representatives of the colonies might be easily lessened as the occasions should lessen; but, being once laid by parliament under the influence of the representations made by governors, would

probably be kept up, and continued for the benefit of governors; to the grievous burthen and discontentment of the colonies, and prevention of their growth and increase.

That a power in governors, to march the inhabitants from one end of the British and French colonies to the other, being a country of at least one thousand five hundred miles long, without the approbation or the consent of their representatives first obtained to such expeditions, might be grievous and ruinous to the people, and would put them upon a footing with the subjects of France in Canada, that now groan under such oppression from their governor, who for two years past has harrassed them with long and destructive marches to Ohio.

That if the colonies in a body may be well governed by governors and councils appointed by the crown, without representatives; particular colonies may as well, or better be so governed; a tax may be laid upon them all by act of parliament for support of government; and their assemblies may be dismissed as an useless part of the constitution.

That the powers proposed by the Albany plan of union, to be vested in a grand council representative of the people, even with regard to military matters, are not so great, as those which the colonies of Rhode Island and Connecticut are entrusted with by their charters, and have never abused; for by this plan, the president general is appointed by the crown, and controls all by his negative; but in those governments, the people choose the governor, and yet allow him no negative.

That the British colonies bordering on the French are properly frontiers of the British empire; and the frontiers of an empire are properly defended at the joint expence of the body of the people in such empire:—it would now be thought hard by act of parliament to oblige the Cinque ports or sea coasts of Britain, to maintain the whole navy, because they are more immediately defended by it, not allowing them at the same time a vote in choosing members of the parliament; and, as the frontiers of America bear the expence of their own defence, it seems hard to allow them no share in voting the money, judging of the necessity and sum, or advising the measures.

That besides the taxes necessary for the defence of the frontiers, the colonies pay yearly great sums to the mother-country unnoticed:—for 1.

Taxes paid in Britain by the landholder or artificer must enter into and increase the price of the produce of land and manufactures made of it; and great part of this is paid by consumers in the colonies, who thereby pay a considerable part of the British taxes.

2. We are restrained in our trade with foreign nations; and where we could be supplied with any manufacture cheaper from them, but must buy the same dearer from Britain, the difference of price is a clear tax to Britain.

3. We are obliged to carry a great part of our produce directly to Britain; and where the duties laid upon it lessen its price to the planter, or it sells for less than it would in foreign markets, the difference is a tax paid to Britain.

4. Some manufactures we could make, but are forbidden, and must take them of British merchants: the whole price is a tax paid to Britain.

5. By our greatly encreasing the demand and consumption of British manufactures, their price is considerably raised of late years; the advantage is clear profit to Britain, and enables its people better to pay great taxes; and much of it being paid by us, is clear tax to Britain.

6. In short, as we are not suffered to regulate our trade, and restrain the importation and consumption of British superfluities (as Britain can the consumption of foreign superfluities) our whole wealth centers finally amongst the merchants and inhabitants of Britain; and if we make them richer, and enable them better to pay their taxes, it is nearly the same as being taxed ourselves, and equally beneficial to the crown.

These kind of secondary taxes, however, we do not complain of, though we have no share in the laying or disposing of them: but to pay immediate heavy taxes, in the laying, appropriation, and disposition of which, we have no part, and which perhaps we may know to be as unnecessary as grievous, must seem hard measure to Englishmen, who cannot conceive, that by hazarding their lives and fortunes in subduing and settling new countries, extending the dominion, and increasing the commerce of the mother-nation, they have forfeited the native rights of Britons; which they think ought rather to be given to them, as due to such merit, if they had been before in a state of slavery. — — —

These, and such kinds of things as these, I apprehend, will be thought and said by the people, if the proposed alteration of the Albany plan should take

place. Then the administration of the board of governors and council so appointed, not having the representative body of the people to approve and unite in its measures, and conciliate the minds of the people to them, will probably become suspected and odious; dangerous animosities and feuds will arise between the governors and governed; and every thing go into confusion.

Perhaps I am too apprehensive in this matter; but having freely given my opinion and reasons, your excellency can judge better than I, whether there be any weight in them, and the shortness of the time allowed me will I hope in some degree excuse the imperfections of this scrawl.

With the greatest respect and fidelity, I have the honour to be

your excellency's most obedient,

and most humble servant,

B. FRANKLIN.

III. LETTER to the same, on the Subject of uniting the Colonies more intimately with Great Britain, by allowing them Representatives in Parliament.

Boston, Dec. 22, 1754.

SIR,

Since the conversation your excellency was pleased to honour me with, on the subject of *uniting the colonies* more intimately with Great Britain, by allowing them *representatives in parliament*, I have something further considered that matter, and am of opinion, that such an union would be very acceptable to the colonies, provided they had a reasonable number of representatives allowed them; and that all the old acts of parliament restraining the trade or cramping the manufactures of the colonies be at the same time repealed, and the British subjects *on this side the water* put, in those respects, on the same footing with those in Great Britain, till the new parliament, representing the whole, shall think it for the interest of the whole to re-enact some or all of them: it is not that I imagine so many representatives will be allowed the colonies, as to have any great weight by their numbers; but I think there might be sufficient to occasion those laws to be better and more impartially considered, and perhaps to overcome the interest of a petty corporation, or of any particular set of artificers or traders in England, who heretofore seem, in some instances, to have been more regarded than all the colonies, or than was consistent with the general interest, or best natural good. I think too, that the government of the colonies by a parliament, in which they are fairly represented, would be vastly more agreeable to the people, than the method lately attempted to be introduced by royal instruction; as well as more agreeable to the nature of an English constitution, and to English liberty; and that such laws, as now seem to bear hard on the colonies, would (when judged by such a parliament for the best interest of the whole) be more cheerfully submitted to, and more easily executed.

I should hope too, that by such an union, the people of Great Britain, and the people of the colonies, would learn to consider themselves, as not belonging to different communities with different interest, but to one

community with one interest; which I imagine would contribute to strengthen the whole, and greatly lessen the danger of future separations.

It is, I suppose, agreed to be the general interest of any state, that its people be numerous and rich; men enow to fight in its defence, and enow to pay sufficient taxes to defray the charge; for these circumstances tend to the security of the state, and its protection from foreign power. But it seems not of so much importance, whether the fighting be done by John or Thomas, or the tax paid by William or Charles. The iron manufacture employs and enriches British subjects, but is it of any importance to the state, whether the manufacturer lives at Birmingham or Sheffield, or both; since they are still within its bounds, and their wealth and persons still at its command? Could the Goodwin Sands be laid dry by banks, and land equal to a large country thereby gained to England, and presently filled with English inhabitants, would it be right to deprive such inhabitants of the common privileges enjoyed by other Englishmen, the right of vending their produce in the same ports, or of making their own shoes; because a merchant or a shoemaker, living on the old land, might fancy it more for his advantage to trade or make shoes for them? Would this be right, even if the land were gained at the expence of the state? And would it not seem less right, if the charge and labour of gaining the additional territory to Britain had been borne by the settlers themselves? and would not the hardship appear yet greater, if the people of the new country should be allowed no representatives in the parliament enacting such impositions? Now I look on the colonies as so many countries gained to Great Britain, and more advantageous to it, than if they had been gained out of the seas around its coasts, and joined to its lands; for being in different climates, they afford greater variety of produce, and materials for more manufactures; and being separated by the ocean, they increase much more its shipping and seamen: and, since they are all included in the British empire, which has only extended itself by their means; and the strength and wealth of the parts is the strength and wealth of the whole; what imports it to the general state, whether a merchant, a smith, or a hatter, grow rich in Old or New England? and if, through increase of people, two smiths are wanted for one employed before, why may not the *new* smith be allowed to live and thrive in the *new* country, as well as the *old* one in the *old*? In fine, why should the countenance of a state be *partially* afforded to its people, unless it be most in favour of those who have most merit? and if there be any difference,

those who have most contributed to enlarge Britain's empire and commerce, increase her strength, her wealth, and the numbers of her people, at the risque of their own lives and private fortunes in new and strange countries, methinks ought rather to expect some preference. With the greatest respect and esteem, I have the honour to be

Your Excellency's most obedient

and humble Servant,

B. FRANKLIN.

[Plan for settling two Western Colonies in North America, with Reasons for the Plan, 1754](#)^[11].

The great country back of the Apalachian mountains, on both sides the Ohio, and between that river and the lakes is now well known, both to the English and French, to be one of the finest in North America, for the extreme richness and fertility of the land; the healthy temperature of the air, and mildness of the climate; the plenty of hunting, fishing, and fowling; the facility of trade with the Indians; and the vast convenience of inland navigation or water-carriage by the lakes and great rivers, many hundred of leagues around.

From these natural advantages it must undoubtedly (perhaps in less than another century) become a populous and powerful dominion; and a great accession of power, either to England or France.

The French are now making open encroachments on these territories, in defiance of our known rights; and, if we longer delay to settle that country, and suffer them to possess it,—these *inconveniences and mischiefs* will probably follow:

1. Our people, being confined to the country between the sea and the mountains, cannot much more increase in number; people increasing in proportion to their room and means of subsistence. (See the Observations on the Increase of Mankind, &c. Vol. II.)

2. The French will increase much more, by that acquired room and plenty of subsistence, and become a great people behind us.

3. Many of our debtors, and loose English people, our German servants, and slaves, will probably desert to them, and increase their numbers and strength, to the lessening and weakening of ours.

4. They will cut us off from all commerce and alliance with the western Indians, to the great prejudice of Britain, by preventing the sale and consumption of its manufactures.

5. They will both in time of peace and war (as they have always done against New England) set the Indians on to harrass our frontiers, kill and

scalp our people, and drive in the advanced settlers; and so, in preventing our obtaining more subsistence by cultivating of new lands, they discourage our marriages, and keep our people from increasing; thus (if the expression may be allowed) killing thousands of our children before they are born. —
— —

If two strong colonies of English were settled between the Ohio and lake Erie, in the places hereafter to be mentioned,—these advantages might be expected:

1. They would be a great security to the frontiers of our other colonies; by preventing the incursions of the French and French Indians of Canada, on the back parts of Pensylvania, Maryland, Virginia, and the Carolinas; and the frontiers of such new colonies would be much more easily defended, than those of the colonies last mentioned now can be, as will appear hereafter.

2. The dreaded junction of the French settlements in Canada with those of Louisiana would be prevented.

3. In case of a war, it would be easy, from those new colonies, to annoy Louisiana, by going down the Ohio and Mississippi; and the southern part of Canada, by sailing over the lakes; and thereby confine the French within narrower limits.

4. We should secure the friendship and trade of the Miamis or Twigtwees (a numerous people, consisting of many tribes, inhabiting the country between the west end of lake Erie, and the south end of lake Hurons, and the Ohio) who are at present dissatisfied with the French, and fond of the English, and would gladly encourage and protect an infant English settlement in or near their country, as some of their chiefs have declared to the writer of this memoir. Further, by means of the lakes, the Ohio, and the Mississippi, our trade might be extended through a vast country, among many numerous and distant nations, greatly to the benefit of Britain.

5. The settlement of all the intermediate lands, between the present frontiers of our colonies on one side, and the lakes and Mississippi on the other, would be facilitated and speedily executed, to the great increase of Englishmen, English trade, and English power.

The grants to most of the colonies are of long narrow slips of land, extending west from the Atlantic to the South Sea. They are much too long for their breadth; the extremes at too great a distance; and therefore unfit to be continued under their present dimensions.

Several of the old colonies may conveniently be limited westward by the Allegeny or Apalachian mountains; and new colonies formed west of those mountains.

A single old colony does not seem strong enough to extend itself otherwise than inch by inch: it cannot venture a settlement far distant from the main body, being unable to support it: but if the colonies were united under one governor-general and grand council, agreeable to the Albany plan, they might easily, by their joint force, establish one or more new colonies, whenever they should judge it necessary or advantageous to the interest of the whole.

But if such union should not take place, it is proposed that two charters be granted, *each* for some considerable part of the lands west of Pennsylvania and the Virginian mountains, to a number of the nobility and gentry of Britain; with such Americans as shall join them in contributing to the settlement of those lands, either by paying a proportion of the expence of making such settlements, or by actually going thither in person, and settling themselves and families.

That by such charters it be granted, that every actual settler be intitled to a tract of [] acres for himself, and [] acres for every poll in the family he carries with him; and that every contributor of [] guineas be intitled to a quantity of acres, equal to the share of a single settler, for every such sum of [] guineas contributed and paid to the colony treasurer; a contributor for [] shares to have an additional share *gratis*; that settlers may likewise be contributors, and have right of land in both capacities.

That as many and as great privileges and powers of government be granted to the contributors and settlers, as his majesty in his wisdom shall think most fit for their benefit and encouragement, consistent with the general good of the British empire; for extraordinary privileges and liberties, with lands on easy terms, are strong inducements to people to hazard their persons and fortunes in settling new countries; and such powers of government as (though suitable to the circumstances, and fit to be trusted

with an infant colony) might be judged unfit, when it becomes populous and powerful; these might be granted for a term only; as the choice of their own governor for ninety-nine years; the support of government in the colonies of Connecticut and Rhode Island (which *now* enjoy that and other like privileges) being much less expensive, than in the colonies under the immediate government of the crown, and the constitution more inviting.

That the first contributors to the amount of [] guineas be empowered to choose a treasurer to receive the contribution.

That no contributions be paid till the sum of [] thousand guineas be subscribed.

That the money thus raised be applied to the purchase of the lands from the Six Nations and other Indians, and of provisions, stores, arms, ammunition, carriages, &c. for the settlers; who, after having entered their names with the treasurer, or person by him appointed to receive and enter them, are, upon public notice given for that purpose, to rendezvous at a place to be appointed, and march in a body to the place destined for their settlement, under the [charge] of the government to be established over them. Such rendezvous and march however not to directed, till the number of names of settlers entered, capable of bearing arms, amount at least to [] thousand. — — —

It is apprehended, that a great sum of money might be raised in America on such a scheme as this; for there are many who would be glad of any opportunity, by advancing a small sum at present, to secure land for their children, which might in a few years become very valuable; and a great number it is thought of actual settlers might likewise be engaged (some from each of our present colonies) sufficient to carry it into full execution by their strength and numbers; provided only, that the crown would be at the expence of removing the little forts the French have erected in their incroachments on his majesty's territories, and supporting a strong one near the falls of Niagara, with a few small armed vessels, or half-galleys to cruize on the lakes. * * * * * — — —

For the security of this colony in its infancy, a small fort might be erected and for some time maintained at Buffalonic on the Ohio, above the settlement; and another at the mouth of the Hioaga, on the south side of lake Erie, where a port should be formed, and a town erected, for the trade of the lakes.—The colonists for *this settlement* might march by land through Pennsylvania. — — —

The river Siotha, which runs into the Ohio about two hundred miles below Logs Town, is supposed the fittest seat for the *other colony*; there being for forty miles on each side of it and quite up to its heads a body of all rich land; the finest spot of its bigness in all North America, and has the particular advantage of sea-coal in plenty (even above ground in two places) for fuel, when the woods shall be destroyed. This colony would have the trade of the Miamis or Twigtwees; and should, at first, have a small fort near Hock-kockin, at the head of the river; and another near the mouth of Wabash. Sandoski, a French fort near the lake Erie, should also be taken; and all the little French forts south and west of the lakes, quite to the Mississippi, be removed, or taken and garrisoned by the English.—The colonists for this settlement might assemble near the heads of the rivers in Virginia, and march over land to the navigable branches of the Kanhawa, where they might embark with all their baggage and provisions, and fall into the Ohio, not far above the mouth of Siotha. Or they might rendezvous at Will's Creek, and go down the Mohingahela to the Ohio.

The fort and armed vessels at the strait of Niagara would be a vast security to the frontiers of these new colonies against any attempts of the French from Canada. The fort at the mouth of the Wabash would guard that river, the Ohio, and Cutava river, in case of any attempt from the French of Mississippi. (Every fort should have a small settlement round it; as the fort would protect the settlers, and the settlers defend the fort and supply it with provisions.) — — —

The difficulty of settling the first English colonies in America, at so great a distance from England, must have been vastly greater, than the settling these proposed new colonies: for it would be the interest and advantage of all the present colonies to support these new ones; as they would cover their

frontiers, and prevent the growth of the French power behind or near their present settlements; and the new country is nearly at equal distance from all the old colonies, and could easily be assisted from all of them.

And as there are already in the old colonies many thousands of families that are ready to swarm, wanting more land; the richness and natural advantage of the Ohio country would draw most of them thither, were there but a tolerable prospect of a safe settlement. So that the new colonies would soon be full of people; and from the advantage of their situation, become much more terrible to the French settlements, than those are now to us. The gaining of the back Indian trade from the French, by the navigation of the lakes, &c. would of itself greatly weaken our enemies:—it being now their principal support, it seems highly probable, that in time they must be subjected to the British crown, or driven out of the country.

Such settlements may better be made now, than fifty years hence, because it is easier to settle ourselves, and thereby prevent the French settling there as they seem now to intend, than to remove them when strongly settled.

If these settlements are postponed, then more forts and stronger, and more numerous and expensive garrisons must be established, to secure the country, prevent their settling, and secure our present frontiers; the charge of which may probably exceed the charge of the proposed settlements, and the advantage nothing near so great.

The fort at Oswego should likewise be strengthened, and some armed half-gallies, or other small vessels, kept there to cruise on lake Ontario, as proposed by Mr. Pownall in his paper laid before the commissioners at the Albany treaty^[12].

If a fort was also built at Tirondequat on lake Ontario and a settlement made there near the lake side, where the lands are said to be good, (much better than at Oswego;) the people of such settlements would help to defend both forts on any emergency^[13]

FOOTNOTES:

[11] For the occasion which produced this plan, see what follows. I apprehend it was given to Governor Pownall, 1754, for the purpose of being inserted in his memorial; but this point of anecdote I cannot sufficiently ascertain.

"Extract of a Memorial drawn up by Order of, and presented to his Royal Highness the Duke of Cumberland, 1756, by T. Pownall.

"In other parts of our frontier, that are not the immediate residence and country of Indians, some other species of barrier should be thought of, of which nothing can be more effectual than a barrier colony: but even this cannot be carried ... into execution and effect, without the previous measure of *entrepôts* in the country between us and the enemy.... All mankind must know, that no body of men, whether as an army, or as an emigration of colonists, can march from one country to another, through an inhospitable wilderness, without magazines; nor with any safety, without posts communicating among each other by practicable roads, to which to retire in case of accidents, repulse, or delay.

"It is a fact, which experience evinces the truth of, that we have always been able to outsettle the French; and have driven the Indians out of the country more by settling than fighting; and that whenever our settlements have been wisely and completely made, the French, neither by themselves nor their dogs of war, the Indians, have been able to remove us. It is upon this fact I found the propriety of the measure of settling a barrier colony in those parts of our frontiers, *which are not the immediate residence or hunting-grounds of our Indians*. This is a measure that will be effectual; and will not only in time pay its expence, but make as great returns as any of our present colonies do; will give a strength and unity to our dominions in North America; and give us possession of the country, as well as settlement in it. But above all this, the state and circumstances of our settlements render such a measure not only proper and eligible, but absolutely necessary. The English settlements, as they are at present circumstanced, are absolutely at a stand; they are settled up to the mountains: and in the mountains there is no where together land sufficient for a settlement large enough to subsist by itself, and to defend itself, and preserve a communication with the present settlements.

"If the English would advance one step further, or cover themselves where they are, it must be at once, by one large step over the mountains, with a numerous and military colony. Where such should be settled, I do not take upon me to say: at present I shall only point out the measure and the nature of it, by inserting two schemes, one of Mr. Franklin's, the other of your memorialist; and if I might indulge myself with scheming, I should imagine that two such were sufficient, and only requisite and proper: one at the back of Virginia, filling up the vacant space between the five nations and southern confederacy, and connecting, into one system, our barrier; the other somewhere in the Cohass or Connecticut river, or wherever best adapted to cover the New England colonies. These, with the little settlements mentioned above in the Indian countries, complete my idea of this branch." See Governor Pownall's Administration of the Colonies. Vol. II. p. 228-231, 5th edition.

The reader must carry along with him a distinction between the plans of Dr. Franklin and Governor Pownall here referred to. The first (which is before him) is particular, and proposes a plan for two settlements in the unlocated lands to the westward of Pennsylvania and the Virginian mountains, and is totally silent

with respect to a settlement in New England: the other treats of the mode of settling new colonies in North America in general, leaving the precise situation to be in some measure pointed out by the foregoing extract.

The copy from which this paper is printed, has appearances of being rather incorrectly taken from the original. B. V.

[12] See his work above quoted, Vol. II. p. 234. *et seq.* and p. 179. *et seq.* B. V.

[13] This whole proposal was neglected, though the French thought a considerable settlement very practicable, in order to get at the Ohio. See Governor Pownall, Vol. II. p. 236.

Dr. Franklin also failed in another proposal for settling to the south of the Ohio. B. V.

[Report of the Committee of Aggrievances of the Assembly of Pensylvania, dated Feb. 22, 1757.](#)^[14]

In obedience to the order of the house, we have drawn up the heads of the most important aggrievances that occur to us, which the people of this province with great difficulty labour under; the many infractions of the constitution (in manifest violation of the royal grant, the proprietary charter, the laws of this province, and of the laws, usages, and customs of our mother-country) and other matters; which we apprehend call aloud for redress.

They are as follow:

First, By the royal charter (which has ever been, ought to be, and truly is, the principal and invariable fundamental of this constitution) King Charles the Second did give and grant unto William Penn, his heirs and assigns, the province of Pensylvania; and also to him and his heirs, and his or their *deputies* or lieutenants, free, full, and absolute power, for the good and happy government thereof, to make and enact any laws, "according to their best discretion; by and with the advice, assent, and approbation of the *freemen* of the said country, or of their delegates or deputies;" for the raising of money, or any other end appertaining to the public state, peace, or safety of the said country. By the words of this grant, it is evident, that full powers are granted to the *deputies* and lieutenants of William Penn and his heirs, to concur with the people in framing laws for their protection and the safety of the province, according to their best discretion; independent of any instructions or directions they should receive from their *principals*. And it is equally obvious to your committee, that the *people* of this province and their representatives were interested in this royal grant; and by virtue thereof have an original right of legislation inherent in them; which neither the proprietors nor any other person whatsoever can divest them of, restrain, or abridge, without manifestly violating and destroying the letter, spirit, and design of this grant.

Nevertheless we unfortunately find, that the proprietaries of this province, regardless of this sacred fundamental of our rights and liberties, have so abridged and restricted their late and present *governor's* discretion in matters of legislation, by their illegal, impracticable, and unconstitutional instructions and prohibitions; that no bill for granting aids and supplies to our most gracious sovereign (be it ever so reasonable, expedient, and necessary for the defence of this his majesty's colony, and safety of his people) unless it be agreeable thereto, can meet with his approbation: by means whereof the many considerable sums of money which have been offered for those purposes, by the assemblies of this province (ever anxious to maintain his honour and rights,) have been rejected; to the great encouragement of his majesty's enemies, and the imminent danger of the loss of this colony.

Secondly, The representatives of the people in general assembly met, by virtue of the said royal grant, and the charter of privileges granted by the said William Penn, and a law of this province, have right to, and ought to enjoy all the powers and privileges of an assembly, according to the rights of the free-born subjects of England, and as is usual in any of the plantations in America: [also] it is an indubitable and now an uncontested right of the commons of England, to *grant aids* and supplies to his majesty in any manner they think most easy to themselves and the people; and they [also] are the sole judges of the *measure, manner and time* of granting and raising the same.

Nevertheless the proprietaries of this province, in contempt of the said royal grant, proprietary charter, and law of their colony, designing to subvert the fundamentals of this constitution, to deprive the assembly and people of their rights and privileges, and to assume an arbitrary and tyrannical power over the liberties and properties of his majesty's liege subjects, have so restrained their governors by the *despotic instructions* (which are not to be varied from, and are particularly directory in the framing and passing of money-bills and supplies to his majesty, as to the mode, measure, and time) that it is impossible for the assembly, should they lose all sense of their most essential rights, and comply with those instructions, to grant sufficient aids for the defence of this his majesty's province from the common enemy.

Thirdly, In pursuance of sundry acts of general assembly, approved of by the crown, [and] a natural right inherent in every man antecedent to all laws, the assemblies of this province have had the power of *disposing* of the *public* monies, that have been raised for the encouragement of trade and support of government, by the interest money arising by the loan of the bills of credit and the excise. No part of these monies was ever paid by the *proprietaries*, or ever raised on their estates; and therefore they can have no pretence of right to a voice in the disposition of them. They have ever been applied with prudent frugality to the honour and advantage of the public, and the king's immediate service, to the general approbation of the people: the credit of the government has been preserved, and the debts of the public punctually discharged. In short, no inconveniencies, but great and many advantages have accrued, from the assembly's prudent care and management of these funds.

Yet the proprietaries resolved to deprive the assemblies of the power and means of *supporting an agent* in England, and of prosecuting their complaints and remonstrating their aggrievances, when injured and oppressed, to his majesty and his parliament: and to rob them of this natural right (which has been so often approved of by their gracious sovereign) have, by their said instructions, prohibited their governor from giving his assent to any laws emitting or re-emitting any paper-currency or bills of credit, or for raising money by excise or any other method; unless the governor or commander in chief for the time being, by clauses to be inserted therein, has *a negative in the disposition* of the monies arising thereby; let the languishing circumstances of our trade be ever so great, and a further or greater medium be ever so necessary for its support.

Fourthly, By the laws and statutes of England, the chief rents, honours, and castles of the crown are taxed, and *pay their proportion* to the supplies that are granted to the king for the defence of the realm and support of government: his majesty, the nobility of the realm, and all the British subjects, do now actually contribute their proportion towards the defence of America in general, and this province in particular: and it is in a more especial manner the duty of the *proprietaries* to pay their proportion of a tax, for the immediate preservation of their own estates, in this province. To

exempt therefore any part of their estates from their reasonable part of this necessary burthen, it is unjust as it is illegal, and as new as it is arbitrary.

Yet the proprietaries, notwithstanding the general danger to which the nation and its colonies are exposed, and great distress of this province in particular, by their said instructions, have prohibited their governors from passing laws for the raising supplies for its defence; *unless* all their located, unimproved, and unoccupied lands, quit-rents, fines, and purchase monies on interest (the much greater part of their enormous estates in this colony) are expressly exempted from paying any part of the tax.

Fifthly, By virtue of the said royal charter, the proprietaries are invested with a power of doing every thing "which unto a compleat establishment of justice, unto courts and tribunals, forms of judicature, and manner of proceedings, do belong." It was certainly the import and design of this grant, that the courts of judicature should be formed, and the *judges* and officers thereof hold their commissions, in a manner not repugnant, but agreeable to the laws and customs of England: that thereby they might remain free from the influence of persons in power, the rights of the people might be preserved, and their properties effectually secured. That the guarantee, William Penn (understanding the said grant in this light) did, by his original frame of government, covenant and grant with the people, that the judges and other officers should hold their commissions during their *good behaviour, and no longer*.

Notwithstanding which, the governors of this province have, for many years past, granted all the commissions to the judges of the king's bench or supreme court of this province, and to the judges of the court of common pleas of the several counties, to be held during their *will and pleasure*; by means whereof, the said judges being subject to the influence and directions of the proprietaries and their governors, their favourites and creatures, the laws may not be duly administered or executed, but often wrested from their true sense; to serve particular purposes, the foundation of justice may be liable to be destroyed; and the lives, laws, liberties, privileges, and properties of the people thereby rendered precarious and altogether insecure; to the great disgrace of our laws, and the inconceivable injury of his majesty's subjects.

Your committee further beg leave to add, that besides these aggrievances, there are other hardships the people of this province have experienced, that call for redress.—The *inlistment of servants, without the least satisfaction* being made to the masters, has not only prevented the cultivation of our lands, and diminished the trade and commerce of the province, but is a burthen extremely unequal and oppressive to individuals. And should the practice continue, the consequence must prove very discouraging to the further settlement of this colony, and prejudicial to his majesty's future service.—Justice, therefore, demands, that satisfaction should be made to the masters of such inlisted servants; and that the right of masters to their servants be confirmed and settled.—But as those servants have been inlisted into his majesty's service for the general defence of America, and not of this province only, but all the colonies, and the nation in general, have and will receive equal benefit from their service; this satisfaction should be made at the expence of the nation, and not of the province only.

That the people now labour under *a burthen of taxes*, almost insupportable by so young a colony, for the defence of its long-extended frontier, of about two hundred miles from New Jersey to Maryland; without either of those colonies, or the three lower counties on Delaware, contributing their proportion thereto; though their frontiers are in a great measure covered and protected by our forts. And should the war continue, and with it this unequal burthen, many of his majesty's subjects in this province will be reduced to want, and the province, if not lost to the enemy, involved in debt, and sunk under its load.

That notwithstanding this weight of taxes, the assemblies of this province *have given to the general service* of the nation, five thousand pounds to purchase provisions for the troops under General Braddock; 2,985*l.* 0*s.* 11*d.* for clearing a road by his orders; 10,514*l.* 10*s.* 1*d.* to General Shirley, for the purchasing provisions for the New England forces; and expended the sum of 2,385*l.* 0*s.* 2½*d.* in supporting the inhabitants of Nova Scotia; which likewise we conceive ought to be a national expence.

And that his majesty's subjects, the merchants and insurers in England, as well as the merchants here and elsewhere, did during the last, and will during the present war, greatly suffer in their property, trade, and commerce, by the *enemy's privateers* on this coast, and at our capes, unless some method be fallen on to prevent it.

Wherefore your committee are of opinion, That the commissioners intended to be sent to England^[15], to solicit a memorial and redress of the many infractions and violations of the constitution; should also have it in charge, and be instructed to represent to our most gracious sovereign and his parliaments, the several unequal burthens and hardships before-mentioned;—and endeavour to procure satisfaction to the masters of such servants as have been inlisted, and the right of masters to their servants established and confirmed;—and obtain a repayment of the said several sums of money, some assistance towards defending our extensive frontier, and a vessel of war to protect the trade and commerce of this province.

Submitted to the correction of the house.

Feb. 22, 1757.

FOOTNOTES:

[14] The English colony-governments seem to have been considered as of three sorts. First, *provincial* governments; where the constitution originally depends on the king's commission, and instructions given to his governors; and the assemblies, held under that authority, have their share in making local ordinances not repugnant to English law. Next, *proprietary* governments; where a district of country is given by the crown to individuals, attended with certain legislative powers in the nature of a fief; with a provision for the sovereignty at home, and also for the fulfilment of the terms and end of the grant. Lastly, *charter* governments, where the fundamentals of the government are previously prescribed and made known to the settlers, being in no degree left subject to a governor's commission or proprietor's will. (See Blackstone, Vol. I. Introd. § 4.) —Good faith however to mankind seemed to require, that the constitutions, once begun under the provincial or proprietary governments, should remain unaltered (except for improvement) to the respective settlers, equally as in charter-governments. B. V.

[15] Dr. Franklin was afterwards appointed to present this address, as agent for the province of Pensylvania, and departed from America for the purpose in June 1757. See his life, Vol. I. p. 134. While in England, the more effectually to accomplish the business upon which he was sent, he wrote the article that follows in the next page, entitled An historical Review, &c. *Editor*.

An historical Review of the Constitution and Government of Pensylvania, from its Origin; so far as regards the several Points of Controversy which have, from Time to Time, arisen between the several Governors of that Province, and their several Assemblies. Founded on authentic Documents.

Those who would give up *essential liberty*, to purchase a little *temporary safety*, deserve neither *liberty* nor *safety*.

Griffiths, 1759^[16].

DEDICATION.

To the right honourable Arthur Onslow, speaker of the honourable House of Commons.

SIR,

The subject of the following sheets is an unhappy one: the controversy between the proprietaries and successive assemblies of Pensylvania: a controversy which has often embarrassed, if not endangered the public service: a controversy which has been long depending, and which still seems to be as far from an issue as ever.

Our blessed saviour reproaches the Pharisees with laying heavy burdens on men's shoulders, which they themselves would not stir with a single finger.

Our proprietaries, sir, have done the same; and, for the sake of the commonwealth, the province has hitherto submitted to the imposition: not indeed, without the most strenuous endeavours to lay the load equally, the fullest manifestations, and the strongest protestations against the violence put upon them.

Having been most injuriously misrepresented and traduced in print, by the known agents and dependents of those gentlemen their fellow subjects, they at last find themselves obliged to set forth an historical state of their case, and to make their appeal to the public upon it.

With the public opinion in their favour, they may with the more confidence lift up their eyes to the wisdom of parliament and the majesty of the crown, from whence alone they can derive an effectual remedy.

To your hands, sir, these papers are most humbly presented, for considerations so obvious, that they scarce need any explanation.

The Roman provinces did not stand more in need of patronage than ours: and such clients as we are would have preferred the integrity of Cato to the fortune of Cæsar.

The cause we bring is in fact the cause of all the provinces in one: it is the cause of every British subject in every part of the British dominions: it is the cause of every man who deserves to be free every where.

The propriety, therefore, of addressing these papers to a gentleman, who, for so many successive parliaments, with so much honour to himself and satisfaction to the public, has been at the head of the commons of Great Britain, cannot be called in question.

You will smile, sir, perhaps, as you read the references of a provincial assembly to the rights and claims of parliament; but we humbly conceive, it will be without the least mixture of resentment; those assemblies having nothing more in view, than barely to establish their privileges on the most rational and solid basis they could find, for the security and service of their constituents.

And you are humbly besought, sir, not to think the worse of this address, because it has been made without your permission or privity.

Nobody asks leave to pay a debt: every Briton is your debtor, sir: and all we have said, or can say, is but a poor composition for what we owe you.

You have conferred as much honour on the chair you fill, as the chair has conferred on you.

Probity and dignity are your characteristics.

May that seat always derive the same lustre from the same qualities!

This at least ought to be our prayer, whether it is or not within our expectations.

For the province of Pensylvania, as well as in my own private capacity, I have the honour to be, with the most profound respect,

Sir,

your most obedient humble servant,

THE EDITOR.

INTRODUCTION.

To obtain an infinite variety of purposes by a few plain principles is the characteristic of nature. As the eye is affected so is the understanding: objects at distance strike it according to their dimensions, or the quantity of light thrown upon them; near, according to their novelty or familiarity as they are in motion or at rest. It is the same with actions. A battle is all motion; a hero all glare: while such images are before us, we can attend to nothing else. Solon and Lycurgus would make no figure in the same scene with the king of Prussia; and we are at present so lost in a military scramble on the continent next us, in which it must be confessed we are deeply interested, that we have scarce time to throw a glance towards America, where we have also much at stake, and where, if any where, our account must be made up at last.

We love to stare more than to reflect, and to be indolently amused at our leisure, than to commit the smallest trespass on our patience by winding a painful tedious maze, which would pay us in nothing but knowledge.

But then as there are some eyes that can find nothing marvellous but what is marvellously great, so there are others equally disposed to marvel at what is marvellously little; and who can derive as much entertainment from this microscope in examining a mite, as Dr. —— in ascertaining the geography of the moon, or measuring the tail of a comet.

Let this serve as an excuse for the author of these sheets, if he needs any, for bestowing them on the transactions of a colony, till of late hardly mentioned in our annals; in point of establishment one of the last upon the British list, and in point of rank one of the most subordinate, as being not only subject, in common with the rest, to the crown, but also to the claims

of a *proprietary*, who thinks he does them *honour* enough in governing them by *deputy*; consequently so much further removed from the royal eye, and so much the more exposed to the pressure of self-interested *instructions*.

Considerable, however, as most of them, for happiness of situation, fertility of soil, product of valuable commodities, number of inhabitants, shipping, amount of exportations, latitude of rights and privileges, and every other requisite for the being and well-being of society, and more considerable than any of them all for the celerity of its growth, unassisted by any human help but the vigour and virtue of its own excellent constitution.

A father and his family, the latter united by interest and affection, the former to be revered for the wisdom of his institutions and the indulgent use of his authority, was the form it was at first presented in. Those who were only ambitious of repose found it here; and as none returned with an evil report of the land, numbers followed: all partook of the leaven they found: the community still wore the same equal face: nobody aspired: nobody was oppressed: industry was sure of profit, knowledge of esteem, and virtue of veneration.

An assuming *landlord*, strongly disposed to convert free tenants into abject vassals, and to reap what he did not sow, countenanced and abetted by a few desperate and designing dependents, on the one side; and on the other, all who have sense enough to know their rights, and spirit enough to defend them, combined as one man against the said landlord and his encroachment in the form it has since assumed.

And surely a nation born to liberty like this, bound to leave it unimpaired as they received it from their fathers in perpetuity to their heirs, and interested in the conservation of it in every appendix to the British empire, the particulars of such a contest cannot be wholly indifferent.

On the contrary, it is reasonable to think, the first workings of power against liberty, and the natural efforts of unbiassed men to secure themselves against the first approaches of oppression, must have a captivating power over every man of sensibility and discernment amongst us.

Liberty it seems thrives best in the woods. America best cultivates what Germany brought forth. And were it not for certain ugly comparisons, hard to be suppressed, the pleasure arising from such a research would be without alloy.

In the feuds of Florence recorded by Machiavel, we find more to lament and less to praise. Scarce can we believe the first citizens of the ancient republics had such pretensions to consideration, though so highly celebrated in ancient story. As to ourselves, we need no longer have recourse to the late glorious stand of the French parliament to excite our emulation.

It is a known custom among farmers, to change their corn from season to season, for the sake of filling the bushel: and in case the wisdom of the age should condescend to make the like experiment in another shape, from hence we may learn, whither to repair for the proper species.

It is not however to be presumed, that such as have long been accustomed to consider the colonies in general as only so many dependencies on the council board, the board of trade, and the board of customs; or, as a hot-bed for causes, jobs and other pecuniary emoluments, and as formed as effectually by *instructions* as by *laws*, can be prevailed on to consider those patriot rustics with any degree of respect.

But how contemptibly soever these gentlemen may talk of the colonies, how cheap soever they may hold their assemblies, or how insignificant the planters and traders who compose them, truth will be truth, and principle, principle, notwithstanding.

Courage, wisdom, integrity, and honour are not to be measured by the place assigned them to act in, but by the trials they undergo and the vouchers they furnish: and if so manifested, need neither robes or titles to set them off.

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Mr. Penn's trustees averse to the said issue, till a provision was made, at the expence of the province, to render his heirs gainers by it.

Room left in the constitution of the province for self defence by force of arms, though the use of arms was not consistent with the principles of quakers.

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The assembly grants money in aid of the expedition against Carthagera.

The governor inlists indented servants upon that occasion; and the assembly apply the money they had given to indemnify the masters.

They give 3,000*l.* towards the public service, to be applied as his majesty should direct.

Also another sum of 4,000*l.* to furnish necessaries to the troops in Louisburgh.

And yet another sum of 5,000*l.* towards the intended expedition against Canada in the year 1746, by an addition of the like sum to their paper currency, and notwithstanding the above instruction, the governor gave his assent to the bill for that purpose.

The proprietaries of Pensylvania oppose the bill brought into parliament for restraining the northern colonies from issuing paper bills of credit, and make a merit of it in the province.

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The assembly's representation thereon.

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The assembly's answer, accompanied with their currency-bill.

The governor rejects it; but offers to pass a bill for striking a farther sum on a proper fund for sinking the same in a few years.

The assembly prudently avail themselves of the cautions in lord Holdernes's letter concerning *undoubted limits*, to decline taking any part in the broil, till the government of Virginia, as first concerned, should set the first example.

The governor revives the old controversy concerning the paper-money instruction.

Declares in another paper he had *undoubted assurance*, that part of his majesty's dominions *within* his government was at that time invaded, and demands supplies to arm the province, &c.

The assembly demur, and desire a short adjournment.

The governor not only persists in his former declaration, but maintains, that the case was the same, whether the invasion of the enemy was made in Virginia or Pennsylvania.

The assembly adjourn to May 6, and are assembled by the governor April 2, in order to lay before them papers from governor Dinwiddie; and demand a supply.

Debates in the assembly on the *quantum*, and a new adjournment.

Another session, and a message from the governor, accompanied with intelligence, that the French were before the fort built by the Virginians on the Ohio; with dispatches and a proposition from the governors of Boston and New York, for an union of the colonies, &c.

A joint bill for granting an aid of 10,000*l.* to the king, and 20,000*l.* for replacing torn and ragged bills, offered.

Amendments proposed by the governor.

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The governor's reply.

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And message to the governor before their adjournment.

They are re-convened by special summons on the occasion of Washington's defeat, and required to form chearful and vigorous resolutions for dislodging the enemy, in concurrence with Virginia.

The proceedings of the commissioners at Albany laid before them.

They prepare and present a bill for striking 35,000*l.* in bills of credit, and the rest for replacing defective bills.

Which the governor evades for want of sufficient powers to pass it.

Governor Morris's arrival at Philadelphia, and first speech to a new assembly.

The assembly's answer and adjournment.

Being assembled again, a letter from Sir Thomas Robinson, secretary of state, is laid before them; and the governor in his speech requires them to raise and keep up a considerable body of troops.

They present a bill for raising 40,000*l.* on the former plan; half of this sum for the public service; with a message, expressing their concern at a paragraph in the secretary of state's letter, by which it appeared their conduct had not been fairly represented at home.

The old instruction, and an opinion of the attorney-general's, pleaded by the governor in bar of his assent, unless the money was raised in a five-years fund.

A letter from Sir Thomas Robinson to the governor of Pennsylvania, dispatched at the same time with others of similar tendency to the other governors of the northern colonies.

Which the governor, in his comment upon it, endeavours to narrow the application of, to Pennsylvania only.

A message from the assembly, fully demonstrating, that Pennsylvania was not comprehended in the instruction insisted upon; and that in case it was, the present emergency was one of those, which, according to the very letter of that instruction, might be provided for notwithstanding: also desiring a sight of the instructions he himself had received from his principals.

A second message, in which they call upon the governor to give his assent to the bill, as what would answer all the purposes recommended to them in Sir Thomas Robinson's letter.

The governor's reply, declining the bill as before; because the supply might be otherwise raised, and evading the communication of his instructions.

The assembly's rejoinder, justifying the requisition they made of his instructions; and intimating, that an appeal to the crown was the only method left them of being continued in the use and benefit of their birthright, and charter liberties.

The governor questions their right to have these instructions laid before them, and endeavours to put them beside their point, by magnifying the preparations of the French, &c.

The assembly order the papers which had passed between the proprietaries and them to be printed, which till then they had avoided.

Their unanimous resolutions concerning the proprietary instructions, in which they declare it as their opinion, that the said instructions were the principal if not the sole obstruction to their bill: also the most essential points contained in their reply to the governor's charges against them.

A brief of the governor's sur-rejoinder.

Some general remarks.

The assembly make their appeal to the crown, inform the governor thereof, signify their inclination to adjourn till May, and give his instructions the *coup de grace*.

The governor's expostulatory message thereon.

He demands a copy of their minutes; they order him one when the printed copies were *finished*, and adjourn.

Upon Braddock's arrival in Virginia, they are re-assembled by special summons: the demands made by message on that occasion.

The governor reprimands them for having published Sir Thomas Robinson's letter in their minutes, and for not delivering him a copy of those minutes so soon as he had required them.

The assembly's answer thereto.

Orders and counter-orders to the printer of these minutes.

Two messages from the governor; one communicating a design of general Shirley to build a fort *within the limits* of his majesty's territories near *Crown Point*, to which the assembly is required to contribute; and the other, notifying first the arrival of Braddock's forces, and then the expectations entertained at home, that the colonies would raise an additional number of forces, furnish provisions, &c. all terminated with a kind of menace of the resentment of his majesty and the parliament, in case of a disappointment.

Twenty five thousand pounds granted to the king's use, to be raised by an emission of paper-bills to the same amount, and to be sunk by an extension of the excise for ten years.

Refused by the governor, on the old pretence of a contrary instruction.

A provision demanded for the expence of an Indian treaty.

A memorial to the assembly from Mr. Quincy, a commissioner from the government of Massachusetts Bay, expressing both his concern, that the governor could not be induced to pass the said money-bill, and his acknowledgments of the *chearfulness* shown by them in granting 10,000*l.* for victualling the forces to be employed in New England; being part of the money so granted; and urging them to find out some other means of rendering their purpose effectual.

The assembly resolve to raise the said sum on the credit of the province.

Another paper of acknowledgment from the said Mr. Quincy.

The governor refuses to return the said bill to the assembly; informs them the French had fitted out fifteen sail of the line, with six thousand land forces, and calls upon them to put the province into a state of defence, as the enemy could not be ignorant how plentiful and defenceless it was; yet advises a short adjournment.

They meet again, and a squabble arising between them about a bill merely provincial, he revives the former controversy.

The assembly's spirited answer to this captious message.

A remark thereon.

They are re-assembled.

A hardy assertion, concerning the paper-money act passed by governor Thomas, refuted by a fact.

An acknowledgment from the officers of the regular forces of certain presents made to them by the assembly.

The governor's message to the assembly, said to be founded on a representation of general Braddock's, requiring them to enable him to furnish the said general with provisions under proper convoys, &c. &c.

The assembly desire to have the general's letter laid before them, which the governor declines, and thereby occasions a new controversy.

The assembly send up two other bills; one of 10,000*l.* for exchanging old bills, and one of 15,000*l.* for the king's use, on the model of that formerly

passed by governor Thomas, and confirmed at home by the royal authority, since the instruction so often cited had been sent to the said governor.

Such amendments offered to it by the governor, as he could not but be pre-convinced would not be allowed.

The assembly adjourn till September; but are again convoked in July, on occasion of Braddock's defeat.

The governor's speech.

The assembly vote an aid of 50,000*l.* by a tax on all real and personal estates.

The governor makes a pompous offer in the proprietary's name, of certain lands west of Allegheny mountains, to such adventurers as would fight for them, and calls upon the assembly to afford some assistance to such as should accept the same.

A remonstrance which certain inhabitants of certain places were induced to present to the assembly.

The address of the assembly to the governor.

Their 50,000*l.* money-bill returned, with an amendment, by which the WHOLE *proprietary estate* was to be *exempted* from tax.

The message of the assembly to the governor on that occasion, desiring his reasons for that exemption.

The governor's reply, containing four curious reasons.

The assembly's rejoinder, refuting those reasons.

Other papers which passed between them at the same crisis.

The residue of Braddock's troops being recalled from the frontiers, notwithstanding an application of the assembly to the governor requesting their continuance, he calls upon the house to provide for the security of the Back-inhabitants.

A remark thereon.

The governor alarms and embarrasses them with petitions from certain persons requiring to be armed; *intelligence* of Indians actually set out, to

fall upon their frontiers; recommendations to provide by law against exporting provisions to the enemy, as a requisite to facilitate the reduction of Louisburgh; and *demands* of all manner of *things* for the assistance of colonel Dunbar, who, by orders from general Shirley, was again to proceed towards Fort Duquesne.

A proposal from certain gentlemen of Philadelphia to subscribe 500*l.* in lieu of the proprietary proportion of the tax in question, and upon a presumption that the proprietaries would honourably reimburse them.

The assembly send up their bill to the governor again, together with the said proposal, as containing by implication an acknowledgment that the tax was founded in equity, and also a farther security to the governor, in case he should give his assent to the bill.

Their message to the governor, correcting his manner of stating the Louisburgh point, and observing, that all required of them from New England was to prolong the excellent laws they had already made.

Some seasonable remarks.

The governor's verbal answer to the assembly's message concerning the money-bill, adhering to his amendment.

He contends for a militia.

The assembly order 1,000*l.* if so much remain in their treasury, to arm the Back-inhabitants.

They signify their purpose to adjourn, and refer the affair of a militia-bill to a new assembly.

Their proceedings at the next meeting: the governor demands an additional supply of provision to be sent to Albany, at the requisition of governor Phipps, for the use of the forces of Massachusetts Bay: and another supply for the provisional troops of Connecticut and Rhode Island, which he was *informed* were raised in addition to those already employed in the reduction of Crown-Point.

The assembly apply for a sight of Phipps's letter, which is refused.

The old controversy renewed.

A new one concerning the roads opened at the expence of the province for the convenience of the king's forces, which is carried on with much acrimony on both sides.

As a last effort for the public service the assembly authorize by vote a loan, or voluntary subscription, of 10,000*l.* to be raised in a fortnight, and refer the lenders to the next assembly for payment.

An apology for the length of this treatise; and a brief state of the province at this period.

The new assembly, after a session of four days, suffered to adjourn themselves without proceeding to business, for want of having the intelligence then in the governor's hands in due form imparted to them.

Being re-convoked, the governor informs them, that a party of French and Indians had passed the mountains, and were encamped within eight miles of the capital, and, after a liberal intermixture of upbraidings and self-sufficiencies, demands a supply; premising, that it might be raised by an emission of any sum in paper, provided funds were found for sinking it in five years, &c.

A reference to the only act of parliament extant, and that an ineffectual one, to prevent the oppressions practised by provincial governors.

Politics of various kinds, and from various quarters, presented to the assembly.

The assembly reduce and rectify the matter of alarm communicated by the governor; and advise such measures as might reclaim the Indians, &c.

A new message concerning the depredations of the Indians.

Sixty thousand pounds granted, to be struck in bills of credit, which were to be sunk by a tax of *six-pence* in the pound; and a poll-tax of *ten shillings* a head, yearly, for four years; which the governor refuses, and talks of *setting off* for the back counties.

A new message, reporting, that the Susquehanna Indians had offered their service to the province, provided it was accepted without delay.

Two messages from the assembly to the governor; the first concerning peace with the Indians, and the money bill; the other an answer to his

concerning the Susquehanna Indians.

They send up a bill for regulating the Indian trade.

The famous Kentish petition to the house of commons, in 1701, outdone by the mayor of Philadelphia, and one hundred and thirty three other inconsiderates, in a demand on their assembly to constitute a militia forthwith.

A petition of certain of the people called Quakers, for peaceable measures.

Progress of the controversy concerning the bill, which the governor offers to pass with a suspending clause.

Resolutions of the assembly hereupon.

Message from the governor concerning another Indian massacre, and demanding an immediate supply, &c.

Another from the assembly to him, justifying their bill both in matter and manner.

They send him up a militia bill.

The governor's invective against their whole conduct.

He passes the militia bill, under the specific declaration that it was an improper one.

He communicates to the assembly a discussion of Indian affairs, as prepared by his council; calls upon them to provide for a swarm of French banished out of Nova Scotia; and signifies, that the proprietaries had sent an order upon their receiver-general, for 5000*l.* as a free gift to the public.

Another remonstrance from the mayor of Philadelphia and his posse.

The assembly's reply to the governor's invective, which for the present they declined making use of.

The answer they did make use of.

Parley between the speaker and twenty-nine petitioners, or rather prescribers to the assembly.

Unanimous resolutions concerning the right of granting supplies to the crown; and a new money bill, out of which the proprietary estate was excepted, in consideration of the late grant of 5000*l*.

The assembly's message to the governor, explaining the use and pressing the dispatch of the Indian trade bill.

The governor's evasive answer.

His message desiring the advice of the house.

The assembly's answer.

Their message relative to the complaint of the Shawanese Indians.

Their resolution concerning the Indian trade bill; also concerning irregular and improper petitions.

They adjourn; and two months after re-assemble by special summons.

The governor's message on that occasion.

The message of the assembly in regard to the inlisting purchased servants.

General Shirley's letter of acknowledgment for a voluntary present of clothing sent by the province to his troops.

The assembly remind the governor of the Indian trade bill.

He returns it with amendments; as also their bill for extending the excise.

They adhere to their bills and assign their reasons.

The governor goes to Newcastle and the assembly adjourn.

Sir William Johnson's treaty with the six nations laid before them at their next meeting.

The governor appearing strongly inclined to involve the province in a war with the Delawares and Shawanese, some of the people called Quakers petition for specific measures.

The governor on the other hand alarms the house with an account of a number of people coming in a body to make *demands* upon them.

Their unanimity on that occasion.

The governor takes advantage of this incident to declare war against the said two Indian nations.

He also demands farther supplies, and intimates, that certain Indians, long subsisted by the province, were retiring in discontent, &c.

The assembly's answer.

The return made by the governor.

The resolutions of the assembly concerning a plan of military operations communicated to them by the governor.

They adjourn and are re-assembled.

The governor's message to them from a place called *Harris's Ferry*.

A petition of the association companies in Philadelphia, concerning the insufficiency of the militia law.

The reply of the assembly to the governor's message, accompanied with a bill for prohibiting provisions.

Another session, and two other messages from the governor, who was still posted at *Harris's Ferry*.

A money bill ordered, but postponed on the receipt of intelligence from Sir Charles Hardy and Sir William Johnson, that the Delawares and Shawanese were disposed to renew their alliance.

The governor proclaims a suspension of arms.

The assemblies' message to him, in which they again press him to pass the Indian trade bill; he promises to reconsider it; and a second time calls upon them to make some (additional) provision for his support.

Six members desire leave upon the adjournment to quit their seats, and at the next session present a written paper to the house as a testimonial thereof.

The resignation accepted and new writs issued.

The governor's message notifying the appointment of Lord Loudoun to be commander in chief in America; as also the act of parliament for raising a regiment of foreigners; recommending particularly, that the masters of

such indented servants as should engage in the service might be indemnified; and that, as by the expiration of an act passed in the Lower Counties, the Pennsylvanian act, lately passed, would expire also, they would prepare a proper bill for continuing the embargo, &c.

The assembly's reply; in which they show, the governor had invalidated the acts of all the other colonies by the law he had passed in the Lower Counties.

Their message concerning the excise and Indian trade bills; and his answer, that he would not recede from his amendments because of his proprietary instruction.

The instruction itself.

A remark; and the resolution of the house on the said instruction.

An act for emitting 4000*l.* in bills of credit, on behalf of the proprietaries, to supply so far the public occasions, till their receiver-general should be enabled by his receipts to make good their order.

An act, for striking and issuing the sum of 40,000*l.* for the king's use, sent up to the governor.

His message concerning an attack to be apprehended from the Indians about harvest time.

The assembly's answer.

A bill to permit the exportation of provisions for the king's service, notwithstanding the act of prohibition.

The governor's evasive conduct in relation thereto.

The assembly apprise him, July 5, of their intention to adjourn till August 2; and are told that he has no objection.

Notwithstanding which, he re-assembles them a fortnight afterwards, in the midst of their harvest, under the pretence of continuing the prohibition act.

Petition of the merchants in relation to the embargo.

The assembly's answer to the governor's message.

Another message to him concerning the preamble to the 4000*l.* bill on behalf of the proprietaries.

The governor's answer.

He sends down another preamble, which is not relished; refuses to pass the excise bill, and expunges the clause in the 40,000*l.* bill for taxing the proprietary estate.

His message concerning Indian affairs, and the expence of conducting them.

The assembly's answer.

The governor's reply.

A parting compliment from general Shirley to the province.

A new session, and the governor's message thereon.

The assembly's answer.

Governor Morris is superseded by governor Denny.

The governor complimented on his arrival.

The first speech a continuation of the old system.

The business of the assembly at a stand for a few days.

Their address; and message, requesting copies of his proprietary instructions.

Certain of the said instructions communicated.

A short comment upon them.

A message to the governor.

The governor's answer.

A bill prepared for striking the sum of 60,000*l.* for the king's use, to be sunk by an excise.

A conference on the said bill.

The assembly's answer to the governor's objections.

The governor's answer, signifying, that he *would not* give his assent to it.

Resolutions of the assembly after a *protest* against the *instructions*, and a *salvo* for their own *rights*, to prepare a new bill.

A new bill prepared and passed.

A brief apology for the conduct of the assembly on this occasion.

A remonstrance voted.

Conclusion; with a testimonial of commodore Sprag in behalf of the assembly.

AN APPENDIX, containing sundry original papers relative to the several points in controversy between the governors and assemblies of Pensylvania, viz.

1. The representation of the assembly to the proprietaries, requesting them to bear a proportionable part of Indian expences.

2. The proprietaries' answer; and assembly's remarks thereon.

3. A message from governor Morris, containing his additional arguments to show the *unreasonableness* of taxing the proprietary estate for its defence, and in support of the restrictions he was under in that respect.

4. The assembly's answer thereto.

5. The governor's reply.

6. The assembly's rejoinder.

[Note. *In the above four messages great part of the points in dispute between the proprietaries and people of the province are fully litigated; and the perusal of them is necessary to those who would have a thorough knowledge of the controversy.*]

7. The speaker of the Pensylvanian assembly's paper of authorities relating to the rights of the commons over money-bills, and in support of the 50,000*l.* bills passed by the assembly, so far as it relates to the taxing the proprietary estate within that province.

8. Report of a committee of assembly on the proprietary *instructions* relative to *money-bills*; clearly demonstrating, that though the proprietaries would at length appear to be willing to have their estates taxed in common with other estates, yet that were laws passed pursuant to these instructions, much the greatest part of their estate would be exempted, and that the sums necessary to be granted for his majesty's service in that province could not possibly be raised thereby, &c. &c. *A paper of importance.*

9. Mr. Thomas Penn's estimate of the *value* of the proprietary estate in Pennsylvania, upwards of twenty years ago; with remarks thereon, showing its prodigious increase since that time, the profits arising to the HOUSE OF PENN from their Indian purchases, and the huckstering manner in which they dispose of lands to the king's subjects in that province.

10. A specimen of the anonymous abuses continually published against the inhabitants of Pennsylvania, by the proprietaries and their agents, with Mr. W. Franklin's refutation thereof.

11. Some remarks on the conduct of the last and present governor, with regard to their employing the provincial forces as *regulars*, rather than as *rangers*; and showing the secret reason why that province is at present without a *militia-law*, notwithstanding the several bills which have been lately passed by the assembly for that purpose.

12. An account of sundry sums of money paid by the province for his majesty's service, *since the commencement of the present troubles in America.*

13. An extract from an original letter of Mr. Logan, containing, among other things, his opinion of the proprietary right to the government of the three Delaware counties; and which serves to account for the particular favour shown that government from time to time.

FOOTNOTE:

[16] This is the title of an octavo volume, consisting of nearly five hundred pages closely printed. It was written, as mentioned in the preceding note, while Dr. Franklin was in England as agent for the province of Pennsylvania, to further the ends of his mission, by removing the unfavourable impressions which had

taken place to the prejudice of the Pennsylvanians: and "it must be confessed," as a reviewer of the work observes, "they had in our author a most zealous and able advocate. His sentiments are manly, liberal, and spirited; his style close, nervous, and rhetorical. By a forcible display of the oppressions his clients have sustained, he inclines us to pity their condition; by an enumeration of their virtues he endeavours to remove the idea, which many have entertained, of their unimportance, and, abstracted from their consideration in a political light, they claim our regard by reason of their own personal merits." Interesting however as the controversy between the governors and the assembly of Pennsylvania may have been at the time, it is too little so now to justify the insertion of so voluminous an account of it in the present collection, and we shall content ourselves therefore with extracting the dedication, preface, and contents. It is singular, that neither the editor of Dr. Franklin's works, whom we have designated by the letters B. V.; nor Dr. Stuber, the continuator of his life, should have mentioned this publication. The work is indeed anonymous, but it is so well known to have been Dr. Franklin's, that in the common library catalogue of the British Museum it is ranked under his name. *Editor.*

*The Interest of Great Britain considered, with Regard to her Colonies, and the Acquisitions of
Canada and Guadaloupe.*^[17]

I have perused with no small pleasure the Letter addressed to Two Great Men, and the Remarks on that letter. It is not merely from the beauty, the force and perspicuity of expression, or the general elegance of manner conspicuous in both pamphlets, that my pleasure chiefly arises; it is rather from this, that I have lived to see subjects of the greatest importance to this nation publicly discussed without party views, or party heat, with decency and politeness, and with no other warmth, than what a zeal for the honour and happiness of our king and country may inspire; and this by writers, whose understanding (however they may differ from each other) appears not unequal to their candour and the uprightness of their intention.

But, as great abilities have not always the best information, there are, I apprehend, in the Remarks, some opinions not well founded, and some mistakes of so important a nature, as to render a few observations on them necessary for the better information of the public.

The author of the Letter, who must be every way best able to support his own sentiments, will, I hope, excuse me, if I seem officiously to interfere; when he considers, that the spirit of patriotism, like other qualities good and bad, is catching; and that his long silence since the Remarks appeared has made us despair of seeing the subject farther discussed by his masterly hand. The ingenious and candid remarker, too, who must have been misled himself before he employed his skill and address to mislead others, will certainly, since he declares he *aims at no seduction*^[18], be disposed to excuse even the weakest effort to prevent it.

And surely, if the general opinions that possess the minds of the people may possibly be of consequence in public affairs, it must be fit to set those opinions right. If there is danger, as the remarker supposes, that "extravagant expectations" may embarrass "a virtuous and able ministry," and "render the negotiation for peace a work of infinite difficulty"^[19]; there is no less danger that expectations too low, through want of proper

information, may have a contrary effect, may make even a virtuous and able ministry less anxious, and less attentive to the obtaining points, in which the honour and interest of the nation are essentially concerned; and the people less hearty in supporting such a ministry and its measures.

The people of this nation are indeed respectable, not for their numbers only, but for their understanding and their public spirit: they manifest the first, by their universal approbation of the late prudent and vigorous measures, and the confidence they so justly repose in a wise and good prince, and an honest and able administration; the latter they have demonstrated by the immense supplies granted in parliament unanimously, and paid through the whole kingdom with cheerfulness. And since to this spirit and these supplies our "victories and successes^[20]" have in great measure been owing, is it quite right, is it generous to say, with the remarker, that the people "had no share in acquiring them?" The mere mob he cannot mean, even where he speaks of the madness of the people; for the madness of the mob must be too feeble and impotent, armed as the government of this country at present is, to "overrule^[21]," even in the slightest instances, the virtue "and moderation" of a firm and steady ministry.

While the war continues, its final event is quite uncertain. The victorious of this year may be the vanquished of the next. It may therefore be too early to say, what advantages we ought absolutely to insist on, and make the *sine quibus non* of a peace. If the necessity of our affairs should oblige us to accept of terms less advantageous than our present successes seem to promise us; an intelligent people, as ours is, must see that necessity, and will acquiesce. But as a peace, when it is made, may be made hastily; and as the unhappy continuance of the war affords us time to consider, among several advantages gained or to be gained, which of them may be most for our interest to retain, if some and not all may possibly be retained; I do not blame the public disquisition of these points, as premature or useless. Light often arises from a collision of opinions, as fire from flint and steel; and if we can obtain the benefit of the *light*, without danger from the *heat* sometimes produced by controversy, why should we discourage it?

Supposing then, that heaven may still continue to bless his majesty's arms, and that the event of this just war may put it in our power to retain some of our conquests at the making of a peace; let us consider,

[1. *The security of a dominion, a justifiable and prudent ground upon which to demand cessions from an enemy.*]

Whether we are to confine ourselves to those possessions only that were "the objects for which we began the war"^[22]. This the remarker seems to think right, when the question relates to "*Canada, properly so called*; it having never been mentioned as one of those objects, in any of our memorials or declarations, or in any national or public act whatsoever." But the gentleman himself will probably agree, that if the cession of Canada would be a real advantage to us; we may demand it under his second head, as an "*indemnification for the charges incurred*" in recovering our just rights; otherwise, according to his own principles, the demand of Guadeloupe can have no foundation.—That "*our claims before the war were large enough for possession and for security too*"^[23], though it seems a clear point with the ingenious remarker, is, I own, not so with me. I am rather of the contrary opinion, and shall presently give my reasons.

But first let me observe, that we did not make those claims because they were large enough for security, but because we could rightfully claim no more. Advantages gained in the course of this war may increase the extent of our rights. Our claims before the war contained *some* security; but that is no reason why we should neglect acquiring *more*, when the demand of more is become reasonable. It may be reasonable in the case of America, to ask for the security recommended by the author of the Letter^[24], though it would be preposterous to do it in many other cases. His proposed demand is founded on the little value of Canada to the French; the right we have to ask, and the power we may have to insist on an indemnification for our expences; the difficulty the French themselves will be under of restraining their restless subjects in America from encroaching on our limits and disturbing our trade; and the difficulty on our parts of preventing encroachments, that may possibly exist many years without coming to our knowledge.

But the remarker "does not see why the arguments, employed concerning a security for a peaceable behaviour in Canada, would not be equally cogent for calling for the same security in Europe"^[25]. On a little farther reflection, he must I think be sensible, that the circumstances of the two cases are widely different.—*Here* we are separated by the best and clearest of

boundaries, the ocean, and we have people in or near every part of our territory. Any attempt to encroach upon us, by building a fort even in the obscurest corner of these islands, must therefore be known and prevented immediately. The aggressors also must be known, and the nation they belong to would be accountable for their aggression. In America it is quite otherwise. A vast wilderness, thinly or scarce at all peopled, conceals with ease the march of troops and workmen. Important passes may be seized within our limits, and forts built in a month, at a small expence, that may cost us an age, and a million, to remove. Dear experience has taught this. But what is still *worse*, the wide extended forests between our settlements and theirs, are inhabited by barbarous tribes of savages, that delight in war, and take pride in murder; subjects properly neither of the French nor English, but strongly attached to the former by the art and indefatigable industry of priests, similarity of superstitions, and frequent family alliances. These are easily, and have been continually, instigated to fall upon and massacre our planters, even in times of full peace between the two crowns; to the certain diminution of our people and the contraction of our settlements^[26]. And though it is known they are supplied by the French, and carry their prisoners to them, we can, by complaining, obtain no redress; as the governors of Canada have a ready excuse, that the Indians are an independent people, over whom they have no power, and for whose actions they are therefore not accountable. Surely circumstances so widely different may reasonably authorise different demands of security in America, from such as are usual or necessary in Europe.

The remarker however thinks, that our real dependance for keeping "France or any other nation true to her engagements, must not be in demanding securities which no nation whilst *independent* can give; but on our own strength and our own vigilance^[27]." No nation that has carried on a war with disadvantage, and is unable to continue it, can be said, under such circumstances, to be *independent*; and while either side thinks itself in a condition to demand an indemnification, there is no man in his senses, but will, *cæteris paribus*, prefer an indemnification, that is a cheaper and more effectual security than any other he can think of. Nations in this situation demand and cede countries by almost every treaty of peace that is made. The French part of the island of St. Christophers was added to Great Britain in circumstances altogether similar to those in which a few months may

probably place the country of Canada. Farther security has always been deemed a motive with a conqueror to be less moderate; and even the *vanquished* insist upon security as a reason for demanding what they acknowledge they could not otherwise properly ask. The security of the frontier of France *on the side of the Netherlands* was always considered in the negotiation, that began at Gertrudenburg, and ended with that war. For the same reason they demanded and had Cape Breton. But a war, concluded to the advantage of France, has always added something to the power, either of France, or the house of Bourbon. Even that of 1733, which she commenced with declarations of her having no ambitious views, and which finished by a treaty, at which the ministers of France repeatedly declared, that she desired nothing for herself, in effect gained for her Lorrain, an indemnification ten times the value of all her North American possessions. In short, security and quiet of princes and states have ever been deemed sufficient reasons, when supported by power, for disposing of rights; and such disposition has never been looked on as want of moderation. It has always been the foundation of the most general treaties. The security of Germany was the argument for yielding considerable possessions there to the Swedes: and the security of Europe divided the Spanish monarchy by the partition-treaty, made between powers who had no other right to dispose of any part of it. There can be no cession that is not supposed at least, to increase the power of the party to whom it is made. It is enough that he has a right to ask it, and that he does it not merely to serve the purposes of a dangerous ambition.

Canada, in the hands of Britain, will endanger the kingdom of France as little as any other cession; and from its situation and circumstances cannot be hurtful to any other state. Rather, if peace be an advantage, this cession may be such to all Europe. The present war teaches us, that disputes arising in America may be an occasion of embroiling nations; who have no concerns there. If the French remain in Canada and Louisiana, fix the boundaries as you will between us and them, we must border on each other for more than fifteen hundred miles. The people that inhabit the frontiers are generally the refuse of both nations, often of the worst morals and the least discretion; remote from the eye, the prudence, and the restraint of government. Injuries are therefore frequently, in some part or other of so long a frontier, committed on both sides, resentment provoked, the colonies first engaged, and then the mother countries. And two great nations can

scarce be at war in Europe, but some other prince or state thinks it a convenient opportunity to revive some ancient claim, seize some advantage, obtain some territory, or enlarge some power at the expence of a neighbour. The flames of war, once kindled, often spread far and wide, and the mischief is infinite. Happy it proved to both nations, that the Dutch were prevailed on finally to cede the New Netherlands (now the province of New York) to us at the peace of 1674; a peace that has ever since continued between us, but must have been frequently disturbed, if they had retained the possession of that country, bordering several hundred miles on our colonies of Pensylvania westward, Connecticut and the Massachusetts eastward. Nor is it to be wondered at, that people of different language, religion, and manners, should in those remote parts engage in frequent quarrels; when we find, that even the people of our *own colonies* have frequently been so exasperated against *each other*, in their disputes about boundaries, as to proceed to open violence and bloodshed.

[2. *Erecting forts in the back settlements, almost in no instance a sufficient security against the Indians and the French; but the possession of Canada implies every security, and ought to be had, while in our power.*]

But the remarker thinks we *shall be sufficiently secure in America, if we "raise English forts at such passes as may at once make us respectable to the French and to the Indian nations"*^[28]. The security desirable in America may be considered as of three kinds. 1. A security of possession, that the French shall not drive us out of the country. 2. A security of our planters from the inroads of savages, and the murders committed by them. 3. A security that the British nation shall not be obliged, on every new war, to repeat the immense expence occasioned by this, to defend its possessions in America. Forts, in the most important passes, may, I acknowledge, be of use to obtain the *first* kind of security: but as those situations are far advanced beyond the inhabitants, the expence of maintaining and supplying the garrisons will be very great even in time of full peace, and immense on every interruption of it; as it is easy for skulking-parties of the enemy, in such long roads through the woods, to intercept and cut off our convoys, unless guarded continually by great bodies of men.—The *second* kind of security will not be obtained by such forts, unless they were connected by a wall like that of China, from one end of our settlements to the other. If the

Indians, when at war, marched like the Europeans, with great armies, heavy cannon, baggage, and carriages; the passes through which alone such armies could penetrate our country, or receive their supplies, being secured, all might be sufficiently secure; but the case is widely different. They go to war, as they call it, in small parties; from fifty men down to five. Their hunting life has made them acquainted with the whole country, and scarce any part of it is impracticable to such a party. They can travel through the woods even by night, and know how to conceal their tracks. They pass easily between your forts undiscovered; and privately approach the settlements of your frontier inhabitants. They need no convoys of provisions to follow them; for whether they are shifting from place to place in the woods, or lying in wait for an opportunity to strike a blow, every thicket and every stream furnishes so small a number with sufficient subsistence. When they have surprised separately, and murdered and scalped a dozen families, they are gone with inconceivable expedition through unknown ways; and it is very rare that pursuers have any chance of coming up with them^[29]. In short, long experience has taught our planters, that they cannot rely upon forts as a security against Indians: the inhabitants of Hackney might as well rely upon the tower of London, to secure them against highwaymen and housebreakers.—As to the *third* kind of security, that we shall not, in a few years, have all we have now done, to do over again in America, and be obliged to employ the same number of troops, and ships, at the same immense expence, to defend our possessions there, while we are in proportion weakened here: such forts I think, cannot prevent this. During a peace, it is not to be doubted the French, who are adroit at fortifying, will likewise erect forts in the most advantageous places of the country we leave them; which will make it more difficult than ever to be reduced in case of another war. We know by the experience of this war, how extremely difficult it is to march an army through the American woods, with its necessary cannon and stores, sufficient to reduce a very slight fort. The accounts at the treasury will tell you, what amazing sums we have necessarily spent in the expeditions against two very trifling forts, Duquesne, and Crown Point. While the French retain their influence over the Indians, they can easily keep our long extended frontier in continual alarm, by a very few of those people; and with a small number of regulars and militia, in such a country, we find they can keep an army of ours in full employ for several years. We therefore shall not need to be told by our

colonies, that if we leave Canada, however circumscribed, to the French, "we have done nothing^[30];" we shall soon be made sensible *ourselves* of this truth, and to our cost.

I would not be understood to deny, that even if we subdue and retain Canada, some *few forts* may be of use to secure the goods of the traders, and protect the commerce, in case of any sudden misunderstanding with any tribe of Indians: but these forts will be best under the care of the colonies interested in the Indian trade, and garrisoned by their provincial forces, and at their own expence. Their own interest will then induce the American governments to take care of such forts in proportion to their importance, and see that the officers keep their corps full, and mind their duty. But any troops of ours placed there, and accountable here, would, in such remote and obscure places, and at so great a distance from the eye and inspection of superiors, soon become of little consequence, even though the French were left in possession of Canada. If the four independent companies, maintained by the crown in New York more than forty years, at a great expence, consisted, for most part of the time, of faggots chiefly; if their officers enjoyed their places as sinecures, and were only, as a writer^[31] of that country styles them, a kind of military monks; if this was the state of troops posted in a populous country, where the imposition could not be so well concealed; what may we expect will be the case of those, that shall be posted two, three, or four hundred miles from the inhabitants, in such obscure and remote places as Crown Point, Oswego, Duquesne, or Niagara? they would scarce be even faggots; they would dwindle to mere names upon paper, and appear no where but upon the muster-rolls.

Now *all the kinds* of security we have mentioned are obtained by subduing and *retaining* Canada. Our present possessions in America are secured; our planters will no longer be massacred by the Indians, who, depending absolutely on us for what are now become the necessities of life to them (guns, powder, hatchets, knives, and clothing) and having no other Europeans near, that can either supply them, or instigate them against us; there is no doubt of their being always disposed, if we treat them with common justice, to live in perpetual peace with us. And with regard to France, she cannot, in case of another war, put us to the immense expence of defending that long extended frontier; we shall then, as it were, have our backs against a wall in America; the sea coast will be easily protected by

our superior naval power: and here "our own watchfulness and our own strength" will be properly, and cannot but be successfully employed. In this situation, the force, now employed in that part of the world, may be spared for any other service here or elsewhere; so that both the offensive and defensive strength of the British empire, on the whole, will be greatly increased.

But to leave the French in possession of Canada, *when it is in our power to remove them, and depend* (as the remarker proposes) *on our own* "strength and watchfulness^[32]" *to prevent the mischiefs that may attend it, seems neither safe nor prudent.* Happy as we now are, under the best of kings, and in the prospect of a succession promising every felicity a nation was ever blessed with; happy too in the wisdom and vigour of every part of the administration; we cannot, we ought not to promise ourselves the uninterrupted continuance of those blessings. The safety of a considerable part of the state, and the interest of the whole, are not to be trusted to the wisdom and vigour of *future administrations*; when a security is to be had more effectual, more constant, and much less expensive. They, who can be moved by the apprehension of dangers so remote, as that of the future independence of our colonies (a point I shall hereafter consider) seem scarcely consistent with themselves, when they suppose we may rely on the wisdom and vigour of an administration for their safety.—I should indeed think it less material whether Canada were ceded to us or not, if I had in view only the security of *possession* in our colonies. I entirely agree with the remarker, that we are in North America "a far greater continental as well as naval power;" and that only cowardice or ignorance can subject our colonies there to a French conquest. But for the same reason I disagree with him widely upon another point.

[3. *The blood and treasure spent in the American wars, not spent in the cause of the colonies alone.*]

I do not think, that our "blood and treasure has been expended," as he intimates, "*in the cause of the colonies*," and that we are "making conquests for them^[33];" yet I believe this is too common an error. I do not say, they are altogether unconcerned in the event. The inhabitants of them are, in common with the other subjects of Great Britain, anxious for the glory of

her crown, the extent of her power and commerce, the welfare and future repose of the whole British people. They could not therefore but take a large share in the affronts offered to Britain; and have been animated with a truly British spirit to exert themselves beyond their strength, and against their evident interest. Yet so unfortunate have they been, that their virtue has made against them; for upon no better foundation than this have they been supposed the authors of a war, carried on for their advantage only. It is a great mistake to imagine, that the American country in question between Great Britain and France is claimed as the property of any *individuals or public body in America*; or that the possession of it by Great Britain is likely, in any lucrative view, to redound at all to the advantage of any person there. On the other hand, the bulk of the inhabitants of North America are *land-owners*, whose lands are inferior in value to those of Britain, only by the want of an equal number of people. It is true, the accession of the large territory claimed before the war began (especially if that be secured by the possession of Canada) will tend to the increase of the British subjects faster, than if they had been confined within the mountains: yet the increase within the mountains only would evidently make the comparative population equal to that of Great Britain much sooner than it can be expected, when our people are spread over a country six times as large. I think this is the only point of light in which this question is to be viewed, and is the only one in which any of the colonies are concerned.—No colony, no possessor of lands in any colony, therefore wishes for conquests, or can be benefitted by them, otherwise than as they may be a means of *securing peace on their borders*. No considerable advantage has resulted to the colonies by the conquests of this war, or can result from confirming them by the peace, but what they must enjoy in common with the rest of the British people; with this evident drawback from their share of these advantages, that they will necessarily lessen, or at least prevent the increase of the value of what makes the principal part of their private property [their land]. A people, spread through the whole tract of country on this side the Mississippi, and secured by Canada in our hands, would probably for some centuries find employment in agriculture, and thereby free us at home effectually from our fears of American manufactures. Unprejudiced men well know, that all the penal and prohibitory laws that ever were thought on will not be sufficient to prevent manufactures in a country, whose inhabitants surpass the number that can subsist by the

husbandry of it. That this will be the case in America soon, if our people remain confined within the mountains, and almost as soon should it be unsafe for them to live beyond, though the country be ceded to us, no man acquainted with political and commercial history can doubt. Manufactures are founded in poverty: it is the multitude of poor without land in a country, and who must work for others at low wages or starve, that enables undertakers to carry on a manufacture, and afford it cheap enough to prevent the importation of the same kind from abroad, and to bear the expence of its own exportation.—But no man, who can have a piece of land of his own, sufficient by his labour to subsist his family in plenty, is poor enough to be a manufacturer, and work for a master. Hence, while there is land enough in America for our people, there can never be manufactures to any amount or value. It is a striking observation of a very *able pen*^[34], that the natural livelihood of the thin inhabitants of a forest country is hunting; that of a greater number, pasturage: that of a middling population, agriculture; and that of the greatest, manufactures; which last must subsist the bulk of the people in a full country, or they must be subsisted by charity, or perish. The extended population, therefore, that is most advantageous to Great Britain, will be best effected, because only effectually secured, by our possession of Canada.

So far as the *being* of our present colonies in North America is concerned, I think indeed with the remarker, that the French there are not "*an enemy to be apprehended*"^[35];"—but the expression is too vague to be applicable to the present, or indeed to any other case. Algiers, Tunis, and Tripoli, unequal as they are to this nation in power and numbers of people, are enemies to be still apprehended; and the Highlanders of Scotland have been so for many ages, by the greatest princes of Scotland and Britain. The wild Irish were able to give a great deal of disturbance even to Queen Elizabeth, and cost her more blood and treasure than her war with Spain. Canada, in the hands of France, has always stunted the growth of our colonies, in the course of this war, and indeed before it, has disturbed and vexed even the best and strongest of them; has found means to murder thousands of their people, and unsettle a great part of their country. Much more able will it be to starve the growth of an infant settlement. Canada has also found means to make this nation spend two or three millions a year in America; and a people, how small soever, that in their present situation, can

do this as often as we have a war with them, is, methinks, "an enemy to be apprehended."

Our North American colonies are to be considered as the *frontier of the British empire* on that side. The frontier of any dominion being attacked, it becomes not merely "the cause" of the people immediately attacked (the inhabitants of that frontier) but properly "the cause" of the whole body. Where the frontier people owe and pay obedience, there they have a right to look for protection: no political proposition is better established than this. It is therefore invidious, to represent the "blood and treasure" spent in this war, as spent in "the cause of the colonies" only; and that they are "absurd and ungrateful," if they think we have done nothing, unless we "make conquests for them," and reduce Canada to gratify their "vain ambition," &c. It will not be a conquest for *them*, nor gratify any vain ambition of theirs. It will be a conquest for the *whole*; and all our people will, in the increase of trade, and the ease of taxes, find the advantage of it. Should we be obliged at any time, to make a war for the protection of our commerce, and to secure the exportation of our manufactures, would it be fair to represent such a war, merely as blood and treasure spent in the cause of the weavers of Yorkshire, Norwich, or the West; the cutlers of Sheffield, or the button-makers of Birmingham? I hope it will appear before I end these sheets, that if ever there was a national war, this is truly such a one: a war in which the interest of the whole nation is directly and fundamentally concerned. Those, who would be thought deeply skilled in human nature, affect to discover self-interested views every where at the bottom of the fairest, the most generous conduct. Suspicions and charges of this kind meet with ready reception and belief in the minds even of the multitude, and therefore less acuteness and address, than the remarker is possessed of, would be sufficient to persuade the nation generally, that all the zeal and spirit, manifested and exerted by the colonies in this war, was only in "their own cause," to "make conquests for themselves," to engage us to make more for them, to gratify their own "vain ambition."

But should they now humbly address the mother-country in the terms and the sentiments of the remarker; return her their grateful acknowledgments for the blood and treasure she had spent in "their cause;" confess that enough had not been done "for them;" allow that "English forts, raised in proper passes, will, with the wisdom and vigour of her administration," be a

sufficient future protection; express their desires that their people may be confined within the mountains, lest [if] they are suffered to spread and extend themselves in the fertile and pleasant country on the other side, they should "increase infinitely from all causes," "live wholly on their own labour" and become independent; beg therefore that the French may be suffered to remain in possession of Canada, as their neighbourhood may be useful to prevent our increase, and the removing them may "in its consequences be even dangerous^[36]:"—I say, should such an address from the colonies make its appearance here (though, according to the remarker, it would be a most just and reasonable one) would it not, might it not with more justice be answered:—We understand you, gentlemen, perfectly well: you have only your own interest in view: you want to have the people confined within your present limits, that in a few years the lands you are possessed of may increase tenfold in value! you want to reduce the price of labour, by increasing numbers on the same territory, that you may be able to set up manufactures and vie with your mother-country! you would have your people kept in a body, that you may be more able to dispute the commands of the crown, and obtain an independency. You would have the French left in Canada, to exercise your military virtue, and make you a warlike people, that you may have more confidence to embark in schemes of disobedience, and greater ability to support them! You have tasted too, the sweets of TWO OR THREE MILLIONS sterling per annum spent among you by our fleets and forces, and you are unwilling to be without a pretence for kindling up another war, and thereby occasioning a repetition of the same delightful doses! But, gentlemen, allow us to understand *our* interest a little likewise: we shall remove the French from Canada, that you may live in peace, and we be no more drained by your quarrels. You shall have land enough to cultivate, that you may have neither necessity nor inclination to go into manufactures; and we will manufacture for you, and govern you.

A reader of the Remarks may be apt to say, if this writer would have us restore Canada, on principles of moderation, how can we, consistent with those principles, retain Guadaloupe, which he represents of so much greater value!—I will endeavour to explain this, because by doing it I shall have an opportunity of showing the truth and good sense of the answer to the interested application I have just supposed: The author then is only apparently and not really inconsistent with himself. If we can obtain the credit of moderation by restoring Canada, it is well: but we should,

however, restore it at *all events*; because it would not only be of no use to us; but "the possession of it (in his opinion) may in its consequences be dangerous^[37]." As how? Why, plainly, (at length it comes out) if the French are not left there to check the growth of our colonies, "they will extend themselves almost without bounds into the inland parts, and increase infinitely from all causes; becoming a numerous, hardy, independent people; possessed of a strong country, communicating little or not at all with England, living wholly on their own labour, and in process of time knowing little and enquiring little about the mother-country." In short, according to this writer, our present colonies are large enough and numerous enough; and the French ought to be left in North America to prevent their increase, lest they become not only useless, but dangerous to Britain. I agree with the Gentleman, that with Canada in our possession, our people in America will increase amazingly. I know, that their common rate of increase, where they are not molested by the enemy, is doubling their numbers every twenty-five years, by natural generation only; exclusive of the accession of foreigners^[38]. I think this increase continuing would probably, in a century more, make the number of British subjects on that side the water more numerous than they now are on this; But,

[4. *Not necessary that the American colonies should cease being useful to the mother-country. Their preference over the West-Indian colonies stated.*]

I am far from entertaining on that account, any fears of their becoming either useless or dangerous to us; and I look on those fears to be merely imaginary, and without any probable foundation.—The remarker is reserved in giving his reasons; as in his opinion this "is not a fit subject for discussion."—I shall give mine, because I conceive it a subject necessary to be discussed; and the rather, as those fears, how groundless and chimerical soever, may, by possessing the multitude, possibly induce the ablest ministry to conform to them against their own judgment; and thereby prevent the assuring to the British name and nation a stability and permanency, that no man acquainted with history durst have hoped for, till our American possessions opened the pleasing prospect. The remarker thinks, that our people in America, "finding no check from Canada, would extend themselves almost without bounds into the inland parts, and increase

infinitely from all causes." The very reason he assigns for their so extending, and which is indeed the true one (their being "invited to it by the pleasantness, fertility, and plenty of the country,") may satisfy us, that this extension will continue to proceed, as long as there remains any pleasant fertile country within their reach. And if we even suppose them confined by the waters of the Mississippi westward, and by those of St. Laurence and the lakes to the northward; yet still we shall leave them room enough to increase, even in the manner of settling now practised there, till they amount to perhaps a hundred millions of souls. This must take some centuries to fulfil: and in the *mean time*, this nation must necessarily supply them with the manufactures they consume; because the new settlers will be employed in agriculture; and the new settlements will so continually draw off the spare hands from the old, that our present colonies will not, during the period we have mentioned, find themselves in a condition to manufacture, even for their own inhabitants, to any considerable degree, much less for those who are settling behind them.

Thus our trade must, till that country becomes as fully peopled as England (that is for centuries to come) be continually increasing, and with it our naval power; because the ocean is between us and them, and our ships and seamen must increase as that trade increases.—The human body and the political differ in this; that the first is limited by nature to a certain stature, which, when attained, it cannot ordinarily exceed: the other, by better government and more prudent police, as well as by change of manners and other circumstances, often takes fresh starts of growth, after being long at a stand; and may add tenfold to the dimensions it had for ages been confined to. The mother, being of full stature, is in a few years equalled by a growing daughter: but in the case of a mother-country and her colonies, it is quite different. The growth of the children tends to increase the growth of the mother, and so the difference and superiority is longer preserved. Were the inhabitants of this island limited to their present number by any thing in nature, or by unchangeable circumstances, the equality of population between the two countries might indeed sooner come to pass: but sure experience, in those parts of the island where manufactures have been introduced, teaches us; that people increase and multiply in proportion as the means and facility of gaining a livelihood increase; and that this island, if they could be employed, is capable of supporting ten times its present number of people. In proportion, therefore, as the demand

increases for the manufactures of Britain, by the increase of people in her colonies, the number of her people at home will increase; and with them, the strength as well as the wealth of the nation. For satisfaction in this point, let the reader compare in his mind the number and force of our present fleets, with our fleet in Queen Elizabeth's time^[39], before we had colonies. Let him compare the ancient, with the present state of our towns on or near our western coast (Manchester, Liverpool, Kendal, Lancaster, Glasgow, and the countries round them) that trade with any manufacture for our colonies (not to mention Leeds, Halifax, Sheffield, and Birmingham,) and consider what a difference there is in the numbers of people, buildings, rents, and the value of land and of the produce of land; even if he goes back no farther than is within man's memory. Let him compare those countries with others on the same island, where manufactures have not yet extended themselves; observe the present difference, and reflect how much greater our strength may be (if numbers give strength) when our manufacturers shall occupy every part of the island where they can possibly be subsisted.

But, say the objectors, "there is a *certain distance from the sea*, in America, beyond which the expence of carriage will put a stop to the sale and consumption of your manufactures; and this, with the difficulty of making returns for them, will oblige the inhabitants to manufacture for themselves; of course, if you suffer your people to extend their settlements beyond that distance, your people become useless to you:" and this distance is limited by some to two hundred miles, by others to the Apalachian mountains.—Not to insist on a very plain truth, that no part of a dominion, from whence a government may on occasion draw supplies and aids both of men and money (though at too great a distance to be supplied with manufactures from some other part) is therefore to be deemed useless to the whole; I shall endeavour to show, that these imaginary limits of utility, even in point of commerce, are much too narrow. The inland parts of the continent of Europe are farther from the sea, than the limits of settlement proposed for America. Germany is full of tradesmen and artificers of all kinds, and the governments there are not all of them always favourable to the commerce of Britain; yet it is a well-known fact, that our manufactures find their way even into the heart of Germany. Ask the great manufacturers and merchants of the Leeds, Sheffield, Birmingham, Manchester, and Norwich goods; and they will tell you, that some of them send their riders frequently through France or Spain, and Italy, up to Vienna, and back

through the middle and northern parts of Germany, to show samples of their wares, and collect orders, which they receive by almost every mail, to a vast amount. Whatever charges arise on the carriage of goods are added to the value, and all paid by the consumer. If these nations, over whom we have no government, over whose consumption we can have no influence, but what arises from the cheapness and goodness of our wares, whose trade, manufactures, or commercial connections are not subject to the control of our laws, as those of our colonies certainly are in some degree; I say, if these nations purchase and consume such quantities of our goods, notwithstanding the remoteness of their situation from the sea; how much less likely is it, that the settlers in America, who must for ages be employed in agriculture chiefly, should make cheaper for themselves the goods our manufacturers at present supply them with: even if we suppose the carriage five, six, or seven hundred miles from the sea as difficult and expensive, as the like distance into Germany: whereas in the latter, the natural distances are frequently doubled by political obstructions; I mean the intermixed territories and clashing interests of princes^[40]. But when we consider, that the inland parts of America are penetrated by great navigable rivers; that there are a number of great lakes, communicating with each other, with those rivers, and with the sea, very small portages here and there excepted^[41]; that the sea-coasts (if one may be allowed the expression) of those lakes only amount at least to two thousand seven hundred miles, exclusive of the rivers running into them (many of which are navigable to a great extent for boats and canoes, through vast tracts of country); how little likely is it that the expence on the carriage of our goods into those countries should prevent the use of them. If the poor Indians in those remote parts are now able to pay for the linen, woollen, and iron wares they are at present furnished with by the French and English traders (though Indians have nothing but what they get by hunting, and the goods are loaded with all the impositions fraud and knavery can contrive to enhance their value) will not industrious English farmers, hereafter settled in those countries, be much better able to pay for what shall be brought them in the way of fair commerce?

If it is asked, *What* can such farmers raise, wherewith to pay for the manufactures they may want from us? I answer, that the inland parts of America in question are well known to be fitted for the production of hemp,

flax, pot-ash, and above all, silk; the southern parts may produce olive-oil, raisins, currants, indigo, and cochineal. Not to mention horses and black cattle, which may easily be driven to the maritime markets, and at the same time assist in conveying other commodities. That the commodities first mentioned may easily, by water and land-carriage, be brought to the sea-ports from interior America, will not seem incredible, when we reflect, that *hemp* formerly came from the Ukraine and most southern parts of Russia to Wologda, and down the Dwina to Archangel; and thence, by a perilous navigation, round the North Cape to England, and other parts of Europe. It now comes from the same country up the Dnieper, and down the Duna^[42], with much land-carriage. Great part of the Russia *iron*, no high-priced commodity, is brought three hundred miles by land and water from the heart of Siberia. *Furs* [the produce too of America] are brought to Amsterdam from all parts of Siberia, even the most remote, Kamstchatka. The same country furnishes me with another instance of extended inland commerce. It is found worth while to keep up a mercantile communication between Pekin in China, and Petersburg. And none of these instances of inland commerce exceed those of the courses by which, at several periods, *the whole trade of the East* was carried on. Before the prosperity of the Mameluke dominion in Egypt fixed the staple for the riches of the East at Cairo and Alexandria (whither they were brought from the Red Sea) great part of those commodities were carried to the cities of Cashgar and Balk. (This gave birth to those towns, that still subsist upon the remains of their ancient opulence, amidst a people and country equally wild.) From thence those goods were carried down the Amû (the ancient Oxus) to the Caspian Sea, and up the Wolga to Astrachan; from whence they were carried over to, and down the Don, to the mouth of that river; and thence again the Venetians directly, and the Genoese and Venetians indirectly (by way of Kaffa and Trebisonde) dispersed them through the Mediterranean and some other parts of Europe. Another part of those goods was carried over-land from the Wolga to the rivers Duna and Neva; from both they were carried to the city of Wisbuy in the Baltic (so eminent for its sea-laws); and from the city of Ladoga on the Neva, we are told they were even carried by the Dwina to Archangel; and from thence round the North Cape.—If iron and hemp will bear the charge of carriage from this inland country, *other metals* will, as well as iron; and certainly *silk*, since 3*d.* per *lb.* is not above 1 per cent on the value, and amounts to 28*l.* per ton. If the *growths* of a country find their

way out of it; the *manufactures* of the country where they go will infallibly find their way into it.

They, who understand the economy and principles of manufactures, know, that it is impossible to establish them in places not populous: and even in those that are populous, hardly possible to establish them to the prejudices of the places *already in possession of them*. Several attempts have been made in France and Spain, countenanced by the government, to draw from us, and establish in those countries, our hard-ware and woollen manufactures; but without success. The reasons are various. A manufacture is part of a great system of commerce, which takes in conveniencies of various kinds; methods of providing materials of all sorts, machines for expediting and facilitating labour, all the channels of correspondence for vending the wares, the credit and confidence necessary to found and support this correspondence, the mutual aid of different artizans, and a thousand other particulars, which time and long experience have *gradually* established. A part of such a system cannot support itself without the whole: and before the whole can be obtained the part perishes. Manufactures, where they are in perfection, are carried on by a multiplicity of hands, each of which is expert only in his own part; no one of them a master of the whole; and, if by any means spirited away to a foreign country, he is lost without his fellows. Then it is a matter of the extremest difficulty to persuade a complete set of workmen, skilled in all parts of a manufactory, to leave their country together, and settle in a foreign land. Some of the idle and drunken may be enticed away; but these only disappoint their employers, and serve to discourage the undertaking. If by royal munificence, and an expence that the profits of the trade alone would not bear, a complete set of good and skilful hands are collected and carried over, they find so much of the system imperfect, so many things wanting to carry on the trade to advantage, so many difficulties to overcome, and the knot of hands so easily broken by death, dissatisfaction, and desertion; that they and their employers are discouraged together, and the project vanishes into smoke. Hence it happens, that established manufactures are hardly ever lost, but by foreign conquest, or by some eminent interior fault in manners or government; a bad police oppressing and discouraging the workmen, or religious persecutions driving the sober and industrious out of the country. There is, in short, scarce a single instance in history of the contrary, where manufactures have once taken firm root. They sometimes start up in a new

place; but are generally supported, like exotic plants, at more expence than they are worth for any thing but curiosity; until these new seats become the refuge of the manufacturers driven from the old ones. The conquest of Constantinople, and final reduction of the Greek empire, dispersed many curious manufacturers into different parts of Christendom. The former conquests of its provinces, had *before* done the same. The loss of liberty in Verona, Milan, Florence, Pisa, Pistoia, and other great cities of Italy, drove the manufacturers of woollen cloths into Spain and Flanders. The latter first lost their trade and manufactures to Antwerp and the cities of Brabant; from whence, by persecution for religion, they were sent into Holland and England: [while] the civil wars, during the minority of Charles the First of Spain, which ended in the loss of the liberty of their great towns, ended too in the loss of the manufactures of Toledo, Segovia, Salamanca, Medina del campo, &c. The revocation of the *edict of Nantes* communicated, to all the protestant part of Europe, the paper, silk, and other valuable manufacturers of France; almost peculiar at that time to that country, and till then in vain attempted elsewhere. To be convinced, that it is not soil and climate, or even freedom from taxes, that determines the residence of manufacturers, we need only turn our eyes on Holland; where a multitude of manufactures are still carried on (perhaps more than on the same extent of territory any where in Europe) and sold on terms upon which they cannot be had in any other part of the world. And this too is true of those *growths*, which, by their nature and the labour required to raise them, come the nearest to manufactures.

As to the common-place objection to the North-American settlements, that they are *in the same climate, and their produce the same as that of England*;—in the first place it is not true; it is particularly not so of the countries now likely to be added to our settlements; and of our present colonies, the products, lumber, tobacco, rice, and indigo, great articles of commerce, do not interfere with the products of England: in the next place, a man must know very little of the trade of the world, who does not know, that the greater part of it is carried on between countries whose climate differs very little. Even the trade between the different parts of these British islands is greatly superior to that between England and all the West India Islands put together.

If I have been successful in proving that a considerable commerce may and will subsist between us and our future most inland settlements in North America, notwithstanding their distance; I have more than half proved no *other inconveniency will arise* from their distance. Many men in such a country must "know," must "think," and must "care" about the country they chiefly trade with. The juridical and other connections of government are yet a faster hold than even commercial ties, and spread, directly and indirectly, far and wide. Business to be solicited and causes depending create a great intercourse, even where private property is *not* divided in different countries;—yet this division *will* always subsist, where different countries are ruled by the same government. Where a man has landed property both in the mother country and a province, he will almost always live in the mother country: this, though there were no trade, is singly a sufficient gain. It is said, that Ireland pays near a million sterling annually to its absentees in England: the balance of trade from Spain, or even Portugal, is scarcely equal to this.

Let it not be said we have *no absentees* from North America. There are many, to the writer's knowledge; and if there are at present but few of them, that distinguish themselves here by great expence, it is owing to the mediocrity of fortune among the inhabitants of the Northern colonies, and a more equal division of landed property, than in the West India islands, so that there are as yet but few large estates. But if those, who have such estates, reside upon and take care of them themselves, are they worse subjects than they would be if they lived idly in England?—Great merit is assumed for the gentlemen of the West Indies, ^[43] on the score of their residing and spending their money in England. I would not depreciate that merit; it is considerable; for they might, if they pleased, spend their money in France: but the difference between their spending it here and at home is not so great. What do they spend it in when they are here, but the produce and manufactures of this country;—and would they not do the same if they were at home? Is it of any great importance to the English farmer, whether the West India gentleman comes to London and eats his beef, pork, and tongues, fresh; or has them brought to him in the West Indies salted? whether he eats his English cheese and butter, or drinks his English ale, at London or in Barbadoes? Is the clothier's, or the mercer's, or the cutler's, or the toyman's profit less, for their goods being worn and consumed by the same persons residing on the other side of the ocean? Would not the profits

of the merchant and mariner be rather greater, and some addition made to our navigation, ships and seamen? If the North American gentleman stays in his own country, and lives there in that degree of luxury and expence with regard to the use of British manufactures, that his fortune entitles him to; may not his example (from the imitation of superiors, so natural to mankind) spread the use of those manufactures among hundreds of families around him, and occasion a much greater demand for them, than it would do if he should remove and live in London?—However this may be, if in our views of immediate advantage, it seems preferable, that the gentlemen of large fortunes in North America should reside much in England; it is what may surely be expected, as fast as such fortunes are acquired there. Their having "colleges of their own for the education of their youth," will not prevent it: a little knowledge and learning acquired increases the appetite for more, and will make the conversation of the learned on this side the water more strongly desired. Ireland has its university likewise; yet this does not prevent the immense pecuniary benefit we receive from that kingdom. And there will always be, in the conveniencies of life, the politeness, the pleasures, the magnificence of the reigning country, many other attractions besides those of learning, to draw men of substance there, where they can (apparently at least) have the best bargain of happiness for their money.

Our *trade to the West India islands* is undoubtedly a valuable one: but whatever is the amount of it, it *has long been at a stand*. Limited as our sugar planters are by the scantiness of territory, they cannot increase much beyond their present number; and this is an evil, as I shall show hereafter, that will be little helped by our keeping Guadaloupe.—The trade to our Northern Colonies is not only greater, but yearly increasing with the increase of people: and even in a greater proportion, as the people increase in wealth and the ability of spending, as well as in numbers.^[44]—I have already said, that *our people in the northern colonies* double in about 25 years, exclusive of the accession of strangers. That I speak within bounds, I appeal to the authentic accounts frequently required by the board of trade, and transmitted to that board by the respective governors; of which accounts I shall select one as a sample, being that from the colony of Rhode-Island;^[45] a colony that of all the others receives the least addition from strangers.—For the increase of our *trade to those colonies*, I refer to

the accounts frequently laid before Parliament, by the officers of the customs, and to the custom-house books: from which I have also selected one account, that of the trade from England (exclusive of Scotland) to Pennsylvania^[46]; a colony most remarkable for the plain frugal manner of living of its inhabitants, and the most suspected of carrying on manufactures, on account of the number of German artizans, who are known to have transplanted themselves into that country; though even these, in truth, when they come there, generally apply themselves to agriculture, as the surest support and most advantageous employment. By this account it appears, that the exports to that province have in 28 years, increased nearly in the proportion of 17 to 1; whereas the people themselves, who by other authentic accounts appear to double their numbers (the strangers who settle there included) in about 16 years, cannot in the 28 years have increased in a greater proportion than as 4 to 1. The additional demand then, and consumption of goods from England, of 13 parts in 17 more than the additional number would require, must be owing to this; that the people having by their industry mended their circumstances, are enabled to indulge themselves in finer clothes, better furniture, and a more general use of all our manufactures than heretofore.

In fact, the occasion for English goods in North America, and the inclination to have and use them, is, and must be for ages to come, much greater than the ability of the people to pay for them; they must therefore, as they now do, deny themselves many things they would otherwise chuse to have, or increase their industry to obtain them. And thus, if they should at any time manufacture some coarse article, which on account of its bulk or some other circumstance, cannot so well be brought to them from Britain; it only enables them the better to pay for finer goods, that *otherwise* they could not indulge themselves in: so that the exports thither are not diminished by such manufacture, but rather increased. The single article of manufacture in these colonies, mentioned by the remarker, is *hats* made in New-England. It is true, there have been, ever since the first settlement of that country, a few hatters there; drawn thither probably at first by the facility of getting beaver, while the woods were but little cleared, and there was plenty of those animals. The case is greatly altered now. The beaver skins are not now to be had in New-England, but from very remote places and at great prices. The trade is accordingly declining there; so that, far from being able to make hats in any quantity for exportation, they cannot

supply their home demand; and it is well known, that some thousand dozens are sent thither yearly from London, Bristol, and Liverpool, and sold there cheaper than the inhabitants can make them of equal goodness. In fact, the colonies are so little suited for establishing of manufactures, that they are continually losing the few branches they accidentally gain. The working brasiers, cutlers, and pewterers, as well as hatters, who have happened to go over from time to time and settle in the colonies, gradually drop the working part of their business, and import their respective goods from England, whence they can have them cheaper and better than they can make them. They continue their shops indeed, in the same way of dealing; but become *sellers* of brasiery, cutlery, pewter, hats, &c. brought from England, instead of being *makers* of those goods.

[5. *The American colonies not dangerous in their nature to Great Britain.*]

Thus much to the apprehension of our colonies becoming useless to us. I shall next consider the other supposition, that their growth may render them *dangerous*.—Of this, I own, I have not the least conception, when I consider that we have already *fourteen separate governments* on the maritime coast of the continent; and, if we extend our settlements, shall probably have as many more behind them on the inland side. Those we now have are not only under different governors, but have different forms of government, different laws, different interests, and some of them different religious persuasions and different manners.—Their jealousy of each other is so great, that however necessary an union of the colonies has long been, for their common defence and security against their enemies, and how sensible soever each colony has been of that necessity; yet they have never been able to effect such an union among themselves; nor even to agree in requesting the mother country to establish it for them. Nothing but the immediate command of the crown has been able to produce even the imperfect union, but lately seen there, of the forces of some colonies. If they could not agree to unite for their defence against the French and Indians, who were perpetually harassing their settlements, burning their villages, and murdering their people; can it reasonably be supposed there is any danger of their uniting against their own nation, which protects and encourages them, with which they have so many connections and ties of

blood, interest and affection, and which, it is well known, they all love much more than they love one another?

In short, there are so many causes that must operate to prevent it, that I will venture to say, an union amongst them for such a purpose is not merely improbable, it is impossible. And if the union of the whole is impossible, the attempt of a part must be madness; as those colonies that did not join the rebellion would join the mother-country in suppressing it. When I say such an union is impossible, I mean, without the most grievous tyranny and oppression. People who have property in a country which they may lose, and privileges which they may endanger, are generally disposed to be quiet, and even to bear much, rather than hazard all. While the government is mild and just, while important civil and religious rights are secure, such subjects will be dutiful and obedient. The waves do not rise but when the winds blow.

What such an administration as the Duke of Alva's in the Netherlands might produce, I know not; but this I think I have a right to deem impossible. And yet there were two very manifest differences between that case, and ours; and both are in our favour. The *first*, that Spain had already united the seventeen provinces under one visible government, though the states continued independent: the *second*, that the inhabitants of those provinces were of a nation, not only different from, but utterly unlike the Spaniards. Had the Netherlands been peopled from Spain, the worst of oppression had probably not provoked them to wish a separation of government. It might, and probably would, have ruined the country; but would never have produced an independent sovereignty. In fact, neither the very worst of governments, the worst of politics in the last century, nor the total abolition of their remaining liberty, in the provinces of Spain itself, in the present, have produced any independency [in Spain] that could be supported. The same may be observed of France.

And let it not be said, that the neighbourhood of these to the seat of government has prevented a separation. While our strength at sea continues, the banks of the Ohio (in point of easy and expeditious conveyance of troops) are nearer to London, than the remote parts of France and Spain to their respective capitals; and much nearer than Connaught and Ulster were in the days of Queen Elizabeth. No body foretels the dissolution of the Russian monarchy from its extent; yet I will venture to say, the eastern parts

of it are already much more inaccessible from Petersburg, than the country on the Mississippi is from London; I mean, more men, in less time, might be conveyed the latter than the former distance. The rivers Oby, Jenesea, and Lena, do not facilitate the communication half so well by their course, nor are they half so practicable as the American rivers. To this I shall only add the observation of Machiavel, in his Prince; that a government seldom long preserves its dominion over those who are foreigners to it; who, on the other hand, fall with great ease, and continue inseparably annexed to the government of their own nation: which he proves by the fate of the English conquests in France. Yet with all these disadvantages, so difficult is it to overturn an established government, that it was not without the assistance of France and England, that the United Provinces supported themselves: which teaches us, that

[6. *The French remaining in Canada, an encouragement to disaffections in the British Colonies.—If they prove a check, that check of the most barbarous nature.*]

If the visionary danger of independence in our colonies is to be feared; nothing is more likely to render it substantial, than the neighbourhood of foreigners at enmity with the sovereign governments, capable of giving either aid^[47], or an asylum, as the event shall require. Yet against even these disadvantages, did Spain preserve almost ten provinces, merely through their want of union; which indeed could never have taken place among the others, but for causes, some of which are in our case impossible, and others it is impious to suppose possible.

The Romans well understood that policy, which teaches the security arising to the chief government from separate states among the governed; when they restored the liberties of the states of Greece (oppressed but united under Macedon) by an edict, that every state should live under its own laws. They did not even name a governor. Independence of each other, and separate interests (though among a people united by common manners, language, and I may say religion; inferior neither in wisdom, bravery, nor their love of liberty, to the Romans themselves;) was all the security the sovereigns wished for their sovereignty. It is true, they did not call themselves sovereigns; they set no value on the title; they were contented

with possessing the thing. And possess it they did, even without a standing army: (what can be a stronger proof of the security of their possession?) And yet by a policy, similar to this throughout, was the Roman world subdued and held: a world composed of above an hundred languages, and sets of manners, different from those of their masters. Yet this dominion was unshakeable, till the loss of liberty and corruption of manners in the sovereign state overturned it.

But what is the prudent policy, inculcated by the remarker to obtain this end, security of dominion over our colonies? It is, to leave the French in Canada, to "check" their growth; for otherwise, our people may "increase infinitely from all causes^[48]*."* We have already seen in what manner the French and their Indians check the growth of our colonies. It is a modest word, this *check*, for massacring men, women, and children. The writer would, if he could, hide from himself as well as from the public, the horror arising from such a proposal, by couching it in general terms: it is no wonder he thought it a "subject not fit for discussion" in his letter; though he recommends it as "a point that should be the constant object of the minister's attention!" But if Canada is restored on this principle, will not Britain be guilty of all the blood to be shed, all the murders to be committed, in order to check this dreaded growth of our own people? Will not this be telling the French in plain terms, that the horrid barbarities they perpetrate with their Indians on our colonists are agreeable to us; and that they need not apprehend the resentment of a government, with whose views they so happily concur? Will not the colonies view it in this light? Will they have reason to consider themselves any longer as subjects and children, when they find their cruel enemies hallooed upon them by the country from whence they sprung; the government that owes them protection, as it requires their obedience? Is not this the most likely means of driving them into the arms of the French, who can invite them by an offer of that security, their own government chuses not to afford them? I would not be thought to insinuate, that the remarker wants humanity. I know how little many good-natured persons are affected by the distresses of people at a distance, and whom they do not know. There are even those, who, being present, can sympathize sincerely with the grief of a lady on the sudden death of a favourite bird; and yet can read of the sinking of a city in Syria with very little concern. If it be, after all, thought necessary to check the growth of our colonies, give me leave to propose a method less cruel. It is a method of

which we have an example in scripture. The murder of husbands, of wives, of brothers, sisters and children, whose pleasing society has been for some time enjoyed, affects deeply the respective surviving relations; but grief for the death of a child just born is short, and easily supported. The method I mean is that which was dictated by the Egyptian policy, when the "infinite increase" of the children of Israel was apprehended as dangerous to the state^[49]. Let an act of parliament then be made, enjoining the colony midwives to stifle in the birth every third or fourth child. By this means you may keep the colonies to their present size. And if they were under the hard alternative of submitting to one or the other of these schemes for checking their growth, I dare answer for them, they would prefer the latter.

But all this debate about the propriety or impropriety of keeping or restoring Canada is possibly too early. We have taken the capital indeed, but the country is yet far from being in our possession; and perhaps never will be: for if our m—rs are persuaded by such counsellors as the remarker, that the French there are "not the worst of neighbours," and that if we had conquered Canada, we ought, for our own sakes, to restore it, as a check to the growth of our colonies; I am then afraid we shall never take it. For there are many ways of avoiding the completion of the conquest, that will be less exceptionable and less odious than the giving it up.

[7. *Canada easily peopled, without draining Great Britain of any of its inhabitants.*]

The objection I have often heard, that if we had Canada we could not people it, without draining Britain of its inhabitants, is founded on ignorance of the nature of population in new countries. When we first began to colonize in America, it was necessary to send people, and to send seed-corn; but it is not now necessary that we should furnish, for a new colony, either one or the other. The annual increment alone of our present colonies, without diminishing their numbers, or requiring a man from hence, is sufficient in ten years to fill Canada with double the number of English that it now has of French inhabitants^[50]. Those who are protestants among the French will probably choose to remain under the English government; many will choose to remove, if they can be allowed to sell their lands, improvements, and effects: the rest in that thin-settled country

will in less than half a century, from the crowds of English settling round and among them, be blended and incorporated with our people both in language and manners.

[8. *The merits of Guadaloupe to Great Britain over-valued; yet likely to be paid much dearer for, than Canada.*]

In Guadaloupe the case is somewhat different; and though I am far from thinking^[51] *we have sugar-land enough* ^[52]*, I cannot think Guadaloupe is so desirable an increase of it, as other objects the enemy would probably be infinitely more ready to part with. A country, fully inhabited by any nation, is no proper possession for another of different languages, manners, and religion. It is hardly ever tenable at less expence than it is worth. But the isle of Cayenne, and its appendix, Equinoctial-France, having but very few inhabitants, and these therefore easily removed, would indeed be an acquisition every way suitable to our situation and desires. This would hold all that migrate from Barbadoes, the Leeward Islands, or Jamaica. It would certainly recal into an English government (in which there would be room for millions) all who have before settled or purchased in Martinico, Guadaloupe, Santa-Cruz, or St. John's; except such as know not the value of an English government, and such I am sure are not worth recalling.*

But should we keep Guadaloupe, we are told it would *enable us to export 300,000*l.* in sugars*. Admit it to be true, though perhaps the amazing increase of English consumption might stop most of it here,—to whose profit is this to redound? To the profit of the French inhabitants of the island: except a small part, that should fall to the share of the English purchasers, but whose whole purchase-money must first be added to the wealth and circulation of France. I grant, however, much of this 300,000*l.* would be expended in British manufactures. Perhaps too, a few of the land-owners of Guadaloupe might dwell and spend their fortunes in Britain (though probably much fewer than of the inhabitants of North America.) I admit the advantage arising to us from these circumstances (as far as they go) in the case of Guadaloupe, as well as in that of our other West-India settlements. Yet even this consumption is little better than that of an allied nation would be, who should take our manufactures and supply us with sugar, and put us to no great expence in defending the place of growth. But

though our own colonies expend among us almost the whole produce of our sugar^[53], *can we, or ought we* to promise ourselves this will be the case of Guadaloupe? One 100,000*l.* will supply them with British manufactures; and supposing we can effectually prevent the introduction of those of France (which is morally impossible in a country used to them) the other 200,000*l.* will still be spent in France, in the education of their children and support of themselves; or else be laid up there, where they will always think their home to be.

Besides this consumption of British manufactures, *much is said of the benefit we shall have from the* situation of Guadaloupe; and we are told of a trade to the Caraccas and Spanish Main. In what respect Guadaloupe is better situated for this trade than Jamaica, or even any of our other islands, I am at a loss to guess. I believe it to be not so well situated for that of the windward coast, as Tobago and St. Lucia; which in this, as well as other respects, would be more valuable possessions, and which, I doubt not, the peace will secure to us. Nor is it nearly so well situated for that of the rest of the Spanish Main as Jamaica. As to the greater safety of our trade by the possession of Guadaloupe, experience has convinced us, that in reducing a single island, or even more, we stop the privateering business but little. Privateers still subsist, in equal if not greater numbers, and carry the vessels into Martinico, which before it was more convenient to carry into Guadaloupe. Had we all the Caribbees, it is true, they would in those parts be without shelter.

Yet, upon the whole, I suppose it to be a doubtful point, and well worth consideration, whether our obtaining possession of all the Caribbees would be more than a temporary benefit; as it would necessarily soon fill the French part of Hispaniola with French inhabitants, and thereby render it five times more valuable in time of peace, and little less than impregnable in time of war, and would probably end in a few years in the uniting the whole of that great and fertile island under a French government. It is agreed on all hands, that our conquest of St. Christopher's, and driving the French from thence, first furnished Hispaniola with skilful and substantial planters, and was consequently the first occasion of its present opulence. On the other hand, I will hazard an opinion, that valuable as the French possessions in the West Indies are, and undeniable the advantages they derive from them, there is somewhat to be weighed in the opposite scale.

They cannot at present make war with England, without exposing those advantages, while divided among the numerous islands they now have, much more than they would, were they possessed of St. Domingo only; their own share of which would, if well cultivated, grow more sugar, than is now grown in all their West-India islands.

I have before said, I do not deny the utility of the conquest, or even of our future possession of Guadaloupe, if not bought too dear. The trade of the West Indies is one of our most valuable trades. Our possessions there deserve our greatest care and attention. So do those of North America. I shall not enter into the invidious task of comparing their due estimation. It would be a very long, and a very disagreeable one, to run through every thing material on this head. It is enough to our present point, if I have shown, that the value of North America is capable of an immense increase, by an acquisition and measures, that must necessarily have an effect the direct contrary of what we have been industriously taught to fear; and that Guadaloupe is, in point of advantage, but a very small addition to our West-India possessions; rendered many ways less valuable to us, than it is to the French, who will probably set more value upon it, than upon a country [Canada] that is much more valuable to us than to them.

There is a great deal more to be said on all the parts of these subjects; but as it would carry me into a detail, that I fear would tire the patience of my readers, and which I am not without apprehensions I have done already, I shall reserve what remains till I dare venture again on the indulgence of the public^[54].

FOOTNOTES:

[17] In the year 1760, upon the prospect of a peace with France, the late Earl of Bath addressed a Letter to Two Great Men (Mr. Pitt and the Duke of Newcastle) on the terms necessary to be insisted upon in the negociation. He preferred the acquisition of Canada, to acquisitions in the West Indies. In the same year there appeared Remarks on the letter addressed to two great men, containing opposite opinions on this and other subjects. At this moment a philosopher stepped into the controversy, and wrote a pamphlet entitled, The Interest of Great Britain considered, with Regard to her Colonies, &c. The arguments he used, appear to have carried weight with them at the courts of London and Paris, for Canada was kept by the peace.

The editor thinks it necessary to add the following further explanations.—The above piece (which first came to his hands in the shape of a pamphlet, printed for Becket, 1761, 2d edit.) has none of the eight subdivisions it is now thrown into, marked out by the author. He conceived however that they might be useful, and has taken the liberty of making them, but guards it with this apology. The better to suit his purpose, the division of the paragraphs, &c. and the italics of the original, are not accurately adhered to. It was impossible for him however to alter one word in the sense, style, or disposition, of his author: this was a liberty for which he could make no apology.

In the original, the author has added his observations concerning the Increase of Mankind, Peopling of Countries, &c. [printed in the 2d Vol. of this work] and introduced it with the following note. "In confirmation of the writer's opinion concerning population, manufactures, &c. he has thought it not amiss to add an extract from a piece written some years since in America, where the facts must be well known, on which the reasonings are founded. It is entitled, Observations, &c."

With respect to the arguments used by the authors of the Letter, and of the Remarks, it is useless to repeat them here. As far as they are necessary for the understanding of Dr. Franklin, they are to be collected from his own work. B. V.

[18] Remarks, p. 6.

[19] Ibid. p. 7.

[20] Remarks, p. 7.

[21] Ibid.

[22] Remarks, p. 19.

[23] Ibid.

[24] Page 30, of the Letter, and p. 21, of the Remarks.

[25] Remarks, p. 28.

[26] A very intelligent writer of that country, Dr. Clark, in his Observations on the late and present Conduct of the French, &c. printed at Boston, 1755, says,

"The Indians in the French interest are, upon all proper opportunities, *instigated by their priests* (who have generally the chief management of their public councils) to acts of hostility against the English, even in time of profound peace between the two crowns. Of this there are many undeniable instances: the war between the Indians and the colonies of the Massachusett's Bay and New Hampshire, in 1723, by which those colonies suffered so much damage, was begun by the instigation of the French: their supplies were from them; and there are now original letters of several Jesuits to be produced, whereby it evidently appears, that they were continually animating the Indians, when almost tired with the war, to a farther prosecution of it. The French not only excited the Indians, and supported them, but joined their own forces with them in all the late hostilities that have been committed within his majesty's province of Nova Scotia. And from an intercepted letter this year from the Jesuits at Penobscot, and from other information, it is certain, that they have been using their utmost endeavours to excite the Indians to new acts of hostility against his majesty's colony of the Massachusett's Bay; and some have been committed. The French

not only excite the Indians to acts of hostility, but reward them for it, by *buying the English prisoners of them*: for the ransom of each of which they afterwards demand of us the price that is usually given for a slave in these colonies. They do this under the specious pretence of rescuing the poor prisoners from the cruelties and barbarities of the savages; but in reality to encourage them to continue their depredations, as they can by this means get more by hunting the English, than by hunting wild-beasts; and the French at the same time are thereby enabled to keep up a large body of Indians, entirely at *the expence of the English*."

[27] Remarks, p. 25.

[28] Remarks, p. 25.

[29] "Although the Indians live scattered, as a hunter's life requires, they may be collected together from almost any distance; as they can find their subsistence from their gun in their travelling. But let the number of the Indians be what it will, they are not formidable merely on account of their numbers; there are many other circumstances that give them a great advantage over the English. The English inhabitants, though numerous, are extended over a large tract of land, five hundred leagues in length on the sea shore; and although some of their trading towns are thick settled, their settlements in the country towns must be at a distance from each other: besides, that in a new country where lands are cheap, people are fond of acquiring large tracts to themselves; and therefore in the out-settlements, they must be more remote: and as the people that move out are generally poor, they sit down either where they can easiest procure land, or soonest raise a subsistence. Add to this, that the English have fixed settled habitations, the easiest and shortest passages to which the Indians, by constantly hunting in the woods, are perfectly well acquainted with; whereas the English know little or nothing of the Indian country, nor of the passages through the woods that lead to it. The Indian way of making war is by sudden attack upon exposed places; and as soon as they have done mischief, they retire, and either go home by the same or some different route, as they think safest; or go to some other place at a distance, to renew their stroke. If a sufficient party should happily be ready to pursue them, it is a great chance, whether in a country consisting of woods and swamps, which the English are not acquainted with, the enemy do not lie in ambush for them in some convenient place, and from thence destroy them. If this should not be the case, but the English should pursue them, as soon as they have gained the rivers, by means of their canoes (to the use of which they are brought up from their infancy) they presently get out of their reach: further, if a body of men were to march into their country, to the place where they are settled, they can, upon the least notice, without great disadvantage, quit their present habitation, and betake themselves to new ones." *Clark's Observations*, p. 13.

"It has been already remarked, that the tribes of the Indians, living upon the lakes and rivers that run upon the back of the English settlements in North America, are very numerous, and can furnish a great number of fighting men, all perfectly well acquainted with the use of arms as soon as capable of carrying them, as they get the whole of their subsistence from hunting; and that this army, large as it may be, can be maintained by the French without any expence. From their numbers, their situation, and the rivers that run into the English settlements, it is easy to conceive, that they can at any time make an attack upon, and

constantly annoy as many of the exposed English settlements as they please, and those at any distance from each other. The effects of such incursions have been too severely felt by many of the British colonies, not to be very well known. The entire breaking up places, that had been for a considerable time settled at a great expence both of labour and money; burning the houses, destroying the flock, killing and making prisoners great numbers of the inhabitants, with all the cruel usage they meet with in their captivity, is only a part of the scene. All other places that are exposed are kept in continual terror; the lands lie waste and uncultivated, from the danger that attends those that shall presume to work upon them: besides the immense charge the governments must be at in a very ineffectual manner to defend their extended frontiers; and all this from the influence the French have had over, but comparatively, a few of the Indians. To the same or greater evils still will every one of the colonies be exposed, whenever the same influence shall be extended to the whole body of them." Ibid. p. 20.

[30] Remarks, p. 26.

[31] Douglass.

[32] Remarks, p. 25.

[33] Remarks, p. 26.

[34] This I believe is meant for Dr. Adam Smith, who seems not at this time to have printed any of his political pieces. B. V.

[35] Remarks, p. 27.

[36] Remarks, p. 50, 51.

[37] Remarks, p. 50, 51.

[38] The reason of this greater increase in America than in Europe is, that in old settled countries, all trades, farms, offices, and employments are full; and many people refrain marrying till they see an opening, in which they can settle themselves, with a reasonable prospect of maintaining a family: but in America, it being easy to obtain land, which, with moderate labour will afford subsistence and something to spare, people marry more readily and earlier in life, whence arises a numerous offspring and the swift population of those countries. It is a common error, that we cannot fill our provinces or increase the number of them, without draining this nation of its people. The increment alone of our present colonies is sufficient for both those purposes. [Written in 1760.]

[39] Viz. forty sail, none of more than forty guns.

[40] Sir C. Whitworth has the following assertion: "Each state in Germany is jealous of its neighbours; and hence, rather than facilitate the export or transit of its neighbours' products or manufactures, they have all recourse to strangers." State of Trade, p. xxiv. B. V.

[41] From New York into lake Ontario, the land-carriage of the several portages altogether, amounts to but about twenty-seven miles. From lake Ontario into lake Erie, the land-carriage at Niagara is but about twelve miles. All the lakes above Niagara communicate by navigable straits, so that no land-carriage is necessary, to go out of one into another. From Presqu'isle on lake Erie, there are but fifteen miles land-carriage, and that a good waggon-road, to Beef River, a

branch of the Ohio; which brings you into a navigation of many thousand miles inland, if you take together the Ohio, the Mississippi, and all the great rivers and branches that run into them.

[42] I beg pardon for attempting to remind the reader that he must not confound the river Duna, with the river Dwina.—The fork of the Ohio is about four hundred miles distant from the sea, and the fork of the Mississippi about nine hundred: it is four hundred miles from Petersburg to Moscow, and very considerably more than four thousand from Petersburg to Pekin. This is enough to justify Dr. Franklin's positions in the page above, without going into farther particulars. B. V.

[43] Remarks, p. 47, 48, &c.

[44] The writer has [since] obtained accounts of the exports to North America, and the West India Islands; by which it appears, that there has been some increase of trade to those islands as well as to North America, though in a much less degree. The following extract from these accounts will show the reader at one view the amount of the exports to each, in two different terms of five years; the terms taken at ten years distance from each other, to show the increase, viz.

First term, from 1744 to 1748, inclusive.

<i>Northern Colonies.</i>				<i>West India Islands.</i>			
1744	£.640,114	12	4		£.796,112	17	9
1745	534,316	2	5		503,669	19	9
1746	754,945	4	3		472,994	19	7
1747	726,648	5	5		856,463	18	6
1748	830,243	16	9		734,095	15	3
Total,	£.3,486,261	1	2	Tot.	£.3,363,337	10	10
				Difference,	122,930	10	4
				£.3,486,268		1	2

Second term, from 1754 to 1758, inclusive.

<i>Northern Colonies.</i>				<i>West India Islands.</i>			
1754	1,246,615	1	11		685,675	3	0
1755	1,177,848	6	10		694,667	13	3
1756	1,428,720	18	10		733,458	16	3
1757	1,727,924	2	10		776,488	0	6
1758	1,832,948	13	10		877,571	19	11
Total,	£.7,414,057	4	3	Tot.	£.3,767,841	12	11
				Difference,	3,646,215	11	4
				£.7,414,057		4	3

In the first term, total of West India islands,	3,363,337 10 10
In the second term, ditto	3,767,841 12 11

	Increase, only	£.0,404,504	2	1
In the first term, total for Northern Colonies,		3,486,268	1	2
In the second term, ditto		7,414,057	4	3

Increase, £.3,927,789 3 1

By these accounts it appears, that the exports to the West India islands, and to the northern colonies, were in the first term nearly equal (the difference being only 122,936*l.* 10*s.* 4*d.*) and in the second term, the exports to those islands had only increased 404,504*l.* 2*s.* 1*d.*—Whereas the increase to the northern colonies is 3,927,789*l.* 3*s.* 1*d.* almost *four millions*.

Some part of this increased demand for English goods may be ascribed to the armies and fleets we have had both in North America and the West Indies; not so much for what is consumed by the soldiery; their clothing, stores, ammunition, &c. sent from hence on account of the government, being (as is supposed) not included in these accounts of merchandize exported; but, as the war has occasioned a great plenty of money in America, many of the inhabitants have increased their expence.

N. B. These accounts do not include any exports from Scotland to America, which are doubtless proportionally considerable; nor the exports from Ireland.

[I shall carry on this calculation where Dr. Franklin left it. For four years, from 1770 to 1773 inclusively, the same average *annual* exports to the same ports of the West Indies is 994,463*l.*, and to the same ports of the North American plantations 2,919,669*l.* But the annual averages of the first and second terms of the former were 672,668*l.* and 753,568*l.*: of the latter, 697,254*l.* and 1,482,811*l.*

In ten years therefore (taking the middle years of the terms) the North American trade is found to have *doubled* the West Indian: in the next sixteen years it becomes greater by *three-fold*.—With respect to itself, the North American trade in 32 years (taking the extremes of the terms) has quadrupled; while the West Indian trade increased only one half; of which increase I apprehend Jamaica has given more than one-third, chiefly in consequence of the quiet produced by the peace with the maroon negroes.—Had the West Indian trade continued stationary, the North American trade would have quadrupled with respect to it, in 26 years; and this, notwithstanding the checks given to the latter, by their non-importation agreements and the encouragement of their own manufactures.

There has been an accession to both these trades, produced by the cessions at the treaty of Paris, not touched upon by Dr. Franklin. The average *annual* export-trade, from 1770 to 1773 inclusively, to the ceded West India islands, amounted to 258,299*l.*: to the ceded North American territory it has been 280,423*l.* See Sir Charles Whitworth's State of Trade. B. V.]

[45] *Copy of the Report of Governor Hopkins to the Board of Trade, on the Numbers of People in Rhode-Island.*

In obedience to your lordships' commands, I have caused the within account to be taken by officers under oath. By it there appears to be in this colony at this time 35,939 white persons, and 4697 blacks, chiefly negroes.

In the year 1730, by order of the then lords commissioners of trade and plantations, an account was taken of the number of people in this colony, and then there appeared to be 15,302 white persons, and 2633 blacks.

Again in the year 1748, by like order, an account was taken of the number of people in this colony, by which it appears there were at that time 29,755 white persons, and 4373 blacks.

Colony of Rhode Island, Dec. 24, 1755.

STEPHEN HOPKINS.

[46] *An Account of the Value of the Exports from England to Pensylvania, in one Year, taken at different Periods, viz.*

In 1723 they amounted only to	£. 15,992	19	4
1730 they were	48,592	7	5
1737	56,690	6	7
1742	75,295	3	4
1747	82,404	17	7
1752	201,666	19	11
1757	268,426	6	6

N. B. The accounts for 1758 and 1759, are not yet completed; but those acquainted with the North American trade know, that the increase in those two years has been in a still greater proportion; the last year being supposed to exceed any former year by a third; and this owing to the increased ability of the people to spend, from the greater quantities of money circulating among them by the war.

[47] The *aid* Dr. Franklin alludes to must probably have consisted in early and full supplies of arms, officers, intelligence, and trade of export and of import, through the river St. Lawrence, on risques both public and private; in the encouragement of splendid promises and a great ally; in the passage from Canada to the back settlements, being *shut* to the British *forces*; in the quiet of the *great body* of Indians; in the support of emissaries and discontented citizens; in loans and subsidies to congress, in ways *profitable to France*; in a refuge to be granted them in case of defeat, in vacant lands, as settlers; in the probability of war commencing earlier between England and France, at the gulph of St. Lawrence (when the shipping taken, were *rightfully* addressed to Frenchmen) than in the present case. All this might have happened, as soon as America's distaste of the sovereign had exceeded the fear of the foreigner; a circumstance frequently seen possible in history, and which our ministers took care should not be wanting.

This explanation would have required apology for its insertion, were not the opinion pretty common in England, that *had not the French been removed from Canada, the revolt of America never would have taken place*. Why then were the French *not left* in Canada, at the peace of 1763? Or, since they *were not* left there, why was the American dispute begun? Yet in one sense, perhaps this opinion is true; for *had* the French been left in Canada, ministers would not only have *sooner* felt, but *sooner* have seen, the strange fatality of their plans. B. V.

[48] Remarks, p. 50, 51.

[49] And Pharoah said unto his people, behold the people of the children of Israel are more and mightier than we; come on, let us deal wisely with them, lest they multiply, and it come to pass, that when there falleth out any war, they join also unto our enemies and fight against us, and so get them up out of the land. And the king spake to the Hebrew midwives, &c. Exodus, chap. 1.

[50] In fact, there have not gone from Britain [itself] to our colonies these twenty years past to settle there, so many as ten families a year; the new settlers are either the offspring of the old, or emigrants from Germany, or the north of Ireland.

[51] Remarks, p. 30, 34.

[52] It is often said we have plenty of sugar-land still unemployed in Jamaica: but those who are well acquainted with that island know, that the remaining vacant land in it is generally situated among mountains, rocks, and gullies, that make carriage impracticable, so that no profitable use can be made of it; unless the price of sugars should so greatly increase, as to enable the planter to make very expensive roads, by blowing up rocks, erecting bridges, &c. every two or three hundred yards. [Our author was somewhat misinformed here. B. V.]

[53] Remarks, p. 47.

[54] Dr. Franklin has often been heard to say, that in writing this pamphlet he received considerable assistance from a learned friend, who was not willing to be named. B. V.

[Remarks and Facts relative to the American Paper-money.](#)^[55]

In the Report of the Board of Trade, dated Feb. 9, 1764, the following reasons are given for *restraining the emission* of paper-bills of credit in America, as *a legal tender*.

1. "That it *carries the gold and silver out* of the province, and so ruins the country; as *experience has shewn*, in every colony where it has been practised in any great degree.

2. "That the *merchants* trading to America *have suffered* and lost by it.

3. "That the restriction [of it] *has had a beneficial effect* in New England.

4. "That every *medium of trade should have an intrinsic value*, which paper-money has not. Gold and silver are therefore the fittest for this medium, as they are an equivalent; which paper never can be.

5. "That *debtors* in the assemblies make paper-money with *fraudulent views*.

6. "That in the middle colonies, where the credit of the paper-money has been best supported, the bills have *never kept to their nominal value* in circulation; but have constantly depreciated to a certain degree, whenever the quantity has been increased."

To consider these reasons in their order; the first is,

1. "*That paper-money carries the gold and silver out of the province, and so ruins the country; as experience has shewn, in every colony where it has been practised in any great degree.*"—This opinion, of its ruining the country, seems to be merely speculative, or not otherwise founded than upon misinformation in the matter of fact. The truth is, that the balance of their trade with Britain being greatly against them, the gold and silver are drawn out to pay that balance; and then the necessity of some medium of trade has induced the making of paper-money, which could *not* be carried away. Thus, if carrying out all the gold and silver ruins a country, every colony was ruined before it made paper-money.—But, far from being

ruined by it, the colonies that have made use of paper-money have been, and are all, in a thriving condition. The debt indeed to Britain has increased, because their numbers, and of course their trade, have increased; for all trade having always a proportion of debt outstanding, which is paid in its turn, while fresh debt is contracted, the proportion of debt naturally increases as the trade increases; but the improvement and increase of estates in the colonies have been in a greater proportion than their debt. New England, particularly in 1696 (about the time they began the use of paper-money) had in all its four provinces but 180 churches or congregations; in 1760 they were 530. The number of farms and buildings there is increased in proportion to the numbers of people; and the goods exported to them from England in 1750, before the restraint took place, were near five times as much as before they had paper-money. Pennsylvania, before it made any paper-money, was totally stripped of its gold and silver; though they had from time to time, like the neighbouring colonies, agreed to take gold and silver coins at higher nominal values, in hopes of drawing money into, and retaining it, for the internal uses of the province. During that weak practice, silver got up by degrees to 8s. 9d. per ounce, and English crowns were called six, seven, and eight-shilling pieces, long before paper-money was made. But this practice of increasing the denomination was found not to answer the end. The balance of trade carried out the gold and silver as fast as they were brought in; the merchants raising the price of their goods in proportion to the increased denomination of the money. The difficulties for want of cash were accordingly very great, the chief part of the trade being carried on by the extremely inconvenient method of barter; when in 1723 paper-money was first made there; which gave new life to business, promoted greatly the settlement of new lands (by lending small sums to beginners on easy interest, to be repaid by instalments) whereby the province has so greatly increased in inhabitants, that the export from hence thither is now more than tenfold what it then was; and by their trade with foreign colonies, they have been able to obtain great quantities of gold and silver to remit hither in return for the manufactures of this country. New York and New Jersey have also increased greatly during the same period, with the use of paper-money; so that it does not appear to be of the ruinous nature ascribed to it. And if the inhabitants of those countries are glad to have the use of paper among themselves, that they may thereby be enabled to spare, for remittances hither, the gold and silver they obtain by their

commerce with foreigners; one would expect, that no objection against their parting with it could arise here, in the country that receives it.

The 2d reason is, "*That the merchants trading to America have suffered and lost by the paper-money.*"—This may have been the case in particular instances, at particular times and places: as in South Carolina, about 58 years since; when the colony was thought in danger of being destroyed by the Indians and Spaniards; and the British merchants, in fear of losing their whole effects there, called precipitately for remittances; and the inhabitants, to get something lodged in safe countries, gave any price in paper-money for bills of exchange; whereby the paper, as compared with bills, or with produce, or other effects fit for exportation, was suddenly and greatly depreciated. The unsettled state of government for a long time in that province had also its share in depreciating its bills. But since that danger blew over, and the colony has been in the hands of the crown; their currency became fixed, and has so remained to this day. Also in New England, when much greater quantities were issued than were necessary for a medium of trade, to defray the expedition against Louisbourg; and, during the last war in Virginia and North Carolina, when great sums were issued to pay the colony troops, and the war made tobacco a poorer remittance, from the higher price of freight and insurance: in these cases, the merchants trading to those colonies may sometimes have suffered by the sudden and unforeseen rise of exchange. By slow and gradual rises, they seldom suffer; the goods being sold at proportionable prices. But war is a common calamity in all countries, and the merchants that deal with them cannot expect to avoid a share of the losses it sometimes occasions, by affecting public credit. It is hoped, however, that the profits of their subsequent commerce with those colonies may have made them some reparation. And the merchants trading to the middle colonies (New York, New Jersey, and Pennsylvania) have never suffered by any rise of exchange; it having ever been a constant rule there, to consider British debts as payable in Britain, and not to be discharged but by as much paper (whatever might be the rate of exchange) as would purchase a bill for the full sterling sum. On the contrary, the merchants have been great gainers by the use of paper-money in those colonies; as it enabled them to send much greater quantities of goods, and the purchasers to pay more punctually for them. And the people there make no complaint of any injury done them by paper-money, with a

legal tender; they are sensible of its benefits; and petition to have it so allowed.

The 3d reason is, "*That the restriction has had a beneficial effect in New England.*" Particular circumstances in the New England colonies made paper-money less necessary and less convenient to them. They have great and valuable fisheries of whale and cod, by which large remittances can be made. They are four distinct governments; but having much mutual intercourse of dealings, the money of each used to pass current in all: but the whole of this common currency not being under one common direction, was not so easily kept within due bounds; the prudent reserve of one colony in its emissions being rendered useless by excess in another. The Massachusetts, therefore, were not dissatisfied with the restraint, as it restrained their neighbours as well as themselves; and perhaps *they* do not desire to have the act repealed. They have not yet felt much inconvenience from it; as they were enabled to abolish their paper-currency, by a large sum in silver from Britain to reimburse their expences in taking Louisbourg, which, with the gold brought from Portugal, by means of their fish, kept them supplied with a currency; till the late war furnished them and all America with bills of exchange; so that little cash was needed for remittance. Their fisheries too furnish them with remittance through Spain and Portugal to England; which enables them the more easily to retain gold and silver in their country. The middle colonies have not this advantage; nor have they tobacco; which in Virginia and Maryland answers the same purpose. When colonies are so different in their circumstances, a regulation, that is not inconvenient to one or a few, may be very much so to the rest. But the pay is now become so indifferent in New England, at least in some of its provinces, through the want of currency, that the trade thither is at present under great discouragement.

The 4th reason is, "*That every medium of trade should have an intrinsic value; which paper-money has not. Gold and silver are therefore the fittest for this medium, as they are an equivalent; which paper never can be.*" However fit a particular thing may be for a particular purpose; wherever that thing is not to be had, or not to be had in sufficient quantity; it becomes necessary to use something else, the fittest that can be got, in lieu of it. Gold and silver are not the produce of North America, which has no mines; and that which is brought thither cannot be kept there in sufficient quantity for a

currency. Britain, an independent great state, when its inhabitants grow too fond of the expensive luxuries of foreign countries, that draw away its money, can, and frequently does, make laws to discourage or prohibit such importations; and by that means can retain its cash. The *colonies* are dependent governments; and their people having naturally great respect for the sovereign country, and being thence immoderately fond of its modes, manufactures, and superfluities, cannot be restrained from purchasing them by any province law; because such law, if made, would immediately be repealed here, as prejudicial to the trade and interest of Britain. It seems hard therefore, to draw all, their real money from them, and then refuse them the poor privilege of using paper instead of it. Bank bills and bankers notes are daily used *here* as a medium of trade, and in large dealings perhaps the greater part is transacted by their means; and yet *they* have no intrinsic value, but rest on the credit of those that issue them; as paper-bills in the colonies do on the credit of the respective governments there. Their being payable in cash upon sight by the drawer is indeed a circumstance that cannot attend the colony bills; for the reasons just above-mentioned; their cash being drawn from them by the British trade; but the legal tender being substituted in its place is rather a greater advantage to the possessor; since he need not be at the trouble of going to a *particular bank* or banker to demand the money, finding (wherever he has occasion to lay out money in the province) a person that is obliged to take the bills. So that even out of the province, the knowledge, that every man within that province is obliged to take its money, gives the bills a credit among its neighbours, nearly equal to what they have at home.

And were it not for the laws *here*, that restrain or prohibit as much as possible all losing trades, the cash of *this* country would soon be exported: every merchant, who had occasion to remit it, would run to the bank with all its bills, that came into his hands, and take out his part of its treasure for that purpose; so that in a short time, it would be no more able to pay bills in money upon sight, than it is now in the power of a colony treasury so to do. And if government afterwards should have occasion for the credit of the bank, it must of necessity make its bills a legal tender; funding them however on taxes by which they may in time be paid off; as has been the general practice in the colonies.—At this very time, even the silver-money in England is obliged to the legal tender for part of its value; that part which is the difference between its real weight and its denomination. Great part of

the shillings and sixpences now current are, by wearing, become five, ten, twenty, and some of the sixpences even fifty per cent. too light. For this difference between the *real* and the *nominal*, you have no *intrinsic* value; you have not so much as paper, you have nothing. It is the legal tender, with the knowledge that it can easily be repassed for the same value, that makes three-pennyworth of silver pass for sixpence. Gold and silver have undoubtedly *some* properties that give them a fitness above paper, as a medium of exchange; particularly their *universal estimation*; especially in cases where a country has occasion to carry its money abroad, either as a stock to trade with, or to purchase *allies* and *foreign succours*. Otherwise, that very universal estimation is an inconvenience, which paper-money is free from; since it tends to deprive a country of even the quantity of currency that should be retained as a necessary instrument of its internal commerce, and obliges it to be continually on its guard in making and executing, at a great expence, the laws that are to prevent the trade which exports it. Paper-money well funded has another great advantage over gold and silver; its lightness of carriage, and the little room that is occupied by a great sum; whereby it is capable of being more easily, and more safely, because more privately, conveyed from place to place. Gold and silver are not *intrinsically* of equal value with iron, a metal in itself capable of many more beneficial uses to mankind. Their value rests chiefly in the estimation they happen to be in among the generality of nations, and the credit given to the opinion, that that estimation will continue. Otherwise a pound of gold would not be a real equivalent for even a bushel of wheat. Any other well-founded credit, is as much an equivalent as gold and silver; and in some cases more so, or it would not be preferred by commercial people in different countries. Not to mention again our own bank bills; Holland, which understands the value of cash as well as any people in the world, would never part with gold and silver for credit (as they do when they put it into their bank, from whence little of it is ever afterwards drawn out) if they did not think and find the credit a full equivalent.

The 5th reason is, "*That debtors in the assemblies make paper-money with fraudulent views.*" This is often said by the adversaries of paper-money, and if it has been the case in any particular colony, that colony should, on proof of the fact, be duly punished. This, however, would be no reason for punishing other colonies, who have *not* so abused their legislative powers. To deprive all the colonies of the convenience of paper-

money, because it has been charged on some of them, that they have made it an instrument of fraud, is as if all the India, Bank, and other stocks and trading companies were to be abolished, because there have been, once in an age, Mississippi and South-Sea schemes and bubbles.

The 6th and last reason is, "*That in the middle colonies, where the paper-money has been best supported, the bills have never kept to their nominal value in circulation; but have constantly depreciated to a certain degree, whenever the quantity has been increased.*" If the rising of the value of any particular commodity wanted for exportation, is to be considered as a depreciation of the values of *whatever remains* in the country; then the rising of silver above paper to that height of additional value, which its capability of exportation only gave it, may be called a depreciation of the paper. Even here, as bullion has been wanted or not wanted for exportation, its price has varied from 5s. 2d. to 5s. 8d. per ounce. This is near 10 per cent. But was it ever said or thought on such an occasion, that all the bank bills, and all the coined silver, and all the gold in the kingdom, were depreciated 10 per cent? Coined silver is now wanted here for change, and 1 per cent is given for it by some bankers: are gold and bank notes therefore depreciated 1 per cent.? The fact in the middle colonies is really this: on the emission of the first paper-money, a difference soon arose between that and silver; the latter having a property the former had not, a property always in demand in the colonies; to wit, its being fit for a remittance. This property having soon found its value, by the merchants bidding on one another for it, and a dollar thereby coming to be rated at 8s. in paper-money of New York, and 7s. 6d. in paper of Pensylvania, it has continued uniformly at those rates in both provinces now near forty years, without any variation upon new emissions; though, in Pensylvania, the paper-currency has at times increased from 15,000*l.* the first sum, to 600,000*l.* or near it. Nor has any alteration been occasioned by the paper-money, in the price of the necessaries of life, when compared with silver: they have been for the greatest part of the time no higher than before it was emitted; varying only by plenty and scarcity, or by a less or greater foreign demand. It has indeed been usual with the adversaries of a paper-currency, to call every rise of exchange with London, a depreciation of the paper: but this notion appears to be by no means just: for if the paper purchases every thing but bills of exchange, at the former rate, and these bills are not above one-tenth of what is employed in purchases; then it may be more properly and truly said, that

the exchange has risen, than that the paper has depreciated. And as a proof of this, it is a certain fact, that whenever in those colonies bills of exchange have been dearer, the purchaser has been constantly obliged to give more in silver, as well as in paper, for them; the silver having gone hand in hand with the paper at the rate above-mentioned; and therefore it might as well have been said, that the silver was depreciated.

There have been several different schemes for furnishing the colonies with paper-money, that should *not* be a legal tender, viz.

1. *To form a bank, in imitation of the bank of England, with a sufficient stock of cash to pay the bills on sight.*

This has been often proposed, but appears impracticable, under the present circumstances of the colony-trade; which, as is said above, draws all the cash to Britain, and would soon strip the bank.

2. *To raise a fund by some yearly tax, securely lodged in the bank of England as it arises, which should (during the term of years for which the paper-bills are to be current) accumulate to a sum sufficient to discharge them all at their original value.*

This has been tried in Maryland: and the bills so funded were issued without being made a general legal tender. The event was, that as notes payable in time are naturally subject to a discount proportioned to the time: so these bills fell at the beginning of the term so low, as that twenty pounds of them became worth no more than twelve pounds in Pennsylvania, the next neighbouring province; though both had been struck near the same time at the same nominal value, but the latter was supported by the general legal tender. The Maryland bills however began to rise as the term shortened, and towards the end recovered their full value. But, as a depreciating currency injures creditors, *this* injured debtors; and by its continually changing value, appears unfit for the purpose of money, which should be as fixed as possible in its own value; because it is to be the measure of the value of other things.

3. *To make the bills carry an interest sufficient to support their value.*

This too has been tried in some of the New England colonies; but great inconveniencies were found to attend it. The bills, to fit them for a currency, are made of various denominations, and some very low, for the sake of

change; there are of them from 10*l.* down to 3*d.* When they first come abroad, they pass easily, and answer the purpose well enough for a few months; but as soon as the interest becomes worth computing, the calculation of it on every little bill in a sum between the dealer and his customers, in shops, warehouses and markets, takes up much time, to the great hindrance of business. This evil, however, soon gave place to a worse; for the bills were in a short time gathered up and hoarded; it being a very tempting advantage to have money bearing interest, and the principal all the while in a man's power, ready for bargains that may offer; which money out on mortgage is not. By this means numbers of people became usurers with small sums, who could not have found persons to take such sums of them upon interest, giving good security; and would therefore not have thought of it; but would rather have employed the money in some business, if it had been money of the common kind. Thus trade, instead of being increased by such bills, is diminished; and by their being shut up in chests, the very end of making them (*viz.* to furnish a medium of commerce) is in a great measure, if not totally defeated.

On the whole, no method has hitherto been formed to establish a medium of trade, in lieu of money, equal in all its advantages, to bills of credit—funded on sufficient taxes for discharging it, or on land-security of double the value for repaying it at the end of the term; and in the mean time, made a GENERAL LEGAL TENDER. The experience of now near half a century in the middle colonies has convinced them of it among themselves; by the great increase of their settlements, numbers, buildings, improvements, agriculture, shipping, and commerce. And the same experience has satisfied the British merchants, who trade thither, that it has been greatly useful to them, and not in a single instance prejudicial.

It is therefore hoped, that securing the full discharge of British debts, which are payable here, and in all justice and reason ought to be fully discharged here in sterling money; the restraint on the legal tender within the colonies will be taken off; at least for those colonies that desire it, and where the merchants trading to them make no objection to it^[56].

FOOTNOTES:

[55] The best account I can give of the occasion of the Report, to which this paper is a reply, is as follows. During the war there had been a considerable and unusual trade to America, in consequence of the great fleets and armies on foot there, and the clandestine dealings with the enemy, who were cut off from their own supplies. This made great debts. The briskness of the trade ceasing with the war, the merchants were anxious for payment, which occasioned some confusion in the colonies, and stirred up a clamour here against paper-money. The board of trade, of which lord Hillsborough was the chief, joined in this opposition to paper-money, as appears by the report. Dr. Franklin being asked to draw up an answer to their report, wrote the paper given above. B. V.

[56] I understand that Dr. Franklin is the friend who assisted governor Pownall in drawing up a plan for a general paper-currency for America, to be established by the British government. See Governor Pownall's Administration of the Colonies, 5th Edition, p. 199, and 208. B. V.

To the Freemen of Pensylvania, on the Subject of a particular Militia-Bill, rejected by the Proprietor's Deputy or Governor.

Philadelphia, Sept. 28, 1764.

GENTLEMEN,

Your desire of knowing how the militia-bill came to fail in the last assembly shall immediately be complied with.

As the governor pressed hard for a militia-law to secure the internal peace of the province, and the people of this country had not been accustomed to militia service; the house, to make it more generally agreeable to the freeholders, formed the bill so as that they might have some share in the election of the officers; to secure them from having absolute strangers set over them, or persons generally disagreeable.

This was no more, than that every company should choose, and recommend to the governor, three persons for each office of captain, lieutenant, and ensign; *out of which three*, the governor was to commission *one*, that he thought most proper, or which he pleased, to be the officer. And that the captains, lieutenants, and ensigns, so commissioned by the governor, should, in their respective regiments, choose and recommend three persons for each office of colonel, lieutenant-colonel, and major; out of which three the governor was to commission *one*, whichever he pleased, to each of the said offices.

The governor's amendment to the bill in this particular was, to strike out wholly this privilege of the people, and take to himself the *sole* appointment of all the officers.

The next amendment was to aggravate and *enhance all the fines*. A fine, that the assembly had made one hundred pounds, and thought heavy enough, the governor required to be three hundred pounds. What they had made fifty pounds, he required to be one hundred and fifty. These were fines on the commissioned officers for disobedience to his commands; but the non-commissioned officers, or common soldiers, whom, for the same

offence, the assembly proposed to fine at ten pounds, the governor insisted should be fined fifty pounds.

These fines, and some others to be mentioned hereafter, the assembly thought ruinously high: but when, in a subsequent amendment, the governor would, for offences among the militia, take away the *trial by jury* in the common courts; and required, that the trial should be by a court-martial, composed of officers of his own sole appointing, who should have power of sentencing even to death; the house could by no means consent thus to give up their constituents' liberty, estate, and life itself, into the absolute power of a proprietary governor; and so the bill failed.

That you may be assured I do not misrepresent this matter, I shall give you the last-mentioned amendment (so called) at full length; and for the truth and exactness of my copy I dare appeal to Mr. Secretary Shippen.

The words of the bill, p. 43, were, "Every such person, so offending, being legally convicted thereof, &c." By the words *legally convicted*, was intended a conviction after legal trial, in the common course of the laws of the land. But the governor required this addition immediately to follow the words ["convicted thereof"] viz. 'by a court-martial, shall suffer DEATH, or such other punishment as such court, by their sentence or decree, shall think proper to inflict and pronounce. And be it farther enacted by the authority aforesaid, That when and so often as it may be necessary, the governor and commander in chief for the time being shall appoint and commissionate, under the great seal of this province, sixteen commissioned officers in each regiment; with authority and power to them, or any thirteen of them, to hold courts-martial, of whom a field-officer shall always be one, and president of the said court; and such courts-martial shall, and are hereby impowered to administer an oath to any witness, in order to the examination or trial of any of the offences which by this act are made cognizable in such courts, and shall come before them. Provided always, that in all trials by a court-martial by virtue of this act, every officer present at such trial, before any proceedings be had therein, shall take an *oath* upon the holy evangelists, before one justice of the peace in the county where such court is held, who are hereby authorized to administer the same, in the following words, that is to say, "I A. B. do swear, that I will duly administer justice according to evidence, and to the directions of an act, entitled, An act for forming and regulating the militia of the province of Pennsylvania, without partiality,

favour, or affection; and that I will not divulge the sentence of the court, until it shall be approved of by the governor or commander in chief of this province for the time being; neither will I, upon any account, at any time whatsoever, disclose or *discover the vote or opinion* of any particular member of the court-martial. So help me God."—And no sentence of death, or other sentence shall be given against any offender but by the concurrence of nine of the officers so sworn. And no sentence, passed against any offender by such court-martial, shall be put in execution, until report be made of the whole proceedings to the governor or commander in chief of this province for the time being, and his directions signified thereupon.'

It is observable here, that by the common course of justice, a man is to be tried by a jury of his neighbours and fellows; impannelled by a sheriff, in whose appointment the people have a choice: the prisoner too has a right to challenge twenty of the pannel, without giving a reason, and as many more as he can give reasons for challenging; and before he can be convicted, the jury are to be unanimous; they are all to agree that he is guilty, and are therefore all accountable for their verdict. But by this amendment, the jury (if they may be so called) are all officers of the governor's sole appointing, and not one of them can be challenged; and though a common militia-man is to be tried, no common militia-man shall be of that Jury; and so far from requiring all to agree, a bare majority shall be sufficient to condemn you. And lest that majority should be under any check or restraint, from an apprehension of what the world might think or say of the severity or injustice of their sentence, an oath is to be taken, never to discover the vote or opinion of any particular member!

These are some of the chains attempted to be forged for you by the proprietary faction! Who advised the g——r is not difficult to know. They are the very men, who now clamour at the assembly for a proposal of bringing the trial of a particular murder to this county, from another, where it was not thought safe for any man to be either juryman or witness; and call it disfranchising the people! who are now bawling about the constitution, and pretending vast concern for your liberties! In refusing you the least means of recommending or expressing your regard for persons to be placed over you as officers, and who were thus to be made your judges in life and estate; they have not regarded the example of the king, our wise, as well as kind master, who, in all his requisitions made to the colonies, of raising

troops for their defence, directed, that "the better to facilitate the important service, the commissions should be given to such as from their weight and credit with the people may be best enabled to effectuate the levies^[57]." In establishing a militia for the defence of the province, how could the "weight and credit" of men with the people be better discovered, than by the mode that bill directed; viz. by a majority of those that were to be commanded nominating three for each office to the governor, of which three he might take the one he liked best?

However, the courts-martial being established, and all of us thus put into his honour's absolute power, the governor goes on to enhance the fines and penalties; thus, in page 49 of the bill, where the assembly had proposed the fine to be ten shillings, the governor required it to be ten pounds: in page 50, where a fine of five pounds was mentioned, the governor's amendment required it to be made fifty pounds. And in page 44, where the assembly had said, "shall forfeit and pay any sum not exceeding five pounds," the governor's amendment says, "shall suffer DEATH, or such other punishment, as shall, according to the nature of the offence, be inflicted by the sentence of a court-martial!"

The assembly's refusing to admit of these amendments in that bill is one of their offences against the Lord Proprietary; for which that faction are now abusing them in both the languages^[58] of the province, with all the virulence that reverend malice can dictate; enforced by numberless barefaced falshoods, that only the most dishonest and base would dare to invent, and none but the most weak and credulous can possibly believe.

VERITAS.

FOOTNOTES:

^[57] See Secretary of State's Letters in the printed Votes.

^[58] It is hardly necessary to mention here, that Pensylvania was settled by a mixture of German and English. B. V.

Preface by a Member of the Pensylvanian Assembly (Dr. Franklin) to the Speech of Joseph Galloway, Esq. one of the Members for Philadelphia County; in Answer to the Speech of John Dickinson, Esq.; delivered in the House of the Assembly of the Province of Pensylvania, May 24, 1764, on Occasion of a Petition drawn up by Order, and then under the Consideration of the House, praying his Majesty for a Royal, in lieu of a Proprietary, Government^[59].

It is not merely because Mr. Dickinson's speech was ushered into the world by a preface, that one is made to this of Mr. Galloway. But as, in that preface, a number of aspersions were thrown on our assemblies, and their proceedings grossly misrepresented, it was thought necessary to wipe those aspersions off by some proper animadversions, and by a true state of facts, to rectify those misrepresentations.

The preface begins with saying, "That governor Denny (whose administration will never be mentioned but with disgrace in the annals of this province) was induced, by considerations to which the world is now no stranger, to pass sundry acts," &c. thus insinuating, that by some unusual base bargain, secretly made, but afterwards discovered, he was induced to pass them.

It is fit therefore, without undertaking to justify all that governor's administration, to show *what* those considerations were. Ever since the revenue of the quit-rents first, and after that, the revenue of tavern-licences, were settled irrevocably on our proprietors and governors, they have looked on those incomes as their proper estate, for which they were under no obligations to the people: and when they afterwards concurred in passing any useful laws, they considered them as so many jobs, for which they ought to be particularly paid. Hence arose the custom of *presents* twice a year to the governors, at the close of each session in which laws were passed, given at the time of passing: they usually amounted to a thousand pounds per annum. But when the governors and assemblies disagreed, so that laws were not passed, the presents were withheld. When a disposition to agree ensued, there sometimes still remained some *diffidence*. The governors would not pass the laws that were wanted, without being sure of the money, even all that they called their arrears; nor the assemblies give the

money, without being sure of the laws. Thence the necessity of some private conference, in which mutual assurances of good faith might be received and given, that the transactions should go hand in hand. What name the impartial reader will give to this kind of commerce, I cannot say: to me it appears an extortion of more money from the people, for that to which they had before an undoubted right, both by the constitution and by purchase; but there was no other shop they could go to for the commodity they wanted, and they were obliged to comply. Time established the custom, and made it seem honest; so that our governors, even those of the most undoubted honour, have practised it. Governor Thomas, after a long misunderstanding with the assembly, went more openly to work with them in managing this commerce, and they with him. The fact is curious, as it stands recorded in the votes of 1742-3. Sundry bills, sent up to the governor for his assent, had lain long in his hands, without any answer. Jan. 4, the house "ordered, that Thomas Leech and Edward Warner wait upon the governor, and acquaint him, that the house had long waited for his result on the bills that lie before him, and desire to know, when they may expect it:" the gentlemen return, and report, "that they waited upon the governor, and delivered the message of the house according to order; and that the governor was pleased to say, he had had the bills long under consideration, and *waited the result* of the *house*." The house well understood this hint; and immediately resolved into a committee of the whole house, to take what was called *the governor's support* into consideration; in which they made (the minutes say) *some progress*; and the next morning it appears, that that *progress*, whatever it was, had been communicated to him; for he sent them down this message by his secretary: "Mr. Speaker, the governor commands me to acquaint you, that as he has received assurances of a *good disposition* in the house, he thinks it incumbent on him to show *the like* on his part; and therefore sends down the bills which lay before him, without any amendment." As this message only showed a good disposition, but contained no promise to pass the bills, the house seem to have had their doubts; and therefore, February 2, when they came to resolve, on the report of the grand committee, to give the money, they guarded their resolves very cautiously, viz. "Resolved, that *on the passage* of such bills as now lie before the governor, (the naturalization bill, and such other bills as may be presented to him during this sitting) there be PAID him the sum of *five hundred pounds*. Resolved also, that on the passage of such bills as now lie

before the governor (the naturalization bill, and such other bills as may be presented to him this sitting) there be PAID to the governor the *further* sum of *one thousand pounds*, for the current year's support; and that orders be drawn on the treasurer and trustees of the loan-office, pursuant to these resolves." The orders were accordingly drawn; with which being acquainted, he appointed a time to pass the bills; which was done with one hand, while he received the orders in the other: and then with the utmost politeness [he] thanked the house for the fifteen hundred pounds, as if it had been a pure free gift, and a mere mark of their respect and affection. "I *thank you*, gentlemen (says he) for this instance of *your regard*; which I am the more pleased with, as it gives an agreeable prospect of *future harmony* between me and the representatives of the people." This, reader, is an exact *counterpart* of the transaction with governor Denny; except that Denny sent word to the house, that he would pass the bills *before* they voted the support. And yet *here* was no proprietary clamour about bribery, &c. And why so? Why at that time the proprietary family, by virtue of a *secret bond* they had obtained of the governor at his appointment, were to *share with* him the sums so obtained of the people!

This reservation of the proprietaries they were at that time a little ashamed of; and therefore such bonds were then to be secrets. But as, in every kind of sinning, frequent repetition lessens shame, and increases boldness, we find the proprietaries ten years afterwards openly insisting on these advantages to themselves, *over and above* what was paid to their deputy: "Wherefore (say they) on this occasion it is necessary that we should inform the people, through yourselves their representatives, that as by the constitution *our consent is necessary* to their *laws*, at the same time that they have an *undoubted right* to such as are necessary for the defence and real service of the country; so it will tend the better to facilitate the several matters which must be transacted with us, for their representatives to show a regard *to us* and our *interest*." This was in their answer to the representation of the assembly [Votes, December, 1754, p. 48.] on the justice of their contributing to Indian expences, which they had refused. And on this clause the committee make the following remark: "They tell us their consent is necessary to our laws, and that it will tend the better to facilitate the matters which must be transacted with them, for the representatives to show a regard to their *interest*: that is (as we understand it) though the proprietaries have a deputy here, supported by the province,

who is, or ought to be, fully impowered to pass all laws necessary for the service of the country; yet, before we can obtain such laws, we must facilitate their passage by paying money for the proprietaries, which they ought to pay; or in some shape make it their particular *interest* to pass them. We hope, however, that if this practice has ever been begun, it will never be continued in this province; and that since, as this very paragraph allows, we have an undoubted right to such laws, we shall always be able to obtain them from the goodness of our sovereign, without going to market for them to a subject." Time has shown, that those hopes were vain; they have been obliged to go to that market ever since, directly or indirectly, or go without their laws. The practice has continued, and will continue, as long as the proprietary government subsists, intervening between the crown and the people.

Do not, my courteous reader, take pet at our proprietary constitution, for these our bargain and sale proceedings in legislation. It is a happy country where justice, and what was your own before, can be had for ready money. It is another addition to the value of money, and of course another spur to industry. Every land is not so blessed. There are countries where the princely proprietor claims to be lord of all property; where what is your own shall not only be wrested from you, but the money you give to have it restored shall be kept with it; and your offering so much, being a sign of your being too rich, you shall be plundered of every thing that remained. These times are not come here yet: your present proprietors have never been more unreasonable hitherto, than barely to insist on your fighting in defence of *their* property, and paying the expence yourselves; or if their estates must [ah! *must*] be taxed towards it, that the *best* of their lands shall be taxed no higher than the *worst* of yours.

Pardon this digression, and I return to governor Denny; but first let me do governor Hamilton the justice to observe, that whether from the uprightness of his own disposition, or from the odious light the practice had been set in on Denny's account, or from both; he did not attempt these bargains, but passed such laws as he thought fit to pass, without any *previous* stipulation of pay for them. But then, when he saw the assembly tardy in the payment he expected, and yet calling upon him still to pass more laws; he openly put them in mind of the money, as a *debt* due to him from custom. "In the course of the present year (says he, in his message of July 8, 1763) a great

deal of public business hath been transacted by me, and I believe as many useful laws enacted, as by any of my predecessors in the same space of time: yet I have not understood that any allowance hath hitherto been made to me for my support, as hath been customary in this province." The house having then some bills in hand, took the matter into immediate consideration, and voted him five hundred pounds, for which an order or certificate was accordingly drawn: and on the same day the speaker, after the house had been with the governor, reported, "That his honour had been pleased to give his assent to the bills, by enacting the same into laws. And Mr. Speaker farther reported, That he had then, in behalf of the house, presented their certificate of five hundred pounds to the governor, who was pleased to say, he was obliged to the house for the same." Thus we see the practice of purchasing and paying for laws is interwoven with our proprietary constitution, used in the best times, and under the best governors. And yet, alas! poor assembly! how will you steer your brittle bark between these rocks? If you pay *ready money* for your laws, and those laws are not liked by the proprietaries, you are charged with bribery and corruption: if you wait a while before you pay, you are accused of detaining the governor's customary right, and dunned as a negligent or dishonest debtor, that refuses to discharge a just debt!

But governor Denny's case, I shall be told, differs from all these; for the acts he was induced to pass were, as the prefacer tell us, "*contrary to his duty, and to every tie of honour and justice.*" Such is the imperfection of our language, and perhaps of all other languages, that, notwithstanding we are furnished with dictionaries innumerable, we cannot precisely know the import of words, unless we know of what party the man is that uses them. In the mouth of an assembly-man, or true Pennsylvanian, "contrary to his duty and to every tie of honour and justice" would mean, the governor's long refusal to pass laws, however just and necessary, for taxing the proprietary estate: a refusal, contrary to the trust reposed in the lieutenant-governor by the royal charter, to the rights of the people, whose welfare it was his duty to promote, and to the nature of the contract made between the governor and the governed, when the quit-rents and licence-fees were established, which confirmed what the proprietaries call our "undoubted right" to necessary laws. But in the mouth of the proprietaries, or their creatures, "contrary to his duty, and to every tie of justice and honour" means, his passing laws contrary to proprietary instructions, and contrary to

the bonds he had previously given to observe those instructions: instructions however, that were unjust and unconstitutional; and bonds, that were illegal and void from the beginning.

Much has been said of the wickedness of governor Denny in passing, and of the assembly in prevailing with him to pass, those acts. By the prefacer's account of them, you would think the laws, so obtained, were *all* bad; for he speaks of but *seven*, of which, six, he says, were repealed, and the seventh reported to be "fundamentally *wrong* and *unjust*," "and ought to be repealed, *unless* six certain amendments were made therein^[60]." Whereas in fact there were *nineteen* of them, and several of those must have been good laws, for even the proprietaries did not object to them. Of the eleven that they opposed, only six were repealed; so that it seems, these good gentlemen may themselves be sometimes as wrong in opposing, as the assembly in enacting laws. But the words, "fundamentally *wrong* and *unjust*," are the great fund of triumph to the proprietaries and their partizans. These, their subsequent governors have unmercifully dinned in the ears of the assembly on all occasions ever since; for they make a part of near a dozen of their messages. They have rung the changes on those words, till they worked them up to say, that the law was fundamentally wrong and unjust in *six several articles* (Governor's Message, May 17, 1764) instead of "ought to be repealed, *unless* six alterations or amendments could be made therein." A law, unjust in six several articles, must be an unjust law indeed. Let us therefore, once for all, *examine* this unjust law, article by article, in order to see, whether our assemblies have been such villains as they have been represented.

The *first* particular in which their lordships proposed the act should be amended was, "That the real estates to be taxed, be *defined with precision*; so as not to include the unsurveyed waste land belonging to the proprietaries." This was at most but an *obscurity* to be cleared up. And though the law might well appear to their lordships uncertain in that particular, with us, who better know our own customs, and that the proprietaries waste unsurveyed land was never here considered among estates real, subject to taxation; there was not the least doubt or supposition, that such lands were included in the words "all estates, real and personal." The agents therefore, knowing that the assembly had no intention to tax those lands, might well suppose they would readily agree to remove the

obscurity. Before we go farther, let it be observed, that the main design of the proprietaries in opposing this act was, to *prevent their estates being taxed at all*. But as they knew, that the doctrine of proprietary exemption, which they had endeavoured to enforce here, could not be supported there^[61], they bent their whole strength against the act on *other* principles to procure its repeal, pretending great willingness to submit to an equitable tax; but that the assembly (out of mere malice, because they had conscientiously quitted quakerism for the church!) were wickedly determined to ruin them, to tax all their unsurveyed wilderness-lands, and at the highest rates: and by that means exempt themselves and the people, and throw the whole burden of the war on the proprietary family. How foreign these charges were from the truth, need not be told to any man in Pennsylvania. And as the proprietors knew, that the hundred thousand pounds of paper-money, struck for the defence of *their* enormous estates, with others, was actually issued, spread through the country, and in the hands of thousands of poor people, who had given their labour for it; how base, cruel, and inhuman it was to endeavour, by a repeal of the act, to strike the money dead in those hands at one blow, and reduce it all to waste paper, to the utter confusion of all trade and dealings, and the ruin of multitudes, merely to avoid paying their own just tax—Words may be wanting to express,—but minds will easily conceive,—and never without abhorrence!

The *second* amendment proposed by their lordships was, "That the located uncultivated lands, belonging to the proprietaries, shall not be assessed higher than the *lowest* rate, at which any located uncultivated lands belonging to the inhabitants shall be assessed." Had there been any provision in the act, that the proprietaries' lands, and those of the people, of the same value, should be taxed differently, the one high, and the other low; the act might well have been called in this particular fundamentally wrong and unjust. But as there is no such clause, this cannot be one of the particulars on which the charge is founded; but, like the first, is merely a requisition to make the act *clear*, by express directions therein, that the proprietaries' estate should not be, as they pretended to believe it would be, taxed higher in proportion to its value than the estates of others. As to their present claim, founded on that article, "that the best and most valuable of their lands, should be taxed no higher than the worst and least valuable of the people's," it was not *then* thought of; they made no such demand; nor

did any one dream that so iniquitous a claim would ever be made by men, who had the least pretence to the characters of honourable and honest.

The *third* particular was, "That all lands, *not granted* by the proprietaries *within boroughs and towns*, be deemed located uncultivated lands, and rated accordingly; and not as lots." The clause in the act that this relates to is, "And whereas many valuable lots of ground within the city of Philadelphia, and the several boroughs and towns within this province, remain unimproved; Be it enacted, &c. That *all* such unimproved lots of ground within the city and boroughs aforesaid, shall be rated and assessed according to their situation and value for, and towards raising the money hereby granted." The reader will observe, that the word is, *all* unimproved lots; and that *all* comprehends the lots belonging to the people, as well as those of the proprietary. There were many of the former; and a number belonging even to members of the then assembly; and considering the value, the tax must be proportionably as grievous to them, as the proprietary's to him. Is there among us a single man, even a proprietary relation, officer, or dependant, so insensible of the differences of right and wrong, and so confused in his notions of just and unjust, as to think and say, that the act in this particular was fundamentally wrong and unjust? I believe not one. What then could their lordships mean by the proposed amendment? Their meaning is easily explained. The proprietaries have considerable tracts of land within the bounds of boroughs and towns, that have not yet been divided into lots: they pretended to believe, that by virtue of this clause an imaginary division would be made of *those* lands into lots, and an extravagant value set on such imaginary lots, greatly to their prejudice. It was answered, that no such thing was intended by the act: and that by lots was meant only such ground as *had* been surveyed and divided into lots, and not the open undivided lands. If this only is intended, say their lordships, then let the act be amended, so as *clearly* to express what is intended. This is the full amount of the third particular. How the act was understood here, is well known by the execution of it before the dispute came on in England, and therefore before their lordships' opinion on the point could be given, of which full proof shall presently be made. In the mean time it appears, that the act was not on *this* account fundamentally wrong and unjust.

The *fourth* particular is, "That the *governor's consent* and approbation be made necessary to every issue and application of the money, to be raised by virtue of such act." The assembly intended this, and thought they had done it in the act. The words of the clause being, "That [the commissioners named] or the major part of them, or of the survivors of them, *with the consent* or approbation of the governor or commander in chief of this province for the time being, shall order and appoint *the disposition of the monies* arising by virtue of this act, for and towards paying and clothing two thousand seven hundred effective men," &c. It was understood here, that as the power of disposing was expressly to be with the consent and approbation of the governor, the commissioners had no power to dispose of the money without that approbation: but their lordships, jealous (as their station requires) of this prerogative of the crown, and being better acquainted with the force and weakness of law expression, did not think the clause explicit enough, unless the words, "*and not otherwise*," were added, or some other words equivalent. This particular, therefore, was no more than another requisition of greater *clearness* and precision; and by no means a foundation for the charge of fundamentally wrong and unjust.

The *fifth* particular was, "That *provincial* commissioners be named, to hear and *determine appeals*, brought on the part of the inhabitants, as well as the proprietaries." There was already subsisting a provision for the appointment of *county* commissioners of appeal; by whom the act might be, and actually has been (as we shall presently show) justly and impartially executed with regard to the proprietaries; but *provincial* commissioners appointed in the act it was thought might be of use, in regulating and equalizing the modes of assessment of different counties, where they were unequal; and by affording a second appeal, tend more to the satisfaction both of the proprietaries and the people.—This particular was therefore a mere proposed improvement of the act, which could not be, and was not, in this respect, denominated fundamentally wrong and unjust.

We have now gone through five of the six proposed amendments, without discovering any thing on which that censure could be founded; but the *sixth* remains; which points at a part of the act wherein we must candidly acknowledge there is something, that, in their lordships' view of it, must justify their judgment. The words of the *sixth* article are, "That the payments by the tenants to the proprietaries of their rents, shall be

according to the terms of their respective grants, as if such act had never been passed." This relates to that clause of the act by which the *paper-money* was made a *legal tender* in "discharge of all manner of debts, rents, sum and sums of money whatsoever, &c. at the rates ascertained in the act of parliament made in the sixth of Queen Anne." From the great injustice frequently done to creditors, and complained of from the colonies, by the vast depreciation of paper bills, it was become a general fixed principle with the ministry, that such bills (whose value, though fixed in the act, could not be kept fixed by the act) ought *not* to be made a legal tender in any colony at those rates. The parliament had before passed an act, to take that tender away in the four New England colonies, and have since made the act general. This was what their lordships would therefore have proposed for the amendment. But it being represented, That the chief support of the credit of the bills was the legal tender; and that without it they would become of no value, it was allowed generally to remain; with an exception to the proprietaries' rents, where^[62] there was a special contract for payment in another coin. It cannot be denied but that *this* was doing justice to the proprietaries; and that, had the requisition been in favour of *all other* creditors also, the justice had been equal, as being general. We do not therefore presume to impeach their lordships' judgment, that the act, as it enforced the acceptance of bills for money at a value which they had only nominally, and not really, was in that respect fundamentally wrong and unjust. And yet we believe the reader will not think the assembly so much to blame, when he considers, that the making paper-bills a legal tender had been the universal mode in America for more than threescore years; that there was scarce a colony that had not practised that mode more or less; that it had always been thought absolutely necessary, in order to give the bills a credit, and thereby obtain from them the uses of money; that the inconveniences were therefore submitted to, for the sake of the greater conveniences; that acts innumerable of the like kind had been approved by the crown; and that if the assembly made the bills a legal tender at those rates to the proprietaries, they made them also a legal tender to themselves and all their constituents, many of whom might suffer in their rents, &c. as much in proportion to their estates as the proprietaries. But if he cannot, on these considerations, quite excuse the assembly, what will he think of those honourable proprietaries, who, when paper-money was issued in their colony, for the common defence of their vast estates, with those of the

people, and who must therefore reap at least equal advantages from those bills with the people, could nevertheless wish to be exempted from their share of the unavoidable disadvantages. Is there upon earth a man besides, with any conception of what is honest, with any notion of honour, with the least tincture in his veins of the gentleman, but would have blushed at the thought; but would have rejected with disdain such undue preference, if it had been offered him? Much less would he have struggled for it, moved heaven and earth to obtain it, resolved to ruin thousands of his tenants by a repeal of the act, rather than miss of it^[63]; and enforce it afterwards by an audaciously wicked instruction; forbidding aids to his king, and exposing the province to destruction, unless it was complied with. And yet,—These are *honourable* men^[64].

Here then we have a full view of the assembly's injustice; about which there has been so much insolent triumph! But let the proprietaries and their discreet deputies hereafter recollect and remember, that the same august tribunal, which censured some of the modes and circumstances of that act, did at the same time establish and confirm the grand principle of the act, viz. "That the proprietary estate ought, with other estates, to be taxed:" and thereby did in effect determine and pronounce, that the opposition so long made in various shapes to that just principle, by the proprietaries, was fundamentally *wrong* and *unjust*. An injustice they were not, like the assembly, under any necessity of committing for the public good, or any other necessity but what was imposed on them by those base passions, that act the tyrant in bad minds; their selfishness, their pride, and their avarice.

I have frequently mentioned the *equitable intentions* of the house in those parts of the act, that were supposed obscure, and how they were understood here. A clear proof thereof is found, as I have already said, in the actual execution of the act; in the execution of it before the contest about it in England; and therefore before their lordships' objections to it had a being. When the report came over, and was laid before the house, one year's tax had been levied: and the assembly, conscious that no injustice had been intended to the proprietaries, and willing to rectify it if any should appear, appointed a *committee* of members from the several counties to examine into the state of the proprietaries' taxes through the province, and nominated on that committee a gentleman of known attachment to the proprietaries, and their chief justice, Mr. Allen; to the end that the strictest inquiry might

be made. *Their report* was as follows: "We, the committee appointed to inquire into, and consider the state of the proprietary taxation through the several counties, and report the same to the house, have, in pursuance of the said appointment, carefully examined the returns of property, and compared them with the respective assessments thereon made through the whole province; and find, *first*, That no part of the *unsurveyed* waste lands belonging to the proprietaries have, in any instance, been included in the estates taxed. *Secondly*, That some of the *located uncultivated* lands belonging to the proprietaries in several counties *remain unassessed*; and are not in any county assessed higher, than the lands under like circumstances belonging to the inhabitants. *Thirdly*, That all *lands*; *not* granted by the proprietaries, *within boroughs* and towns, remain *untaxed*; excepting in a few instances, and in those they are rated as *low*, as the lands which are granted in the said boroughs and towns. The whole of the proprietary tax of eighteen pence in the pound amounts to 566*l.* 4*s.* 10*d.* And the sum of the tax on the inhabitants for the same year amounts, through the several counties, to 27,103*l.* 12*s.* 8*d.* And it is the opinion of your committee, that there has not been any injustice done to the proprietaries, or attempts made to rate or assess any part of their estates higher than the estates of the like kind belonging to the inhabitants are rated and assessed; but, on the contrary, we find that their estates are rated, in many instances, below others.

Thomas Leech,
Joseph Fox,
Samuel Rhoads,
Abraham Chapman,

George Ashbridge,
Emanuel Carpenter,
John Blackburn,
William Allen."

The house communicated this report to governor Hamilton, when he afterwards pressed them to make the stipulated act of amendment; acquainting him at the same time, that as in the execution of the act no injustice *had* hitherto been done to the proprietary, so, by a yearly inspection of the assessments, they would take care that none *should* be done him; for that if any should appear, or the governor could at any time point out to them any that had been done, they would immediately rectify it; and therefore, as the act was shortly to expire, they did not think the amendments necessary. Thus that matter ended during that administration.

And had his successor, governor Penn, permitted it still to sleep, we are of opinion it had been more to the honour of the family, and of his own discretion. But he was pleased to found upon it a *claim* manifestly unjust, and which he was totally destitute of reason to support. A claim, that the proprietaries best and most valuable located uncultivated lands, should be taxed no *higher* than the worst and least valuable of those belonging to the inhabitants: to enforce which, as he thought the words of one of the stipulations seemed to give some countenance to it, he insisted on using those very words as sacred; from which he could "neither in decency or in duty," deviate; though he had agreed to deviate from words [in] the same report, and therefore equally sacred in every other instance. A conduct which will (as the prefacer says in governor Denny's case) for ever disgrace the annals of *his* administration^[65]. Never did any administration open with a more *promising* prospect [than this of governor Penn]. He assured the people, in his first speeches, of the proprietaries' paternal regard for them, and their sincere disposition to do every thing that might promote their happiness. As the proprietaries had been pleased to appoint a son of the family to the government, it was thought not unlikely, that there might be something in these professions; for that they would probably choose to have his administration made easy and agreeable; and to that end might think it prudent to withdraw those harsh, disagreeable, and unjust instructions with which most of his predecessors had been hampered: the assembly therefore believed fully, and rejoiced sincerely. They showed the new governor every mark of respect and regard that was in their power. They readily and cheerfully went into every thing he recommended to them. And when he and his authority were insulted and endangered by a lawless murdering mob, they and their friends took arms at his call, and formed themselves round him for his defence, and the support of his government. But when it was found, that those mischievous instructions still subsisted, and were even farther extended; when the governor began, unprovoked, to send the house affronting messages, seizing every imaginary occasion of reflecting on their conduct; when every other symptom appeared of fixed deep-rooted family malice, which could but a little while bear the unnatural covering that had been thrown over it, what wonder is it, if all the old wounds broke out and bled afresh? if all the old grievances, still unredressed, were recollected; if despair succeeded of [seeing] any peace with a family, that could make such returns to all their overtures of kindness! And when in the

very proprietary council, composed of staunch friends of the family, and chosen for their attachment to it, it was observed, that the *old men* (1 Kings, chap. xii.) withdrew themselves, finding their opinion slighted, and that all measures were taken by the advice of two or three *young men* (one of whom too denies his share in them) is it any wonder, since like causes produce like effects, if the assembly, notwithstanding all their veneration for the first proprietor, should say, with the children of Israel, under the same circumstances, "What portion have we in David, or inheritance in the son of Jesse? To your tents, O Israel!"

Under these circumstances, and a conviction that while so many natural sources of difference subsisted between proprietaries and people, no harmony in government long subsist (without which neither the commands of the crown could be executed, nor the public good promoted) the house resumed the consideration of a measure that had often been proposed in former assemblies; a measure, that every *proprietary province in America* had, from the same causes, found themselves obliged to take, and had actually taken, or were about to take; and a measure, that had happily succeeded, wherever it was taken; I mean the recourse to an immediate *royal government*.

They therefore, after a thorough debate, and making no less than twenty-five unanimous resolves, expressing the many grievances this province had long laboured under, through the proprietary government, came to the following resolution, viz. "Resolved, nemine contradicente, That this house will adjourn, in order to *consult their constituents*, whether an humble *address* should be drawn up and transmitted to *his Majesty*; praying that he would be graciously pleased to take the people of this province under his immediate protection and government, by completing the agreement heretofore made with the first proprietary for the sale of the government to the crown, or otherwise as to his wisdom and goodness shall seem meet^[66]."

This they ordered to be made public; and it was published accordingly in all the newspapers: the house then adjourned for no less than *seven weeks*, to give their constituents time to consider the matter, and themselves an opportunity of taking their opinion and advice. Could any thing be more deliberate, more fair and open, or more respectful to the people that chose them?—During this recess, the people, in many places, held little meetings

with each other; the result of which was, that they would manifest their sentiments to their representatives, by petitioning the crown directly of themselves, and requesting the assembly to transmit and support those petitions. At the next meeting many of these petitions were delivered to the house with that request; they were signed by a very great^[67] number of the most substantial inhabitants; and not the least intimation was received by the assembly from any other of their constituents, that the method was *disapproved*; except in a petition from an obscure town-ship in Lancaster county, to which there were about forty names indeed, but all evidently signed by three hands only. What could the assembly infer from the expressed willingness of a part, and silence of the rest; but that the measure was universally agreeable! They accordingly resumed the consideration of it; and though a small, very small opposition then appeared to it in the house; yet as even that was founded not on the impropriety of the thing; but on supposed unsuitableness of the time or the manner, and a majority of nine tenths being still for it; a petition was drawn agreeable to the former resolve, and ordered to be transmitted to his majesty.

But the preface tells us, that these *petitioners* for a change were a "number of rash, ignorant, and inconsiderate people," and generally of a *low rank*. To be sure they were not of the proprietary officers, dependents, or expectants; and those are chiefly the people of high rank among us; but they were otherwise generally men of the best estates in the province, and men of reputation. The assembly, who come from all parts of the country, and therefore may be supposed to know them, at least as well as the prefacer, have given that testimony of them. But what is the testimony of the assembly; who in his opinion are equally rash, ignorant, and inconsiderate with the petitioners? And if his judgment is right, how imprudently and contrary to their charter, have his *three hundred thousand souls* acted in their elections of assembly-men these twenty years past; for the charter requires them to choose men of *most note* for *virtue, wisdom* and *ability*!

But these are qualities engrossed, it seems, by the *proprietary* party. For they say, "the *wiser* and *better* part of the province had far different notions of this measure: they considered, that the moment they put their hands to these petitions they might be surrendering up their birthright." I felicitate them on the *honour* they have thus bestowed upon themselves; on the *sincere* compliments thus given and accepted; and on their having with such

noble freedom discarded the snivelling pretence to modesty, couched in that threadbare form of words, "though we say it, that should not say it." But is it not surprising, that, during the seven weeks recess of the assembly, expressly to consult their constituents on the expediency of this measure, and during the fourteen days the house sat deliberating on it after they met again, these their wisdoms and betternesses should never be so kind as to communicate the least scrap of their prudence, their knowledge, or their consideration, to their rash, ignorant, and inconsiderate representatives? Wisdom in the mind is not like money in the purse, diminished by communication to others: they might have lighted up our farthing candles for us, without lessening the blaze of their own flambeaux. But they suffered our representatives to go on in the dark till the fatal deed was done; and the petition sent to the king, praying him to take the government of this province into his immediate care: whereby, if it succeeds, "our glorious plan of public liberty and charter of privileges is to be bartered away," and we are to be made slaves for ever! Cruel parsimony! to refuse the charity of a little understanding, when God had given you so much, and the assembly begged it as an alms! O that you had but for once remembered and observed the counsel of that wise poet Pope, where he says,

Be niggards of advice on no pretence;
For the worst avarice is that of sense.

In the constitution of our government, and in that of one more, there still remains a particular thing that none of the other American governments have; to wit, the appointment of a governor by the *proprietors*, instead of an appointment by the *crown*. This particular in government has been found inconvenient; attended with contentions and confusions wherever it existed; and has therefore been gradually taken away from colony after colony, and every where greatly to the satisfaction and happiness of the people. Our wise first proprietor and founder was fully sensible of this; and being desirous of leaving his people happy, and preventing the mischiefs that he foresaw must in time arise from that circumstance if it was continued, he determined to take it away, if possible, during his own lifetime. They accordingly entered into a contract for the sale of the proprietary right of government to the crown, and actually received a sum in part of the consideration. As he found himself likely to die before that contract (and with it, his plan for the happiness of his people) could be completed, he carefully made it a part of his last will and testament; devising the right of

the government to two noble lords, in trust, that they should release it to the crown. Unfortunately for us, this has never yet been done. And this is merely what the assembly now desire to have done. Surely he that formed our constitution, must have understood it. If he had imagined, that all our privileges depended on the proprietary government; will any one suppose, that he would himself have meditated the change; that he would have taken such effectual measures, as he thought them, to bring it about speedily, whether he should live or die? Will any of those, who now extol him so highly, charge him at the same time with the baseness of endeavouring thus to defraud his people of all the liberties and privileges he had promised them, and by the most solemn charters and grants assured to them, when he engaged them to assist him in the settlement of his province? Surely none can be so inconsistent!—And yet this proprietary right of governing or appointing a governor has all of a sudden changed its nature; and the preservation of it become of so much importance to the welfare of the province, that the assembly's only petitioning to have their venerable founder's will executed, and the contract he entered into for the good of his people completed, is stiled, an "attempt to violate the constitution for which our fathers planted a wilderness; to barter away our glorious plan of public liberty and charter privileges; a risquing of the whole constitution; an offering up of our whole charter rights; a wanton sporting with things sacred, &c."

Pleasant surely it is to hear the proprietary partizans, of all men, bawling for the constitution, and affecting a terrible concern for our liberties and privileges. They, who have been these twenty years cursing our constitution, declaring that it was no constitution, or worse than none; and that things could never be well with us till it was new modelled, and made exactly conformable to the British constitution: they, who have treated our distinguishing privileges as so many illegalities and absurdities; who have solemnly declared in print, that though such privileges might be proper in the infancy of a colony to encourage its settlement, they became unfit for it in its grown state, and ought to be taken away: they, who by numberless falshoods, propagated with infinite industry in the mother country, attempted to procure an act of parliament for the actual depriving a very great part of the people of their privileges: they too, who have already deprived the whole people of some of their most important rights, and are daily endeavouring to deprive them of the rest: are these become patriots

and advocates for our constitution? Wonderful change! astonishing conversion! Will the wolves then protect the sheep, if they can but persuade them to give up their dogs? Yes; the assembly would destroy all their own rights, and those of the people; and the proprietary partizans are become the champions for liberty! Let those who have faith now make use of it: for if it is rightly defined, the evidence of things not seen, certainly never was there more occasion for such evidence, the case being totally destitute of all other.

It has been long observed, that men are with that party, angels or demons, just as they happen to concur with or oppose their measures. And I mention it for the comfort of *old sinners*, that in politics, as well as in religion, repentance and amendment, though late, shall obtain forgiveness, and procure favour. Witness the late speaker, Mr. Norris; a steady and constant opposer of all the proprietary encroachments; and whom, for thirty years past, they have been therefore continually abusing, allowing him no one virtue or good quality whatsoever: but now, as he shewed some unwillingness to engage in this present application to the crown, he is become all at once the "faithful servant;"—but let me look at the text, to avoid mistakes—and indeed I was mistaken—I thought it had been "faithful servant of the public," but I find it is only "of the house." Well chosen that expression, and prudently guarded. The former, from a proprietary pen, would have been praise too much, only for disapproving the *time* of the application. Could *you*, much respected [Mr. Norris], go but a little farther, and disapprove the application itself? Could you but say, the proprietary government is a good one, and ought to be continued; then might all your political offences be done away, and your scarlet sins become as snow and wool; then might you end your course with (proprietary) honour. P—— should preach your funeral sermon, and S——, the poisoner of other characters, embalm your memory. But those honours you will never receive; for with returning health and strength you will be found in your old post, firm for your country.

There is encouragement too for *young sinners*. Mr. Dickenson, whose speech our prefacer has introduced to the world, (though long hated by some, and disregarded by the rest of the proprietary faction) is at once, for the same reason as in Mr. Norris's case, become a sage in the law, and an oracle in matters relating to our constitution. I shall not endeavour to pluck

so much as a leaf from these the young gentleman's laurels. I would only advise him carefully to preserve the panegyrics with which they have adorned him: in time they may serve to console him, by balancing the calumny they shall load him with, when he does not go through with them in all their measures: he will not probably do the one, and they will then assuredly do the other. There are mouths that can blow hot as well as cold, and blast on your brows the bays their hands have placed there. "Experto crede Roberto." Let but the moon of *proprietary* favour withdraw its shine for a moment, and that "great number of the *principal gentlemen* of Philadelphia," who applied to you for the copy of your speech, shall immediately despise and desert you.

"Those principal gentlemen!" What a pity it is that their names were not given us in the preface, together with their admirable letter! We should then have known, where to run for advice on all occasions. We should have known, who to choose for our future representatives: for undoubtedly these were they that are elsewhere called "the *wiser* and *better* part of the province." None but their wisdoms could have known before-hand, that a speech which they never heard, and a copy of which they had never seen, but were then requesting to see, was "a spirited defence," and "of our charter privileges," and that "the publication of it would be of great utility, and give general satisfaction." No inferior sagacity could discover, that the appointment of a governor by the proprietor was one of our "charter privileges," and that those who opposed the application for a royal government were therefore patriot members, appearing on the side of our privileges and our charter!

Utterly to *confound the assembly*, and show the excellence of proprietary government, the prefacer has extracted from their own votes, the *praises* they have from time to time bestowed on the *first* proprietor, in their addresses to his sons. And though addresses are not generally the best repositories of historical truth, we must not in this instance deny their authority.

* * * * *

What then avails it to the honour of the present proprietors, that our founder and their father gave us privileges, if they, the sons, will not permit the use of them, or forcibly rend them from us? David may have been a

man after God's own heart, and Solomon the wisest of proprietors and governors; but if Rehoboam will be a tyrant and a —, who can secure him the affections of the people? The virtue and merit of his ancestors may be very great, but his presumption in depending upon those alone may be much greater.

I lamented, a few pages ago, that we were not acquainted with the names of those "principal gentlemen, the wiser and better part of the province." I now rejoice that we are likely, some time or other, to know them; for a copy of a *petition to the king* is now before me; which, from its similarity with their *letter*, must be of their inditing, and will probably be recommended to the people, by their leading up the signing.

On this petition I shall take the liberty of making a few *remarks*, as they will save me the necessity of following farther the preface; the sentiments of this and that being nearly the same.

It begins with a formal quotation from the [assembly's] petition, which they own they have not seen, and of words that are not in it; and after relating very imperfectly and unfairly the fact relating to their application for a copy of it, which is of no importance, proceeds to set forth, "that as we and all your American subjects must be governed by persons authorised and approved by your Majesty, on the best recommendation that can be obtained of them; we cannot perceive our condition in this respect to be *different* from our fellow-subjects around us, or that we are thereby less under your majesty's particular care and protection than they are; since there can be no *governors* of this province without your majesty's *immediate approbation* and authority." Such a declaration from the wiser part of the province is really a little surprising. What! when disputes concerning matters of property are daily arising between you and your proprietaries, cannot your wisdoms perceive the least difference between having the judges of those disputes appointed by a *royal* governor, who has no interest in the cause, and having them appointed by the *proprietaries* themselves, the principal parties against you; and *during their pleasure* too? When supplies are necessary to be raised for your defence, can you perceive no difference between having a royal governor, free to promote his majesty's service by a ready assent to your laws; and a proprietary governor, shackled by instructions, forbidding him to give that assent, unless some private advantage is obtained, some profit got, or unequal exemption gained for

their estate, or some privilege wrested from you? When prerogative, that in other governments is only used for the good of the people, is here strained to the extreme, and used to their prejudice, and the proprietaries benefit, can you perceive no difference? When the direct and immediate rays of majesty benignly and mildly shine on all *around* us, but are transmitted and thrown upon *us* through the burning-glass of proprietary government, can your sensibilities feel no difference? Sheltered perhaps in proprietary offices, or benumbed with expectations, it may be you cannot. But surely you might have known better than to tell his majesty, "that there can be no governors of this province, without his immediate approbation." Don't you know, who know so much, that by our blessed constitution the *proprietors* themselves, whenever they please, may govern us in *person*, without such approbation?

The petition proceeds to tell his majesty, "that the particular mode of government which we enjoy, under your majesty, is held in the *highest estimation* by good men of all denominations among us; and hath *brought multitudes* of industrious people from various parts of the world," &c. Really! Can this be from proprietary partizans? That constitution, which they were for ever censuring as defective in a legislative council, defective in government powers, too popular in many of its modes, is it now become so excellent? Perhaps, as they have been tinkering it these twenty years, till they have stripped it of some of its most valuable privileges, and almost spoiled it, they now begin to like it. But then it is not surely this *present* constitution, that brought hither those multitudes. They came before. At least it was not that particular in our constitution (the proprietary power of appointing a governor) which attracted them, that single particular, which alone is now in question, which our venerable founder first, and now the assembly, are endeavouring to change. As to the remaining valuable part of our constitution, the assembly have been equally full and strong in expressing their regard for it, and perhaps stronger and fuller; for *their* petition, in that respect, is in the nature of a petition of right: it lays claim, though modestly and humbly, to those privileges on the foundation of royal grants, on laws confirmed by the crown, and on justice and equity, as the grants were the consideration offered to induce them to settle, and which they have in a manner purchased and paid for, by executing that settlement without putting the crown to any expence. Whoever would know what our constitution was, when it was so much admired, let him peruse that elegant farewell speech of Mr. Hamilton, father of our late governor, when, as

speaker, he took his leave of the house, and of public business, in 1739; and then let him compare that constitution with the present. The power of *appointing public officers* by the representatives of the people, which he so much extols, where is it now? Even the bare naming to the governor in a bill, a trivial officer to receive a light-house duty (which could be considered as no more than a mere recommendation) is, in a late message, styled, "an encroachment on the prerogative of the crown!" The sole power of *raising and disposing of public money*, which he says was then lodged in the assembly, that inestimable privilege, what is become of it? Inch by inch they have been wrested from us in times of public distress; and the rest are going the same way. I remember to have seen, when governor Hamilton was engaged in a dispute with the assembly on some of those points, a copy of that speech, which then was intended to be reprinted, with a dedication to that honourable gentleman, and this motto from John Rogers's verses in the Primer:

We send you here a little book,
For you to look upon;
That you may see your father's face,
Now he is dead and gone.

Many a such little book has been sent by our assemblies to the present proprietaries: but they do not like to see their father's face; it puts their own out of countenance.

The petition proceeds to say, "that such disagreements as have arisen in this province, we have beheld with sorrow; but as others around us are not exempted from the *like misfortunes*, we can by no means conceive them incident to the nature of our government, which hath *often* been administered with remarkable harmony: and your majesty, before whom our late disputes have been laid, can be at no loss, in your great wisdom, to discover, whether they proceed from the above cause, or should be ascribed to some others." The disagreements in question are proprietary disagreements in government, relating to proprietary private interests. And are not the *royal* governments around us exempt from *these* misfortunes? Can you really, gentlemen, by no means conceive, that proprietary government disagreements are incident to the nature of proprietary governments? If your wisdoms are so hard to conceive, I am afraid they will never bring forth. But then our government "hath *often* been administered with remarkable harmony." Very true; as often as the assembly

have been able and willing to purchase that harmony, and pay for it, the mode of which has already been shown. And yet that word *often* seems a little unluckily chosen: the flame that is often put out, must be as often lit. If our government hath often been administered with remarkable harmony, it hath as often been administered with remarkable discord: one often is as numerous as the other. And his majesty, if he should take the trouble of looking over our disputes (to which the petitioners, to save themselves a little pains, modestly and decently refer him) where will he, for twenty years past, find any but *proprietary* disputes concerning proprietary interests; or disputes that have been connected with and arose from them?

The petition proceeds to assure his majesty, "that this province (except from the Indian ravages) enjoys the *most perfect internal tranquillity!*"—Amazing! what! the most perfect tranquillity! when there have been three atrocious riots within a few months! when in two of them, horrid murders were committed on twenty innocent persons; and in the third, no less than one hundred and forty like murders were meditated, and declared to be intended, with as many more as should be occasioned by any opposition! when we know that these rioters and murderers have none of them been punished, have never been prosecuted, have not even been apprehended! when we are frequently told, that they intend still to execute their purposes, as soon as the protection of the king's forces is withdrawn! Is our tranquillity more perfect now, than it was between the first riot and the second, or between the second and the third? And why "except the Indian ravages," is a *little intermission* to be denominated "the most perfect tranquillity?" For the Indians too have been quiet lately. Almost as well might ships in an engagement talk of the most perfect tranquillity between two broadsides. But "a spirit of riot and violence is foreign to the general temper of the inhabitants." I hope and believe it is; the assembly have said nothing to the contrary. And yet is there not too much of it? Are there not pamphlets continually written, and daily sold in our streets, to justify and encourage it? Are not the mad armed mob in those writings instigated to embrue their hands in the blood of their fellow-citizens, by first applauding their murder of the Indians, and then representing the assembly and their friends as worse than Indians, as having privately stirred up the Indians to murder the white people, and armed and rewarded them for that purpose? LIES, gentlemen, villanous as ever the malice of hell invented, and which, to

do you justice, not one of you believes, though you would have the mob believe them.

But your petition proceeds to say, "that where such disturbances have happened, they have been *speedily quieted*." By whom were they quieted? The *two first*, if they can be said to be quieted, were quieted only by the rioters themselves going home quietly (that is, without any interruption) and remaining there till their next insurrection, without any pursuit, or attempt to apprehend any of them. And the *third*, was it quieted, or was the mischief they intended prevented, or could it have been prevented, without the aid of the king's troops, marched into the province for that purpose?—"The civil powers have been supported," in some sort. We all know how they were supported; but have they been *fully* supported? Has the government sufficient strength, even with all its supports, to venture on the apprehending and punishment of those notorious offenders? If it has not, why are you angry at those who would strengthen its hands by a more immediate royal authority? If it has, why is not the thing done? Why will the government, by its conduct, strengthen the suspicions (groundless no doubt) that it has come to a private understanding with those murderers, and that impunity for their past crimes is to be the reward of their future political services?—O! but says the petition, "there are perhaps cases in all governments where it may *not be possible speedily to discover offenders*." Probably; but is there any case in any government where it is not possible to *endeavour* such a discovery? There may be cases where it is not safe to do it: and perhaps the best thing our government can say for itself is, that that is our case. The only objection to such an apology must be, that it would justify that part of the assembly's petition to the crown, which relates to the *weakness* of our present government. [\[68\]](#)

Still, if there is any *fault*, it must be *in the assembly*; for, says the petition, "if the executive part of our government should seem in any case too weak, we conceive it is the duty of the assembly, and in *their* power, to strengthen it." This weakness, however, you have just denied. "Disturbances you say *have been speedily quieted*, and the civil power supported," and thereby you have deprived your insinuated charge against the assembly of its only support. But is it not a fact known to you all, that the assembly *did* endeavour to strengthen the hands of the government? That, at his honour's instance, they prepared and passed in a few hours a bill for extending hither

the act of parliament for dispersing rioters? That they also passed and presented to him a militia bill, which he refused, unless powers were thereby given him over the lives and properties of the inhabitants, which the public good did not require; and which their duty to their constituents would not permit them to trust in the hands of any proprietary governor? You know the points, gentlemen: they have been made public. Would you have had your representatives give up those points? Do *you* intend to give them up, when at the next election *you* are made assemblymen? If so, tell it us honestly beforehand, that we may know what we are to expect when we are about to choose you?

I come now to the last clause of your petition, where, with the same wonderful sagacity with which you in another case discovered the excellency of a speech you never heard, you undertake to *characterise a petition [from the assembly] you own you never saw*; and venture to assure his majesty, that it is "exceeding grievous in its nature, that it by no means contains a proper representation of the state of this province, and is repugnant to the general sense of his numerous and loyal subjects in it." Are then his majesty's "numerous and loyal subjects" in this province all as great wizards as yourselves, and capable of knowing, without seeing it, that a petition is repugnant to their general sense? But the inconsistency of your petition, gentlemen, is not so much to be wondered at; the *prayer* of it is *still more* extraordinary, "We therefore most humbly pray, that your majesty would be graciously pleased *wholly to disregard* the said petition of the assembly." What! without enquiry! without examination! without a hearing of what the assembly might say in support of it! "wholly disregard" the petition of your representatives in assembly, accompanied by other petitions, signed by thousands of your fellow-subjects as loyal, if not as wise and as good, as yourselves! Would you wish to see your great and amiable prince act a part that could not become a dey of Algiers? Do you, who are Americans, pray for a *precedent* of such contempt in the treatment of an American assembly! such "total disregard" of their humble applications to the throne? Surely your wisdoms here have overshot yourselves.—But as wisdom shows itself not only in doing what is right, but in confessing and *amending* what is wrong, I recommend the latter particularly to your present attention; being persuaded of this consequence, that though you have been mad enough to sign such a petition, you never will be fools enough to present it.

There is one thing mentioned in the preface, which I find I omitted to take notice of as I came along, *the refusal of the house to enter Mr. Dickinson's protest* on their minutes. This is mentioned in such a manner there and in the newspapers, as to insinuate a charge of some partiality and injustice in the assembly. But the *reasons* were merely these, that though protesting may be a practice with the lords of parliament, there is no instance of it in the house of commons, whose proceedings are the model followed by the assemblies of America; that there is no precedent of it on our votes, from the beginning of our present constitution; and that the introducing such a practice would be attended with inconveniences, as the representatives in assembly are not, like the lords in parliament, unaccountable to any constituents, and would therefore find it necessary for their own justification, if the reasons of the minority for being against a measure were admitted in the votes, to put there likewise the reasons that induced the majority to be for it: whereby the votes, which were intended only as a register of propositions and determinations, would be filled with the disputes of members with members, and the public business be thereby greatly retarded, if ever brought to a period.

As that protest was a mere abstract of Mr. Dickinson's speech, every particular of it will be found answered in the following speech of Mr. Galloway, from which it is fit that I should no longer detain the reader.^[69]

FOOTNOTES:

^[59] As I am very much unacquainted with the history and principles of these provincial politics, I shall confine myself to some imperfect anecdotes concerning the parties, &c. A speech, which Mr. Dickinson had delivered in the Pennsylvania assembly against the abolition of the proprietary government, having been published, and a preface having been written to it, as I think by a Dr. Smith, Mr. Galloway's speech was held forth as a proper answer to that speech, while the preface to it appeared balanced by the above preface from Dr. Franklin. Mr. Galloway's speech, or probably the advertisement that attended it, urged, I believe, Mr. Dickinson first to a challenge, and then to a printed reply.—The controversy was quickly republished in England, or at least the principal parts of it; and it is from the English edition of Mr. Galloway's speech (printed in London by Nichols in 1765) that I have copied the above.

These several gentlemen however seem, for a time, to have better agreed in their subsequent opinions concerning American taxation by Great Britain; Mr.

Dickinson, in particular, having taken a very spirited line in the Farmer's Letters and other pieces, which procured him considerable reputation. The congress declaration, nevertheless, for independence, was reported not to have given perfect satisfaction at first, either to himself or to Mr. Galloway. And in the event, Mr. Galloway thought proper to come over to General Howe, and afterwards to embark for England. B. V.

[60] This act is intituled, An Act for granting to his Majesty the Sum of One Hundred Thousand Pounds: striking the same in Bills of Credit, and sinking the Bills by a Tax on all Estates real and personal.

[61] i. e. In England, I suppose, when the laws were brought home to receive the king's assent. B. V.

[62] Possibly this word *where*, means *wherever*. B. V.

[63] This would have been done, and the money all sunk in the hands of the people, if the agents, Benjamin Franklin, and Robert Charles, had not interposed, and voluntarily, without authority from the assembly so to do, but at their own risque, undertaken, that these amendments should be made, or that they themselves would indemnify the proprietaries from any damages they might sustain for want thereof. An action which, as the prefacer says in another case, "posterity perhaps may find a name for."

[64] It is not easy to guess from what source our proprietaries have drawn their principles. Those who study law and justice as a science have established it a maxim in equity, "Qui sentit commodum, sentire debet et onus." And so consistent is this with the common sense of mankind, that even our lowest untaught cobblers and porters feel the force of it in their own maxim (which they are honest enough never to dispute) "Touch pot, touch penny."

[65] For a fuller account of this dispute the reader is referred to the newspapers and votes of assembly.

[66] These words, "by completing the agreement," &c. are omitted by the honest prefacer, in his account of the resolve, that they might not interfere with his insinuation of the measure's being impracticable, "have the proprietors, by any act of theirs, forfeited the least tittle of what was granted them by his Majesty's royal ancestors? Or can they be *deprived* of their charter rights without their consent?" &c. Sensible that these questions are impertinent, if those rights are already sold.

[67] The prefacer, with great art, endeavours to represent this number as insignificant. He says the petitioners were but 3500, and that the province contains near three hundred thousand *souls*! His reader is to imagine, that *two hundred and ninety six thousand five hundred* of them were applied to, and refused to sign it. The truth is, that his number of souls is vastly exaggerated. The dwelling-houses in the province in 1752 did not exceed 20,000. Political arithmeticians reckon generally but five souls to a house, one house with another; and therefore, allowing for houses since built, there are not probably more than an hundred and ten thousand souls in the province; that of these, scarce twenty two thousand could with any propriety be petitioners. And considering the scattered settlement of the province; the general inattention of mankind, especially in new countries, to public affairs; and the indefatigable pains taken by the proprietaries' new allies the presbyterian clergy of

Philadelphia, (who wrote circular letters to every congregation in the county, to deter them from petitioning, by dutiful intimations, that if we were reduced to a royal government, it would be the "ruin of the province;") it is a wonder the number (near a sixth part) was so great as it was. But if there had been no such petitions, it would not have been material to the point. The *assembly* went upon another foundation. They had adjourned to consult their constituents; they returned satisfied that the measure was agreeable to them, and *nothing appeared to the contrary*.

[68] The assembly being called upon by the governor for their advice on that occasion did, in a message, advise his sending for and examining the magistrates of Lancaster county and borough, where the murders were committed, in order to discover the actors; but neither that nor any of the other measures recommended were ever taken. Proclamations indeed were published, but soon discontinued.

[69] Mr. Galloway's speech is of course omitted here. *Editor*.

Remarks on a late Protest against the Appointment of Mr. Franklin as Agent for this Province
[of Pennsylvania].

I have generally passed over, with a silent disregard, the *nameless* abusive pieces that have been written against me; and though this paper, called a *protest*, is signed by some respectable names, I was, nevertheless, inclined to treat it with the same indifference; but, as the assembly is therein reflected on upon my account, it is thought more my duty to make some remarks upon it.

I would first observe then, that this mode of *protesting* by the minority, with a string of reasons against the proceedings of the majority of the house of assembly, is quite new among us; the present is the second we have had of the kind, and both within a few months. It is unknown to the practice of the house of commons, or of any house of representatives in America, that I have heard of; and seems an affected imitation of the lords in parliament, which can by no means become assemblymen of America. Hence appears the absurdity of the complaint, that the house refused the protest an *entry* on their minutes. The protesters know, that they are not, by any custom or usage, intitled to such an entry; and that the practice here is not only useless in itself, but would be highly inconvenient to the house, since it would probably be thought necessary for the majority also to enter their reasons, to justify themselves to their constituents; whereby the minutes would be incumbered and the public business obstructed. More especially will it be found inconvenient, if such protests are made use of as a new form of libelling, as the vehicles of personal malice, and as means of giving to private abuse the appearance of a sanction as public acts. Your protest, gentlemen, was therefore properly refused; and since it is no part of the proceedings of assembly, one may with the more freedom examine it.

Your first reason against my appointment is, that you "believe me to be the chief author of the measures pursued by the last assembly, which have occasioned *such uneasiness* and distraction among the good people of this province." I shall not dispute my share in those measures; I hope they are such as will in time do honour to all that were concerned in them. But you

seem mistaken in the order of time: it was the uneasiness and distraction among the good people of the province that occasioned the measures; the province was in confusion before they were taken, and they were pursued in order to prevent such uneasiness and distraction for the future. Make one step farther back, and you will find proprietary injustice supported by proprietary minions and creatures, the original cause of all our uneasiness and distractions.

Another of your reasons is, "that I am, as you are informed, very *unfavourably* thought of by several of his *majesty's ministers*." I apprehend, gentlemen, that your informer is mistaken. He indeed has taken great pains to give unfavourable impressions of me, and perhaps may flatter himself, that it is impossible so much true industry should be totally without effect. His long success in maiming or murdering all the reputations that stand in his way (which has been the dear delight and constant employment of his life) may likewise have given him some just ground for confidence, that he has, as they call it, *done for me*, among the rest. But, as I said before, I believe he is mistaken. For what have I done, that they should think unfavourably of me? It cannot be my constantly and uniformly promoting the measures of the crown, ever since I had any influence in the province. It cannot, surely, be my promoting the change from a proprietary to a royal government. If indeed I had, by speeches and writings, endeavoured to make his majesty's government universally odious in the province: if I had harangued by the week to all comers and goers, on the pretended injustice and oppressions of royal government, and the slavery of the people under it: if I had written traitorous papers to this purpose, and got them translated into other languages, to give his majesty's foreign subjects here those horrible ideas of it: if I had declared, written, and printed, that "the king's little finger we should find heavier than the proprietor's whole loins," with regard to our liberties; *then indeed* might the ministers be supposed to think unfavourably of me. But these are not exploits for a man, who holds a profitable office under the crown, and can expect to hold it no longer than he behaves with the fidelity and duty that becomes every good subject. They are only for officers of proprietary appointment, who hold their commissions during his, and not the king's pleasure; and who, by dividing among themselves and their relations, offices of many thousands a year enjoyed by proprietary favour, *feel* where to place their loyalty. I wish they

were as good subjects to his majesty; and perhaps they may be so, when the proprietary interferes no longer.

Another of your reasons is, "that the proposal of me for *an agent* is extremely disagreeable to a very great number of the most serious and reputable inhabitants of the province; and the *proof* is, my having been rejected at the last election, though I had represented the city in assembly for fourteen years."

And do those of you, gentlemen, reproach me with this, who, among near four thousand voters, had scarcely a score more than I had? It seems then, that your *elections* were very near being *rejections*, and thereby furnishing the same proof in your case that you produce in mine, of *your* being likewise extremely disagreeable to a very great number of the most serious and reputable people. Do you, honourable sir, reproach me with this, who, for almost twice fourteen years have been rejected (if *not being chosen* is to be *rejected*) by the same people? and (unable, with all your wealth and connections, and the influence they give you, to obtain an election in the county where you reside, and the city where you were born, and are best known) have been obliged to accept a seat from one of the out-counties, the remotest of the province!—It is known, sir, to the persons who proposed me, that I was first chosen against my inclination, and against my entreaties that I might be suffered to remain a private man. In none of the fourteen elections you mention, did I ever appear as a candidate. I never did, directly or indirectly, solicit any man's vote. For six of the years in which I was annually chosen, I was absent, residing in England; during all which time, your secret and open attacks upon my character and reputation were incessant; and yet you gained no ground. And can you really, gentlemen, find matter of triumph in this *rejection* as you call it? A moment's reflection on the means by which it was obtained must make you ashamed of it.

Not only my duty to the crown, in carrying the post-office act more duly into execution, was made use of to exasperate the ignorant, as if I was encreasing my own profits, by picking their pockets; but my very zeal in opposing the murderers, and supporting the authority of government; and even my humanity, with regard to the innocent Indians under our protection, were mustered among my offences, to stir up against me those religious bigots, who are of all savages the most brutish. Add to this, the numberless falshoods propagated as truths, and the many perjuries procured among the

wretched rabble, brought to swear themselves intitled to a vote: And yet so *poor a superiority* obtained at all this expence of honour and conscience! can this, gentlemen, be matter of triumph? Enjoy it then. Your exultation, however, was short. Your artifices did not prevail every where; nor your double tickets and whole boxes of forged votes. A great majority of the new-chosen assembly were of the old members, and remain uncorrupted. They still stood firm for the people, and will obtain justice from the proprietaries. But what does that avail to you, who are in the proprietary interest? And what comfort can it afford you, when, by the assembly's choice of an agent, it appears that the same, to you obnoxious, man (notwithstanding all your venomous invectives against him) still retains so great a share of the public confidence?

But "this step, you say, gives you the more lively affliction, as it is taken at the *very moment* when you were informed by a member of the house, that the governor had assured him of his having received instructions from the proprietaries, to give his assent to the taxation of their estates; in the *same manner* that the estates of other persons are to be taxed; and also *to confirm*, for the public use, the several squares formerly *claimed* by the city." O the force of friendship! the power of interest! What politeness they infuse into a writer, and what *delicate* expressions they produce!—The dispute between the proprietaries and us was about the *quantum*, the *rate* of their taxation, and not about the *manner*; but now, when all the world condemns them for requiring a partial exemption of their estates, and they are forced to submit to an honest equality, it is called "*assenting* to be taxed in the *same manner* with the people." Their *restitution* of five public squares in the plan of the city, which they had near forty years unjustly and dishonourably seized and detained from us, (directing their surveyor to map streets over them, in order to turn them into lots, and their officers to sell a part of them;) this their *disgorging* is softly called *confirming* them for the public use; and instead of the plain words "*formerly given* to the city, by the first proprietary, their father," we have the cautious pretty expression of "*formerly claimed* by the city:" Yes; not only *formerly*, but *always* claimed, ever since they were *promised* and *given* to encourage the settlers; and ever will be *claimed*, till we are put in actual possession of them. It is pleasant, however, to see how lightly and tenderly you trip over these matters, as if you trod upon eggs. But that "*very moment*," that precious moment! Why was it so long delayed? Why were those healing instructions so long

withheld and concealed from the people? They were, it seems, brought over by Mr. Allen:^[70] intelligence was received by various hands from London, that orders were sent by the proprietaries, from which great hopes were entertained of an accommodation. Why was the bringing and the delivery of such orders so long *denied*? The reason is easily understood. Messieurs Barclays, friends to both proprietaries and people, wished for that gentleman's happy arrival; hoping his *influence*, added to the *power* and *commissions* the proprietaries had vested him with, might prove effectual in restoring harmony and tranquillity among us; but *he*, it seems, hoped his *influence* might do the business, without those additions. There appeared on his arrival some prospect (from sundry circumstances) of a *change* to be made in the house by the approaching election. The proprietary friends and creatures knew the heart of their master; and how extremely disagreeable to him that *equal taxation*, that *restitution*, and the other *concessions* to be made for the sake of a reconciliation, must necessarily be. They hoped therefore to spare him all those mortifications, and thereby secure a greater portion of his favour. Hence the instructions were not produced to the last assembly, though they arrived before the September sitting, when the governor was in town, and actually did business with the house. Nor to the new assembly were they mentioned, till the "*very moment*," the fatal moment, when the house were on the point of choosing that wicked adversary of the proprietary to be an *agent* for the province in England.

But I have, you say, a "*fixed enmity to the proprietaries*," and "you believe it will *preclude all accommodation* of our disputes with them, even on just and reasonable terms." And why do you think I have a fixed enmity to the proprietaries? I have never had any personal difference with them. I am no land-jobber; and therefore have never had any thing to do with their land-office or officers; if I had, probably, like others, I might have been obliged to truckle to their measures, or have had like causes of complaint. But our private interests never clashed; and all their resentment against me, and mine to them, has been on the public account. Let them do justice to the people of Pennsylvania, act honourably by the citizens of Philadelphia, and become honest men; my enmity, if that's of any consequence, ceases from the "*very moment*;" and, as soon as I possibly can, I promise to love, honour and respect them. In the mean time, why do you "*believe it will preclude all accommodation* with them on just and reasonable terms?" Do you not boast, that their gracious condescensions are in the hands of the governor; and that

"if this had been the usual time for business, his honour would have sent them down in a message to the house." How then can my going to England prevent this accommodation? The governor can call the house when he pleases; and, one would think, that, at least in your opinion, my being out of the way would be a favourable circumstance. For then, by "cultivating the disposition shown by the proprietaries, every *reasonable demand* that can be made on the part of the people might be obtained: in vigorously insisting on which, you promise to unite most earnestly with the rest of the house." It seems then we have "*reasonable demands*" to make, and, as you call them a little higher, *equitable demands*. This is much for proprietary minions to own; but you are all growing better, in imitation of your master, which is indeed very commendable. And if the accommodation here should fail, I hope, that though you dislike the person a majority of two to one in the house have thought fit to appoint an agent, you will nevertheless, in duty to your country, continue the noble resolution of uniting with the rest of the house, in vigorously insisting on that *equity* and *justice*, which such an union will undoubtedly obtain for us.

I pass over the trivial charge against the assembly, that they "acted with *unnecessary haste* in proceeding to this appointment, without making a small adjournment," &c. and your affected apprehensions of danger from that haste. The necessity of expedition on this occasion is as obvious to every one out of doors, as it was to those within; and the fears you mention are not, I fancy, considerable enough to break your rest. I come then to your *high* charge against me, "that I heretofore ventured, *contrary* to an act of assembly, to place the public money in the stocks; whereby this province suffered a loss of 6000*l.* and that sum, added to the 5000*l.* granted for my expences, makes the whole cost of my former voyage to England amount to *eleven thousand pounds!*" How wisely was that form in our laws contrived, which, when a man is arraigned for his life, requires the evidence to speak *the truth*, the *whole truth*, and *nothing but the truth!* The reason is manifest. A falshood may destroy the innocent, so may *part of a truth* without *the whole*; and a mixture of truth and falshood may be full as pernicious. You, Mr. Chief Justice, and the other justices among the protesters, and you, sir, who are a counsellor at law, must all of you be well acquainted with this excellent form; and when you arraigned my reputation (dearer to me than life) before the assembly, and now at the respectable tribunal of the public, would it not have well become your honours to have had some small regard

at least to the spirit of that form? You might have mentioned, that the direction of the act, to lodge the money in the bank, subject to the drafts of the trustees of the loan-office here, was impracticable; that the bank refused to receive it on those terms, it being contrary to their settled rules to take charge of money subject to the orders of unknown people living in distant countries. You might have mentioned, that the house being informed of this, and having no immediate call for the money, did *themselves* adopt the measure of placing it in the stocks, which then were low, where it might on a peace produce a considerable profit, and in the mean time accumulate an interest: that they even passed a bill, directing the subsequent sums granted by parliament to be placed with the former: that the measure was prudent and safe; and that the loss arose, not from *placing* the money *in* the stocks, but from the imprudent and unnecessary *drawing it out* at the very time when they were lowest, on some slight uncertain rumours of a peace concluded: that if the assembly had let it remain another year, instead of losing they would have gained *six thousand pounds*; and that after all, since the exchange at which they sold their bills was near *twenty per cent* higher when they drew than when the stocks were purchased, the loss was far from being so great as you represent it. All these things you might have said; for they are, and you know them to be, part of the *whole truth*; but they would have spoiled your accusation. The late speaker of your honourable house, Mr. Norris, (who has, I suppose, all my letters to him, and copies of his own to me, relating to that transaction) can testify with how much integrity and clearness I managed the whole affair. All the house were sensible of it, being from time to time fully acquainted with the facts. If I had gone to gaming in the stocks with the public money, and through my fault a sum was lost, as your protest would insinuate, why was I not censured and punished for it when I returned? You, honourable sir, (my enemy of seven years standing) was then in the house. You were appointed on the committee for examining my accounts; you reported, that you found them just, and signed that report.^[71] I never solicited the employ of agent; I made no bargain for my future service, when I was ordered to England by the assembly; nor did they vote me any salary. I lived there near six years at my own expence, and I made no charge or demand when I came home. You, sir, of all others, was the very member that proposed (for the honour and justice of the house) a compensation to be made me of the *five thousand pounds* you mention. Was it with an intent to reproach me thus publicly for

accepting it? I thanked the house for it then, and I thank you now for proposing it: though you, who have lived in England, can easily conceive, that besides the prejudice to my private affairs by my absence, a *thousand pounds* more would not have reimbursed me. The money voted was immediately paid me. But if I had occasioned the loss of *six thousand pounds* to the province, here was a fair opportunity of securing easily the greatest part of it; why was not the *five thousand pounds* deducted, and the remainder called for? The reason is, this accusation was not then invented. Permit me to add, that supposing the whole *eleven thousand pounds* an expence occasioned by my voyage to England, yet the taxation of the proprietary estate now established will, when valued by years purchase, be found in time an advantage to the public, far exceeding that expence. And if the expence is at present a burthen, the odium of it ought to lie on those, who, by their injustice, made the voyage necessary; and not on me, who only submitted to the orders of the house in undertaking it.

I am now to take leave (perhaps a last leave) of the country I love, and in which I have spent the greatest part of my life.—ESTO PERPETUA.—I wish every kind of prosperity to my friends,—and I forgive my enemies.

B. FRANKLIN.

Philadelphia, Nov. 5, 1764.

FOOTNOTES:

[70]

Extract of a Letter, dated London, August 6, 1764, from David Barclay and Sons, to Messieurs James and Drinker.

"We very much wish for William Allen's happy arrival on your side; when we hope his influence, added to the *power* and *commissions* the proprietaries have invested him with, may prove effectual, in restoring harmony and tranquillity among you, so much to be desired by every well-wisher to your province. Pray be assured of our sincerest and best wishes for the success of this salutary work, and that nothing in our power, to contribute thereto, will ever be wanting."

[71]

Report of the Committee on Benjamin Franklin's Accounts.

"In obedience to the order of the house, we have examined the account of Benjamin Franklin, Esq. with the vouchers to us produced in support thereof, and do find the same account to be just, and that he has expended, in the immediate service of this province, the sum of *seven hundred and fourteen pounds, ten shillings and seven-pence*, out of the sum of *fifteen hundred pounds* sterling to him remitted and paid, exclusive of any allowance or charge for his support and services for the province.

JOHN MORTON,
WILLIAM ALLEN,
JOHN ROSS,
JOHN MOOR,
JOSEPH FOX,

JOHN HUGHES,
SAMUEL RHOADS,
JOHN WILKINSON,
ISAAC PEARSON.

February 19, 1763.

"The house taking the foregoing report of the committee of accounts into consideration, and having spent some time therein,

"RESOLVED,

"That the sum of *five hundred pounds* sterling *per annum* be allowed and given to Benjamin Franklin, Esq. late agent for the province of Pennsylvania at the court of Great Britain, during his absence of six years from his business and connections, in the service of the public; and that the thanks of this house be also given to the said gentleman by Mr. Speaker, from the chair; as well for the faithful discharge of his duty to this province in particular, as for the many and important services done America in general, during his residence in Great Britain."

Thursday, March 31, 1763.

"Pursuant to a resolve of the nineteenth of last month, that the thanks of this house be given to Benjamin Franklin, Esq. for his many services not only to the province of Pennsylvania, but to America in general, during his late agency at the court of Great Britain; the same were this day accordingly given in form from the chair.—To which Mr. Franklin, respectfully addressing himself to the Speaker, made answer, That he was thankful to the house, for the very handsome and generous allowance they had been pleased to make him for his services; but that the approbation of this house was, in his estimation, far above every other kind of recompence." *Votes*, 1763.

The regulations in this plan seem to me to be in general very good: but some few appear to want explanation, or farther consideration.

Clause 3. Is it intended by this clause, to prevent the trade that Indians, living near the frontiers, may choose to carry on with the inhabitants, by bringing their skins into the [English] settlements? This prevention is hardly practicable; as such trade may be carried on in many places out of the observation of government; the frontier being of great extent, and the inhabitants thinly settled in the woods, remote from each other. The Indians too do not every where live in towns sufficiently numerous to encourage traders to reside among them, but in scattered families, here and there, often shifting their situation for the sake of better hunting; and if they *are* near the English settlements, it would seem to them very hard to be obliged to carry their skins for sale to remote towns or posts, when they could dispose of them to their neighbours, with less trouble, and to greater advantage; as the goods they want for them, are and must be dearer at such remote posts.

4. The colony "laws for regulating Indian affairs or commerce" are the result of long experience, made by people on the spot, interested to make them good; and it would be well to consider the matter thoroughly, before they are repealed, to make way for new untried schemes.

By whom are they to be repealed? By the colony assemblies, or by parliament? Some difficulty will arise here.

13. The districts seem too large for this. The Indians under the care of the northern superintendant, by this plan, border on the colonies of Nova Scotia, Quebec, New Hampshire, Massachusetts, Connecticut, New York, New Jersey, Pensylvania, Maryland, Virginia: the superintendant's situation, remote from many of these, may occasion great inconvenience, if his consent is always to be necessary in such cases.

14. This seems too much to be done, when the vastness of the district is considered. If there were more districts and smaller, it might be more practicable.

15 and 16. Are these agents or commissaries to try causes where life is concerned? Would it not be better, to send the criminals into some civil well settled government or colony for trial, where good juries can be had?

18. "*Chief for the whole tribe; who shall constantly reside with the commissary, &c.*" Provision must then be made for his maintenance, as particular Indians have no estates, but live by hunting, and their public has no funds or revenues. Being used to rambling, it would perhaps not be easy to find one, who would be obliged to this constant residence; but it may be tried.

22. If the agent and his deputies, and the commissaries, are not to trade, should it not be a part of their oath, that they will have no concern in such trade, directly or indirectly? Private agreements between them and the traders, for share of profits, should be guarded against, and the same care taken to prevent, if possible, private agreements between them and the purchasers of Indian lands.

31. — "or trading at any other post, &c." This should be so expressed, as to make the master liable for the offence of the servant; otherwise it will have no effect.

33. I doubt the settling of *tariffs* will be a matter of difficulty. There may be differences of fineness, goodness, and value, in the goods of different traders, that cannot be properly allowed for by general tariffs. And it seems contrary to the nature of commerce, for government to interfere in the prices of commodities. Trade is a voluntary thing between buyer and seller; in every article of which, each exercises his own judgment, and is to please himself. Suppose either Indian or trader is dissatisfied with the tariff, and refuses barter on those terms, are the refusers to be compelled? if not, why should an Indian be forbidden to take more goods for skins than your tariff allows, if the trader is willing to give them, or a trader more skins for his goods, if the Indian is willing to give them? Where there are a number of different traders, the separate desire of each to get more custom will operate in bringing down their goods to a reasonable price. It therefore seems to me, that trade will best find and make its own rates; and that government cannot well interfere, unless it will take the whole trade into its own hands (as in some colonies it does) and manage it by its own servants, at its own risque.

38. I apprehend, that if the Indians cannot get *rum* of fair traders, it will be a great means of defeating all these regulations, that direct the trade to be carried on at certain posts. The countries and forests are so very large, it is scarce possible to guard every part, so as to prevent unlicensed traders drawing the Indians and the trade to themselves, by rum and other spiritous liquors, which all savage people are so fond of. I think they will generally trade where they can get rum, preferably to where it is refused them; and the proposed prohibition will therefore be a great encouragement to unlicensed traders, and promote such trade. If the commissaries, or officers at the posts, can prevent the selling of rum during the barter for other goods, and until the Indians are about going away, it is perhaps all that is practicable or necessary. The missionaries will, among other things, endeavour to prevail with them to live soberly and avoid drunkenness.

39. The Indian trade, so far as *credit* is concerned, has hitherto been carried on wholly upon honour. They have among themselves no such things as prisons or confinements for debt. This article seems to imply, that an Indian may be compelled by law to pay a debt of fifty shillings or under. Our legal method of compulsion is by imprisonment: the Indians cannot and will not imprison one another; and if we attempt to imprison them, I apprehend it would be generally disliked by the nations, and occasion breaches. They have such high ideas of the value of personal liberty, and such slight ones of the value of personal property;^[73] that they would think the disproportion monstrous between the liberty of a man, and a debt of a few shillings; and that it would be excessively inequitable and unjust, to take away the one for a default in payment of the other. It seems to me therefore best, to leave that matter on its present footing; the debts *under* fifty shillings as irrecoverable by law, as this article proposes for the debts *above* fifty shillings. Debts of honour are generally as well paid as other debts. Where no compulsion can be used, it is more disgraceful to be dishonest. If the trader thinks his risque greater in trusting any particular Indian, he will either not do it, or proportion his price to his risque.

44. As the goods for the Indian trade all come from England, and the peltry is chiefly brought to England; perhaps it will be best to lay the duty here, on the exportation of the one, and the importation of the other, to avoid meddling with the question, of the right to lay duties in America by parliament here.

If it is thought proper to carry the trading part of this plan into execution, would it not be well to *try it first in a few posts*, to which the present colony laws for regulating the Indian trade do not reach; that by experience its utility may be ascertained, or its defects discovered and amended, before it is made general, and those laws repealed to make way for it?—If the Indians find by experience, that they are better used in their trade at the posts, under these regulations, than at other places, may it not make them desirous of having the regulations extended to other places; and when extended, better satisfied with them upon reflection and comparison^[74]?

FOOTNOTES:

[72] The plan remarked upon was under the consideration of ministry before the close of the year 1766, and (as I am inclined to think) after the commencement of 1765. I can go no nearer as to its date.

It is needless to enter into the particulars of it, as the remarks explain themselves; except perhaps as to the following points. The trade was to be open; there were to be two superintendants to it; in the northern district the trade was to be carried on at fixed posts, in the southern within the Indian town; the military were to have no power over the superintendants or the Indian trade, even in war time, unless with the superintendants' assent, or in great exigencies; the superintendants, by themselves or deputies, were to make annual visitations among the Indians, to see to justice, &c. and their proceedings were to be very summary; and no credit was to be given to the Indians beyond fifty shillings, for no higher debt was to be made recoverable. B. V.

[73] For an account of the sentiments and manners of the Indians, see an essay by our author in a subsequent part of this volume. *Editor*.

[74] The editor has given the following memorandum of Indian *fighting men*, inhabiting near the distant posts, in 1762; to indulge the curious in future times. The paper is in Dr. Franklin's hand-writing: but it must not be mistaken as containing a list of the whole of the nations enumerated, but only such part of them as lived near the places described. B. V.

A list of the number of fighting men of the different nations of Indians, through which I (George Croghan) passed, living at or near the several posts.

SANDUSKY.		
Wyandotts and Mohickons		200
DETROIT.		
Poutauwautimies	150	
Ottawas	250	
Wyandotts	250	

Cheapwas	320	970
MICHILEMAKINAC.		
Ottawas	250	
Cheapwas	400	650
LA BAY.		
Meynomeneys	110	
Pervons	360	
Sax	300	
Reynard	320	1090
ST. JOSEPH'S.		
Poutauwautimies	200	
Ottawas (some distance)	150	350
THE MIAMIES.		
Mincamies or Twigtwees		230
OUITANON.		
Ouitanons	200	
Thickapoose	180	
Musquiton	90	
Pyankishaws	100	570
SHAWANESE.		
At the lower town, on Scioto	240	
At the upper town, on Muskingum	60	300
		4360

There is a nation, back of the Bay, who used formerly to come there to visit the French when they were in possession of that post, called *La Sieu*, computed to be 2500 fighting men; who have this summer sent word to Mr. Gorrell, who commands there, that they purpose paying him a visit late this fall or in the spring.

PAPERS
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AMERICAN SUBJECTS,
DURING THE
REVOLUTIONARY TROUBLES.

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[*Causes of the American Discontents before 1768.*](#)^[75]

The waves never rise but when the winds blow.

SIR,

As the cause of the present ill humour in America, and of the resolutions taken there to purchase less of our manufactures, does not seem to be generally understood, it may afford some satisfaction to your readers, if you give them the following short historical state of facts.

From the time that the colonies were first considered as capable of *granting aids to the crown*, down to the end of the last war, it is said, that the constant mode of obtaining those aids was, by requisition made from the crown, through its governors, to the several assemblies, in circular letters from the secretary of state, in his majesty's name, setting forth the occasion, requiring them to take the matter into consideration, and expressing a reliance on their prudence, duty, and affection to his majesty's government, that they would grant such sums, or raise such numbers of men, as were suitable to their respective circumstances.

The colonies, being accustomed to this method, have from time to time granted money to the crown, or raised troops for its service, in proportion to their abilities, and, during all the last war, beyond their abilities; so that considerable sums were returned them yearly by parliament, as they had exceeded their proportion.

Had this happy method of requisition been continued (a method that left the king's subjects in those remote countries the pleasure of showing their zeal and loyalty, and of imagining that they recommended themselves to their sovereign by the liberality of their voluntary grants) there is no doubt, but all the money that could reasonably be expected to be raised from them in any manner, might have been obtained, without the least heart-burning, offence, or breach of the harmony of affections and interests, that so long subsisted between the two countries.

It has been thought wisdom in a government exercising sovereignty over different kinds of people, to have *some regard to prevailing and established opinions* among the people to be governed, wherever such opinions might in their effects obstruct or promote public measures. If they tend to obstruct public service, they are to be changed, if possible, before we attempt to act against them; and they can only be changed by reason and persuasion. But

if public business can be carried on without thwarting those opinions, if they can be, on the contrary, made subservient to it; they are not unnecessarily to be thwarted, how absurd such popular opinions may be in their nature.

This had been the wisdom of our government with respect to raising money in the colonies. It was well known, that the colonists universally were of opinion, that no money could be levied from English subjects but by their own consent, given by themselves or their chosen representatives; that therefore whatever money was to be raised from the people in the colonies must first be granted by their assemblies, as the money raised in Britain is first to be granted by the house of commons; that this right of granting their own money was essential to English liberty; and that if any man, or body of men in which they had no representative of their choosing, could tax them at pleasure, they could not be said to have any property, any thing they could call their own. But as these opinions did not hinder their granting money voluntarily and amply, whenever the crown, by its servants, came into their assemblies (as it does into its parliaments of Britain or Ireland) and demanded aids; therefore that method was chosen, rather than the hateful one of arbitrary taxes.

I do not undertake here to support these opinions of the Americans; they have been refuted by a late act of parliament, declaring its own power; which very parliament, however, showed wisely so much tender regard to those inveterate prejudices, as to repeal a tax that had militated against them. And those prejudices are still so fixed and rooted in the Americans, that it has been supposed, not a single man among them has been convinced of his error, even by that act of parliament.

The person then, who first projected to lay aside the accustomed method of requisition, and to raise money on America by *stamps*, seems not to have acted wisely, in deviating from that method (which the colonists looked upon as constitutional) and thwarting unnecessarily the fixed prejudices of so great a number of the king's subjects. It was not, however, for want of knowledge, that what he was about to do would give them offence; he appears to have been very sensible of this, and apprehensive that it might occasion some disorders; to prevent or suppress which, he projected another bill, that was brought in the same session with the stamp act, whereby it was to be made lawful for military officers in the colonies to quarter their

soldiers in private houses. This seemed intended to awe the people into a compliance with the other act. Great opposition however being raised here against the bill by the agents from the colonies and the merchants trading thither (the colonists declaring, that under such a power in the army, no one could look on his house as his own, or think he had a home, when soldiers might be thrust into it and mixed with his family at the pleasure of an officer) that part of the bill was dropped; but there still remained a clause, when it passed into a law, to oblige the several assemblies to provide quarters for the soldiers, furnishing them with firing, bedding, candles, small beer or rum, and sundry other articles, at the expence of the several provinces. And this act continued in force when the stamp act was repealed; though, if obligatory on the assemblies, it equally militated against the American principle above mentioned, that money is not to be raised on English subjects without their consent.

The colonies, nevertheless, being put into high good humour by the repeal of the stamp act, chose to avoid a fresh dispute upon the other, it being temporary and soon to expire, never, as they hoped, to revive again; and in the mean time they, by various ways, in different colonies, provided for the quartering of the troops, either by acts of their own assemblies, without taking notice of the act of parliament, or by some variety or small diminution, as of salt and vinegar, in the supplies required by the act; that what they did might appear a voluntary act of their own, and not done in due obedience to an act of parliament, which, according to their ideas of their rights, they thought hard to obey.

It might have been well if the matter had then passed without notice; but a governor having written home an angry and aggravating letter upon this conduct in the assembly of his province, the outed [proposer^[76]] of the stamp act and his adherents (then in the opposition) raised such a clamour against America, as being in rebellion, and against those who had been for the repeal of the stamp act, as having thereby been encouragers of this supposed rebellion; that it was thought necessary to enforce the quartering act by another act of parliament, taking away from the province of New York (which had been the most explicit in its refusal) all the powers of legislation, till it should have complied with that act. The news of which greatly alarmed the people every where in America, as the language of such an act seemed to them to be—obey implicitly laws made by the parliament

of Great Britain to raise money on you without your consent, or you shall enjoy no rights or privileges at all.

At the same time a person lately in high office^[77] projected the levying more money from America, by new duties on various articles of our own manufacture (as glass, paper, painters' colours, &c.) appointing a new board of customs, and sending over a set of commissioners, with large salaries, to be established at Boston, who were to have the care of collecting those duties, which were by the act expressly mentioned to be intended for the payment of the salaries of governors, judges, and other officers of the crown in America; it being a pretty general opinion here, that those officers ought not to depend on the people there, for any part of their support.

It is not my intention to combat this opinion. But perhaps it may be some satisfaction to your readers, to know what ideas the Americans have on the subject. They say then, as to governors, that they are not like princes whose posterity have an inheritance in the government of a nation, and therefore an interest in its prosperity; they are generally strangers to the provinces they are sent to govern; have no estate, natural connection, or relation there, to give them an affection for the country; that they come only to make money as fast as they can; are sometimes men of vicious characters and broken fortunes, sent by a minister merely to get them out of the way; that as they intend staying in the country no longer than their government continues, and purpose to leave no family behind them, they are apt to be regardless of the good-will of the people, and care not what is said or thought of them after they are gone. Their situation at the same time gives them many opportunities of being vexatious; and they are often so, notwithstanding their dependence on the assemblies for all that part of their support, that does not arise from fees established by law, but would probably be much more so, if they were to be supported by money drawn from the people without their consent or good-will, which is the professed design of this new act. That if by means of these forced duties, government is to be supported in America, without the intervention of the assemblies, their assemblies will soon be looked upon as useless; and a governor will not call them, as having nothing to hope from their meeting, and perhaps something to fear from their inquiries into, and remonstrances against, his mal-administration. That thus the people will be deprived of their most essential right. That it being (as at present) a governor's interest to cultivate

the good-will, by promoting the welfare of the people he governs, can be attended with no prejudice to the mother-country, since all the laws he may be prevailed on to give his assent to are subject to revision here, and if reported against by the board of trade, are immediately repealed by the crown; nor dare he pass any law contrary to his instructions; as he holds his office during the pleasure of the crown, and his securities are liable for the penalties of their bonds, if he contravenes those instructions. This is what they say as to governors.

As to *judges*, they alledge, that being appointed from hence, and holding their commissions not during good behaviour, as in Britain, but during pleasure: all the weight of interest or influence would be thrown into one of the scales (which ought to be held even) if the salaries are also to be paid out of duties raised upon the people without their consent, and independent of their assemblies approbation or disapprobation of the judges behaviour. That it is true, judges should be free from all influence; and therefore, whenever government here will grant commissions to able and honest judges during good behaviour, the assemblies will settle permanent and ample salaries on them during their commissions; but at present, they have no other means of getting rid of an ignorant or an unjust judge (and some of scandalous characters have, they say, been sometimes sent them) left, but by starving them out.

I do not suppose these reasonings of theirs will appear here to have much weight. I do not produce them with an expectation of convincing your readers. I relate them merely in pursuance of the task I have imposed on myself, to be an impartial historian of American facts and opinions. — —

The colonists being thus greatly alarmed, as I said before, by the news of the act for abolishing the legislature of New York, and the imposition of these new duties, professedly for such disagreeable purposes (accompanied by a new set of revenue officers, with large appointments, which gave strong suspicions, that more business of the same kind was soon to be provided for them, that they might earn their salaries) began seriously to consider their situation; and to revolve afresh in their minds, grievances, which, from their respect and love for this country, they had long borne and seemed almost willing to forget. They reflected how lightly the interest of *all* America had been estimated here, when the interests of a *few* of the inhabitants of Great Britain happened to have the smallest competition with

it. That the whole American people was forbidden the advantage of a direct importation of wine, oil, and fruit, from Portugal; but must take them loaded with all the expence of a voyage one thousand leagues round about, being to be landed first in England, to be re-shipped for America; expences amounting, in war-time, at least to thirty pounds per cent more than otherwise they would have been charged with; and all this merely, that a few Portugal merchants in London may gain a commission on those goods passing through their hands. (Portugal merchants, by the bye, that can complain loudly of the smallest hardships laid on their trade by foreigners, and yet even in the last year could oppose with all their influence the giving ease to their fellow-subjects labouring under so heavy an oppression!) That on a slight complaint of a few Virginia merchants, nine colonies had been restrained from making paper-money, become absolutely necessary to their internal commerce, from the constant remittance of their gold and silver to Britain.—But not only the interest of a particular body of *merchants*, but the interest of any small body of British *tradesmen or artificers* has been found, they say, to outweigh that of all the king's subjects in the colonies. There cannot be a stronger natural right than that of a man's making the best profit he can of the natural produce of his lands, provided he does not thereby hurt the state in general. Iron is to be found every where in America, and beaver are the natural produce of that country: hats, and nails and steel are wanted there as well as here. It is of no importance to the common welfare of the empire, whether a subject of the king gets his living by making hats on this, or on that side of the water. Yet the hatters of England have prevailed to obtain an act in their own favour, restraining that manufacture in America; in order to oblige the Americans to send their beaver to England to be manufactured, and purchase back the hats, loaded with the charges of a double transportation. In the same manner have a few nail-makers, and still a smaller body of steel-makers (perhaps there are not half a dozen of these in England) prevailed totally to forbid by an act of parliament the erecting of slitting-mills, or steel furnaces in America; that the Americans may be obliged to take all their nails for their buildings, and steel for their tools, from these artificers, under the same disadvantages. ^[78]

Added to these, the Americans remembered the act authorizing the most cruel insult that perhaps was ever offered by one people to another, that of *emptying our gaols* into their settlements; Scotland too having within these two years obtained the privilege it had not before, of sending its rogues and

villains also to the plantations—I say, reflecting on these things, they said one to another (their newspapers are full of such discourses) "These people are not content with making a monopoly of us (forbidding us to trade with any other country of Europe, and compelling us to buy every thing of them, though in many articles we could furnish ourselves ten, twenty, and even to fifty per cent cheaper elsewhere;) but now they have as good as declared they have a right to tax us ad libitum, internally and externally; and that our constitutions and liberties shall all be taken away, if we do not submit to that claim.

"They are not content with the high prices at which they sell us their goods, but have now begun to enhance those prices by new duties, and by the expensive apparatus of a new set of officers, appear to intend an augmentation and multiplication of those burthens, that shall still be more grievous to us. Our people have been foolishly fond of their superfluous modes and manufactures, to the impoverishing our own country, carrying off all our cash, and loading us with debt; they will not suffer us to restrain the luxury of our inhabitants, as they do that of their own, by laws: they can make laws to discourage or prohibit the importation of French superfluities: but though those of England are as ruinous to us as the French ones are to them, if we make a law of that kind, they immediately repeal it. Thus they get all our money from us by trade; and every profit we can any where make by our fisheries, our produce, or our commerce, centres finally with them;—but this does not satisfy.—It is time then to take care of ourselves by the best means in our power. Let us unite in solemn resolution and engagements with and to each other, that we will give these new officers as little trouble as possible, by not consuming the British manufactures on which they are to levy the duties. Let us agree to consume no more of their expensive gewgaws. Let us live frugally, and let us industriously manufacture what we can for ourselves: thus we shall be able honourably to discharge the debts we already owe them; and after that, we may be able to keep some money in our country, not only for the uses of our internal commerce, but for the service of our gracious sovereign, whenever he shall have occasion for it, and think proper to require it of us in the old constitutional manner.—For notwithstanding the reproaches thrown out against us in their public papers and pamphlets, notwithstanding we have been reviled in their senate as rebels and traitors, we are truly a loyal people. Scotland has had its rebellions, and England its plots against the

present royal family; but *America is untainted with those crimes*; there is in it scarce a man, there is not a single native of our country, who is not firmly attached to his King by principle and by affection. But a new kind of loyalty seems to be required of us, a loyalty to parliament; a loyalty, that is to extend, it is said, to a surrender of all our properties, whenever a house of commons, in which there is not a single member of our chusing, shall think fit to grant them away without our consent, and to a patient suffering the loss of our privileges as Englishmen, if we cannot submit to make such surrender. We were separated too far from Britain by the ocean, but we were united to it by respect and love; so that we could at any time freely have spent our lives and little fortunes in its cause: but this unhappy new system of politics tends to dissolve those bands of union, and to sever us for ever."

These are the wild ravings of the, at present, half-distracted Americans. To be sure, no reasonable man in England can approve of such sentiments, and, as I said before, I do not pretend to support or justify them: but I sincerely wish, for the sake of the manufactures and commerce of Great Britain, and for the sake of the strength, which a firm union with our growing colonies would give us, that these people had never been thus needlessly driven out of their senses.

I am, yours, &c.

F. S. ^[79]

FOOTNOTES:

^[75] This letter first appeared in a London paper, January 7, 1768, and was afterwards reprinted as a postscript to *The true Sentiments of America*, printed for Almon, 1768. B. V.

^[76] Mr. George Grenville. B. V.

^[77] Mr. Charles Townsend. B. V.

^[78] I shall here give the reader the note at the end of the fourth paragraph of the farmer's seventh letter (written by Mr. Dickenson.)

"Many remarkable instances might be produced of the extraordinary inattention with which bills of great importance concerning these colonies have passed in parliament; which is owing, as it is supposed, to the bills being brought in, by

the persons who have points to carry, so artfully framed, that it is not easy for the members in general in the haste of business, to discover their tendency.

"The following instances show the truth of this remark.

"When Mr. Grenville, in the violence of reformation and innovation, formed the 4th George III. chap. 15th, for regulating the American trade, the word 'Ireland' was dropt in the clause relating to our iron and lumber, so that we could send these articles to no other part of Europe, but to Great Britain. This was so unreasonable a restriction, and so contrary to the sentiments of the legislature, for many years before, that it is surprising it should not have been taken notice of in the house. However, the bill passed into a law. But when the matter was explained, this restriction was taken off in a subsequent act.

"I cannot say, how long after the taking off this restriction, as I have not the acts, but I think in less than eighteen months, another act of parliament passed, in which the word 'Ireland' was left out as it had been before. The matter being a second time explained was a second time regulated.

"Now if it be considered, that the omission mentioned, struck off, with one word, so very great a part of our trade, it must appear remarkable: and equally so is the method by which rice became an enumerated commodity, and therefore could be carried to Great Britain only.

"The enumeration was obtained, (says Mr. Gee on Trade, p. 32) by one Cole, a captain of a ship, employed by a company then trading to Carolina; for several ships going from England thither, and purchasing rice for Portugal, prevented the aforesaid captain of a loading. Upon his coming home he possessed one Mr. Lowndes, a member of parliament, (who was frequently employed to prepare bills) with an opinion, that carrying rice directly to Portugal was a prejudice to the trade of England, and privately got a clause into an act to make it an enumerated commodity, by which means he secured a freight to himself. But the consequence proved a vast loss to the nation.

"I find that this clause, 'privately got into an act, for the benefit of Captain Cole, to the vast loss of the nation,' is foisted into the 3d Anne, chapter 5th, intituled, 'an act for granting to her majesty a further subsidy on wines and merchandizes imported,' with which it has no more connection, than with 34th Edward I. 34th and 35th of Henry VIII. or the 25th Charles II. which provide that no person shall be taxed but by himself or his representatives." B. V.

[79] F. S. possibly means Franklin's Seal. The paper, however, is undoubtedly the production of Dr. Franklin.

In the *collection of tracts on the subjects of taxing the British colonies in America, and regulating their trade* (printed in 1773, in 4 vols. 8vo. by Almon) I find *two* papers, said there to have been published originally in 1739, and to have been drawn up by a club of American merchants, at the head of whom were Sir William Keith (governor of Pennsylvania), Joshua Gee, and many other eminent persons. The *first* paper proposes the raising a small body of regular troops under the command of an officer appointed by the crown and independent of the governors (who were nevertheless to assist him in council on emergent occasions) in order to protect the Indian trade, and take care of the boundaries and back settlements. They were to be supported by a revenue to be established by *act of parliament*, in America; which revenue was to arise out of a duty on

stamp paper and parchment. The *second* paper goes into the particulars of this proposed stamp duty, offers reasons for extending it over all the British plantations, and recites its supposed advantages. If these papers are at all genuine (a fact about which I am not in the least informed) Mr. George Grenville does not appear to have been original in conceiving *stamps* as a proper subject for his new tax. See *ib.* vol. I. B. V.

Letter concerning the Gratitude of America, and the probability and effects of an Union with Great Britain; and concerning the Repeal or Suspension of the Stamp-Act.^[80]

Jan. 6, 1766.

SIR,

I have attentively perused the paper you sent me, and am of opinion, that the measure it proposes, of an *union* with the colonies, is a wise one: but I doubt it will hardly be thought so here, till it is too late to attempt it. The time has been, when the colonies would have esteemed it a great advantage, as well as honour to them, to be permitted to send members to parliament; and would have asked for that privilege, if they could have had the least hopes of obtaining it. The time is now come, when they are indifferent about it, and will probably not ask it, though they might accept it if offered them; and the time will come, when they will certainly refuse it. But if such an union were now established (which methinks it highly imports this country to establish) it would probably subsist as long as Britain shall continue a nation. This people, however, is too proud, and too much despises the Americans, to bear the thought of admitting them to such an equitable participation in the government of the whole. Then the *next best* thing seems to be, leaving them in the quiet enjoyment of their respective constitutions; and when money is wanted for any public service in which they ought to bear a part, calling upon them by requisitorial letters from the crown (according to the long established custom) to grant such aids as their loyalty shall dictate, and their abilities permit. The very sensible and benevolent author of that paper, seems not to have known, that such a constitutional custom subsists, and has always hitherto been practised in America; or he would not have expressed himself in this manner: "It is evident beyond a doubt, to the intelligent and impartial, that after the very extraordinary efforts, which were effectually made by Great Britain in the late war to save the colonists from destruction, and attended of necessity with an enormous load of debts in consequence, that the same colonists, now firmly secured from foreign enemies, should be somehow induced to contribute some proportion towards the exigencies of state in future." This

looks as if he conceived the war had been carried on at the sole expence of Great Britain, and the colonies only reaped the benefit, without hitherto sharing the burthen, and were therefore now indebted to Britain on that account. And this is the same kind of argument that is used by those who would fix on the colonies the heavy charge of unreasonableness and ingratitude, which I think your friend did not intend. Please to acquaint him then, that the fact is not so: that every year during the war, requisitions were made by the crown on the colonies for raising money and men; that accordingly they made *more extraordinary* efforts, in proportion to their abilities, than Britain did; that they raised, paid and clothed, for five or six years, near 25,000 men, besides providing for other services (as building forts, equipping guard-ships, paying transports, &c.) And that this was more than their fair proportion is not merely an opinion of mine, but was the judgment of government here, in full knowledge of all the facts; for the then ministry, to make the burthen more equal, recommended the case to parliament, and obtained a reimbursement to the Americans of about 200,000*l.* sterling every year; which amounted only to about two fifths of their expence; and great part of the rest lies still a load of debt upon them; heavy taxes on all their estates, real and personal, being laid by acts of their assemblies to discharge it, and yet will not discharge it in many years. While then these burthens continue: while Britain restrains the colonies in every branch of commerce and manufactures that she thinks interferes with her own; while she drains the colonies, by her trade with them, of all the cash they can procure by every art and industry in any part of the world, and thus keeps them always in her debt: (for they can make no law to discourage the importation of your to *them* ruinous superfluities, as *you* do the superfluities of France; since such a law would immediately be reported against by your board of trade, and repealed by the crown:) I say while these circumstances continue, and while there subsists the established method of royal requisitions, for raising money on them by their own assemblies on every proper occasion; can it be necessary or prudent to distress and vex them by taxes laid here, in a parliament wherein they have no representative, and in a manner which they look upon to be unconstitutional and subversive of their most valuable rights; and are they to be thought unreasonable and ungrateful if they oppose such taxes? Wherewith, they say, shall we show our loyalty to our gracious king, if our money is to be given by others, without asking our consent? And if the

parliament has a right thus to take from us a penny in the pound, where is the line drawn that bounds that right, and what shall hinder their calling whenever they please for the other nineteen shillings and eleven pence? Have we then any thing that we can call our own? It is more than probable, that bringing representatives from the colonies to sit and act here as members of parliament, thus uniting and consolidating your dominions, would in a little time *remove* these objections and difficulties, and make the future government of the colonies easy: but, till some such thing is done, I apprehend no taxes, laid there by parliament here, will ever be collected, but such as must be stained with blood: and I am sure the profit of such taxes will never answer the expence of collecting them, and that the respect and affection of the Americans to this country will in the struggle be totally lost, perhaps never to be recovered; and therewith all the commercial and political advantages, that might have attended the continuance of this respect and this affection.

In my own private judgment I think an immediate repeal of the stamp-act would be the best measure for *this* country; but a suspension of it for three years, the best for *that*. The *repeal* would fill them with joy and gratitude, re-establish their respect and veneration for parliament, restore at once their ancient and natural love for this country, and their regard for every thing that comes from it; hence the trade would be renewed in all its branches; they would again indulge in all the expensive superfluities you supply them with, and their own new assumed home industry would languish. But the *suspension*, though it might continue their fears and anxieties, would at the same time keep up their resolutions of industry and frugality; which in two or three years would grow into habits, to their lasting advantage. However, as the repeal will probably not be now agreed to,^[81] from what I think a mistaken opinion, that the honour and dignity of government is better supported by persisting in a wrong measure once entered into, than by rectifying an error as soon as it is discovered; we must allow the next best thing for the advantage of both countries is, the suspension; for as to executing the act by force, it is madness, and will be ruin to the whole.

The rest of your friend's reasonings and propositions appear to me truly just and judicious; I will therefore only add, that I am as desirous of his acquaintance and intimacy, as he was of my opinion.

I am, with much esteem,

Your obliged friend.

FOOTNOTES:

[\[80\]](#) The name of the person to whom this letter is addressed cannot be made out in the original copy. The letter, to which it is a reply, appears to have contained the letter of some third person equally unknown to the editor. B. V.

[\[81\]](#) It was however agreed to in the same year, viz. in 1766. B. V.

Letter from Governor Pownall to Dr. Franklin, concerning an equal communication of rights, privileges, &c. to America by Great Britain.^[82]

DEAR SIR,

The following *objection* against communicating to the colonies the rights, privileges, and powers of the realm, as to parts of the realm, has been made. I have been endeavouring to obviate it, and I communicate [it] to you, in hopes of your promised assistance.

If, say *the objectors*, we communicate to the colonies the power of sending representatives, and in consequence expect them to participate in an *equal share and proportion* of all our taxes, we must grant to them all the powers of trade and manufacturing, which any other parts of the realm within the isle of Great Britain enjoy: if so, perchance the profits of the Atlantic commerce may converge to some centre in America; to Boston, New-York, Philadelphia, or to some of the isles: if so, then the natural and artificial produce of the colonies, and in course of consequences the landed interest of the colonies, will be promoted; while the natural and artificial produce and landed interest of Great Britain will be depressed, to its utter ruin and destruction; and consequently the balance of the power of government, although still *within the realm*, will be *locally* transferred from Great Britain to the colonies. Which consequence, however it may suit a citizen of the world, must be folly and madness to a Briton.—My fit is gone off, and though weak, both from the gout and a concomitant and very ugly fever, I am much better.—Would be glad to see you.

Your friend,

J. POWNALL.

FOOTNOTE:

^[82] This letter bears no date. It was written possibly about the time that governor Pownall was engaged in publishing his book on the *administration of*

the colonies. B. V.

On the back of the foregoing letter of Governor Pownall, are the following minutes, by Dr. Franklin.

This *objection* goes upon the supposition, that whatever the colonies gain, Britain must lose; and that if the *colonies* can be kept from gaining an advantage, *Britain will gain it*:—

If the colonies are fitter for a particular trade than Britain, they should have it, and Britain apply to what it is more fit for. The whole empire is a gainer. And if Britain is not so fit or so well situated for a particular advantage, *other* countries will get it, *if the colonies do not*. Thus Ireland was forbid the woollen manufacture and remains poor: but this has given to the French the trade and wealth Ireland might have gained for the British empire.

The government cannot *long* be retained without the union. Which is best (supposing your case) to have a total separation, or a change of the seat of government?—It by no means follows, that promoting and advancing the landed interest in America will depress that of Britain: the contrary has always been the fact. Advantageous situations and circumstances will always secure and fix manufactures: Sheffield against all Europe for these 300 years past.—

Impracticability.

Danger of innovation.

* * * * *

The Examination of Dr. Benjamin Franklin before the English House of Commons, in February, 1766, relative to the Repeal of the American Stamp Act.^[83]

Q. What is your name, and place of abode?

A. Franklin, of Philadelphia.

Q. Do the Americans pay any considerable taxes among themselves?

A. Certainly many, and very heavy taxes.

Q. What are the present taxes in Pensylvania, laid by the laws of the colony?

A. There are taxes on all estates real and personal; a poll tax; a tax on all offices, professions, trades and businesses, according to their profits; an excise on all wine, rum, and other spirits; and a duty of ten pounds per head on all negroes imported, with some other duties.

Q. For what purposes are those taxes laid?

A. For the support of the civil and military establishments of the country, and to discharge the heavy debt contracted in the last war.

Q. How long are those taxes to continue?

A. Those for discharging the debt are to continue till 1772, and longer, if the debt should not be then all discharged. The others must always continue.

Q. Was it not expected that the debt would have been sooner discharged?

A. It was, when the peace was made with France and Spain. But a fresh war breaking out with the Indians, a fresh load of debt was incurred; and the taxes, of course, continued longer by a new law.

Q. Are not all the people very able to pay those taxes?

A. No. The frontier counties, all along the continent, having been frequently ravaged by the enemy and greatly impoverished, are able to pay very little tax. And therefore, in consideration of their distresses, our late tax laws do expressly favour those counties, excusing the sufferers; and I suppose the same is done in other governments.

Q. Are not you concerned in the management of the *post-office* in America?

A. Yes. I am deputy post-master general of North America.

Q. Don't you think the distribution of stamps *by post* to all the inhabitants very practicable, if there was no opposition?

A. The posts only go along the sea-coasts; they do not, except in a few instances, go back into the country; and if they did, sending for stamps by post would occasion an expence of postage, amounting, in many cases, to much more than that of the stamps themselves.

Q. Are you acquainted with Newfoundland?

A. I never was there.

Q. Do you know whether there are any post-roads on that island?

A. I have heard that there are no roads at all, but that the communication between one settlement and another is by sea only.

Q. Can you disperse the stamps by post in Canada?

A. There is only a post between Montreal and Quebec. The inhabitants live so scattered and remote from each other in that vast country, that posts cannot be supported among them, and therefore they cannot get stamps per post. The *English colonies* too along the frontiers are very thinly settled.

Q. From the thinness of the back settlements, would not the stamp act be extremely inconvenient to the inhabitants, if executed?

A. To be sure it would; as many of the inhabitants could not get stamps when they had occasion for them, without taking long journeys, and spending perhaps three or four pounds, that the crown might get six-pence.

Q. Are not the colonies, from their circumstances, very able to pay the stamp duty?

A. In my opinion there is not gold and silver enough in the colonies to pay the stamp duty for one year. [\[84\]](#)

Q. Don't you know that the money arising from the stamps was all to be laid out in America?

A. I know it is appropriated by the act to the American service; but it will be spent in the conquered colonies, where the soldiers are; not in the colonies that pay it.

Q. Is there not a balance of trade due from the colonies where the troops are posted, that will bring back the money to the old colonies?

A. I think not. I believe very little would come back. I know of no trade likely to bring it back. I think it would come from the colonies where it was spent, directly to England; for I have always observed, that in every colony the more plenty the means of remittance to England, the more goods are sent for, and the more trade with England carried on.

Q. What number of white inhabitants do you think there are in Pennsylvania?

A. I suppose there may be about one hundred and sixty thousand.

Q. What number of them are Quakers?

A. Perhaps a third.

Q. What number of Germans?

A. Perhaps another third; but I cannot speak with certainty.

Q. Have any number of the Germans seen service, as soldiers, in Europe?

A. Yes, many of them, both in Europe and America.

Q. Are they as much dissatisfied with the stamp duty as the English?

A. Yes, and more; and with reason, as their stamps are, in many cases, to be double^[85].

Q. How many white men do you suppose there are in North America?

A. About three hundred thousand, from sixteen to sixty years of age^[86].

Q. What may be the amount of one year's imports into Pennsylvania from Britain?

A. I have been informed that our merchants compute the imports from Britain to be above 500,000*l*.

Q. What may be the amount of the produce of your province exported to Britain?

A. It must be small, as we produce little that is wanted in Britain. I suppose it cannot exceed 40,000*l*.

Q. How then do you pay the balance?

A. The balance is paid by our produce carried to the West Indies (and sold in our own islands, or to the French, Spaniards, Danes, and Dutch)—by the same [produce] carried to other colonies in North America, (as to New England, Nova Scotia, Newfoundland, Carolina, and Georgia)—by the same, carried to different parts of Europe, (as Spain, Portugal, and Italy.) In all which places we receive either money, bills of exchange, or commodities that suit for remittance to Britain; which, together with all the profits on the industry of our merchants and mariners, arising in those circuitous voyages, and the freights made by their ships, centre finally in Britain to discharge the balance, and pay for British manufactures continually used in the province, or sold to foreigners by our traders.

Q. Have you heard of any difficulties lately laid on the Spanish trade?

A. Yes, I have heard that it has been greatly obstructed by some new regulations, and by the English men of war and cutters stationed all along the coast in America.

Q. Do you think it right that America should be protected by this country, and pay no part of the expence?

A. That is not the case. The colonies raised, clothed, and paid, during the last war, near twenty-five thousand men, and spent many millions.

Q. Were you not reimbursed by parliament?

A. We were only reimbursed what, in your opinion, we had advanced beyond our proportion, or beyond what might reasonably be expected from us; and it was a very small part of what we spent. Pennsylvania, in particular, disbursed about 500,000*l.* and the reimbursements, in the whole, did not exceed 60,000*l.*

Q. You have said, that you pay heavy taxes in Pennsylvania, what do they amount to in the pound?

A. The tax on all estates, real and personal, is eighteen pence in the pound, fully rated; and the tax on the profits of trades and professions, with other taxes, do, I suppose, make full half-a-crown in the pound.

Q. Do you know any thing of the *rate of exchange* in Pennsylvania, and whether it has fallen lately?

A. It is commonly from one hundred and seventy to one hundred and seventy-five. I have heard, that it has fallen lately from one hundred and seventy-five to one hundred sixty-two and a half; owing, I suppose, to their lessening their orders for goods; and when their debts to this country are paid, I think the exchange will probably be at par.

Q. Do not you think the people of America would submit to pay the stamp duty, if it was moderated?

A. No, never, unless compelled by force of arms.

Q. Are not the taxes in Pensylvania laid on unequally, in order to burthen the English trade; particularly the tax on professions and business?

A. It is not more burthensome in proportion, than the tax on lands. It is intended, and supposed to take an equal proportion of profits.

Q. How is the assembly composed? Of what kinds of people are the members; landholders or traders?

A. It is composed of landholders, merchants, and artificers.

Q. Are not the majority landholders?

A. I believe they are.

Q. Do not they, as much as possible, shift the tax off from the land, to ease that, and lay the burthen heavier on trade?

A. I have never understood it so. I never heard such a thing suggested. And indeed an attempt of that kind could answer no purpose. The merchant or trader is always skilled in figures, and ready with his pen and ink. If unequal burthens are laid on his trade, he puts an additional price on his goods; and the consumers, who are chiefly landholders, finally pay the greatest part, if not the whole.

Q. What was the temper of America towards Great Britain *before the year 1763*^[87]?

A. The best in the world. They submitted willingly to the government of the crown, and paid, in their courts, obedience to acts of parliament. Numerous as the people are in the several old provinces, they cost you nothing in forts, citadels, garrisons, or armies, to keep them in subjection. They were governed by this country at the expence only of a little pen, ink,

and paper: they were led by a thread. They had not only a respect, but an affection for Great Britain; for its laws, its customs, and manners, and even a fondness for its fashions, that greatly increased the commerce. Natives of Britain were always treated with particular regard; to be an *Old England-man* was, of itself, a character of some respect, and gave a kind of rank among us.

Q. And what is their temper now?

A. O, very much altered.

Q. Did you ever hear the authority of parliament to make laws for America questioned till lately?

A. The authority of parliament was allowed to be valid in all laws, except such as should lay internal taxes. It was never disputed in laying duties to regulate commerce.

Q. In what proportion hath population increased in America?

A. I think the inhabitants of all the provinces together, taken at a medium, double in about twenty-five years. But their demand for British manufactures increases much faster; as the consumption is not merely in proportion to their numbers, but grows with the growing abilities of the same numbers to pay for them. In 1723, the whole importation from Britain to Pennsylvania was but about 15,000*l.* sterling; it is now near half a million.

Q. In what light did the people of America use to consider the parliament of Great Britain?

A. They considered the parliament as the great bulwark and security of their liberties and privileges, and always spoke of it with the utmost respect and veneration. Arbitrary ministers, they thought, might possibly, at times, attempt to oppress them; but they relied on it, that the parliament, on application, would always give redress. They remembered, with gratitude, a strong instance of this, when a bill was brought into parliament, with a clause, to make royal instructions laws in the colonies, which the house of commons would not pass, and it was thrown out.

Q. And have they not still the same respect for parliament?

A. No, it is greatly lessened.

Q. To what causes is that owing?

A. To a concurrence of causes; the restraints lately laid on their trade, by which the bringing of foreign gold and silver into [the] colonies was prevented; the prohibition of making paper-money among themselves,^[88] and then demanding a new and heavy tax by stamps, taking away, at the same time, trials by juries, and refusing to receive and hear their humble petitions.

Q. Don't you think they would submit to the stamp act, if it was modified, the obnoxious parts taken out, and the duty reduced to some particulars, of small moment?

A. No, they will never submit to it.

Q. What do you think is the reason that the people in America increase faster than in England?

A. Because they marry younger, and more generally.

Q. Why so?

A. Because any young couple, that are industrious, may easily obtain land of their own, on which they can raise a family.

Q. Are not the lower rank of people more at their ease in America than in England?

A. They may be so, if they are sober and diligent; as they are better paid for their labour.

Q. What is your opinion of a future tax, imposed on the same principle with that of the stamp act? how would the Americans receive it?

A. Just as they do this. They would not pay it.

Q. Have not you heard of the resolutions of this house, and of the house of lords, asserting the right of parliament relating to America, including a power to tax the people there?

A. Yes, I have heard of such resolutions.

Q. What will be the opinion of the Americans on those resolutions?

A. They will think them unconstitutional and unjust.

Q. Was it an opinion in America before 1763, that the parliament had no right to lay taxes and duties there?

A. I never heard any objection to the right of laying duties to regulate commerce, but a right to lay internal taxes was never supposed to be in parliament, as we are not represented there.

Q. On what do you found your opinion, that the people in America made any such distinction?

A. I know that whenever the subject has occurred in conversation where I have been present, it has appeared to be the opinion of every one, that we could not be taxed in a parliament where we were not represented. But the payment of duties laid by act of parliament as regulations of commerce, was never disputed.

Q. But can you name any act of assembly, or public act of any of your governments, that made such distinction?

A. I do not know that there was any; I think there was never an occasion to make any such act, till now that you have attempted to tax us: *that* has occasioned resolutions of assembly, declaring the distinction, in which I think every assembly on the continent, and every member in every assembly, have been unanimous.

Q. What then could occasion conversations on that subject before that time?

A. There was in 1754 a proposition made (I think it came from hence) that in case of a war, which was then apprehended, the governors of the colonies should meet, and order the levying of troops, building of forts, and taking every other necessary measure for the general defence; and should draw on the treasury here for the sums expended; which were afterwards to be raised in the colonies by a general tax, to be laid on them by *act of parliament*. This occasioned a good deal of conversation on the subject; and the general opinion was, that the parliament neither would nor could lay any tax on us, till we were duly represented in parliament; because it was not just, nor agreeable to the nature of an English constitution.

Q. Don't you know there was a time in New York, when it was under consideration to make an application to parliament to lay taxes on that

colony, upon a deficiency arising from the assembly's refusing or neglecting to raise the necessary supplies for the support of the civil government?

A. I never heard of it.

Q. There was such an application under consideration in New York:—and do you apprehend they could suppose the right of parliament to lay a tax in America was only local, and confined to the case of a deficiency in a particular colony, by a refusal of its assembly to raise the necessary supplies?

A. They could not suppose such a case, as that the assembly would not raise the necessary supplies to support its own government. An assembly that would refuse it must want common sense; which cannot be supposed. I think there was never any such case at New York, and that it must be a misrepresentation, or the fact must be misunderstood. I know there have been some attempts, by ministerial instructions from hence, to oblige the assemblies to settle permanent salaries on governors, which they wisely refused to do; but I believe no assembly of New York, or any other colony, ever refused duly to support government by proper allowances, from time to time, to public officers.

Q. But in case a governor, acting by instruction, should call on an assembly to raise the necessary supplies, and the assembly should refuse to do it, do you not think it would then be for the good of the people of the colony, as well as necessary to government, that the parliament should tax them?

A. I do not think it would be necessary. If an assembly could possibly be so absurd, as to refuse raising the supplies requisite for the maintenance of government among them, they could not long remain in such a situation; the disorders and confusion occasioned by it must soon bring them to reason.

Q. If it should not, ought not the right to be in Great Britain of applying a remedy?

A. A right, only to be used in such a case, I should have no objection to; supposing it to be used merely for the good of the people of the colony.

Q. But who is to judge of that, Britain or the colony?

A. Those that feel can best judge.

Q. You say the colonies have always submitted to external taxes, and object to the right of parliament only in laying internal taxes; now can you show, that there is any kind of *difference between the two taxes* to the colony on which they may be laid?

A. I think the difference is very great. An *external* tax is a duty laid on commodities imported; that duty is added to the first cost and other charges on the commodity, and, when it is offered to sale, makes a part of the price. If the people do not like it at that price, they refuse it; they are not obliged to pay it. But an *internal* tax is forced from the people without their consent, if not laid by their own representatives. The stamp act says, we shall have no commerce, make no exchange of property with each other, neither purchase nor grant, nor recover debts; we shall neither marry nor make our wills, unless we pay such and such sums; and thus it is intended to extort our money from us, or ruin us by the consequences of refusing to pay it.

Q. But supposing the external tax or duty to be laid on the necessities of life imported into your colony, will not that be the same thing in its effects as an internal tax?

A. I do not know a single article imported into the *northern* colonies, but what they can either do without, or make themselves.

Q. Don't you think cloth from England absolutely necessary to them?

A. No, by no means absolutely necessary; with industry and good management, they may very well supply themselves with all they want.

Q. Will it not take a long time to establish that manufacture among them; and must they not in the mean while suffer greatly?

A. I think not. They have made a surprising progress already. And I am of opinion, that before their old clothes are worn out, they will have new ones of their own making.

Q. Can they possibly find wool enough in North America?

A. They have taken steps to increase the wool. They entered into general combinations to eat no more lamb; and very few lambs were killed last year. This course, persisted in, will soon make a prodigious difference in the quantity of wool. And the establishing of great manufactories, like those in

the clothing towns here, is not necessary, as it is where the business is to be carried on for the purposes of trade. The people will all spin, and work for themselves, in their own houses.

Q. Can there be wool and manufacture enough in one or two years?

A. In three years, I think there may.

Q. Does not the severity of the winter, in the northern colonies, occasion the wool to be of bad quality?

A. No, the wool is very fine and good.

Q. In the more southern colonies, as in Virginia, don't you know, that the wool is coarse, and only a kind of hair?

A. I don't know it. I never heard it. Yet I have been sometimes in Virginia. I cannot say I ever took particular notice of the wool there, but I believe it is good, though I cannot speak positively of it; but Virginia, and the colonies south of it, have less occasion for wool; their winters are short, and not very severe; and they can very well clothe themselves with linen and cotton of their own raising for the rest of the year.

Q. Are not the people in the more northern colonies obliged to fodder their sheep all the winter?

A. In some of the most northern colonies they may be obliged to do it, some part of the winter.

Q. Considering the resolutions of parliament^[89], *as to the right*; do you think, if the stamp act is repealed, that the North Americans will be satisfied?

A. I believe they will.

Q. Why do you think so?

A. I think the resolutions of *right* will give them very little concern, if they are never attempted to be carried into practice. The colonies will probably consider themselves in the same situation, in that respect, with Ireland: they know you claim the same right with regard to Ireland, but you never exercise it. And they may believe you never will exercise it in the colonies, any more than in Ireland, unless on some very extraordinary occasion.

Q. But who are to be the judges of that extraordinary occasion? Is not the parliament?

A. Though the parliament may judge of the occasion, the people will think it can never exercise such right, till representatives from the colonies are admitted into parliament; and that, whenever the occasion arises, representatives *will* be ordered.

Q. Did you never hear that Maryland, during the last war, had refused to furnish a quota towards the common defence?

A. Maryland has been much misrepresented in that matter. Maryland, to my knowledge, never refused to contribute, or grant aids to the crown. The assemblies, every year during the war, voted considerable sums, and formed bills to raise them. The bills were, according to the constitution of that province, sent up to the council, or upper house, for concurrence, that they might be presented to the governor, in order to be enacted into laws. Unhappy disputes between the two houses—arising from the defects of that constitution principally—rendered all the bills but one or two abortive. The proprietary's council rejected them. It is true, Maryland did contribute its proportion; but it was, in my opinion, the fault of the government, not of the people.

Q. Was it not talked of in the other provinces as a proper measure, to apply to parliament to compel them?

A. I have heard such discourse; but as it was well known, that the people were not to blame, no such application was ever made, nor any step taken towards it.

Q. Was it not proposed at a public meeting?

A. Not that I know of.

Q. Do you remember the abolishing of the paper-currency in New England, by act of assembly?

A. I do remember its being abolished in the Massachusetts's Bay.

Q. Was not lieutenant-governor Hutchinson principally concerned in that transaction?

A. I have heard so.

Q. Was it not at that time a very unpopular law?

A. I believe it might, though I can say little about it, as I lived at a distance from that province.

Q. Was not the *scarcity of gold and silver* an argument used against abolishing the paper?

A. I suppose it was^[90].

Q. What is the present opinion there of that law? Is it as unpopular as it was at first?

A. I think it is not.

Q. Have not instructions from hence been sometimes sent over to governors, highly oppressive and unpolitical?

A. Yes.

Q. Have not some governors dispensed with them for that reason?

A. Yes, I have heard so.

Q. Did the Americans ever dispute the controlling power of parliament to regulate the commerce?

A. No.

Q. Can any thing less than a military force carry the stamp act into execution?

A. I do not see how a military force can be applied to that purpose.

Q. Why may it not?

A. Suppose a military force sent into America, they will find nobody in arms; what are they then to do? They cannot force a man to take stamps who chooses to do without them. They will not find a rebellion: they may indeed make one.

Q. If the act is not repealed, what do you think will be the consequences?

A. A total loss of the respect and affection the people of America bear to this country, and of all the commerce that depends on that respect and affection.

Q. How can the commerce be affected?

A. You will find, that if the act is not repealed, they will take very little of your manufactures in a short time.

Q. Is it in their power to do without them?

A. I think they may very well do without them.

Q. Is it their interest not to take them?

A. The goods they take from Britain are either necessities, mere conveniences, or superfluities. The first, as cloth, &c. with a little industry they can make at home; the second they can do without, till they are able to provide them among themselves; and the last, which are much the greatest part, they will strike off immediately. They are mere articles of fashion, purchased and consumed, because the fashion in a respected country; but will now be detested and rejected. The people have already struck off, by general agreement, the use of all goods fashionable in mournings, and many thousand pounds worth are sent back as unsaleable.

Q. Is it their interest to make cloth at home?

A. I think they may at present get it cheaper from Britain, I mean of the same fineness and neatness of workmanship: but when one considers other circumstances, the restraints on their trade, and the difficulty of making remittances, it is their interest to make every thing.

Q. Suppose an act of internal regulations connected with a tax, how would they receive it?

A. I think it would be objected to.

Q. Then no regulation with a tax would be submitted to?

A. Their opinion is, that when aids to the crown are wanted, they are to be asked of the several assemblies, according to the old established usage; who will, as they always have done, grant them freely. And that their money ought not to be given away, without their consent, by persons at a distance, unacquainted with their circumstances and abilities. The granting aids to the crown is the only means they have of recommending themselves to their sovereign; and they think it extremely hard and unjust, that a body of men, in which they have no representatives, should make a merit to itself of

giving and granting what is not its own, but theirs; and deprive them of a right they esteem of the utmost value and importance, as it is the security of all their other rights.

Q. But is not the post-office, which they have long received, a tax as well as a regulation?

A. No; the money paid for the postage of a letter is not of the nature of a tax; it is merely a *quantum meruit* for a service done; no person is compellable to pay the money, if he does not choose to receive the service. A man may still, as before the act, send his letter by a servant, a special messenger, or a friend, if he thinks it cheaper and safer.

Q. But do they not consider the regulations of the post-office, by the act of last year, as a tax?

A. By the regulations of last year the rate of postage was generally abated near thirty per cent through all America; they certainly cannot consider such abatement *as a tax*.

Q. If an excise was laid by parliament, which they might likewise avoid paying, by not consuming the articles excised, would they then not object to it?

A. They would certainly object to it, as an excise is unconnected with any service done, and is merely an aid, which they think ought to be asked of them, and granted by them, if they are to pay it; and can be granted for them by no others whatsoever, whom they have not impowered for that purpose.

Q. You say, they do not object to the right of parliament, in laying duties on goods to be paid on their importation: now, is there any kind of difference between a duty on the *importation* of goods, and an excise on their *consumption*?

A. Yes; a very material one: an excise, for the reasons I have just mentioned, they think you can have no right to lay within their country. But *the sea* is yours; you maintain, by your fleets, the safety of navigation in it, and keep it clear of pirates; you may have therefore a natural and equitable right to some *toll* or duty on merchandizes carried through that part of your dominions, towards defraying the expence you are at in ships to maintain the safety of that carriage.

Q. Does this reasoning hold in the case of a duty laid on the produce of their lands *exported*? And would they not then object to such a duty?

A. If it tended to make the produce so much dearer abroad, as to lessen the demand for it, to be sure they would object to such a duty; not to your right of laying it, but they would complain of it as a burthen, and petition you to lighten it.

Q. Is not the duty paid on the tobacco exported, a duty of that kind?

A. That, I think, is only on tobacco carried coast-wise, from one colony to another, and appropriated as a fund for supporting the college at Williamsburgh, in Virginia.

Q. Have not the assemblies in the West Indies the same natural rights with those in North America?

A. Undoubtedly.

Q. And is there not a tax laid there on their sugars exported?

A. I am not much acquainted with the West Indies; but the duty of four and a half per cent on sugars exported was, I believe, granted by their own assemblies.^[91]

Q. How much is the poll-tax in your province laid on unmarried men?

A. It is, I think, fifteen shillings, to be paid by every single freeman, upwards of twenty-one years old.

Q. What is the annual amount of *all* the taxes in Pennsylvania?

A. I suppose about 20,000*l.* sterling.

Q. Supposing the stamp act continued and enforced, do you imagine that ill-humour will induce the Americans to give as much for worse manufactures of their own, and use them, preferably to better of ours?

A. Yes, I think so. People will pay as freely to gratify one passion as another, their resentment as their pride.

Q. Would the people at Boston discontinue their trade?

A. The merchants are a very small number compared with the body of the people, and must discontinue their trade, if nobody will buy their goods.

Q. What are the body of the people in the colonies?

A. They are farmers, husbandmen, or planters.

Q. Would they suffer the produce of their lands to rot?

A. No; but they would not raise so much. They would manufacture more, and plow less.

Q. Would they live without the administration of justice in civil matters, and suffer all the inconveniencies of such a situation for any considerable time, rather than take the stamps, supposing the stamps were protected by a sufficient force, where every one might have them?

A. I think the supposition impracticable, that the stamps should be so protected as that every one might have them. The act requires sub-distributors to be appointed in every county town, district, and village, and they would be necessary. But the *principal* distributors, who were to have had a considerable profit on the whole, have not thought it worth while to continue in the office; and I think it impossible to find sub-distributors fit to be trusted, who, for the trifling profit that must come to their share, would incur the odium, and run the hazard that would attend it; and if they could be found, I think it impracticable to protect the stamps in so many distant and remote places.

Q. But in places where they could be protected, would not the people use them, rather than remain in such a situation, unable to obtain any right, or recover, by law, any debt?

A. It is hard to say what they would do. I can only judge what other people will think, and how they will act, by what I feel within myself. I have a great many debts due to me in America, and I had rather they should remain unrecoverable by any law, than submit to the stamp act. They will be debts of honour. It is my opinion the people will either continue in that situation, or find some way to extricate themselves, perhaps by generally agreeing to proceed in the courts without stamps.

Q. What do you think a sufficient military force to protect the distribution of the stamps in every part of America?

A. A very great force, I can't say what, if the disposition of America is for a general resistance.

Q. What is the number of men in America able to bear arms, or of disciplined militia?

A. There are, I suppose, at least——

[*Question objected to. He withdrew. Called in again.*]

Q. Is the American stamp act an equal tax on the country?

A. I think not.

Q. Why so?

A. The greatest part of the money must arise from law-suits for the recovery of debts, and be paid by the lower sort of people, who were too poor easily to pay their debts. It is therefore a heavy tax on the poor, and a tax upon them for being poor.

Q. But will not this increase of expence be a means of lessening the number of law-suits?

A. I think not; for as the costs all fall upon the debtor, and are to be paid by him, they would be no discouragement to the creditor to bring his action.

Q. Would it not have the effect of excessive usury?

A. Yes, as an oppression of the debtor.

Q. How many ships are there laden annually in North America with *flax-seed* for Ireland?

A. I cannot speak to the number of ships, but I know, that in 1752 ten thousand hogsheads of flax-seed, each containing seven bushels, were exported from Philadelphia to Ireland. I suppose the quantity is greatly increased since that time, and it is understood, that the exportation from New York is equal to that from Philadelphia.

Q. What becomes of the flax that grows with that flax-seed?

A. They manufacture some into coarse, and some into a middling kind of linen.

Q. Are there any *slitting-mills* in America?^[92]

A. I think there are three, but I believe only one at present employed. I suppose they will all be set to work, if the interruption of the trade

continues.

Q. Are there any *fulling-mills* there?

A. A great many.

Q. Did you never hear, that a great quantity of stockings were contracted for, for the army, during the war, and manufactured in Philadelphia?

A. I have heard so.

Q. If the stamp-act should be repealed, would not the Americans think they could oblige the parliament to repeal every external tax-law now in force?

A. It is hard to answer questions of what people at such a distance will think.

Q. But what do you imagine they will think were the motives of repealing the act?

A. I suppose they will think, that it was repealed from a conviction of its inexpediency; and they will rely upon it, that while the same inexpediency subsists, you will never attempt to make such another.

Q. What do you mean by its inexpediency?

A. I mean its inexpediency on several accounts, the poverty and inability of those who were to pay the tax, the general discontent it has occasioned, and the impracticability of enforcing it.

Q. If the act should be repealed, and the legislature should show its resentment to the opposers of the stamp-act, would the colonies acquiesce in the authority of the legislature? What is your opinion they would do?

A. I don't doubt at all, that if the legislature repeal the stamp-act, the colonies will acquiesce in the authority.

Q. But if the legislature should think fit to ascertain its right to lay taxes, by any act laying a small tax, contrary to their opinion, would they submit to pay the tax?

A. The proceedings of the people in America have been considered too much together. The proceedings of the assemblies have been very different from those of the mobs, and should be distinguished, as having no

connection with each other. The *assemblies* have only peaceably resolved what they take to be their rights: they have taken no measures for opposition by force, they have not built a fort, raised a man, or provided a grain of ammunition, in order to such opposition. The ring-leaders of riots, they think ought to be punished; they would punish them themselves, if they could. Every sober, sensible man would wish to see rioters punished, as otherwise peaceable people have no security of person or estate.—But as to an internal tax, how small soever, laid by the legislature here on the people there, while they have no representatives in this legislature, I think it will never be submitted to: they will oppose it to the last.—They do not consider it as at all necessary for you to raise money on them by your taxes; because they are, and always have been, ready to raise money by taxes among themselves, and to grant large sums, equal to their abilities, upon requisition from the crown. They have not only granted equal to their abilities, but, during all the last war, they granted far beyond their abilities, and beyond their proportion with this country (you yourselves being judges) to the amount of many hundred thousand pounds; and this they did freely and readily, only on a sort of promise, from the secretary of state, that it should be recommended to parliament to make them compensation. It was accordingly recommended to parliament, in the most honourable manner for them. America has been greatly misrepresented and abused here, in papers, and pamphlets, and speeches, as ungrateful, and unreasonable, and unjust; in having put this nation to immense expence for their defence, and refusing to bear any part of that expence. The colonies raised, paid, and clothed, near twenty-five thousand men during the last war; a number equal to those sent from Britain, and far beyond their proportion; they went deeply into debt in doing this, and all their taxes and estates are mortgaged, for many years to come, for discharging that debt. Government here was at that time very sensible of this. The colonies were recommended to parliament. Every year the king sent down to the house a written message to this purpose, "that his majesty, being highly sensible of the zeal and vigour with which his faithful subjects in North America had exerted themselves, in defence of his majesty's just rights and possessions; recommended it to the house to take the same into consideration, and enable him to give them a proper compensation." You will find those messages on your own journals every year of the war to the very last; and you did accordingly give 200,000*l.* annually to the crown, to be distributed in such compensation to

the colonies. This is the strongest of all proofs that the colonies, far from being unwilling to bear a share of the burthen, did exceed their proportion; for if they had done less, or had only equalled their proportion, there would have been no room or reason for compensation. Indeed the sums, reimbursed them, were by no means adequate to the expence they incurred beyond their proportion: but they never murmured at that; they esteemed their sovereign's approbation of their zeal and fidelity, and the approbation of this house, far beyond any other kind of compensation, therefore there was no occasion for this act, to force money from a willing people: they had not refused giving money for the *purposes* of the act, no requisition had been made, they were always willing and ready to do what could reasonably be expected from them, and in this light they wish to be considered.

Q. But suppose Great Britain should be engaged in a *war in Europe*, would North America contribute to the support of it?

A. I do think they would, as far as their circumstances would permit. They consider themselves as a part of the British empire, and as having one common interest with it: they may be looked on here as foreigners, but they do not consider themselves as such. They are zealous for the honour and prosperity of this nation; and, while they are well used, will always be ready to support it, as far as their little power goes.—In 1739 they were called upon to assist in the expedition against Carthagera, and they sent three thousand men to join your army.^[93] It is true Carthagera is in America, but as remote from the northern colonies, as if it had been in Europe. They make no distinction of wars, as to their duty of assisting in them. I know the *last war* is commonly spoken of here as entered into for the defence, or for the sake of the people in America. I think it is quite misunderstood. It began about the limits between Canada and Nova Scotia; about territories to which the *crown* indeed laid claim, but [which] were not claimed by any British *colony*; none of the lands had been granted to any colonist, we had therefore no particular concern or interest in that dispute.—As to the Ohio, the contest there began about your right of trading in the Indian country, a right you had by the treaty of Utrecht, which the French infringed; they seized the traders and their goods, which were your manufactures; they took a fort which a company of your merchants, and their factors and correspondents had erected there, to secure that trade. Braddock was sent with an army to re-take that fort (which was looked on here as another incroachment on the

king's territory) and to protect your trade. It was not till after his defeat that the colonies were attacked.^[94] They were before in perfect peace with both French and Indians; the troops were not therefore sent for their defence. The trade with the Indians, though carried on in America, is not an *American interest*. The people of America are chiefly farmers and planters, scarce any thing that they raise or produce is an article of commerce with the Indians. The Indian trade is a *British interest*; it is carried on with British manufactures, for the profit of British merchants and manufacturers; therefore the war, as it commenced for the defence of territories of the crown (the property of no American) and for the defence of a trade purely British, was really a British war—and yet the people of America made no scruple of contributing their utmost towards carrying it on, and bringing it to a happy conclusion.

Q. Do you think then that the taking possession of the king's territorial rights, and *strengthening the frontiers*, is not an American interest?

A. Not particularly, but conjointly a British and an American interest.

Q. You will not deny that the preceding war, the *war with Spain*, was entered into for the sake of America; was it not *occasioned by captures made in the American seas*?

A. Yes; captures of ships carrying on the British trade there with British manufactures.

Q. Was not the *late war with the Indians, since the peace with France*, a war for America only?

A. Yes; it was more particularly for America than the former; but it was rather a consequence or remains of the former war, the Indians not having been thoroughly pacified; and the Americans bore by much the greatest share of the expence. It was put an end to by the army under General Bouquet; there were not above three hundred regulars in that army, and above one thousand Pensylvanians.

Q. Is it not necessary to send troops to America, to defend the Americans against the Indians?

A. No, by no means; it never was necessary. They defended themselves when they were but an handful, and the Indians much more numerous. They

continually gained ground, and have driven the Indians over the mountains, without any troops sent to their assistance from this country. And can it be thought necessary now to send troops for their defence from those diminished Indian tribes, when the colonies are become so populous, and so strong? There is not the least occasion for it, they are very able to defend themselves.

Q. Do you say there were no more than three hundred regular troops employed in the late Indian war?

A. Not on the Ohio, or the frontiers of Pensylvania, which was the chief part of the war that affected the colonies. There were garrisons at Niagara, Fort Detroit, and those remote posts kept for the sake of your trade; I did not reckon them; but I believe that on the whole the number of Americans, or provincial troops, employed in the war, was greater than that of the regulars. I am not certain, but I think so.

Q. Do you think the assemblies have a right to levy money on the subject there, to grant *to the crown*?

A. I certainly think so, they have always done it.

Q. Are they acquainted with the declaration of rights? And do they know that, by that statute, money is not to be raised on the subject but by consent of parliament?

A. They are very well acquainted with it.

Q. How then can they think they have a right to levy money for the crown, or for any other than local purposes?

A. They understand that clause to relate to subjects only within the realm; that no money can be levied on them for the crown, but by consent of parliament. *The colonies* are not supposed to be within the realm; they have assemblies of their own, which are their parliaments, and they are, in that respect, in the same situation with Ireland. When money is to be raised for the crown upon the subject in Ireland, or in the colonies, the consent is given in the parliament of Ireland, or in the assemblies of the colonies. They think the parliament of Great Britain cannot properly give that consent, till it has representatives from America; for the petition of right expressly says, it is to be by *common consent in parliament*; and the people of America

have no representatives in parliament, to make a part of that common consent.

Q. If the stamp act should be repealed, and an act should pass, ordering the assemblies of the colonies to indemnify the sufferers by the riots, would they obey it?

A. That is a question I cannot answer.

Q. Suppose the king should require the colonies to grant a revenue, and the parliament should be against their doing it, do they think they can grant a revenue to the king, *without* the consent of the parliament of Great Britain?

A. That is a deep question. As to my own opinion, I should think myself at liberty to do it, and should do it, if I liked the occasion.

Q. When money has been raised in the colonies, upon requisitions, has it not been granted to the king?

A. Yes, always; but the requisitions have generally been for some service expressed, as to raise, clothe, and pay troops, and not for money only.

Q. If the act should pass, requiring the American assemblies to make compensation to the sufferers, and they should disobey it, and then the parliament should, by another act, lay an internal tax, would they then obey it?

A. The people will pay no internal tax; and I think an act to oblige the assemblies to make compensation is unnecessary; for I am of opinion, that as soon as the present heats are abated, they will take the matter into consideration, and if it is right to be done, they will do it of themselves.

Q. Do not letters often come into the post-offices in America directed to some inland town where no post goes?

A. Yes.

Q. Can any private person take up those letters and carry them as directed?

A. Yes; any friend of the person may do it, paying the postage that has accrued.

Q. But must not he pay an additional postage for the distance to such inland town?

A. No.

Q. Can the post-master answer delivering the letter, without being paid such additional postage?

A. Certainly he can demand nothing, where he does no service.

Q. Suppose a person, being far from home, finds a letter in a post-office directed to him, and he lives in a place to which the post generally goes, and the letter is directed to that place, will the post-master deliver him the letter, without his paying the postage receivable at the place to which the letter is directed?

A. Yes; the office cannot demand postage for a letter that it does not carry, or farther than it does carry it.

Q. Are not ferrymen in America obliged, by act of parliament, to carry over the posts without pay?

A. Yes.

Q. Is not this a tax on the ferrymen?

A. They do not consider it as such, as they have an advantage from persons travelling with the post.

Q. If the stamp-act should be repealed, and the crown should make a requisition to the colonies for a sum of money, would they grant it?

A. I believe they would.

Q. Why do you think so?

A. I can speak for the colony I live in; I had it in *instruction* from the assembly to assure the ministry, that as they always had done, so they should always think it their duty, to grant such aids to the crown as were suitable to their circumstances and abilities, whenever called upon for that purpose, in the usual constitutional manner; and I had the honour of communicating this instruction to that honourable gentleman then minister.

Q. Would they do this for a British concern, as suppose a war in some part of Europe, that did not affect them?

A. Yes, for any thing that concerned the general interest. They consider themselves as part of the whole.

Q. What is the usual constitutional manner of calling on the colonies for aids?

A. A letter from the secretary of state.

Q. Is this all you mean; a letter from the secretary of state?

A. I mean the usual way of requisition, in a circular letter from the secretary of state, by his majesty's command, reciting the occasion, and recommending it to the colonies to grant such aids as became their loyalty, and were suitable to their abilities.

Q. Did the secretary of state ever write for *money* for the crown?

A. The requisitions have been to raise, clothe, and pay men, which cannot be done without money.

Q. Would they grant money alone, if called on?

A. In my opinion they would, money as well as men, when they have money, or can make it.

Q. If the parliament should repeal the stamp act, will the assembly of Pennsylvania rescind their resolutions?

A. I think not.

Q. Before there was any thought of the stamp act, did they wish for a representation in parliament?

A. No.

Q. Don't you know that there is, in the Pensylvanian charter, an express reservation of the right of parliament to lay taxes there?

A. I know there is a clause in the charter, by which the king grants that he will levy no taxes on the inhabitants, unless it be with the consent of the assembly, or by act of parliament.

Q. How then could the assembly of Pennsylvania assert, that laying a tax on them by the stamp act was an infringement of their rights?

A. They understand it thus: by the same charter, and otherwise, they are intitled to all the privileges and liberties of Englishmen; they find in the great charters, and the petition and declaration of rights, that one of the privileges of English subjects is, that they are not to be taxed but by their *common consent*; they have therefore relied upon it, from the first settlement of the province, that the parliament never would, nor could, by colour of that clause in the charter, assume a right of taxing them, *till* it had qualified itself to exercise such right, by admitting representatives from the people to be taxed, who ought to make a part of that common consent.

Q. Are there any words in the charter that justify that construction?

A. The common rights of Englishmen, as declared by Magna Charta, and the petition of right, all justify it.

Q. Does the distinction between internal and external taxes exist in the words of the charter?

A. No, I believe not.

Q. Then may they not, by the same interpretation, object to the parliament's right of external taxation?

A. They never *have* hitherto. Many arguments have been lately used here to show them that there is no difference, and that if you have no right to tax them internally, you have none to tax them externally, or make any other law to bind them. At present they do not reason so; but in time they may possibly be convinced by these arguments.

Q. Do not the resolutions of the Pennsylvania assembly say—all taxes?

A. If they do, they mean only internal taxes; the same words have not always the same meaning here and in the colonies. By taxes they mean internal taxes; by duties they mean customs; these are their ideas of the language.

Q. Have you not seen the resolutions of the Massachusetts Bay assembly?

A. I have.

Q. Do they not say, that neither external nor internal taxes can be laid on them by parliament?

A. I don't know that they do; I believe not.

Q. If the same colony should say, neither tax nor imposition could be laid, does not that province hold the power of parliament can lay neither?

A. I suppose that by the word imposition, they do not intend to express duties to be laid on goods imported, as *regulations of commerce*.

Q. What can the colonies mean then by imposition as distinct from taxes?

A. They may mean many things, as impressing of men, or of carriages, quartering troops on private houses, and the like; there may be great impositions that are not properly taxes.

Q. Is not the post-office rate an internal tax laid by act of parliament?

A. I have answered that.

Q. Are all parts of the colonies equally able to pay taxes?

A. No, certainly; the frontier parts, which have been ravaged by the enemy, are greatly disabled by that means; and therefore, in such cases, are usually favoured in our tax-laws.

Q. Can we, at this distance, be competent judges of what favours are necessary?

A. The parliament have supposed it, by claiming a right to make tax-laws for America; I think it impossible.

Q. Would the repeal of the stamp act be any discouragement of your manufactures? Will the people that have begun to manufacture decline it?

A. Yes, I think they will; especially if, at the same time, the trade is opened again, so that remittances can be easily made. I have known several instances that make it probable. In the war before last, tobacco being low, and making little remittance, the people of Virginia went generally into family-manufactures. Afterwards, when tobacco bore a better price, they returned to the use of British manufactures. So fulling-mills were very much disused in the last war in Pennsylvania, because bills were then plenty,

and remittances could easily be made to Britain for English cloth and other goods.

Q. If the stamp act should be repealed, would it induce the assemblies of America to acknowledge the rights of parliament to tax them, and would they erase their resolutions?

A. No, never.

Q. Are there no means of obliging them to erase those resolutions?

A. None that I know of; they will never do it, unless compelled by force of arms.

Q. Is there a power on earth that can force them to erase them?

A. No power, how great soever, can force men to change their opinions.

Q. Do they consider the post-office as a tax, or as a regulation?

A. Not as a tax, but as a regulation and conveniency; *every assembly* encouraged it, and supported it in its infancy, by grants of money, which they would not otherwise have done; and the people have always paid the postage.

Q. When did you receive the instructions you mentioned?

A. I brought them with me, when I came to England, about fifteen months since.

Q. When did you communicate that instruction to the minister?

A. Soon after my arrival,—while the stamping of America was under consideration, and *before* the bill was brought in.

Q. Would it be most for the interest of Great Britain, to employ the hands of Virginia in tobacco, or in manufactures?

A. In tobacco, to be sure.

Q. What used to be the pride of the Americans?

A. To indulge in the fashions and manufactures of Great Britain.

Q. What is now their pride?

A. To wear their old clothes over again, till they can make new ones.

Withdrew.

FOOTNOTES:

[83] 1766. Feb. 3. Benjamin Franklin, Esq. and a number of other persons were "ordered to attend the committee of the whole house [of commons] to whom it was referred, to consider farther the several papers [relative to America] which were presented to the house by Mr. Secretary Conway, &c."

Feb. 13. Benjamin Franklin, Esq. having passed through his examination, was exempted from farther attendance.

Feb. 24. The resolutions of the committee were reported by the chairman, Mr. Fuller, their *seventh* and last resolution setting forth "that it was their opinion that the house be moved, that leave be given to bring in a bill to repeal the stamp act." A proposal for re-committing this resolution was negatived by 240 votes to 133. (See the Journals of the House of Commons.)

This examination of Dr. Franklin was printed in the year 1767, under the form of a shilling pamphlet. It is prior in point of date to some of the foregoing pieces; but I readily submitted to this derangement, thinking by this means to provide the reader with a knowledge of the proceedings on which the examination was grounded. B. V.

[84] "The stamp act says, that the Americans shall have no commerce, make no exchange of property with each other, neither purchase nor grant nor recover debts; they shall neither marry nor make their wills, unless they pay such and such sums" in *specie* for the stamps which must give validity to the proceedings. The operation of such a tax, had it obtained the consent of the people, appeared inevitable; and its annual productiveness, if I recollect well, was estimated by its proposer in the house of commons at the committee for supplies, at 100,000*l.* sterling. The colonies being already reduced to the necessity of having *paper*-money, by sending to Britain the *specie* they collected in foreign trade, in order to make up for the deficiency of their other returns for Britain's manufactures; there were doubts where could remain the *specie* sufficient to answer the tax. B. V.

[85] The stamp act provides that a double duty should be laid "where the instrument, proceedings, &c. shall be engrossed, written, or printed, within the said colonies and plantations, in any other than the English language." This measure, I presume, appeared to be suggested by motives of convenience, and the policy of assimilating persons of foreign to those of British descent, and preventing their interference in the conduct of law business till this change should be effected. It seems however to have been deemed too precipitate, immediately to extend this clause to newly-conquered countries. An exemption therefore was granted, in this particular, with respect to Canada and Grenada, for the space of five years, to be reckoned from the commencement of the duty. (See the Stamp Act.) B. V.

[86] Strangers excluded, some parts of the northern colonies double their numbers in fifteen or sixteen years; to the southward they are longer, but, taking one with another, they have doubled by natural generation only, once in twenty-five years. Pennsylvania, I believe, *including strangers*, has doubled in about sixteen years. The calculation for February 1766 will not then suit 1779. B. V.

[87] In the year 1733—"for the welfare and prosperity of our sugar colonies in America," and "for remedying discouragements of planters;" duties were "*given and granted*" to George the Second upon all rum, spirits, molasses, syrups, sugar, and paneles of foreign growth, produce, and manufacture, imported into our colonies. This *regulation of trade*, for the benefit of the general empire was acquiesced in, notwithstanding the introduction of the novel terms "give and grant." But the act, which was made only for the term of five years, and had been several times renewed in the reign of George the Second, and once in the reign of George the Third; was renewed again in the year 1763, in the reign of George the Third, and *extended to other articles, upon new and altered grounds*. It was stated in the preamble to this act, "that it was expedient that new provisions and regulations should be established for *improving the revenue of this kingdom*;" "that it was just and necessary that a revenue should be raised in America for defending, protecting, and securing the same;" "and that the commons of Great Britain ... desirous of making some provision ... towards *raising the said revenue* in America, have resolved to give and grant to his majesty the several rates and duties, &c." Mr. Mauduit, agent for Massachusetts Bay, tells us, that he was instructed in the following terms to oppose Mr. Grenville's taxing system.—"You are to remonstrate against these measures, and, if possible, to obtain a repeal of the sugar act, and prevent the imposition of any further duties or taxes on the colonies. Measures will be taken that you may be joined by all the other agents. *Boston, June 14, 1764.*"

The question proposed to Dr. Franklin alludes to this sugar act in 1763. Dr. Franklin's answer appears to deserve the best attention of the reader. B. V.

[88] Some of the colonies have been reduced to the necessity of bartering, from the want of a medium of traffic. See [p. 146](#). B. V.

[89] Afterwards expressed in the Declaratory-Act. B. V.

[90] See the answer to the report of the board of trade, [p. 144](#). B. V.

[91] See the note to Lord Howe's letter to our author. B. V.

[92] i. e. Mills for the slitting of iron. B. V.

[93] Admiral Vernon and General Wentworth commanded this expedition; with what success, is well known. B. V.

[94] When this army was in the utmost distress from the want of waggon, &c. our author and his son voluntarily traversed the country, in order to collect a sufficient quantity; and they had zeal and address enough to effect their purpose, upon pledging themselves, to the amount of many thousand pounds, for payment. It was but just before Dr. Franklin's last return to America, that the accounts in this transaction were passed at home. B. V.

[95] I take the following to be the history of this transaction.

Until 1763, and the years following, whenever Great Britain wanted supplies directly from the colonies, the secretary of state, in his majesty's name, sent them a letter of requisition, in which the occasion for the supplies was expressed; and the colonies returned a *free gift*, the mode of levying which *they* wholly prescribed. At this period, a chancellor of the exchequer (Mr. George Grenville) steps forth and says to the house of commons: *We must call for money from the colonies in the way of a tax*;—and to the colony-agents, *write to your several colonies, and tell them, if they dislike a duty upon stamps, and prefer any other method of raising the money themselves, I shall be content, provided the amount be but raised*. "That is," observed the colonies, when commenting upon his terms, "if we will not tax ourselves, *as we may be directed*, the parliament will tax us," Dr. Franklin's instructions, spoken of above, related to this gracious option. As the colonies could not choose "*another* tax," while they disclaimed every tax; the parliament passed the stamp-act.

It seems that the only part of the offer which bore a show of favour, was the grant of the *mode of levying*—and this was the only circumstance which was *not new*.

See Mr. Mauduit's account of Mr. Grenville's conference with the agents, confirmed by the agents for Georgia and Virginia, and Mr. Burke's speech, in 1774, p. 55. B. V.

London, Nov. 28, 1768.

DEAR SIR,

I received your obliging favour of the 12th instant. Your sentiments of the importance of the present dispute between Great Britain and the colonies, appear to me extremely just. There is nothing I wish for more than to see it amicably and equitably settled.

But Providence will bring about its own ends by its own means; and if it intends the downfall of a nation, that nation will be so blinded by its pride, and other passions, as not to see its danger, or how its fall may be prevented.

Being born and bred in one of the countries, and having lived long and made many agreeable connexions of friendship in the other, I wish all prosperity to both: but I have talked, and written so much and so long on the subject, that my acquaintance are weary of hearing, and the public of reading any more of it, which begins to make me weary of talking and writing; especially as I do not find that I have gained any point, in either country, except that of rendering myself suspected, by my impartiality; in England, of being too much an American, and in America of being too much an Englishman. Your opinion, however, weighs with me, and encourages me to try one effort more, in a full, though concise state of facts, accompanied with arguments drawn from those facts; to be published about the meeting of parliament, after the holidays.

If any good may be done I shall rejoice; but at present I almost despair.

Have you ever seen the barometer so low as of late?

The 22d instant mine was at 28, 41, and yet the weather fine and fair.

With sincere esteem, I am, dear friend,

Yours, affectionately,

B. FRANKLIN.

FOOTNOTE:

[\[96\]](#) I cannot pretend to say what is the publication promised in this letter; unless it alludes to the one given above at p. 225; in which case there is a mistake in the date of the year. B. V.

Queries from Mr. Strahan.

TO DR. FRANKLIN ^[97].

Nov. 21, 1769.

DEAR SIR,

In the many conversations we have had together about our present disputes with North America, we perfectly agreed in wishing they may be brought to a speedy and happy conclusion. How this is to be done, is not so easily ascertained.

Two objects, I humbly apprehend, his majesty's servants have now in contemplation. 1st. To relieve the colonies from the taxes complained of, which they certainly had no hand in imposing. 2dly, To preserve the honour, the dignity, and the supremacy of the British legislature over all his majesty's dominions.

As I know your singular knowledge of the subject in question, and am as fully convinced of your cordial attachment to his majesty, and your sincere desire to promote the happiness equally of all his subjects, I beg you would in your own clear, brief, and explicit manner, send me an answer to the following questions: I make this request now, because this matter is of the utmost importance, and must very quickly be agitated. And I do it with the more freedom, as you know me and my motives too well to entertain the most remote suspicion that I will make an improper use of any information you shall hereby convey to me.

1st. Will not a repeal of all the duties (that on tea excepted, which was before paid here on exportation, and of course no new imposition) fully satisfy the colonists ^[98]? If you answer in the negative,

2d. Your reasons for that opinion?

3d. Do you think the only effectual way of composing the present differences is to put the Americans precisely in the situation they were in before the passing of the late stamp-act?—If that is your opinion,

4th. Your reasons for that opinion?

5th. If this last method is deemed by the legislature, and his majesty's ministers, to be repugnant to their duty, as guardians of the just rights of the crown and of their fellow-subjects; can you suggest any other way of terminating these disputes, consistent with the ideas of justice and propriety conceived by the king's subjects on both sides of the Atlantic?

6. And if this method was actually followed, do you not think it would actually encourage the violent and factious part of the colonists to aim at still farther concessions from the mother-country?

7th. If they are relieved in part only, what do you, as a reasonable and dispassionate man, and an equal friend to both sides, imagine will be the probable consequences?

The answers to these questions, I humbly conceive, will include all the information I want; and I beg you will favour me with them as soon as may be. Every well-wisher to the peace and prosperity of the British empire, and every friend to our truly happy constitution, must be desirous of seeing even the most trivial causes of dissention among our fellow-subjects removed. Our domestic squabbles, in my mind, are nothing to what I am speaking of. This you know much better than I do, and therefore I need add nothing farther to recommend this subject to your serious consideration. I am, with the most cordial esteem and attachment, dear sir, your faithful and affectionate humble servant,

W. S.

FOOTNOTES:

[97] These letters have often been copied into our public prints. Mr. Strahan, the correspondent, is printer to the king, and now representative in parliament for Malmsbury in Wiltshire. An intimacy of long standing had subsisted between him and Dr. Franklin. B. V.

It was the father of the present Mr. Strahan, who is also king's-printer, and member of parliament. The friendship, which so long subsisted between Mr. Strahan and Dr. Franklin, the latter, in 1775, formally abjured, in a letter addressed to Mr. Strahan, which will be found in the order of its date, in a subsequent part of this work. *Editor.*

[98] In the year 1767, for the express purpose of raising a revenue in America, glass, red-lead, white-lead, painters' colours, paper, and *tea* (which last article was subject to various *home*-impositions) became charged by act of parliament, with new *permanent* duties payable in the American ports. Soon after, in the same sessions, (the East-India Company promising indemnification for the experiment) a *temporary* alteration was made with respect to the *home* customs or excise upon certain teas, in the hope that a deduction in the nominal imposition, by producing a more extended consumption, would give an increased sum to the exchequer. Mr. Strahan, comparing only the *amounts* of the imposed American duty, and the deducted home duty, determines that the Americans had suffered no new imposition. The Americans it seems, thought otherwise. Had we established this precedent for a revenue, we thought we had every thing to hope; yet we affect surprise, when the colonies avoided an acquiescence which by parity of reasoning gave *them* every thing to fear. B. V.

Answer to the preceding Queries.

Craven Street, Nov. 29, 1769.

DEAR SIR,

Being just returned to town from a little excursion, I find yours of the 21st, containing a number of queries, that would require a pamphlet to answer them fully. You, however, desire only brief answers, which I shall endeavour to give.

Previous to your queries, you tell me, that "you apprehend his majesty's servants have now in contemplation, 1st, To relieve the colonists from the taxes complained of; 2d, To preserve the honour, the dignity, and the supremacy of the British legislature over all his majesty's dominions." I hope your information is good; and that what you suppose to be in contemplation will be carried into execution, by repealing all the laws, that have been made for raising a revenue in America by authority of parliament without the consent of the people there. The honour and dignity of the British legislature will not be hurt by such an act of justice and wisdom. The wisest councils are liable to be misled, especially in matters remote from their inspection. It is the persisting in an error, not the correcting it, that lessens the honour of any man or body of men. The supremacy of that legislature, I believe, will be best preserved by making a very sparing use of it; never but for the evident good of the colonies themselves, or of the whole British empire; never for the partial advantage of Britain to their prejudice. By such prudent conduct, I imagine, that supremacy may be gradually strengthened, and in time fully established; but otherwise, I apprehend it will be disputed, and lost in the dispute. At present the colonies consent and submit to it, for the regulations of general commerce; but a submission to acts of parliament was no part of their original constitution. Our former kings governed their colonies, as they had governed their dominions in France, without the participation of British parliaments. The parliament of England never presumed to interfere in that prerogative, till the time of the great rebellion, when they usurped the government of all the king's other dominions, Ireland, Scotland, &c. The colonies that held for the

king, they conquered by force of arms, and governed afterwards as conquered countries; but New England, having not opposed the parliament, was considered and treated as a sister-kingdom, in amity with England (as appears by the Journals, *March 10, 1642.*)

1st. "Will not a repeal of all the duties (that on tea excepted, which was before paid here on exportation, and of course no new imposition) fully satisfy the colonists?"

Answer, I think not.

2d. "Your reasons for that opinion?"

A. Because it is not the sum paid in that duty on tea that is complained of as a burden, but the principle of the act, expressed in the preamble, viz. That those duties were laid for the better support of government, and the administration of justice in the colonies^[99]. This the colonists think unnecessary, unjust, and dangerous to their most important rights. *Unnecessary*, because in all the colonies (two or three new ones excepted^[100]) government and the administration of justice were, and always had been, well supported without any charge to Britain: *unjust*, as it has made such colonies liable to pay such charge for others, in which they had no concern or interest: *dangerous*, as such mode of raising money for those purposes tended to render their assemblies useless; for if a revenue could be raised in the colonies for all the purposes of government by act of parliament, without grants from the people there, governors, who do not generally love assemblies, would never call them; they would be laid aside; and when nothing should depend on the people's good-will to government, their rights would be trampled on; they would be treated with contempt. Another reason, why I think they would not be satisfied with such a partial repeal, is that their agreements, not to import till the repeal takes place, include the whole; which shows, that they object to the whole; and those agreements will continue binding on them, if the whole is not repealed.

3d. "Do you think the only effectual way of composing the present differences is to put the Americans precisely in the situation they were in before the passing of the late stamp act?"

A. I think so.

4th. "Your reasons for that opinion?"

A. Other methods have been tried. They have been refused or rebuked in angry letters. Their petitions have been refused or rejected by parliament. They have been threatened with the punishments of treason by resolves of both houses. Their assemblies have been dissolved and troops have been sent among them: but all these ways have only exasperated their minds and widened the breach. Their agreements to use no more British manufactures have been strengthened; and these measures, instead of composing differences, and promoting a good correspondence, have almost annihilated your commerce with those countries, and greatly endanger the national peace and general welfare.

5th. "If this last method is deemed by the legislature, and his majesty's ministers, to be repugnant to their duty as guardians of the just rights of the crown, and of their fellow-subjects; can you suggest any other way of terminating these disputes, consistent with the ideas of justice and propriety conceived by the king's subjects on *both* sides the Atlantic?"

A. I do not see how that method can be deemed repugnant to the rights of the crown. If the Americans are put into their former situation, it must be an act of parliament; in the passing of which by the king, the rights of the crown are exercised, not infringed. It is indifferent to the crown, whether the aids received from America are granted by parliament here, or by the assemblies there, provided the quantum be the same; and it is my opinion, that more will be generally granted there voluntarily, than can ever be exacted or collected from thence by authority of parliament. As to the rights of fellow-subjects (I suppose you mean the people of Britain) I cannot conceive how those will be infringed by that method. They will still enjoy the right of granting their own money, and may still, if it pleases them, keep up their claim to the right of granting ours; a right they can never exercise properly, for want of a sufficient knowledge of us, our circumstances and abilities (to say nothing of the little likelihood there is that we should ever submit to it) therefore a right that can be of no good use to them; and we shall continue to enjoy in fact the right of granting our money, with the opinion, now universally prevailing among us, that we are free subjects of the king, and that fellow-subjects of one part of his dominions are not sovereigns over fellow-subjects in any other part. If the subjects on the different sides of the Atlantic have different and opposite ideas of "justice and propriety," no one "method" can possibly be consistent with both. The

best will be, to let each enjoy their own opinions, without disturbing them, when they do not interfere with the common good.

6th. "And if this method were actually allowed, do you not think it would encourage the violent and factious part of the colonists, to aim at still farther concessions from the mother-country?"

A. I do not think it would. There may be a few among them that deserve the name of factious and violent, as there are in all countries; but these would have little influence, if the great majority of sober reasonable people were satisfied. If any colony should happen to think, that some of your regulations of trade are inconvenient to the general interest of the empire, or prejudicial to them without being beneficial to you, they will state these matters to parliament in petitions as heretofore; but will, I believe, take no violent steps to obtain what they may hope for in time from the wisdom of government here. I know of nothing else they can have in view: the notion that prevails here, of their being desirous to set up a kingdom or commonwealth of their own, is to my certain knowledge entirely groundless. I therefore think, that on a total repeal of all duties, laid expressly for the purpose of raising a revenue on the people of America without their consent, the present uneasiness would subside; the agreements not to import would be dissolved; and the commerce flourish as heretofore; and I am confirmed in this sentiment by all the letters I have received from America, and by the opinions of all the sensible people who have lately come from thence, crown-officers excepted. I know, indeed, that the people of Boston are grievously offended by the quartering of troops among them, as they think, contrary to law, and are very angry with the board of commissioners, who have calumniated them to government; but as I suppose the withdrawing of those troops may be a consequence of reconciling measures taking place; and that the commission also will be either dissolved, if found useless, or filled with more temperate and prudent men, if still deemed useful and necessary; I do not imagine these particulars would prevent a return of the harmony so much to be wished^[101].

7th. "If they are relieved in part only, what do you, as a reasonable and dispassionate man, and an equal friend to both sides, imagine will be the probable consequence?"

A. I imagine, that repealing the offensive duties in part will answer no end to this country; the commerce will remain obstructed, and the Americans go on with their schemes of frugality, industry, and manufactures, to their own great advantage. How much that may tend to the prejudice of Britain, I cannot say; perhaps not so much as some apprehend, since she may in time find new markets. But I think, if the union of the two countries continues to subsist, it will not hurt the general interest; for whatever wealth Britain loses by the failing of its trade with the colonies, America will gain; and the crown will receive equal aids from its subjects upon the whole, if not greater.

And now I have answered your questions, as to what may be, in my opinion, the consequences of this or that supposed measure, I will go a little further, and tell you, what I fear is more likely to come to pass in *reality*. I apprehend, that the ministry, at least the American part of it, being fully persuaded of the right of parliament, think it ought to be enforced, whatever may be the consequences; and at the same time do not believe, there is even now any abatement of the trade between the two countries on account of these disputes; or that if there is, it is small, and cannot long continue. They are assured by the crown-officers in America, that manufactures are impossible there; that the discontented are few, and persons of little consequence; that almost all the people of property and importance are satisfied, and disposed to submit quietly to the taxing power of parliament; and that, if the revenue-acts are continued, and those duties only that are called anti-commercial be repealed, and others perhaps laid in their stead, the power ere long will be patiently submitted to, and the agreements not to import be broken, when they are found to produce no change of measures here. From these and similar misinformations, which seem to be credited, I think it likely, that no thorough redress of grievances will be afforded to America this session. This may inflame matters still more in that country; farther rash measures there may create more resentment here, that may produce not merely ill-advised dissolutions of their assemblies, as last year, but attempts to dissolve their constitution^[102]; more troops may be sent over, which will create more uneasiness; to justify the measures of government, your writers will revile the Americans in your newspapers, as they have already begun to do, treating them as miscreants, rogues, dastards, rebels, &c. to alienate the minds of the people here from them, and which will tend farther to diminish their affections to this country. Possibly

too, some of their warm patriots may be distracted enough to expose themselves by some mad action to be sent for hither, and government here be indiscreet enough to hang them, on the act of Henry VIII^[103]. Mutual provocations will thus go on to complete the separation; and instead of that cordial affection, that once and so long existed, and that harmony, so suitable to the circumstances, and so necessary to the happiness, strength, safety, and welfare of both countries, an implacable malice and mutual hatred, such as we now see subsisting between the Spaniards and Portuguese, the Genoese and Corsicans, from the same original misconduct in the superior governments, will take place: the sameness of nation, the similarity of religion, manners, and language not in the least preventing in our case, more than it did in theirs.—I hope, however, that this may all prove false prophecy, and that you and I may live to see as sincere and perfect a friendship established between our respective countries, as has so many years subsisted between Mr. Strahan, and his truly affectionate old friend,

B. FRANKLIN.

FOOTNOTES:

[99] "Men may lose little property by an act which takes away all their freedom. When a man is robbed of a trifle on the highway, it is not the two-pence lost that makes the capital outrage." "Would twenty shillings have ruined Mr. Hampden's fortune? No! but the payment of half twenty shillings, on the principle it was demanded, would have made him a slave." See Mr. Burke's speeches in 1774 and 1775. B. V.

[100] Nova Scotia, Georgia, the Floridas, and Canada. B. V.

[101] "The opposition [to Lord Rockingham's administration]" says Lord Chesterfield, "are for taking vigorous, as they call them, but I call them violent measures; not less than *les dragonades*; and to have the tax collected by the troops we have there. For my part, I never saw a forward child mended by whipping: and I would not have the mother become a step-mother." Letter, No. 360.

"Is it a certain maxim," pleads Mr. Burke, "that the fewer causes of dissatisfaction are left by government, the more the subject will be inclined to resist and rebel?" "I confess I do not feel the least alarm from the discontents which are to arise from putting people at their ease. Nor do I apprehend the destruction of this empire, from giving, by an act of free grace and indulgence,

to two millions of my fellow-citizens, some share of those rights, upon which I have always been taught to value myself." Speeches in 1774 and 1775. B. V.

[\[102\]](#) This was afterwards attempted by the British legislature, in the case of the Massachusetts's Bay. B. V.

[\[103\]](#) The lords and commons very prudently concurred in an address for this purpose, and the king graciously assured them of his compliance with their wishes. B. V.

State of the Constitution of the Colonies, by Governor Pownall^[104]; with Remarks by Dr. Franklin.

[PRINCIPLES.]

1. Wherever any Englishmen go forth without the realm, and make settlements in partibus exteris, "These settlements as English settlements, and these inhabitants as English subjects (carrying with them the laws of the land wherever they form colonies, and receiving his majesty's protection by virtue of his royal charter^[105]" or commissions of government) "have and enjoy all liberties and immunities of free and natural subjects, to all intents constructions and purposes whatsoever, as if they and every of them were born within the realm^[106];" and are bound by the like allegiance as every other subject of the realm.

Remarks. *The settlers of colonies in America did not carry with them the laws of the land, as being bound by them wherever they should settle. They left the realm to avoid the inconveniences and hardships they were under, where some of those laws were in force, particularly ecclesiastical laws, those for payment of tythes and others. Had it been understood, that they were to carry these laws with them, they had better have staid at home among their friends, unexposed to the risques and toils of a new settlement. They carried with them, a right to such parts of the laws of the land, as they should judge advantageous or useful to them; a right to be free from those they thought hurtful; and a right to make such others, as they should think necessary, not infringing the general rights of Englishmen: and such new laws they were to form, as agreeable as might be to the laws of England. B. F.*

2. Therefore the *common law of England*, and all such statutes as were enacted and in force at *the time* in which such settlers went forth, and such colonies and plantations were established, (except as hereafter excepted) together with all such alterations and amendments as the said common law may have received, is from time to time, and at all times, the law of those colonies and plantations.

Rem. *So far as they adopt it, by express laws or by practice.* B. F.

3. Therefore all statutes, touching the *right of the succession*, and settlement of the crown, with the statutes of treason relating thereto^[107]; all statutes, *regulating* or limiting the general powers and *authority of the crown*, and the exercise of the jurisdiction thereof; all statutes, *declaratory of the rights and liberty of the subject*, do extend to all British subjects in the colonies and plantations as of common right, and as if they and every of them were born within the realm.

Rem. *It is doubted, whether any settlement of the crown by parliament, takes place in the colonies, otherwise than by consent of the assemblies there. Had the rebellion in 1745 succeeded so far as to settle the Stuart family again on the throne, by act of parliament, I think the colonies would not have thought themselves bound by such act. They would still have adhered to the present family as long as they could.* B. F.

Observation in reply. *They are bound to the king and his successors, and we know no succession but by act of parliament.* T. P.

4. All statutes enacted *since* the establishment of colonies and plantations do extend to and operate within the said colonies and plantations, in which statutes the same *are specially named*.

Rem. *It is doubted, whether any act of parliament should of right operate in the colonies: in fact several of them have and do operate.* B. F.

5. Statutes and customs, which respect only the *special and local circumstances* of the realm, do not extend to and operate within said colonies and plantations, where no such special and local circumstances are found.—(Thus the *ecclesiastical and canon law*, and all *statutes respecting tythes*, the laws respecting *courts baron and copyholds*, the *game acts*, the *statutes respecting the poor* and settlements, and all other laws and statutes, having special reference to special and local circumstances and establishments within the realm, do not extend to and operate within these settlements, in *partibus exteris*, where no such circumstances or establishments exist.)

Rem. *These laws have no force in America: not merely because local circumstances differ, but because they have never been adopted, or brought over by acts of assembly or by practice in the courts.* B. F.

6. No statutes made *since* the establishment of said colonies and plantations (*except* as above described in articles 3 and 4) do extend to and operate within said colonies and plantations.

Query.—Would any statute made since the establishment of said colonies and plantations, which statute imported, to *annul* and abolish the powers and jurisdictions of their respective constitutions of government, where the same was not contrary to the laws, or any otherwise forfeited or abated; or which statute imported, to take away, or did take away, the rights and privileges of the settlers, as British subjects: would such statute, as of right, extend to and operate within said colonies and plantations?

Answer. *No. The parliament has no such power. The charters cannot be altered but by consent of both parties—the king and the colonies.* B. F.

[COROLLARIES FROM THE FOREGOING PRINCIPLES.]

Upon the matters of fact, right and law, as above stated, it is, that the British subjects thus settled in partibus exteris without the realm, so long as they are excluded from an intire union with the realm as parts of and within the same, have a right to have (as they have) and to be governed by (as they are) a *distinct intire civil government*, of the like powers, pre-eminences and jurisdictions (conformable to the like rights, privileges, immunities, franchises, and civil liberties) as are to be found and are established in the British government, respecting the British subject within the realm.

Rem. *Right.* B. F.

Hence also it is, that the *rights of the subject*, as declared in the petition of right, that the *limitation of prerogative* by the act for abolishing the star-chamber and for regulating the privy-council, &c. that the habeas corpus act, the statute of frauds, the bill of rights, do of common right extend to and are in force within said colonies and plantations.

Rem. *Several of these rights are established by special colony laws. If any are not yet so established, the colonies have right to such laws: and the covenant having been made in the charters by the king, for himself and his successors, such laws ought to receive the royal assent as of right.* B. F.

Hence it is, that the *freeholders* within the precincts of these jurisdictions have (as of right they ought to have) a *share in the power of making those*

laws which they are to be governed by, by the right which they have of sending their representatives to act for them and to consent for them in all matters of legislation, which representatives, when met in general assembly, have, together with the crown, a right to perform and do all the like acts respecting the matters, things and rights within the precincts of their jurisdiction, as the parliament hath respecting the realm and British dominions.

Hence also it is, that all the *executive offices* (from the supreme civil magistrate, as locum tenens to the king, down to that of constable and head-borough) must of right be established with all and the like powers, neither more nor less than as defined by the constitution and law, as in fact they are established.

Hence it is, that the *judicial offices and courts of justice*, established within the precincts of said jurisdictions, have, as they ought of right to have, all those jurisdictions and powers "as fully and amply to all intents and purposes whatsoever, as the courts of king's bench, common pleas, and exchequer, within his majesty's kingdom of England, have, and ought to have, and are empowered to give judgment and award execution thereupon^[108]."

Hence it is, that by the possession enjoyment and exercise of his majesty's *great seal*, delivered to his majesty's governor, there is established within the precincts of the respective jurisdictions all the same and like *powers of chancery* (except where by charters specially excluded) as his majesty's chancellor within his majesty's kingdom of England hath, and of right ought to have, by delivery of the great seal of England.—And hence it is, that all the like rights, privileges and powers, follow the use, exercise and application of the great seal of each colony and plantation within the precincts of said jurisdiction, as doth, and ought of right to follow the use, exercise, and application of the great seal.

Hence also it is, that *appeals in real actions*, "whereby the lands, tenements, and hereditaments of British subjects may be drawn into question and disposed of^[109]," do not lie, as of right and by law they ought not to lie, to the king in council.

Hence also it is, that there is *not* any law now in being, whereby *the subject* within said colonies and plantations can be removed^[110] from the

jurisdiction to which he is amenable in all his right, and through which his service and allegiance must be derived to the crown, and from which no appeal lies in criminal causes, so as that such subject may become amenable to a jurisdiction foreign to his natural and legal residency; to which he may be thereby transported, and under which he may be brought to trial and receive judgment, contrary to the rights and privileges of the subject, as declared by the spirit and intent and especially by the 16th § of the habeas corpus act. And if the person of any subject within the said colonies and plantations *should* be seized or detained by any power issuing from any court, without the jurisdiction of the colony where he then had his legal residency, it would become the duty of the courts of justice *within* such colony (it is undoubtedly of their jurisdiction so to do) to issue the writ of *habeas corpus*^[111].

Hence also it is, that in like manner as "the *command and disposition of the militia, and of all forces by sea and land*, and of all forts and places of strength, is, and by the laws of England ever was, the undoubted right of his majesty and his royal predecessors, kings and queens of England, within all his majesty's realms and dominions^[112]," in like manner as the supreme military power and command (so far as the constitution knows of and will justify its establishment) is inseparably annexed to, and forms an essential part of the office of supreme civil magistrate, the office of king: in like manner, in all *governments under the king*, where the constituents are British subjects and of full and perfect right entitled to the British laws and constitution, the supreme military command within the precincts of such jurisdictions must be inseparably annexed to the office of supreme civil magistrate, (his majesty's regent, vice-regent, lieutenant, or locum tenens, in what form soever established) so that the king cannot, by any^[113] commission of regency, by any commission or charter of government, separate or withdraw the supreme command of the military from the office of supreme civil magistrate—either by reserving this command in his own hands, to be exercised and executed independent of the civil power; or by granting a distinct commission to any military commander in chief, so to be exercised and executed; but more especially not within such jurisdictions where such supreme military power (so far as the constitution knows and will justify the same) is *already* annexed and granted to the office of supreme civil magistrate.—And hence it is, that the king cannot erect or

establish any law martial or military command, by any commission which may supersede and not be subject to the supreme civil magistrate, within the respective precincts of the civil jurisdictions of said colonies and plantations, otherwise than in such manner as the said law martial and military commissions are annexed or subject to the supreme civil jurisdiction within his majesty's realms and dominions of Great Britain and Ireland; and hence it is, that the establishment and exercise of such commands and commissions would be illegal^[114].

Rem. The king has the command of all military force in his dominions: but in every distinct state of his dominions there should be the consent of the parliament or assembly (the representative body) to the raising and keeping up such military force. He cannot even raise troops and quarter them in another, without the consent of that other. He cannot of right bring troops raised in Ireland and quarter them in Britain, but with the consent of the parliament of Britain: nor carry to Ireland and quarter there, soldiers raised in Britain, without the consent of the Irish parliament, unless in time of war and cases of extreme exigency.—In 1756, when the Speaker went up to present the money-bills, he said among other things, that "England was capable of fighting her own battles and defending herself; and although ever attached to your majesty's person, ever at ease under your just government, they cannot forbear taking notice of some circumstances in the present situation of affairs, which nothing but the confidence in your justice could hinder from alarming their most serious apprehensions. Subsidies to foreign princes, when already burthened with a debt scarce to be borne, cannot but be severely felt. An army of foreign troops, a thing unprecedented, unheard of, unknown, brought into England, cannot but alarm, &c. &c." (See the Speech.)

*N. B. These foreign troops were part of the king's subjects, Hanoverians, and all in his service, which the same thing as**** B. F.*

FOOTNOTES:

^[104] This State of the Constitution of the Colonies was printed at the close of 1769, and communicated to various persons, with a view to prevent mischief, from the misunderstandings between the government of Great Britain and the

people of America. I have taken the liberty of ascribing it to governor Pownall, as his name could have been no secret at the time. Dr. Franklin's remarks (which from their early date are the more curious) are in manuscript, and from an observation in reply signed T. P. appear to have been communicated to governor Pownall. B. V.

[105] Pratt and York.

[106] General words in all charters.

[107] [i. e.] All statutes respecting the general relation between the crown and the subject, not such as respect any particular or peculiar establishment of the realm of England. As for instance: by the 13th and 14th of Car. II. c. 2, the supreme military power is declared to be in general, without limitation, in his majesty, and to have always been of right annexed to the office of king of England, throughout all his majesty's realms and dominions; yet the enacting clause, which respects only the peculiar establishment of the militia of England, extends to the realm of England only: so that the supreme military power of the crown in all other his majesty's realms and dominions stands, *as to this statute*, on the basis of its general power, unlimited. However, the several legislatures of his majesty's kingdom of Ireland, of his dominions of Virginia, and of the several colonies and plantations in America, have, by laws to which the king hath given his consent, operating within the precincts of their several jurisdictions, limited the powers of it and regulated the exercise thereof.

[108] Law in New England, confirmed by the crown, Oct. 22, 1700.

[109] 16th Car. I. c. 10.

[110] The case of the court erected by act of parliament 11 and 12th of William III. c. 7, (since the enacting of the habeas corpus act) for the trial of piracies, felonies and robberies committed in or upon the sea, or in any haven, river, creek or place *where the admiral has jurisdiction*, does no way affect this position: nor doth the 14 § of the said statute, directing that the commissioners, of whom such court consists, may issue their warrant for apprehending such pirates, &c. in order to their being tried in the colonies, or *sent into England*, any way militate with the doctrine here laid down: nor can it be applied as *the case of a jurisdiction actually existing*, which supersedes the jurisdictions of the courts in the colonies and plantations, and as what authorises the taking the accused of such piracies &c. *from those jurisdictions*, and the sending such *so taken* to England for trial.—It cannot be applied as a case similar and in point to the application of an act of parliament (passed in the 35th of Henry VIII. concerning the *trial of treasons*) lately recommended in order to the sending persons accused of committing crimes in the plantations to England for trial: because this act of the 11th and 12th of William, c. 7, respects *crimes* committed in places, "*where the admiral has jurisdiction*," and *cases* to which the jurisdiction of those provincial courts *do not extend*. In the *case of treasons committed within the jurisdiction of the colonies and plantations*, there are courts competent to try such crimes and to give judgment thereupon, where the trials of such are regulated by laws to which the king hath given his consent: from which there lies no appeal, and wherein the king hath given power and instruction to his governor as to execution or respite of judgment. The said act of Henry VIII, which provides remedy for a case which supposes *the want* of due legal

jurisdiction, cannot be any way, or by any rule, applied to a case where there is due legal and competent jurisdiction.

[111] [The] referring to an old act made for the trial of treasons committed out of the realm, by such persons as had no legal resiancy but within the realm, and who were of the realm, applying the purview of that statute, which was made to bring subjects of the realm who had committed treason out of the realm (where there was *no criminal jurisdiction to which they could be amenable*) to trial within the realm, under that criminal jurisdiction to which alone by their legal resiancy and allegiance they were amenable; applying this to the case of subjects whose *legal* resiancy is *without* the realm, and who are by that resiancy and their allegiance amenable to a jurisdiction authorized and empowered to try and give judgment upon all capital offences whatsoever without appeal; thus applying this statute so as to take up a proceeding, for which there is no legal process either by common or statute law as now established, but in defiance of which there is a legal process established by the habeas corpus act;—would be, to disfranchise the subject in America of those rights and liberties which by statute and common law he is now entitled to.

[112] 13th and 14th Car. II. c. 2.

[113] If the king was to absent himself for a time from the realm, and did as usual leave a regency in his place, (his locum tenens as supreme civil magistrate) could he authorize and commission any military commander in chief to command the militia forts and forces, *independent of such regency*? Could he do this in Ireland? Could he do this in the colonies and plantations, where the governor is already, by commission or charter or both under the great seal, military commander in chief, as part of (and inseparably annexed to) the office of supreme civil magistrate, his majesty's locum tenens within said jurisdictions? If he could, then, while openly, by patent according to law, he appeared to establish a free British constitution, he might by a fallacy establish a military power and government.

[114] Governor P. accompanied this paper to Dr. F. with a sort of prophetic remark. After stating, that these theorems, and their application to existing cases, were intended to remedy the prejudice, indigestion, indecision and errors, then prevailing either in opinions or conduct; he adds, "the very attention to the investigation may lead to the discovery of *some truths respecting the whole British empire*, then little thought of and scarce even suspected, and which perhaps it would not be *prudent* at this time to mark and point out."—The minister however judged the *discussion* of *dubious* rights over growing states, a better policy than possession, discretion and silence; he turned civilian, and lost an empire. B. V.

TO MR. DUBOURG.

[Concerning the Dissentions between England and America.](#)^[115]

London, October 2, 1770.

I see with pleasure that we think pretty much alike on the subjects of English America. We of the colonies have never insisted, that we ought to be exempt from contributing to the common expences necessary to support the prosperity of the empire. We only assert, that having parliaments of our own, and not having representatives in that of Great Britain, our parliaments are the only judges of what we can and what we ought to contribute in this case; and that the English parliament has no right to take our money without our consent. In fact, the British empire is not a single state; it comprehends many; and though the parliament of Great Britain has arrogated to itself the power of taxing the colonies, it has no more right to do so, than it has to tax Hanover. We have the same king, but not the same legislatures.

The dispute between the two countries has already cost England many millions sterling, which it has lost in its commerce, and America has in this respect been a proportionable gainer. This commerce consisted principally of superfluities; objects of luxury and fashion, which we can well do without; and the resolution we have formed, of importing no more till our grievances are redressed, has enabled many of our infant manufactures to take root; and it will not be easy to make our people abandon them in future, even should a connection more cordial than ever succeed the present troubles. I have indeed no doubt, that the parliament of England will finally abandon its present pretensions, and leave us to the peaceable enjoyment of our rights and privileges.

B. FRANKLIN.

FOOTNOTE:

[\[115\]](#) Re-translated from the French edition of Dr. Franklin's works. *Editor.*

A Prussian Edict, assuming Claims over Britain.

Dantzick, Sept. 5, 1773. ^[116]

We have long wondered here at the supineness of the English nation, under the Prussian impositions upon its trade entering our port. We did not, till lately, know the claims, ancient and modern, that hang over that nation, and therefore could not suspect, that it might submit to those impositions from a sense of duty, or from principles of equity. The following edict, just made public, may, if serious, throw some light upon this matter:

"FREDERICK, by the grace of God, king of Prussia &c. &c. &c. to all present and to come, ^[117] health. The peace now enjoyed throughout our dominions, having afforded us leisure to apply ourselves to the regulation of commerce, the improvement of our finances, and at the same time the easing our *domestic* subjects in their taxes: for these causes, and other good considerations us thereunto moving, we hereby make known, that, after having deliberated these affairs in our council, present our dear brothers, and other great officers of the state, members of the same; we, of our certain knowledge, full power, and authority royal, have made and issued this present edict, viz.

"Whereas it is well known to all the world, that the first German settlements made in the island of Britain, were by colonies of people, subjects to our renowned ducal ancestors, and drawn from their dominions, under the conduct of Hengist, Horsa, Hella, Uffa, Cerdicus, Ida, and others; and that the said colonies have flourished under the protection of our august house, for ages past, have never been emancipated therefrom, and yet have hitherto yielded little profit to the same: and whereas we ourself have in the last war fought for and defended the said colonies, against the power of France, and thereby enabled them to make conquests from the said power in America, for which we have not yet received adequate compensation: and whereas it is just and expedient that a revenue should be raised from the said colonies in Britain towards our indemnification; and that those who are descendants of our ancient subjects, and thence still owe us due obedience, should contribute to the replenishing of our royal coffers: (as they must

have done, had their ancestors remained in the territories now to us appertaining) we do therefore hereby ordain and command, that, from and after the date of these presents, there shall be levied and paid to our officers of the *customs*, on all goods, wares, and merchandizes, and on all grain and other produce of the earth, exported from the said island of Britain, and on all goods of whatever kind imported into the same, a duty of four and a half per cent ad valorem, for the use of us and our successors.—And that the said duty may more effectually be collected, we do hereby ordain, that all ships or vessels bound from Great Britain to any other part of the world, or from any other part of the world to Great Britain, shall in their respective voyages touch at our port of Koningsberg, there to be unladen, searched, and charged with the said duties.

"And whereas there hath been from time to time discovered in the said island of Great Britain, by our colonists there, many mines or beds of *iron-stone*; and sundry subjects of our ancient dominion, skilful in converting the said stone into metal, have in time past transported themselves thither, carrying with them and communicating that art; and the inhabitants of the said island, presuming that they had a natural right to make the best use they could of the natural productions of their country, for their own benefit, have not only built furnaces for smelting the said stone into iron, but have erected plating-forges, slitting-mills, and steel-furnaces, for the more convenient manufacturing of the same, thereby endangering a diminution of the said manufacture in our ancient dominion; we do therefore hereby farther ordain, that, from and after the date hereof, no mill or other engine for slitting or rolling of iron, or any plating-forge to work with a tilt-hammer, or any furnace for making steel, shall be erected or continued in the said island of Great Britain: and the lord lieutenant of every county in the said island is hereby commanded, on information of any such erection within his county, to order, and by force to cause the same to be abated and destroyed, as he shall answer the neglect thereof to us at his peril. But we are nevertheless graciously pleased to permit the inhabitants of the said island to transport their iron into Prussia, there to be manufactured, and to them returned, they paying our Prussian subjects for the workmanship, with all the costs of commission, freight, and risk, coming and returning; any thing herein contained to the contrary notwithstanding.

"We do not, however, think fit to extend this our indulgence to the article of *wool*; but meaning to encourage not only the manufacturing of woollen cloth, but also the raising of wool in our ancient dominions, and to prevent both, as much as may be, in our said island, we do hereby absolutely forbid the transportation of wool from thence even to the mother-country, Prussia: and that those islanders may be farther and more effectually restrained in making any advantage of their own wool, in the way of manufacture, we command, that none shall be carried out of one country into another; nor shall any worsted, bay, or woollen-yarn, cloth, says, bays, kerseys, serges, frizes, druggets, cloth-serges, shalloons, or any other drapery stuffs or woollen manufactures whatsoever, made up or mixed with wool in any of the said counties, be carried into any other county, or be water-borne even across the smallest river or creek, on penalty of forfeiture of the same, together, with the boats, carriages, horses, &c. that shall be employed in removing them.—Nevertheless, our loving subjects there are hereby permitted (if they think proper) to use all their wool as manure, for the improvement of their lands.

"And whereas the art and mystery of making *hats* hath arrived at great perfection in Prussia, and the making of hats by our remoter subjects ought to be as much as possible restrained: and forasmuch as the islanders before mentioned, being in possession of wool, beaver, and other furs, have presumptuously conceived they had a right to make some advantage thereof, by manufacturing the same into hats, to the prejudice of our domestic manufacture: we do therefore hereby strictly command and ordain, that no hats or felts whatsoever, dyed or undyed, finished or unfinished, shall be loaden or put into or upon any vessel, cart, carriage, or horse, to be transported or conveyed out of one county in the said island into another county, or to any other place whatsoever, by any person or persons whatsoever, on pain of forfeiting the same, with a penalty of five hundred pounds sterling for every offence. Nor shall any hat-maker in any of the said counties employ more than two apprentices, on penalty of five pounds sterling per month: we intending hereby that such hat-makers, being so restrained, both in the production and sale of their commodity, may find no advantage in continuing their business. But, lest the said islanders should suffer inconveniency by the want of hats, we are farther graciously pleased to permit them to send their beaver furs to Prussia, and we also permit hats made thereof to be exported from Prussia to Britain; the people thus favored

to pay all costs and charges of manufacturing, interest, commission to our merchants, insurance and freight going and returning, as in the case of iron.

"And lastly, being willing farther to favour our said colonies in Britain, we do hereby also ordain and command, that all the *thieves*, highway and street robbers, housebreakers, forgerers, murderers, s—d—tes, and villains of every denomination, who have forfeited their lives to the law in Prussia, but whom we, in our great clemency, do not think fit here to hang, shall be emptied out of our gaols into the said island of Great Britain, for the better peopling of that country.

"We flatter ourselves, that these our royal regulations and commands will be thought *just and reasonable* by our much-favoured colonists in England; the said regulations being copied from their statutes of 10 and 11 Will. III. c. 10.—5 Geo. II. c. 22.—23 Geo. II. c. 29.—4 Geo. I. c. 11. and from other equitable laws made by their parliaments, or from instructions given by their princes, or from resolutions of both houses, entered into for the good government of their own colonies in *Ireland and America*.

"And all persons in the said island are hereby cautioned, not to oppose in any wise the execution of this our edict, or any part thereof, such opposition being high-treason; of which all who are suspected shall be transported in fetters from Britain to Prussia, there to be tried and executed according to the Prussian law.

"Such is our pleasure.

"Given at Potsdam, this twenty-fifth day of the month of August, one thousand seven hundred and seventy-three, and in the thirty-third year of our reign.

"By the king, in his council.

"RECHTMÆSSIG, Sec."

Some take this edict to be merely one of the king's *jeux d'esprit*: others suppose it serious, and that he means a quarrel with England: but all here think the assertion it concludes with, "that these regulations are copied from acts of the English parliament respecting their colonies," a very injurious one; it being impossible to believe, that a people distinguished for their love

of liberty; a nation so wise, so liberal in its sentiments, so just and equitable towards its neighbours, should, from mean and injudicious views of petty immediate profit, treat its own children in a manner so arbitrary and tyrannical!

FOOTNOTES:

[116] This *intelligence extraordinary*, I believe, first appeared in the Public Advertiser. I have reprinted it from a copy which I found in the Gentleman's Magazine. B. V.

[117] *A tous presens et à venir*. ORIGINAL.

Preface by the British Editor [Dr. Franklin] to "The Votes and Proceedings of the Freeholders, and other Inhabitants of the Town of Boston, in Town-Meeting assembled according to Law (published by Order of the Town), &c^[118]."

All accounts of the discontent, so general in our colonies, have of late years been industriously smothered and concealed here, it seeming to suit the views of the American minister^[119] to have it understood, that by his great abilities, all faction was subdued, all opposition suppressed, and the whole country quieted. That the true state of affairs there may be known, and the true causes of that discontent well understood, the following piece (not the production of a private writer, but the unanimous act of a large American city) lately printed in New England, is republished here. This nation, and the other nations of Europe, may thereby learn, with more certainty, the grounds of a dissention, that possibly may, sooner or later, have consequences interesting to them all.

The colonies had, from their first settlement, been governed with more ease than perhaps can be equalled by any instance in history of dominions so distant. Their affection and respect for this country, while they were treated with kindness, produced an almost implicit obedience to the instructions of the prince, and even to acts of the British parliament, though the right of binding them by a legislature, in which they were unrepresented, was never clearly understood. That respect and affection produced a partiality in favour of every thing that was English; whence their preference of English modes and manufactures; their submission to restraints on the importation of foreign goods, which they had but little desire to use; and the monopoly we so long enjoyed of their commerce, to the great enriching of our merchants and artificers. The mistaken policy of the stamp act first disturbed this happy situation; but the flame thereby raised was soon extinguished by its repeal, and the old harmony restored, with all its concomitant advantage to our commerce. The subsequent act of another administration, which, not content with an established exclusion of foreign manufactures, began to make our own merchandize dearer to the consumers there by heavy duties, revived it again; and combinations were entered into throughout the continent, to stop trading with Britain till those

duties should be repealed. All were accordingly repealed but one—the *duty on tea*. This was reserved (professedly so) as a standing claim and exercise of the right, assumed by parliament, of laying such duties^[120]. The colonies, on this repeal, retracted their agreement, so far as related to all other goods, except that on which the duty was retained. This was trumpeted here by the minister for the colonies as a triumph; there it was considered only as a decent and equitable measure, showing a willingness to meet the mother-country in every advance towards a reconciliation; and this disposition to a good understanding was so prevalent, that possibly they might soon have relaxed in the article of tea also. But the system of commissioners of customs, officers without end, with fleets and armies for collecting and enforcing those duties, being continued; and these acting with much indiscretion and rashness (giving great and unnecessary trouble and obstruction to business, commencing unjust and vexatious suits, and harassing commerce in all its branches, while that minister kept the people in a constant state of irritation by instructions which appeared to have no other end than the gratifying his private resentment^[121]) occasioned a persevering adherence to their resolutions in that particular; and the event should be a lesson to ministers, not to risque, through pique, the obstructing any one branch of trade; since the course and connection of general business may be thereby disturbed to a degree, impossible to be foreseen or imagined. For it appears, that the colonies, finding their humble petitions to have this duty repealed were rejected and treated with contempt, and that the produce of the duty was applied to the rewarding, with undeserved salaries and pensions, every one of their enemies; the duty itself became more odious, and their resolution to starve it more vigorous and obstinate. The Dutch, the Danes, and French, took this opportunity, thus offered them by our imprudence, and began to smuggle their teas into the plantations. At first this was something difficult; but at length, as all business is improved by practice, it became easy. A coast fifteen hundred miles in length could not in all parts be guarded, even by the whole navy of England; especially where their restraining authority was by all the inhabitants deemed unconstitutional, the smuggling of course considered as patriotism. The needy wretches too, who, with small salaries, were trusted to watch the ports day and night, in all weathers, found it easier and more profitable, not only to wink, but to sleep in their beds; the merchants' pay being more generous than the king's. Other India goods also, which, by themselves,

would not have made a smuggling voyage sufficiently profitable, accompanied tea to advantage; and it is feared the cheap French silks, formerly rejected as not to the taste of the colonies, may have found their way with the wares of India, and now established themselves in the popular use and opinion.

It is supposed, that at least a million of Americans drink tea twice a day, which, at the first cost here, can scarce be reckoned at less than half-a-guinea a head per annum. This market, that, in the five years which have run on since the act passed, would have paid 2,500,000 guineas for tea alone into the coffers of the company, we have wantonly lost to foreigners. Meanwhile it is said the duties have so diminished, that the whole remittance of the last year amounted to no more than the pitiful sum of 85*l.* [\[122\]](#) for the expence of some hundred thousands, in armed ships and soldiers to support the officers. Hence the tea, and other India goods, which might have been sold in America, remain rotting in the company's warehouses [\[123\]](#); while those of foreign ports are known to be cleared by the American demand. Hence, in some degree, the company's inability to pay their bills; the sinking of their stock, by which millions of property have been annihilated; the lowering of their dividend, whereby so many must be distressed; the loss to government of the stipulated 400,000*l.* a year [\[124\]](#), which must make a proportionable reduction in our savings towards the discharge of our enormous debt: and hence in part the severe blow suffered by credit in general [\[125\]](#), to the ruin of many families; the stagnation of business in Spitalfields and at Manchester, through want of vent for their goods; with other future evils, which, as they cannot, from the numerous and secret connections in general commerce, easily be foreseen, can hardly be avoided.

FOOTNOTES:

[\[118\]](#) "Boston printed: London reprinted, and sold by J. Wilkie, in St. Paul's Church-yard. 1773."—I have given the reader *only the preface*.

It is said, that this little piece very much irritated the ministry. It was their determination, that the Americans should receive teas only from Great Britain. And accordingly the East-India company sent out large cargoes under their

protection. The colonists every where refused, either entrance, or else permission of sale, except at Boston, where, the force of government preventing more moderate measures, certain persons in disguise threw it into the sea.

The preamble of the stamp act produced the tea act; the tea act produced violence; violence, acts of parliament; acts of parliament, a revolt.

----"A little neglect," says *poor Richard*, "may breed great mischief: for want of a nail the shoe was lost; for want of a shoe the horse was lost; for want of a horse the rider was lost; being overtaken and slain by the *enemy*; all for want of a little care about a horse-shoe nail." B. V.

[119] Lord Hillsborough.—This nobleman, already first lord of trade, was introduced in 1768 into the *new-titled office* of secretary of state for the colonies. B. V.

[120] Mr. Burke tells us (in his speech in 1774) that this preambulatory tax had lost us at once the benefit of the west and of the east; had thrown open folding-doors to contraband; and would be the means of giving the profits of the colony-trade to every nation but ourselves. He adds in the same place, "It is indeed a tax of sophistry, a tax of pedantry, a tax of disputation, a tax of war and rebellion, a tax for any thing but benefit to the imposers, or satisfaction to the subject." B. V.

[121] Some of his circular letters had been criticised, and exposed by one or two of the American assemblies.

[122] "Eighty-five pounds I am assured, my lords, is the whole equivalent, we have received for all the hatred and mischief, and all the infinite losses this kingdom has suffered during that year, in her disputes with North America." See the bishop of St. Asaph's intended speech. B. V.

[123] At this time they contained many millions of pounds of tea, including the usual stock on hand. Mr. Burke, in his speech in 1774, supposes, that America might have given a vent for ten millions of pounds. This seems to have been the greater part of the whole quantity. B. V.

[124] On account of a temporary compromise of certain disputes with government. B. V.

[125] Seen in certain memorable mercantile failures in the year 1772. B. V.

TO THE CLERK OF THE COUNCIL IN WAITING.

(Copy.)

Whitehall, Dec. 3, 1773.

SIR,

The agent for the house of representatives of the province of Massachusetts Bay [Dr. Franklin] having delivered to lord Dartmouth, an address of that house to the king, signed by their speaker; complaining of the conduct of the governor [Hutchinson] and lieutenant governor [Andrew Oliver] of that province, in respect to certain private letters written by them to their correspondent in England, and praying that they may be removed from their posts in that government; his lordship hath presented the said address to his majesty, and his majesty having signified his pleasure, that the said address should be laid before his majesty in his privy council, I am directed by lord Dartmouth to transmit the same accordingly, together with a copy of the agent's letter to his lordship, accompanying the said address.

I am, sir,

Your most obedient humble servant,

(Signed)

J. POWNALL.

TO THE RIGHT HON. THE EARL OF DARTMOUTH.

(Copy.)

London, Aug. 21, 1773.

MY LORD,

I have just received from the house of representatives of the Massachusetts Bay, their address to the king, which I now inclose, and send

to your lordship, with my humble request in their behalf, that you would be pleased to present it to his majesty the first convenient opportunity.

I have the pleasure of hearing from that province by my late letters, that a sincere disposition prevails in the people there to be on good terms with the mother-country; that the assembly have declared their desire only to be put into the situation they were in before the stamp act: *They aim at no novelties*. And it is said, that having lately discovered, as they think, the authors of their grievances to be some of their own people, their resentment against Britain is thence much abated.

This good disposition of theirs (will your lordship permit me to say) may be cultivated by a favourable answer to this address, which I therefore hope your goodness will endeavour to obtain.

With the greatest respect,
I have the honour to be, my lord, &c.

B. FRANKLIN,
Agent for the House of Representatives.

THE PETITION.

TO THE KING'S MOST EXCELLENT MAJESTY.

MOST GRACIOUS SOVEREIGN,

We your majesty's loyal subjects, the representatives of your ancient colony of Massachusetts's Bay, in general court legally assembled, by virtue of your majesty's writ under the hand and seal of the governor, beg leave to lay this our humble petition before your majesty.

Nothing but the sense of duty we owe to our sovereign, and the obligation we are under to consult the peace and safety of the province, could induce us to remonstrate to your majesty [concerning] the mal-conduct of persons, who have heretofore had the confidence and esteem of this people; and whom your majesty has been pleased, from the purest motives of rendering your subjects happy, to advance to the highest places of trust and authority in the province.

Your majesty's humble petitioners, with the deepest concern and anxiety, have seen the discords and animosities which have too long subsisted between your subjects of the parent-state and those of the American colonies. And we have trembled with apprehensions, that the consequences, naturally arising therefrom, would at length prove fatal to both countries.

Permit us humbly to suggest to your majesty, that your subjects here have been inclined to believe, that the grievances which they have suffered, and still continue to suffer, have been occasioned by your majesty's ministers and principal servants being, unfortunately for us, *misinformed* in certain facts of very interesting importance to us. It is for this reason that former assemblies have, from time to time, prepared a true state of facts to be laid before your majesty; but their humble remonstrances and petitions, it is presumed, have by some means been prevented from reaching your royal hand.

Your majesty's petitioners have very lately had before them *certain papers*, from which they humbly conceive, it is most reasonable to suppose, that there has been long a conspiracy of evil men in this province, who have contemplated measures and formed a plan to advance themselves to power, and raise their own fortunes, by means destructive of the charter of the province, at the expence of the quiet of the nation, and to the annihilating of the rights and liberties of the American colonies.

And we do with all due submission to your majesty beg leave particularly to complain of the conduct of his excellency Thomas Hutchinson, Esq. governor, and the honourable Andrew Oliver, Esq. lieutenant-governor of this your majesty's province, as having a natural and efficacious tendency to interrupt and alienate the affections of your majesty, our rightful sovereign, from this your loyal province; to destroy that harmony and good-will between Great Britain and this colony, which every honest subject should strive to establish; to excite the resentment of the British administration against this province; to defeat the endeavours of our agents and friends to serve us by a fair representation of our state of facts; to prevent our humble and repeated petitions from reaching the ear of your majesty, or having their desired effect. And finally, that the said Thomas Hutchinson and Andrew Oliver have been among the chief instruments in introducing a fleet and army into this province, to establish and perpetuate their plans, whereby they have been not only greatly instrumental [in] disturbing the peace and

harmony of the government, and causing unnatural and hateful discords and animosities between the several parts of your majesty's extensive dominions; but are justly chargeable with all that corruption of morals, and all that confusion, misery, and bloodshed, which have been the natural effects of posting an army in a populous town.

Wherefore we most humbly pray, that your majesty would be pleased to remove from their posts in this government the said Thomas Hutchinson, Esquire, and Andrew Oliver, Esquire; who have, by their above-mentioned conduct, and otherwise, rendered themselves justly obnoxious to your loving subjects, and entirely lost their confidence; and place such good and faithful men in their stead, as your majesty in your wisdom shall think fit.

In the name and by order of the house of
representatives,

THOMAS CUSHING, *Speaker.*

TO THE LORDS COMMITTEE OF HIS MAJESTY'S PRIVY
COUNCIL FOR PLANTATION AFFAIRS.

THE PETITION OF ISRAEL MAUDUIT,

Humbly sheweth unto your lordships,

That having been informed, that an address, in the name of the house of representatives of his majesty's colony of Massachusetts Bay, has been presented to his majesty by Benjamin Franklin, Esquire, praying the removal of his majesty's governor and lieutenant-governor, which is appointed to be taken into consideration on Thursday next; your petitioner, on the behalf of the said governor and lieutenant governor, humbly prays, that he may be heard by counsel in relation to the same, before your lordships shall make any report on the said address.

ISRAEL MAUDUIT.

Clement's Lane, Jan. 10, 1775.

The Examination of Dr. Franklin, at the Council Chamber, Jan. 17, 1774^[127]. Present, Lord President, the Secretaries of State, and many other Lords; Dr. Franklin and Mr. Bollan; Mr. Mauduit and Mr. Wedderburn.

Dr. Franklin's Letter and the Address, Mr. Pownall's Letter, and Mr. Mauduit's Petition, were read.

Mr. Wedderburn. The address mentions certain papers: I could wish to be informed what are those papers?

Dr. Franklin. They are the letters of Mr. Hutchinson and Mr. Oliver.

Court. Have you brought them?

Dr. Franklin. No, but here are attested copies.

Court. Do you mean to found a charge upon them? if you do, you must produce the letters.

Dr. Franklin. These copies are attested by several gentlemen at Boston, and a notary public.

Mr. Wedderburn. My lords, we shall not take advantage of any imperfection in the proof. We admit that the letters are Mr. Hutchinson's and Mr. Oliver's hand writing; reserving to ourselves the right of inquiring how they were obtained.

Dr. Franklin. I did not expect that counsel would have been employed on this occasion.

Court. Had you not notice sent you of Mr. Mauduit's having petitioned to be heard by counsel on behalf of the governor and lieutenant governor.

Dr. Franklin. I did receive such notice; but I thought this had been a matter of *politics*, not of law, and have not brought my counsel.

Court. Where a charge is brought, the parties have a right to be heard by counsel or not, as they choose.

Mr. Mauduit. My lords, I am not a native of that country, as these gentlemen are. I know well Dr. Franklin's abilities, and wish to put the

defence of my friends more upon a parity with the attack; he will not therefore wonder that I choose to appear before your lordships with the assistance of counsel. My friends, in their letters to me, have desired (if any proceedings, as they say, should be had upon this address) that they may have a hearing in their own justification, that their innocence may be fully cleared, and their honour vindicated, and have made provision accordingly. I do not think myself at liberty therefore to give up the assistance of my counsel, in defending them against this unjust accusation.

Court. Dr. Franklin may have the assistance of counsel, or go on without it, as he shall choose.

Dr. Franklin. I desire to have counsel.

Court. What time do you want?

Dr. Franklin. Three weeks.

Ordered that the further proceedings be on Saturday 29th instant^[128].

To the Printer of the Public Advertiser.^[129]

SIR,

Finding that two gentlemen have been unfortunately engaged in a duel about a transaction and its circumstances, of which both of them are totally ignorant and innocent, I think it incumbent upon me to declare (for the prevention of farther mischief, as far as such a declaration may contribute to prevent it) that I alone am the person, who obtained and transmitted to Boston the letters in question. Mr. W. could not communicate them, because they were never in his possession; and for the same reason they could not be taken from him by Mr. T. They were not of the nature of *private* letters between friends. They were written by public officers to persons in public stations, on public affairs, and intended to procure public measures; they were therefore handed to other public persons, who might be influenced by them to produce those measures. Their tendency was to incense the mother-country against her colonies, and, by the steps recommended, to widen the breach, which they effected. The chief caution expressed with regard to

privacy was, to keep their contents from the colony agents, who, the writers apprehended, might return them, or copies of them, to America. That apprehension was, it seems, well founded, for the first agent who laid his hands on them thought it his duty to transmit them to his constituents^[130].

Craven Street, Dec. 25, 1773.

B. FRANKLIN,

*Agent for the House of Representatives
of the Massachusetts Bay.*

FOOTNOTES:

[126] Governor Hutchinson, lieutenant-governor Andrew Oliver, Charles Paxton, Esq. Nathaniel Rogers, Esq. and Mr. G. Roome, having sent from Boston certain representations and informations to Thomas Whately, Esq. member of parliament, private secretary to Mr. George Grenville (the father of the stamp act) when in office, and afterwards one of the lords of trade; these letters were, by a particular channel, conveyed back to Boston. The assembly of the province were so much exasperated, that they returned home attested copies of the letters, accompanied with a petition and remonstrance, for the removal of governor Hutchinson, and lieutenant-governor Andrew Oliver, from their posts. The council of the province likewise, on their part, entered into thirteen resolves, in tendency and import similar to the petition of the assembly; five of which resolves were unanimous, and only one of them had so many as three dissentients. In consequence of the assembly's petition, the above proceedings and examination took place.

Dr. Franklin having naturally a large share in these transactions, made still larger by the impolitic and indecent persecution of his character, I have exhibited the whole more at length, than I should otherwise have thought proper. B. V.

[127] The editor has taken this examination from Mr. Mauduit's copy of the Letters of Governor Hutchinson, &c. second edition, 1774, p. 17. He has Mr. Mauduit's authority for supposing it faithfully represented. B. V.

[128] The privy council accordingly met on the 29th of January, 1774, when Mr. Dunning and Mr. John Lee appeared as counsel for the assembly, and Mr. Wedderburn as counsel for the governor and lieutenant governor. Mr. Wedderburn was very long in his answer, which chiefly related to the mode of obtaining and sending away Mr. Whately's letters; and spoke of Dr. Franklin in terms of abuse, which never escape from one gentleman towards another. In the event, the committee of the privy council made a report, in which was expressed the following opinion: "The lords of the committee do agree humbly to report, as their opinion to your majesty, that the petition is founded upon resolutions

formed on false and erroneous allegations; and is groundless, vexatious, and scandalous, and calculated only for the seditious purposes of keeping up a spirit of clamour and discontent in the said province. And the lords of the committee do further humbly report to your majesty, that nothing has been laid before them which does or can, in their opinion, in any manner, or in any degree, impeach the honour, integrity, or conduct of the said governor or lieutenant-governor; and their lordships are humbly of opinion, that the said petition ought to be dismissed."

Feb. 7th, 1774. "His majesty, taking the said report into consideration, was pleased, with the advice of his privy-council, to approve thereof; and to order, that the said petition of the house of representatives of the province of Massachusetts's Bay be dismissed the board—as groundless, vexatious, and scandalous; and calculated only for the seditious purpose of keeping up a spirit of clamour and discontent in the said province."—A former petition against governor Bernard met with a dismissal couched in similar terms. B. V.

[129] Some letters had passed in the public prints between Mr. Thomas Whately's brother and Mr. John Temple, concerning the manner in which the letters of Governor Hutchinson &c. had escaped from among the papers of Mr. Thomas Whately, at this time deceased.

The one gentleman wished to avoid the charge of having given them, the other of having taken them. At length the dispute became so personal and pointed, that Mr. Temple thought it necessary to call the brother into the field. The letter of provocation appeared in the morning, and the parties met in the afternoon. Dr. Franklin, was not then in town; it was after some interval that he received the intelligence. What had passed he could not foresee; he endeavoured to prevent what still might follow. B. V.

[130] It was in consequence of this letter that Mr. Wedderburn ventured to make the most odious personal applications. Mr. Mauduit has prudently omitted part of them in his account of the proceedings before the privy-council. They are given here altogether however (as well as they could be collected) to mark the politics of the times, and the nature of the censures passed in England upon Dr. Franklin's character.

"The letters could not have come to Dr. Franklin," said Mr. Wedderburn, "by fair means. The writers did not give them to him, nor yet did the deceased correspondent, who, from our intimacy, would otherwise have told me of it: nothing then will acquit Dr. Franklin of the charge of obtaining them by fraudulent or corrupt means, for the most malignant of purposes; unless he stole them, from the person who stole them. This argument is irrefragable."——

"I hope, my lords, you will mark [and brand] the man, for the honour of this country, of Europe, and of mankind. Private correspondence has hitherto been held sacred in times of the greatest party rage, not only in politics but religion."—"He has forfeited all the respect of societies and of men. Into what companies will he hereafter go with an unembarrassed face, or the honest intrepidity of virtue. Men will watch him with a jealous eye, they will hide their papers from him, and lock up their escrutoires. He will henceforth esteem it a libel to be called a *man of letters*, *homo trium* [131] *literarum*!

"But he not only took away the letters from one brother, but kept himself concealed till he nearly occasioned the murder of the other. It is impossible to read his account, expressive of the coolest and most deliberate malice, without horror." [*Here he read the letter above, Dr. Franklin being all the time present.*]—Amidst these tragical events, of one person nearly murdered, of another answerable for the issue, of a worthy governor hurt in his dearest interests, the fate of America in suspense; here is a man, who, with the utmost insensibility of remorse, stands up and avows himself the author of all. I can compare it only to Zanga in Dr. Young's *Revenge*.^[132]

"Know then 'twas—I:
I forged the letter, I disposed the picture;
I hated, I despised, and I destroy.

"I ask, my lords, whether the revengeful temper, attributed by poetic fiction only to the bloody African, is not surpassed by the coolness and apathy of the wily American?"

These pleadings for a time worked great effect: the lords assented, the town was convinced, Dr. Franklin was disgraced^[133], and Mr. Wedderburn seemed in the road for every kind of advancement.—Unfortunately for Mr. Wedderburn, the events of the war did not correspond with his systems. Unfortunately too for his "irrefragable argument," Dr. Franklin afterwards took an oath in chancery^[134], that at the time that he transmitted the letters he was ignorant of the party to whom they had been addressed, having himself received them from a third person, and for the express purpose of their being conveyed to America. Unfortunately also for Mr. Wedderburn's "worthy governor," that governor himself, *before* the arrival of Dr Franklin's packet in Boston, sent over one of Dr. Franklin's own "private" letters to England, expressing some little coyness indeed upon the occasion, but desiring secrecy, lest he should be prevented procuring *more* useful intelligence from the same source^[135]. Whether Mr. Wedderburn in his speech intended to draw a particular case and portraiture, for the purpose only of injuring Dr. Franklin, or meant that his language and epithets should apply generally to all, whether friends or foes, whose practice should be found similar to it, is a matter that must be left to be adjusted between governor Hutchinson and Mr. Wedderburn.

But to return to Dr. Franklin. It was not singular perhaps, that, as a man of honour, he should surrender his name to public scrutiny in order to prevent mischief to others, and yet not betray his coadjutor (even to the present moment) to relieve his own fame from the severest obloquy; but perhaps it belonged to few besides Dr. Franklin, to possess mildness and magnanimity enough to refrain from intemperate expressions and measures against Mr. Wedderburn and his supporters, after all that had passed. B. V.

^[131] i. e. Fur (or *thief*).

^[132] Act Vth.

^[133] He was dismissed from his place in the post-office.

^[134] A copy of the proceedings in chancery has been in my possession, but being at present mislaid I speak only from memory here.

[\[135\]](#) See the Remembrancer for the year 1776, part 2d. p. 61 col. 1st, and 2d.

Rules for reducing a Great Empire to a small one, presented to a late Minister, when he entered upon his Administration.^[136]

An ancient sage valued himself upon this, that though he could not fiddle, he knew how to make a great city of a little one. The science, that I, a modern, simpleton, am about to communicate, is the very reverse.

I address myself to all ministers, who have the management of extensive dominions, which, from their very greatness, are become troublesome to govern—because the multiplicity of their affairs leaves no time for fiddling.

I. In the first place, gentlemen, you are to consider, that a great empire, like a great cake, is most easily diminished at the edges. Turn your attention therefore first to your *remotest* provinces; that, as you get rid of them, the next may follow in order.

II. That the possibility of this separation may always exist, take special care the provinces are *never incorporated with the mother-country*; that they do not enjoy the same common rights, the same privileges in commerce, and that they are governed by severer laws, all of your enacting, without allowing them any share in the choice of the legislators. By carefully making and preserving such distinctions, you will (to keep to my simile of the cake) act like a wise gingerbread-baker; who, to facilitate a division, cuts his dough half through in those places, where, when baked, he would have it broken to pieces.

III. Those remote provinces have perhaps been acquired, purchased, or conquered, at the sole expence of the settlers or their ancestors, without the aid of the mother-country. If this should happen to increase her strength, by their growing numbers, ready to join in her wars; her commerce, by their growing demand for her manufactures; or her naval power, by greater employment for her ships and seamen, they may probably suppose some merit in this, and that it entitles them to some favour: you are therefore to *forget it all, or resent it*, as if they had done you injury. If they happen to be

zealous whigs, friends of liberty, nurtured in revolution principles; remember all that to their prejudice, and contrive to punish it: for such principles, after a revolution is thoroughly established, are of no more use; they are even odious and abominable.

IV. However peaceably your colonies have submitted to your government, shown their affection to your interests, and patiently borne their grievances, you are to suppose them *always inclined to revolt*, and treat them accordingly. Quarter troops among them, who, by their insolence, may provoke the rising of mobs, and by their bullets and bayonets suppress them. By this means, like the husband who uses his wife ill from suspicion, you may in time convert your suspicions into realities.

V. Remote provinces must have governors and judges, to represent the royal person and execute every where the delegated parts of his office and authority. You, ministers, know, that much of the strength of government depends on the opinion of the people, and much of that opinion on the *choice of rulers* placed immediately over them. If you send them wise and good men for governors, who study the interest of the colonists, and advance their prosperity; they will think their king wise and good, and that he wishes the welfare of his subjects. If you send them learned and upright men for judges, they will think him a lover of justice. This may attach your provinces more to his government. You are therefore to be careful who you recommend for those offices.—If you can find prodigals, who have ruined their fortunes, broken gamesters or stock-jobbers, these may do well as governors, for they will probably be rapacious, and provoke the people by their extortions. Wrangling proctors and pettyfogging lawyers too are not amiss, for they will be for ever disputing and quarrelling with their little parliaments. If withal they should be ignorant, wrong-headed and insolent, so much the better. Attorneys clerks and Newgate solicitors will do for chief justices, especially if they hold their places during your pleasure:—and all will contribute to impress those ideas of your government, that are proper for a people you would wish to renounce it.

VI. To confirm these impressions, and strike them deeper, whenever the injured come to the capital with complaints of mal-administration, oppression, or injustice, *punish such suitors* with long delay, enormous expence, and a final judgment in favour of the oppressor. This will have an admirable effect every way. The trouble of future complaints will be

prevented, and governors and judges will be encouraged to farther acts of oppression and injustice, and thence the people may become more disaffected, and at length desperate.

VII. When such governors have crammed their coffers, and made themselves so odious to the people, that they can no longer remain among them with safety to their persons, *recal and reward* them with pensions. You may make them baronets too, if that respectable order should not think fit to resent it. All will contribute to encourage new governors in the same practice, and make the supreme government detestable.

VIII. If, when you are engaged in war, your colonies should vie in liberal aids of men and money against the common enemy upon your simple requisition, and give far beyond their abilities,—reflect, that a penny, taken from them by your power, is more honourable to you, than a pound presented by their benevolence; *despise therefore their voluntary grants*, and resolve to harass them with *novel taxes*.—They will probably complain to your parliament, that they are taxed by a body in which they have no representative, and that this is contrary to common right. They will petition for redress. Let the parliament flout their claims, reject their petitions, refuse even to suffer the reading of them, and treat the petitioners with the utmost contempt. Nothing can have a better effect in producing the alienation proposed; for though many can forgive injuries, none ever forgave contempt.

IX. In laying these taxes, *never regard the heavy burthens* those remote people already undergo, in defending their own frontiers, supporting their own provincial government, making new roads, building bridges, churches, and other public edifices, which in old countries have been done to your hands, by your ancestors, but which occasion constant calls and demands on the purses of a new people.—Forget the restraint you lay on their trade for your own benefit, and the advantage a monopoly of this trade gives your exacting merchants. Think nothing of the wealth those merchants and your manufacturers acquire by the colony commerce, their increased ability thereby to pay taxes at home, their accumulating, in the price of their commodities, most of those taxes, and so levying them from their consuming customers: all this, and the employment and support of thousands of your poor by the colonists, you are entirely to forget. But remember to make your arbitrary tax more grievous to your provinces, by

public declarations, importing, that your power of taxing them has *no limits*, so that when you take from them without their consent a shilling in the pound, you have a clear right to the other nineteen. This will probably weaken every idea of security in their property, and convince them, that under such a government they have nothing they can call their own; which can scarce fail of producing the happiest consequences!

X. Possibly indeed some of them might still comfort themselves and say, "though we have no property, we have yet something left that is valuable, we have constitutional *liberty, both of person and of conscience*. This king, these lords, and these commons, who it seems are too remote from us to know us and feel for us, cannot take from us our habeas corpus right, or our right of trial by a jury of our neighbours: they cannot deprive us of the exercise of our religion, alter our ecclesiastical constitution, and compel us to be papists, if they please, or Mahometans." To annihilate this comfort, begin by laws to perplex their commerce with infinite regulations, impossible to be remembered and observed: ordain seizures of their property for every failure, take away the trial of such property by jury, and give it to arbitrary judges of your own appointing, and of the lowest characters in the country, whose salaries and emoluments are to arise out of the duties or condemnations, and whose appointments are during pleasure. Then let there be a formal declaration of both houses, that opposition to your edicts is treason, and that persons suspected of treason in the provinces may, according to some obsolete law, be seized and sent to the metropolis of the empire for trial; and pass an act, that those there charged with certain other offences shall be sent away in chains from their friends and country, to be tried in the same manner for felony. Then erect a new court of inquisition among them, accompanied by an armed force, with instructions to transport all such suspected persons, to be ruined by the expence, if they bring over evidences to prove their innocence, or be found guilty and hanged, if they cannot afford it. And lest the people should think you cannot possibly go any farther, pass another solemn declaratory act, "that king, lords, and commons had, have, and of right ought to have, full power and authority to make statutes of sufficient force and validity to bind the unrepresented provinces *in all cases whatsoever*." This will include spiritual with temporal, and taken together must operate wonderfully to your purpose, by convincing them, that they are at present under a power, something like that spoken of in the Scriptures, which can not only kill their

bodies, but damn their souls to all eternity, by compelling them, if it pleases, to worship the devil.

XI. To make your taxes more odious, and more likely to procure resistance, send from the capital a *board of officers* to superintend the collection, *composed of the most indiscreet*, ill-bred, and insolent you can find. Let these have large salaries out of the extorted revenue, and live in open grating luxury upon the sweat and blood of the industrious, whom they are to worry continually with groundless and expensive prosecutions, before the above-mentioned arbitrary revenue-judges; all at the cost of the party prosecuted, though acquitted, because the king is to pay no costs. Let these men, by your order, be exempted from all the common taxes and burthens of the province, though they and their property are protected by its laws. If any revenue officers are suspected of the least tenderness for the people, discard them. If others are justly complained of, protect and reward them. If any of the under officers behave so as to provoke the people to drub them, promote those to better offices: this will encourage others to procure for themselves such profitable drubbings, by multiplying and enlarging such provocations, and all will work towards the end you aim at.

XII. Another way to make your tax odious is, to *misapply the produce of it*. If it was originally appropriated for the defence of the provinces, and the better support of government, and the administration of justice, where it may be necessary; then apply none of it to that defence, but bestow it, where it is not necessary, in augmenting salaries or pensions to every governor, who has distinguished himself by his enmity to the people, and by calumniating them to their sovereign. This will make them pay it more unwillingly, and be more apt to quarrel with those that collect it, and those that imposed it, who will quarrel again with them, and all shall contribute to your own purpose, of making them weary of your government.

XIII. If the people of any province have been accustomed to *support their own governors and judges* to satisfaction, you are to apprehend, that such governors and judges may be thereby influenced to treat the people kindly, and to do them justice. This is another reason for applying part of that revenue in larger salaries to such governors and judges, given, as their commissions are, during *your* pleasure only, forbidding them to take any salaries from their provinces; that thus the people may no longer hope any kindness from their governors, or (in crown cases) any justice from their

judges. And as the money, thus misapplied in one province, is extorted from all, probably all will resent the misapplication.

XIV. If the parliaments of your provinces should dare to claim rights, or complain of your administration, order them to be harassed with *repeated dissolutions*. If the same men are continually returned by new elections, adjourn their meetings to some country village, where they cannot be accommodated, and there keep them during pleasure; for this, you know, is your prerogative, and an excellent one it is, as you may manage it, to promote discontents among the people, diminish their respect, and increase their disaffection.

XV. Convert the brave honest officers of your *navy* into pimping tide-waiters and colony officers of the *customs*. Let those, who in time of war fought gallantly in defence of the commerce of their countrymen, in peace be taught to prey upon it. Let them learn to be corrupted by great and real smugglers; but (to show their diligence) scour with armed boats every bay, harbour, river, creek, cove or nook, throughout the coast of your colonies; stop and detain every coaster, every wood-boat, every fisherman, tumble their cargoes and even their ballast inside out, and upside down; and if a pennyworth of pins is found un-entered, let the whole be seized and confiscated. Thus shall the trade of your colonists suffer more from their friends in time of peace, than it did from their enemies in war. Then let these boats' crews land upon every farm in their way, rob their orchards, steal their pigs and poultry, and insult the inhabitants. If the injured and exasperated farmers, unable to procure other justice, should attack the aggressors, drub them, and burn their boats, you are to call this *high treason and rebellion*, order fleets and armies into their country, and threaten to carry all the offenders three thousand miles to be hanged, drawn, and quartered.—O! this will work admirably!

XVI. If you are told of *discontents* in your colonies, never believe that they are general, or that you have given occasion for them; therefore do not think of applying any remedy, or of changing any offensive measure. Redress no grievance, lest they should be encouraged to demand the redress of some other grievance. Grant no request, that is just and reasonable, lest they should make another, that is unreasonable. Take all your informations of the state of the colonies from your governors and officers in enmity with them. Encourage and reward these leasing-makers, secrete their lying

accusations, lest they should be confuted, but act upon them as the clearest evidence; and believe nothing you hear from the friends of the people. Suppose all *their* complaints to be invented and promoted by a few factious demagogues, whom if you could catch and hang, all would be quiet. Catch and hang a few of them accordingly, and the blood of the martyrs shall work miracles in favour of your purpose^[137].

XVII. If you see *rival nations* rejoicing at the prospect of your disunion with your provinces, and endeavouring to promote it, if they translate, publish and applaud all the complaints of your discontented colonists, at the same time privately stimulating you to severer measures, let not that alarm or offend you. Why should it? since you all mean the same thing?

XVIII. If any colony should *at their own charge erect a fortress*, to secure their *port* against the fleets of a foreign enemy, get your governor to betray that fortress into your hands. Never think of paying what it cost the country, for that would look, at least, like some regard for justice; but turn it into a citadel, to awe the inhabitants and curb their commerce. If they should have lodged in such fortress the very arms they bought and used to aid you in your conquests, seize them all; it will provoke like ingratitude added to robbery. One admirable effect of these operations will be, to discourage every other colony from erecting such defences, and so their and your enemies may more easily invade them, to the great disgrace of your government, and of course the furtherance of your project.

XIX. Send armies into their country, under pretence of protecting the inhabitants; but, instead of garrisoning the forts on their frontiers with those troops, to prevent incursions, demolish those forts, and order the troops into the heart of the country, that the savages may be encouraged to attack the frontiers^[138], and that the troops may be protected by the inhabitants: this will seem to proceed from your *ill-will or your ignorance*, and contribute farther to produce and strengthen an opinion among them, that you are no longer fit to govern them^[139].

XX. Lastly, invest the *general of your army in the provinces* with great and unconstitutional powers, and free him from the controul of even your own civil governors. Let him have troops enow under his command, with all the fortresses in his possession, and who knows but (like some provincial generals in the Roman empire, and encouraged by the universal

discontent you have produced) he may take it into his head to set up for himself? If he should, and you have carefully practised these few excellent rules of mine, take my word for it, all the provinces will immediately join him—and you will that day (if you have not done it sooner) get rid of the trouble of governing them, and all the plagues attending their commerce and connection from thenceforth and for ever.

FOOTNOTES:

[136] These rules first appeared in a London newspaper about the beginning of the year 1774, and have several times since been introduced into our public prints.—The minister alluded to is supposed to be the Earl of Hillsborough.

"The causes and motions of seditions (says Lord Bacon) are, innovation in religion, taxes, alteration of laws and customs, breaking of privileges, general oppression, advancement of unworthy persons, strangers, dearths, disbanded soldiers, factions grown desperate, and whatsoever in offending people joineth and knitteth them in a common cause." B. V.

[137] One of the American writers affirms, "That there has not been a single instance in which *they* have complained, without being rebuked, or in which they have been complained *against*, without being punished."—A fundamental mistake in the minister occasioned this. Every individual in New England (the peccant country) was held a coward or a knave, and the disorders, which spread abroad there, were treated as the result of the *too great lenity* of Britain! By the aid of this short and benevolent rule, judgment was ever wisely predetermined, to the shutting out redress on the one hand, and inforcing every rigour of punishment on the other. B. V.

[138] I am not versed in Indian affairs, but I find, that in April, 1773, the assembled chiefs of the western nations told one of our Indian agents, "that they remembered their father, the king of Great Britain's message, delivered to them last fall, of demolishing Fort Pittsburg (on the Ohio) and removing the soldiers with their sharp-edged weapons out of the country:—this gave them great pleasure, as it was a strong proof of his paternal kindness towards them." (See Considerations on the Agreement with Mr. T. Walpole for Lands upon the Ohio, p. 9). This is general history: I attempt no application of facts, personally invidious. B. V.

[139] As the reader may be inclined to divide his belief between the wisdom of ministry and the candor and veracity of Dr. Franklin, I shall inform him that two contrary objections may be made to the truth of this representation. The first is, that the conduct of Great Britain is made *too* absurd for possibility, and the second, that it is not made absurd *enough* for fact. If we consider that this piece does not include the measures subsequent to 1773, the latter difficulty is easily set aside. The former I can only solve by the many instances in history, where

the infatuation of individuals has brought the heaviest calamities upon nations.
B. V.

State of America on Dr. Franklin's Arrival there.

Philadelphia, May 16, 1775.

DEAR FRIEND^[140],

You will have heard before this reaches you, of a march stolen by the regulars into the country by night, and of their *expedition* back again. They retreated 20 miles in [6] hours.

The governor had called the assembly to propose Lord North's pacific plan, but, before the time of their meeting, began cutting of throats.—You know it was said he carried the sword in one hand, and the olive branch in the other; and it seems he chose to give them a taste of the sword first.

He is doubling his fortifications at Boston, and hopes to secure his troops till succour arrives. The place indeed is naturally so defensible, that I think them in no danger.

All America is exasperated by his conduct, and more firmly united than ever. The breach between the two countries is grown wider, and in danger of becoming irreparable.

I had a passage of six weeks, the weather constantly so moderate that a London wherry might have accompanied us all the way. I got home in the evening, and the next morning was unanimously chosen by the assembly a delegate to the congress, now sitting.

In coming over, I made a valuable philosophical discovery, which I shall communicate to you when I can get a little time. At present am extremely hurried.

* * * * *

Yours most affectionately,

B. FRANKLIN.

FOOTNOTES:

[\[140\]](#) I run much risque in the publication of the three following letters[\[141\]](#); but I think they contain such valuable facts, and show so well the nature of Dr. Franklin's temper, that I ought to encounter some difficulty, rather than suffer them to be lost. B. V.

[\[141\]](#) The other two letters will be found in the order of their dates, July 7, and Oct. 3, 1775. *Editor.*

Forasmuch as the enemies of America, in the parliament of Great Britain, to render us odious to the nation, and give an ill impression of us in the minds of other European powers, have represented us as unjust and ungrateful in the highest degree; asserting on every occasion, that the colonies were settled at the expence of Britain; that they were, at the expence of the same, protected in their infancy; that they now ungratefully and unjustly refuse to contribute to their own protection, and the common defence of the nation; that they aim at independence; that they intend an abolition of the navigation acts; and that they are fraudulent in their commercial dealings, and purpose to cheat their creditors in Britain, by avoiding the payment of their just debts:—

[And] as, by frequent repetition, these groundless assertions and malicious calumnies may, if not contradicted and refuted, obtain farther credit, and be injurious throughout Europe to the reputation and interest of the confederate colonies, it seems proper and necessary to examine them in our own just vindication.

With regard to the first, *that the colonies were settled at the expence of Britain*, it is a known fact, that none of the twelve united colonies were settled, or even discovered, at the expence of England. Henry the VIIth indeed granted a commission to Sebastian Cabot, a Venetian, and his sons, to sail into the western seas for the discovery of new countries; but it was to be "*suis eorum propriis sumptibus et expensis*," at their *own* costs and charges^[143]. They discovered, but soon slighted and neglected, these northern territories; which were, after more than a hundred years dereliction, purchased of the natives, and settled at the charge and by the labour of private men and bodies of men, our ancestors, who came over hither for that purpose. But our adversaries have never been able to produce any record, that ever the *parliament* or government of England was at the smallest expence on these accounts: on the contrary, there exists on the journals of parliament a solemn declaration in 1642, (only twenty-two years after the first settlement of the Massachusetts, when, if such expence had

ever been incurred, some of the members must have known and remembered it) "That these colonies had been planted and established *without any expence to the state.*^[144]" *New-York* is the only colony in the founding of which England can pretend to have been at any expence, and that was only the charge of a small armament to take it from the Dutch, who planted it. But to retain this colony at peace, another at that time, full as valuable, planted by private countrymen of *ours*, was given up by the crown to the Dutch in exchange, viz. Surinam, now a wealthy sugar-colony in Guiana, and which, but for that cession, might still have remained in our possession. Of late, indeed, Britain has been at some expence in planting two colonies, *Georgia*^[145] and *Nova Scotia*; but those are not in our confederacy; and the expence she has been at in their name, has chiefly been in grants of sums unnecessarily large, by way of salaries to officers sent from England, and in jobs to friends, whereby dependants might be provided for; those excessive grants not being requisite to the welfare and good government of the colonies; which good government (as experience in many instances of other colonies has taught us) may be much more frugally, and full as effectually provided for, and supported.

With regard to the second assertion, *that these colonies were protected in their infant state by England*, it is a notorious fact, that in none of the many wars with the Indian natives, sustained by our infant settlements for a century after our first arrival, were ever any troops or forces of any kind sent from England to assist us; nor were any forts built at her expence to secure our sea-ports from foreign invaders; nor any ships of war sent to protect our trade, till many years after our first settlement, when our commerce became an object of revenue, or of advantage to British merchants, and then it was thought necessary to have a frigate in some of our ports, during peace, to give weight to the authority of custom-house officers, who were to restrain that commerce for the benefit of England. Our own arms, with our poverty, and the care of a kind providence, were all this time our only protection, while we were neglected by the English government; which either thought us not worth its care, or, having no good will to some of us, on account of our different sentiments in religion and politics, was indifferent what became of us. On the other hand, the colonies have not been wanting to do what they could in every war for annoying the enemies of Britain. They formerly assisted her in the conquest of Nova

Scotia. In the war before last they took Louisbourg, and put it into her hands. She made her peace with that strong fortress, by restoring it to France, greatly to their detriment. In the last war, it is true, Britain sent a fleet and army, who acted with an equal army of ours, in the reduction of Canada; and perhaps thereby did more for us, than we in the preceding wars had done for her. Let it be remembered however, that she rejected the plan we formed in the congress at Albany, in 1754, for our own defence, by an union of the colonies; an union she was jealous of, and therefore chose to send her own forces; otherwise her aid to protect us was not wanted. And from our first settlement to that time, her military operations in our favour were small, compared with the advantages she drew from her exclusive commerce with us. We are however willing to give full weight to this obligation; and as we are daily growing stronger, and our assistance to her becomes of more importance, we should with pleasure embrace the first opportunity of showing our gratitude, by returning the favour in kind. But when Britain values herself as affording us protection, we desire it may be considered, that we have followed *her* in all *her* wars, and joined with her at our own expence against all she thought fit to quarrel with. This she has required of us, and would never permit us to keep peace with any power she declared her enemy, though by separate treaties we might well have done it. Under such circumstances, when, at her instance, we made nations our enemies, whom we might otherwise have retained our friends; we submit it to the common sense of mankind, whether her protection of us in these wars was not our *just due*, and to be claimed of *right*, instead of being received as a *favour*? And whether, when all the parts of an empire exert themselves to the utmost in their common defence, and in annoying the common enemy, it is not as well the *parts* that protect the *whole*, as the *whole* that protects the *parts*? The protection then has been proportionably mutual. And whenever the time shall come, that our abilities may as far exceed hers, as hers have exceeded ours, we hope we shall be reasonable enough to rest satisfied with her proportionable exertions, and not think we do too much for a part of the empire, when that part does as much as it can for the whole.

The charge against us, *that we refuse to contribute to our own protection*, appears from the above to be groundless: but we farther declare it to be absolutely false; for it is well known, that we ever held it as our duty to grant aids to the crown, upon requisition, towards carrying on its wars; which duty we have cheerfully complied with, to the utmost of our abilities;

insomuch that frequent and grateful acknowledgments thereof by king and parliament appear on their records^[146]. But as Britain has enjoyed a most gainful monopoly of our commerce, the same, with our maintaining the dignity of the king's representative in each colony, and all our own separate establishments of government, civil and military, has ever hitherto been deemed an equivalent for such aids, as might otherwise be expected from us in time of peace. And we hereby declare, that on a reconciliation with Britain, we shall *not only continue to grant aids in time of war*, as aforesaid; but, whenever she shall think fit to abolish her monopoly, and give us the same privileges of trade as Scotland received at the union, and allow us a free commerce with all the rest of the world, we shall willingly agree (and we doubt not it will be ratified by our constituents) to *give and pay* into the sinking fund [100,000*l.*] sterling per annum for the term of one hundred years, which, duly, faithfully, and inviolably applied to that purpose, is demonstrably more than sufficient to extinguish *all her present national* debt, since it will in that time amount, at legal British interest, to more than 230,000,000*l.*^[147]

But if Britain does not think fit to accept this proposition, we, in order to remove her groundless jealousies, *that we aim at independence, and an abolition of the navigation act*, (which hath in truth never been our intention) and to avoid all future disputes about the right of making that and other acts for regulating our commerce, do hereby declare ourselves ready and willing to enter into a *covenant with Britain*, that she shall fully possess, enjoy, and exercise that right, for an hundred years to come, the same being *bonâ fide* used for the common benefit; and in case of such agreement, that every assembly be advised by us, to confirm it solemnly, by laws of their own, which, once made, cannot be repealed without the assent of the crown.

The last charge, *that we are dishonest traders, and aim at defrauding our creditors in Britain*, is sufficiently and authentically refuted by the solemn declarations of the British merchants to parliament, (both at the time of the stamp-act and in the last session) who bore ample testimony to the general good faith and fair dealing of the Americans, and declared their confidence in our integrity, for which we refer to their petitions on the journals of the house of commons. And we presume we may safely call on the body of the British tradesmen, who have had experience of both, to say, whether they

have not received much more punctual payment from us than they generally have from the members of their own two houses of parliament.

On the whole of the above it appears, that the charge of *ingratitude* towards the mother country, brought with so much confidence against the colonies, is totally without foundation; and that there is much more reason for retorting that charge on Britain, who not only never contributes any aid, nor affords, by an exclusive commerce, any advantages to Saxony, *her* mother country; but no longer since than in the last war, without the least provocation, subsidized the king of Prussia while he ravaged that *mother country*, and carried fire and sword into its capital, the fine city of Dresden. An example we hope no provocation will induce us to imitate.

FOOTNOTES:

[142] The following paper was drawn up in a committee of congress, June 25, 1775, but does not appear on their minutes, a severe act of parliament, which arrived about that time, having determined them not to give the sum proposed in it.—[It was first printed in the Public Advertiser for July 18, 1777. B. V.]

[143] See the Commission in the Appendix to Pownall's Administration of the Colonies. Edit. 1775.

[144] "Veneris, 10 March, 1642. Whereas the plantations in New England have, by the blessing of the Almighty, had good and prosperous success, *without any public charge to this state*, and are now likely to prove very happy for the propagation of the gospel in those parts, and very beneficial and commodious to this kingdom and nation: the commons, now assembled in parliament, &c. &c. &c." See Governor Hutchinson's History. B. V.

[145] Georgia has since acceded, July, 1775.

[146] Supposed to allude to certain passages in the Journals of the house of commons on the 4th of April, 1748, 28th January, 1756, 3d February, 1756, 16th and 19th of May, 1757, 1st of June, 1758, 26th and 30th of April, 1759, 26th and 31st of March, and 28th of April, 1760, 9th and 20th January, 1761, 22d and 26th January, 1762, and 14th and 17th March, 1763. B. V.

[147] See Dr. Price's Appeal on the National Debt. B. V.

Philadelphia, July 5, 1775.

MR. STRAHAN,

You are a member of that parliament, and have formed part of that majority, which has condemned my native country to destruction.

You have begun to burn our towns, and to destroy their inhabitants!

Look at your hands!—they are stained with the blood of your relations and your acquaintances.

You and I were long friends; you are at present my enemy, and I am yours.

B. FRANKLIN.

FOOTNOTE:

^[148] This letter appeared, shortly after the period of its date, in most of the public papers. We extract it from the *Gentleman's Magazine*. *Editor*.

Conciliation hopeless from the Conduct of Great Britain to America.

Philadelphia, July 7, 1775.

DEAR FRIEND^[149],

* * * * *

The congress met at a time when all minds were so exasperated by the perfidy of general Gage, and his attack on the country people, that propositions of attempting an accomodation were not much relished; and it has been with difficulty that we have carried another humble petition to the crown, to give Britain one more chance, one opportunity more of recovering the friendship of the colonies; which however I think she has not sense enough to embrace, and so I conclude she has lost them for ever.

She has begun to burn our sea-port towns; secure, I suppose, that we shall never be able to return the outrage in kind. She may doubtless destroy them all; but if she wishes to recover our commerce, are these the probable means? She must certainly be distracted; for no tradesman out of Bedlam ever thought of encreasing the number of his customers by knocking them [on] the head; or of enabling them to pay their debts by burning their houses.

If she wishes to have us subjects and that we should submit to her as our compound sovereign, she is now giving us such miserable specimens of her government, that we shall ever detest and avoid it, as a complication of robbery, murder, famine, fire and pestilence.

You will have heard, before this reaches you, of the treacherous conduct * * * to the remaining people in Boston, in detaining their goods, after stipulating to let them go out with their effects, on pretence that merchants' goods were not effects; the defeat of a great body of his troops by the country people at Lexington; some other small advantages gained in skirmishes with their troops; and the action at Bunker's-hill, in which they were twice repulsed, and the third time gained a dear victory. Enough has

happened, one would think, to convince your ministers, that the Americans will fight, and that this is a harder nut to crack than they imagined.

We have not yet applied to any foreign power for assistance, nor offered our commerce for their friendship. Perhaps we never may: yet it is natural to think of it, if we are pressed.

We have now an army on the establishment which still holds yours besieged.

My time was never more fully employed. In the morning at six, I am at the committee of safety, appointed by the assembly to put the province in a state of defence; which committee holds till near nine, when I am at the congress, and that sits till after four in the afternoon. Both these bodies proceed with the greatest unanimity, and their meetings are well attended. It will scarce be credited in Britain, that men can be as diligent with us from zeal for the public good, as with you for thousands per annum. Such is the difference between uncorrupted new states, and corrupted old ones.

Great frugality and great industry are now become fashionable here: gentlemen, who used to entertain with two or three courses, pride themselves now in treating with simple beef and pudding. By these means, and the stoppage of our consumptive trade with Britain, we shall be better able to pay our voluntary taxes for the support of our troops. Our savings in the article of trade amount to near five million sterling per annum.

I shall communicate your letter to Mr. Winthrop, but the camp is at Cambridge, and he has as little leisure for philosophy as myself. * * * Believe me ever, with sincere esteem, my dear friend,

Yours most affectionately.

FOOTNOTE:

[149] This and the two following letters were addressed to Dr. Priestley, as appears by a letter from that gentleman to the editor of the Monthly Magazine, which will be found in the appendix to the present volume. *Editor.*

[Account of the first Campaign made by the British Forces in America.](#)^[150]

Philadelphia, Oct. 3, 1775.

DEAR SIR,

I am to set out to-morrow for the camp^[151], and having but just heard of this opportunity, can only write a line to say that I am well and hearty.—Tell our dear good friend * * *, who sometimes has his doubts and despondencies about our firmness, that America is determined and unanimous; a very few Tories and place-men excepted, who will probably soon export themselves.—Britain, at the expence of three millions, has killed one hundred and fifty Yankies this campaign, which is 20,000*l.* a head; and at Bunker's Hill she gained a mile of ground, half of which she lost again by our taking post on Ploughed Hill. During the same time sixty thousand children have been born in America. From these *data* his mathematical head will easily calculate the time and expence necessary to kill us all, and conquer our whole territory. My sincere respects to * * * *, and to the club of honest Whigs at * * * *. Adieu. I am ever

Yours most affectionately,

B. FRANKLIN.

FOOTNOTES:

^[150] This letter has been several times very incorrectly printed: it is here given from a genuine copy. B. V.

^[151] Dr. Franklin, Col. Harrison, and Mr. Lynch, were at this time appointed by Congress (of which they were members) to confer on certain subjects with Gen. Washington. The American army was then employed in blocking up Gen. Howe in Boston; and I believe it was during this visit, that Gen. Washington communicated the following memorable anecdote to Dr. Franklin; *viz.* "that there had been a time, when this army had been so destitute of military stores, as not to have powder enough in all its magazines, to furnish more than *five* rounds per man for their small arms." Great guns were out of the question; they were

fired now and then, only to show that they had them. Yet this secret was kept with so much address and good countenance from both armies, that gen. Washington was enabled effectually to continue the blockade. B. V.

Probability of a Separation.

Philadelphia, Oct. 3, 1775.

I wish as ardently as you can do for peace, and should rejoice exceedingly in co-operating with you to that end. But every ship from Britain brings some intelligence of new measures, that tend more and more to exasperate: and it seems to me, that until you have found by dear experience the reducing us by force impracticable, you will think of nothing fair and reasonable. We have as yet resolved only on defensive measures. If you would recal your forces and stay at home, we should meditate nothing to injure you. A little time so given for cooling on both sides would have excellent effects. But you will goad and provoke us. You despise us too much; and you are insensible of the Italian adage, that *there is no little enemy*. I am persuaded the body of the British people are our friends; but they are changeable, and by your lying gazettes may soon be made our enemies. Our respect for them will proportionally diminish; and I see clearly we are on the high road to mutual enmity, hatred, and detestation. A separation will of course be inevitable. It is a million of pities so fair a plan, as we have hitherto been engaged in for increasing strength and empire with *public felicity*, should be destroyed by the mangling hands of a few blundering ministers. It will not be destroyed: God will protect and prosper it: you will only exclude yourselves from any share in it. We hear, that more ships and troops are coming out. We know you may do us a great deal of mischief, but we are determined to bear it patiently as long as we can; but if you flatter yourselves with beating us into submission, you know neither the people nor the country.

The congress is still sitting, and will wait the result of their *last* petition.

Letter to Monsieur Dumas, urging him to sound the several Courts of Europe, by Means of their Ambassadors at the Hague, as to any Assistance they may be disposed to afford America in her Struggle for Independence.^[152]

Philadelphia, Dec. 9, 1775.

DEAR SIR,

I received your several favours, of May 18, June 30, and July 8, by Messrs. Vaillant and Pochard; whom, if I could serve upon your recommendation, it would give me great pleasure. Their total want of English is at present an obstruction to their getting any employment among us; but I hope they will soon obtain some knowledge of it. This is a good country for artificers or farmers, but gentlemen of mere science in *les belles lettres* cannot so easily subsist here, there being little demand for their assistance among an industrious people, who, as yet, have not much leisure for studies of that kind.

I am much obliged by the kind present you have made us of your edition of *Vattel*. It came to us in good season, when the circumstances of a rising state make it necessary frequently to consult the law of nations. Accordingly that copy which I kept (after depositing one in our own public library here, and sending the other to the college of Massachusetts's Bay, as you directed) has been continually in the hands of the members of our congress, now sitting, who are much pleased with your notes and preface, and have entertained a high and just esteem for their author. Your manuscript *Idée sur le gouvernement et la royauté*, is also well relished, and may, in time, have its effect. I thank you, likewise, for the other smaller pieces, which accompanied *Vattel*. *Le court exposé de ce qui s'est passé entre la cour Br. et les colonies*, &c. being a very concise and clear statement of facts, will be reprinted here for the use of our new friends in Canada. The translations of the proceedings of our congress are very acceptable. I send you herewith what of them has been farther published here, together with a few newspapers, containing accounts of some of the successes providence has favoured us with. We are threatened from England with a very powerful force, to come next year against us. We are making all the provision in our power here to oppose that force, and we hope we shall be able to defend ourselves. But, as the events of war are always uncertain,

possibly, after another campaign, we may find it necessary to ask aid of some foreign power. It gives us great pleasure to learn from you, that *toute l'Europe nous souhaite le plus heureux succes pour le maintien de nos libertés*. But we wish to know, whether any one of them, from principles of humanity, is disposed magnanimously to step in for the relief of an oppressed people, or whether, if, as it seems likely to happen, we should be obliged to break off all connection with Britain, and declare ourselves an independent people, there is any state or power in Europe, who would be willing to enter into an alliance with us for the benefit of our commerce, which amounted, before the war, to near seven millions sterling per annum, and must continually increase, as our people increase most rapidly. Confiding, my dear friend, in your good will to us and our cause, and in your sagacity and abilities for business, the committee of congress, appointed for the purpose of establishing and conducting a correspondence with our friends in Europe, of which committee I have the honour to be a member, have directed me to request of you, that, as you are situated at the Hague, where ambassadors from all the courts reside, you would make use of the opportunity that situation affords you, of discovering, if possible, the disposition of the several courts with respect to such assistance or alliance, if we should apply for the one, or propose the other. As it may possibly be necessary, in particular instances, that you should, for this purpose, confer directly with some great ministers, and show them this letter as your credential, we only recommend it to your discretion, that you proceed therein with such caution, as to keep the same from the knowledge of the English ambassador, and prevent any public appearance, at present, of your being employed in any such business, as thereby, we imagine, many inconveniences may be avoided, and your means of rendering us service, increased.

That you may be better able to answer some questions, which will probably be put to you, concerning our present situation, we inform you—that the whole continent is very firmly united—the party for the measures of the British ministry being very small, and much dispersed—that we have had on foot, the last campaign, an army of near twenty-five thousand men, wherewith we have been able, not only to block up the king's army in Boston, but to spare considerable detachments for the invasion of Canada, where we have met with great success, as the printed papers sent herewith will inform you, and have now reason to expect the whole province may be

soon in our possession—that we purpose greatly to increase our force for the ensuing year; and thereby we hope, with the assistance of well-disciplined militia, to be able to defend our coast, notwithstanding its great extent—that we have already a small squadron of armed vessels, to protect our coasting trade, who have had some success in taking several of the enemy's cruisers, and some of their transport vessels and store-ships. This little naval force we are about to augment, and expect it may be more considerable in the next summer.

We have hitherto applied to no foreign power. We are using the utmost industry in endeavouring to make salt-petre, and with daily increasing success. Our artificers are also every where busy in fabricating small arms, casting cannon, &c. yet both arms and ammunition are much wanted. Any merchants, who would venture to send ships, laden with those articles, might make great profit; such is the demand in every colony, and such generous prices are and will be given; of which, and of the manner of conducting such a voyage, the bearer, Mr. Storey, can more fully inform you: and whoever brings in those articles, is allowed to carry off the value in provisions, to our West Indies, where they will probably fetch a very high price, the general exportation from North America being stopped. This you will see more particularly in a printed resolution of the congress.

We are in great want of good engineers, and wish you could engage, and send us two able ones, in time for the next campaign, one acquainted with field service, sieges, &c. and the other with fortifying of sea-ports. They will, if well recommended, be made very welcome, and have honourable appointments, besides the expences of their voyage hither, in which Mr. Storey can also advise them. As what we now request of you, besides taking up your time, may put you to some expense, we send you for the present, enclosed, a bill for one hundred pounds sterling, to defray such expences, and desire you to be assured that your services will be considered, and honourably rewarded by the congress.

We desire, also, that you would take the trouble of receiving from Arthur Lee, esquire, agent for the congress in England, such letters as may be sent by him to your care, and of forwarding them to us with your dispatches. When you have occasion to write to him to inform him of any thing, which it may be of importance that our friends there should be acquainted with, please to send your letters to him, under cover, directed to Mr. Alderman

Lee, merchant, on Tower-hill, London; and do not send it by post, but by some trusty shipper, or other prudent person, who will deliver it with his own hand. And when you send to us, if you have not a direct safe opportunity, we recommend sending by way of St. Eustatia, to the care of Messrs. Robert and Cornelius Stevenson, merchants there, who will forward your dispatches to me.

With sincere and great esteem and respect,

I am, sir,

Your most obedient, humble servant,

B. FRANKLIN.

Mons. Dumas.

FOOTNOTE:

[\[152\]](#) This letter is taken from an American periodical publication entitled The Port Folio, in which it appeared July 31, 1802. *Editor*.

[Letter from Lord Howe to Dr. Franklin.](#)^[153]

Eagle, June the 20th, 1776.

I cannot, my worthy friend, permit the letters and parcels, which I have sent (in the state I received them) to be landed, without adding a word upon the subject of the injurious extremities in which our unhappy disputes have engaged us.

You will learn the nature of my mission, from the official dispatches which I have recommended to be forwarded by the same conveyance. Retaining all the earnestness I ever expressed, to see our differences accommodated; I shall conceive, if I meet with the disposition in the colonies which I was once taught to expect, the most flattering hopes of proving serviceable in the objects of the king's paternal solicitude, by promoting the establishment of lasting peace and union with the colonies. But if the deep-rooted prejudices of America, and the necessity of preventing her trade from passing into foreign channels, must keep us still a divided people; I shall, from every private as well as public motive, most heartily lament, that this is not the moment wherein those great objects of my ambition are to be attained; and that I am to be longer deprived of an opportunity, to assure you personally of the regard with which I am

Your sincere and faithful

humble servant,

HOWE.

P. S. I was disappointed of the opportunity I expected for sending this letter, at the time it was dated; and have ever since been prevented by calms and contrary winds from getting here, to inform general Howe of the commission with which I have the satisfaction to be charged, and of his being joined in it.

Off of Sandy Hook, 12th of July.

Superscribed, HOWE.

To Benjamin Franklin, Esq.
Philadelphia.

FOOTNOTE:

[153] In the year 1776 an act of parliament passed, to prohibit and restrain, on the one hand, the trade and intercourse of the refractory colonies respectively during the revolt; and on the other hand, to enable persons appointed by the crown to grant *pardons* and declare any particular district at the *king's peace*, &c. Lord Howe (who had been previously appointed commander of the fleet in North America) was, on May 3, declared joint *commissioner* with his brother gen. Howe, for the latter purposes of the act. He sailed May 12; and while off the Massachusetts's coast prepared a declaration announcing this commission, and accompanied it with circular letters. July 4, independence had been declared; but nevertheless congress (invited by various attempts made to procure a conference) resolved to send Messieurs Franklin, J. Adams, and E. Rutledge, to learn the propositions of the commissioners, by whom authorized, and to whom addressed. The commissioners having no power to treat with congress in its public capacity, and congress not being empowered by their representatives to rescind the act of independence, the conference was broken off. It remains only to add, that, on Sept. 19, the commissioners declared themselves ready to confer with any of the well-affected, on the means of restoring peace and permanent union with every colony as part of the British empire; and promised a *revision* of the several royal *instructions* supposed to lay improper restraints on colony-legislation, and also the king's *concurrence* in a revision of the objectionable acts of parliament: which seemed the ultimatum of the commission.—Parliament however, by a subsequent act (which, among other things, formally renounced taxation in North America and the West Indies) authorized five commissioners to treat, settle, and agree, even with congress; but subject to the farther confirmation of parliament. Lord Carlisle, and Messieurs Johnson and Eden, with the commanders in chief of the land and sea forces, were the commissioners appointed by the crown under this act; and Dr. Adam Ferguson was made secretary to the commission.

Mr. Henry Strachey had been secretary to the *first* commission, attended with the following singular circumstance, as stated in the house of lords. In this commission for restoring peace to America, "(or *in other words* to induce America at once to put a confidence in the crown, and to believe that the parliament of England is a sufficiently powerful and honest barrier for them to trust to) the secretary (Mr. Strachey) had 500*l.* granted for life out of the *four and a half* per cent. duty, filched by the crown from the West-India Islands, and in opposition to a solemn address of parliament desiring that it might be applied to the original purposes for which it was granted by the respective assemblies of the islands."—What these original purposes of the grants were, I meant very briefly to have stated: but have not been able to procure the proper documents in time. B. V.

Dr. Franklin's Answer to Lord Howe.

Philadelphia, July 30, 1776.

MY LORD,

I received safe the letters your lordship so kindly forwarded to me, and beg you to accept *my* thanks.

The official dispatches to which you refer me, contain nothing more than what we had seen in the act of parliament, viz. "Offers of pardon upon submission;" which I was sorry to find; as it must give your lordship pain to be sent so far on so hopeless a business.

Directing pardons to be offered to the colonies, who are the very parties injured, expresses indeed that opinion of our ignorance, baseness, and insensibility, which your uninformed and proud nation has long been pleased to entertain of us; but it can have no other effect than that of encreasing our resentments.—It is impossible we should think of submission to a government, that has, with the most wanton barbarity and cruelty, burned our defenceless towns in the midst of winter; excited the savages to massacre our (peaceful) farmers; and our slaves to murder their masters; and is even now^[154] bringing foreign mercenaries to deluge our settlements with blood. These atrocious injuries have extinguished every spark of affection for that parent country we once held so dear: but were it possible for *us* to forget and forgive them, it is not possible for *you* (I mean the British nation) to forgive the people you have so heavily injured; you can never confide again in those as fellow-subjects, and permit them to enjoy equal freedom, to whom you know you have given such just causes of lasting enmity; and this must impel you, were we again under your government, to endeavour the breaking our spirit by the severest tyranny, and obstructing by every means in your power our growing strength and prosperity.

But your lordship mentions "the king's paternal solicitude for promoting the establishment of lasting peace and union with the colonies." If by *peace* is here meant, a peace to be entered into by distinct states, now at war; and

his majesty has given your lordship powers to treat with us of such a peace, I may venture to say, though without authority, that I think a treaty for that purpose not quite impracticable, before we enter into foreign alliances. But I am persuaded you have no such powers. Your nation, though, by punishing those American governors who have fomented the discord, rebuilding our burnt towns, and repairing as far as possible the mischiefs done us, she might recover a great share of our regard; and the greatest share of our growing commerce, with all the advantages of that additional strength, to be derived from a friendship with us; yet I know too well her abounding pride and deficient wisdom, to believe she will ever take such salutary measures. Her fondness for conquest as a warlike nation; her lust of dominion as an ambitious one; and her thirst for a gainful monopoly as a commercial one (none of them legitimate causes of war) will join to hide from her eyes every view of her true interest, and continually goad her on in these ruinous distant expeditions, so destructive both of lives and of treasure, that they must prove as pernicious to her in the end, as the Croisades formerly were to most of the nations of Europe.

I have not the vanity, my lord, to think of intimidating, by thus predicting the effects of this war; for I know it will in England have the fate of all my former predictions; not to be believed till the event shall verify it.

Long did I endeavour, with unfeigned and unwearied zeal, to preserve from breaking that fine and noble porcelaine vase—the British empire; for I knew that being once broken, the separate parts could not retain even their *share* of the strength and value that existed in the whole; and that a perfect *re-union* of those parts could scarce ever be hoped for. Your lordship may possibly remember the tears of joy that wetted my cheek, when, at your good sister's in London, you once gave me expectations, that a reconciliation might soon take place. I had the misfortune to find these expectations disappointed, and to be treated as the cause of the mischief I was labouring to prevent. My consolation under that groundless and malevolent treatment was, that I retained the friendship of many wise and good men in that country; and among the rest, some share in the regard of lord Howe.

The well-founded esteem, and permit me to say affection, which I shall always have for your lordship, make it painful to me to see you engaged in conducting a war, the great ground of which (as described in your letter) is

"the necessity of preventing the American *trade* from passing into foreign channels." To me it seems, that neither the obtaining or retaining any trade, how valuable soever, is an object for which men may justly spill each other's blood; that the true and sure means of extending and securing commerce are the goodness and cheapness of commodities; and that the profits of no trade can ever be equal to the expence of compelling it, and holding it by fleets and armies. I consider this war against us, therefore, as both unjust and unwise; and I am persuaded, that cool and dispassionate posterity will condemn to infamy those who advised it; and that even success will not save from some degree of dishonour, those who have voluntarily engaged to conduct it.

I know your great motive in coming hither, was the hope of being instrumental in a reconciliation; and I believe, when you find that to be impossible, on any terms given you to propose, you will then relinquish so odious a command, and return to a more honourable private station.

With the greatest and most sincere respect, I have the honour to be,

My lord,

Your lordship's most obedient, humble servant,

B. FRANKLIN^[155].

FOOTNOTES:

^[154] About this time the Hessians, &c. had just arrived from Europe, at Staten Island and New York. B. V.

^[155] It occurs to me to mention that Dr. Franklin was supposed to have been the inventor of a little *emblematical design* at the commencement of our disputes, representing the state of Great Britain and her colonies, should the former persist in restraining the latter's trade, destroying their currency, and taxing their people by laws made by a legislature in which they were not represented.—Great Britain was supposed to have been placed upon the globe: but the colonies, her limbs, being severed from her, she was seen lifting her eyes and mangled stumps to heaven; her shield, which she was unable to wield, lay useless by her side; her lance had pierced New England; the laurel branch was fallen from the hand of Pennsylvania; the English oak had lost its head, and stood a bare trunk with a few withered branches; briars and thorns were on the ground beneath it; our ships had brooms at their topmast heads, denoting their being upon sale; and Britannia

herself was seen sliding off the world, no longer able to hold its balance; her fragments overspread with the label *date obolum Belisario*.—This in short, was the fable of the belly and the members reversed. But I tell the story chiefly for the sake of the *moral*, which has the air of having been suggested by Dr. Franklin^[156]; and is as follows.—"The political moral of this picture is now easily discovered. History affords us many instances of the ruin of states, by the prosecution of measures ill suited to the temper and genius of its people. The ordaining of laws in favour of *one* part of the nation, to the prejudice and oppression of *another*, is certainly the most erroneous and mistaken policy. An *equal* dispensation of protection, rights, privileges, and advantages, is what every part is intitled to, and ought to enjoy; it being a matter of no moment to the state, whether a subject grows rich and flourishing on the Thames or the Ohio, in Edinburgh or Dublin. These measures never fail to create great and violent jealousies and animosities between the people favoured and the people oppressed: from whence a total separation of affections, interests, political obligations, and all manners of connections, necessarily ensues; by which the whole state is weakened and perhaps ruined for ever."

This language is part of the same system with the following fragment of a sentence, which Dr. Franklin inserted in a political publication of one of his friends. "The attempts to establish *arbitrary power* over so great a part of the British empire, [are] to the imminent hazard of our most valuable commerce, and of that national strength, security, and felicity, which depend on *union* and *liberty*;"—The preservation of which, I am told, he used to say, had been the great object and labour of his life; the whole being such a thing *as the world before never saw*. B. V.

^[156] This design was printed on a *card*, and Dr. Franklin at the time I believe occasionally used to write his notes on such cards. It was also printed on a *half sheet of paper*, with an explanation by some other person, and the moral given above. The drawing was but moderately executed.

In borrowing money a man's credit depends on some or all of the following particulars.

First, His known conduct respecting former loans, and his punctuality in discharging them.

Secondly, His industry.

Thirdly, His frugality.

Fourthly, The amount and the certainty of his income, and the freedom of his estate from the incumbrances of prior debts.

Fifthly, His well founded prospects of greater future ability, by the improvement of his estate in value, and by aids from others.

Sixthly, His known prudence in managing his general affairs, and the advantage they will probably receive from the loan which he desires.

Seventhly, His known probity and honest character, manifested by his voluntary discharge of debts, which he could not have been legally compelled to pay. The circumstances which give credit to an *individual* ought to have, and will have, their weight upon the lenders of money to *public bodies* or nations. If then we consider and compare Britain and America, in these several particulars, upon the question, "To which is it safest to lend money?" We shall find,

1. Respecting *former loans*, that America, which borrowed ten millions during the last war for the maintenance of her army of 25,000 men and other charges, had faithfully discharged and paid that debt, and all her other debts, in 1772. Whereas Britain, during those ten years of peace and profitable commerce, had made little or no reduction of her debt; but on the contrary, from time to time, diminished the hopes of her creditors, by a wanton diversion and misapplication of the sinking fund destined for discharging it.

2. Respecting *industry*; every man [in America] is employed, the greater part in cultivating their own lands, the rest in handicrafts, navigation, and commerce. An idle man there is a rarity, idleness and inutility are disgraceful. In England, the number of that character is immense, fashion has spread it far and wide; hence the embarrassments of private fortunes, and the daily bankruptcies arising from an universal fondness for appearance and expensive pleasures; and hence, in some degree, the mismanagement of public business; for habits of business, and ability in it, are acquired only by practice; and where universal dissipation, and the perpetual pursuit of amusement are the mode, the youth, educated in it, can rarely afterwards acquire that patient attention and close application to affairs, which are so necessary to a statesman charged with the care of national welfare. *Hence* their frequent errors in policy, and hence the weariness at public councils, and backwardness in going to them, the constant unwillingness to engage in any measure that requires thought and consideration, and the readiness for postponing every new proposition; which postponing is therefore the only part of business that they come to be expert in, an expertness produced necessarily by so much daily practice. Whereas in America, men bred to close employment in their private affairs, attend with ease to those of the public, when engaged in them, and nothing fails through negligence.

3. Respecting *frugality*; the manner of living in America is more simple and less expensive than that in England: plain tables, plain clothing, and plain furniture in houses prevail, with few carriages of pleasure; there, an expensive appearance hurts credit, and is avoided: in England, it is often assumed to gain credit, and continued to ruin. Respecting *public* affairs, the difference is still greater. In England, the salaries of officers, and emoluments of office are enormous. The king has a million sterling per annum, and yet cannot maintain his family free of debt: secretaries of state, lords of treasury, admiralty, &c. have vast appointments: an auditor of the exchequer has sixpence in the pound, or a fortieth part of all the public money expended by the nation; so that when a war costs forty millions one million is paid to him: an inspector of the mint, in the last new coinage, received as his fee 65,000*l.* sterling per annum; to all which rewards no service these gentlemen can render the public is by any means equivalent. All this is paid by the people, who are oppressed by taxes so occasioned, and thereby rendered less able to contribute to the payment of necessary

national debts. In America, salaries, where indispensable, are extremely low; but much of the public business is done gratis. The honour of serving the public ably and faithfully is deemed sufficient. *Public spirit* really exists there, and has great effects. In England it is universally deemed a non-entity, and whoever pretends to it is laughed at as a fool, or suspected as a knave. The committees of congress which form the board of war, the board of treasury, the board of foreign affairs, the naval board, that for accounts, &c. all attend the business of their respective functions, without any salary or emolument whatever, though they spend in it much more of their time than any lord of treasury or admiralty in England can spare from his amusements. A British minister lately computed, that the whole expence of the Americans, in their *civil* government over three millions of people amounted to but 70,000*l.* sterling, and drew from thence a conclusion, that they ought to be taxed, until their expence was equal in proportion to that which it costs Britain to govern eight millions. He had no idea of a contrary conclusion, that if three millions may be well governed for 70,000*l.* eight millions may be as well governed for three times that sum, and that therefore the expence of his own government should be diminished. In that corrupted nation no man is ashamed of being concerned in lucrative *government jobs*, in which the public money is egregiously misapplied and squandered, the treasury pillaged, and more numerous and heavy taxes accumulated, to the great oppression of the people. But the prospect of a greater number of such jobs by a war is an inducement with many, to cry out for war upon all occasions, and to oppose every proposition of peace. Hence the constant increase of the national debt, and the absolute improbability of its ever being discharged.

4. Respecting the *amount and certainty of income, and solidity of security*; the *whole* thirteen states of America are engaged for the payment of every debt contracted by the congress, and the debt to be contracted by the present war is the *only* debt they will have to pay; all, or nearly all, the former debts of particular colonies being already discharged. Whereas England will have to pay not only the enormous debt this war must occasion, but all their vast preceding debt, or the interest of it,—and while America is enriching itself by prizes made upon the British commerce, more than it ever did by any commerce of its own, under the restraints of a British monopoly; Britain is growing poorer by the loss of that monopoly,

and the diminution of its revenues, and of course less able to discharge the present indiscreet increase of its expences.

5. Respecting prospects of greater future ability, Britain has none such. Her islands are circumscribed by the ocean; and excepting a few parks or forests, she has no new land to cultivate, and cannot therefore extend her improvements. Her numbers too, instead of increasing from increased subsistence, are continually diminishing from growing luxury, and the increasing difficulties of maintaining families, which of course discourage early marriages. Thus she will have fewer people to assist in paying her debts, and that diminished number will be poorer. America, on the contrary, has, besides her lands already cultivated, a vast territory yet to be cultivated; which, being cultivated, continually increases in value with the increase of people; and the people, who double themselves by a *natural propagation* every twenty-five years, will double yet faster, by the accession of *strangers*, as long as lands are to be had for new families; so that every twenty years there will be a double number of inhabitants obliged to discharge the public debts; and those inhabitants, being more opulent, may pay their shares with greater ease.

6. Respecting *prudence* in general affairs, and the advantages to be expected from the loan desired; the Americans are cultivators of land; those engaged in fishery and commerce are few, compared with the others. They have ever conducted their several governments with wisdom, avoiding wars, and vain expensive projects, delighting only in their peaceable occupations, which must, considering the extent of their uncultivated territory, find them employment still for ages. Whereas England, ever unquiet, ambitious, avaricious, imprudent, and quarrelsome, is half of the time engaged in war, always at an expence infinitely greater than the advantage to be obtained by it, if successful. Thus they made war against Spain in 1739, for a claim of about 95,000*l.* (scarce a groat for each individual of the nation) and spent forty millions sterling in the war, and the lives of fifty thousand men; and finally made peace without obtaining satisfaction for the sum claimed. Indeed, there is scarce a nation in Europe, against which she has not made war on some frivolous pretext or other, and thereby imprudently accumulated a debt, that has brought her on the verge of bankruptcy. But the most indiscreet of all her wars, is the present against America, with whom she might, for ages, have preserved her profitable

connection only by a just and equitable conduct. She is now acting like a mad shop-keeper, who, by beating those that pass his doors, attempts to make them come in and be his customers. America cannot submit to such treatment, without being first ruined, and, being ruined, her custom will be worth nothing. England, to effect this, is increasing her debt, and irretrievably ruining herself. America, on the other hand, aims only to establish her liberty, and that freedom of commerce which will be advantageous to all Europe; and by abolishing that monopoly which she laboured under, she will profit infinitely more than enough to repay any debt, which she may contract to accomplish it.

7. Respecting *character in the honest payment of debts*; the punctuality with which America has discharged her public debts was shown under the first head. And the general good disposition of the people to such punctuality has been manifested in their faithful payment of *private* debts to England, since the commencement of this war. There were not wanting some politicians [in America] who proposed *stopping that payment*, until peace should be restored, alleging, that in the usual course of commerce, and of the credit given, there was always a debt existing equal to the trade of eighteen months: that the trade amounting to five millions sterling per annum, the debt must be seven millions and an half; that this sum paid to the British merchants would operate to prevent that distress, intended to be brought upon Britain, by our stoppage of commerce with her; for the merchants, receiving this money, and no orders with it for farther supplies, would either lay it out in the public funds, or in employing manufacturers to accumulate goods for a future hungry market in America upon an expected accommodation, by which means the funds would be kept up and the manufacturers prevented from murmuring. But *against this it was alleged*, that injuries from ministers should not be revenged on merchants; that the credit was in consequence of private contracts, made in confidence of good faith; that these ought to be held sacred and faithfully complied with; for that, whatever public utility might be supposed to arise from a breach of private faith, it was unjust, and would in the end be found unwise—honesty being in truth the best policy. On this principle the proposition was universally rejected; and though the English prosecuted the war with unexampled barbarity, burning our defenceless towns in the midst of winter, and arming savages against us; the debt was punctually paid; and the merchants of London have testified to the parliament, and will testify to all

the world, that from their experience in dealing with us they had, before the war, no apprehension of our unfairness; and that since the war they have been convinced, that their good opinion of us was well founded. England, on the contrary, an old, corrupt, extravagant, and profligate nation, sees herself deep in debt, which she is in no condition to pay; and yet is madly, and dishonestly running deeper, without any possibility of discharging her debt, but by a public bankruptcy.

It appears, therefore, from the general industry, frugality, ability, prudence, and virtue of America, that she is a much safer debtor than Britain;—to say nothing of the satisfaction generous minds must have in reflecting, that by loans to America they are opposing tyranny, and aiding the cause of liberty, which is the cause of all mankind.

FOOTNOTE:

[\[157\]](#) This paper was written, translated, printed, and circulated, while Dr. Franklin was at the court of Paris, for the purpose of inducing foreigners to lend money to America in preference to Great Britain.

PAPERS,
DESCRIPTIVE OF AMERICA,
OR
RELATING TO THAT COUNTRY,
WRITTEN
SUBSEQUENT TO THE REVOLUTION.

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Savages we call them, because their manners differ from ours, which we think the perfection of civility; they think the same of theirs.

Perhaps, if we could examine the manners of different nations with impartiality, we should find no people so rude, as to be without any rules of politeness; nor any so polite, as not to have some remains of rudeness.

The Indian men, when young, are hunters and warriors; when old, counsellors; for all their government is by the council or advice of the sages; there is no force, there are no prisons, no officers to compel obedience, or inflict punishment. Hence they generally study oratory, the best speaker having the most influence. The Indian women till the ground, dress the food, nurse and bring up the children, and preserve and hand down to posterity the memory of public transactions. These employments of men and women are accounted natural and honourable. Having few artificial wants, they have abundance of leisure for improvement by conversation. Our laborious manner of life, compared with theirs, they esteem slavish and base; and the learning on which we value ourselves, they regard as frivolous and useless. An instance of this occurred at the treaty of Lancaster, in Pennsylvania, anno 1744, between the government of Virginia and the six nations. After the principal business was settled, the commissioners from Virginia acquainted the Indians by a speech, that there was at Williamsburg a college, with a fund, for educating Indian youth; and that if the chiefs of the Six Nations would send down half a dozen of their sons to that college, the government would take care that they should be well provided for, and instructed in all the learning of the white people. It is one of the Indian rules of politeness, not to answer a public proposition the same day that it is made; they think it would be treating it as a light matter, and that they show it respect by taking time to consider it, as of a matter important. They therefore deferred their answer till the day following; when their speaker began, by expressing their deep sense of the kindness of the Virginia government, in making them that offer; "for we know," says he, "that you highly esteem the kind of learning taught in those colleges, and that the maintenance of our young men, while with you, would be very expensive to

you. We are convinced therefore, that you mean to do us good by your proposal; and we thank you heartily. But you, who are wise, must know, that different nations have different conceptions of things; and you will therefore not take it amiss, if our ideas of this kind of education happen not to be the same with yours. We have had some experience of it: several of our young people were formerly brought up at the colleges of the northern provinces; they were instructed in all your sciences; but when they came back to us, they were bad runners, ignorant of every means of living in the woods, unable to bear either cold or hunger, knew neither how to build a cabin, take a deer, or kill an enemy, spoke our language imperfectly, were therefore neither fit for hunters, warriors, or counsellors; they were totally good for nothing. We are however not the less obliged by your kind offer, though we decline accepting it: and to show our grateful sense of it, if the gentlemen of Virginia will send us a dozen of their sons, we will take great care of their education, instruct them in all we know, and make *men* of them."

Having frequent occasions to hold public councils, they have acquired great order and decency in conducting them. The old men sit in the foremost ranks, the warriors in the next, and the women and children in the hindmost. The business of the women is to take exact notice of what passes, imprint it in their memories, for they have no writing, and communicate it to their children. They are the records of the council, and they preserve tradition of the stipulations in treaties a hundred years back; which, when we compare with our writings, we always find exact. He that would speak, rises. The rest observe a profound silence. When he has finished and sits down, they leave him five or six minutes to recollect, that, if he has omitted any thing he intended to say, or has any thing to add, he may rise again and deliver it. To interrupt another, even in common conversation, is reckoned highly indecent. How different this is from the conduct of a polite British house of commons, where scarce a day passes without some confusion, that makes the speaker hoarse in calling *to order*; and how different from the mode of conversation in many polite companies of Europe, where, if you do not deliver your sentence with great rapidity, you are cut off in the middle of it by the impatient loquacity of those you converse with, and never suffered to finish it!

The politeness of these savages in conversation is indeed carried to excess, since it does not permit them to contradict or deny the truth of what is asserted in their presence. By this means they indeed avoid disputes; but then it becomes difficult to know their minds, or what impression you make upon them. The missionaries who have attempted to convert them to christianity, all complain of this as one of the great difficulties of their mission. The Indians hear with patience the truths of the gospel explained to them, and give their usual tokens of assent and approbation: you would think they were convinced. No such matter. It is mere civility.

A Swedish minister, having assembled the chiefs of the Sasquehannah Indians, made a sermon to them, acquainting them with the principal historical facts on which our religion is founded; such as the fall of our first parents by eating an apple, the coming of Christ to repair the mischief, his miracles and suffering, &c.—When he had finished, an Indian orator stood up to thank him. "What you have told us," says he, "is all very good. It is indeed bad to eat apples. It is better to make them all into cyder. We are much obliged by your kindness in coming so far, to tell us those things which you have heard from your mothers. In return, I will tell you some of those we have heard from ours.

"In the beginning, our fathers had only the flesh of animals to subsist on, and if their hunting was unsuccessful, they were starving. Two of our young hunters having killed a deer, made a fire in the woods to broil some parts of it. When they were about to satisfy their hunger, they beheld a beautiful young woman descend from the clouds, and seat herself on that hill which you see yonder among the Blue Mountains. They said to each other, it is a spirit that perhaps has smelt our broiling venison, and wishes to eat of it: let us offer some to her. They presented her with the tongue: she was pleased with the taste of it, and said, Your kindness shall be rewarded. Come to this place after thirteen moons, and you shall find something that will be of great benefit in nourishing you and your children to the latest generations. They did so, and to their surprise, found plants they had never seen before; but which, from that ancient time, have been constantly cultivated among us, to our great advantage. Where her right hand had touched the ground, they found maize; where her left hand had touched it, they found kidney-beans; and where her backside had sat on it, they found tobacco." The good missionary, disgusted with this idle tale, said, "What I delivered to you were

sacred truths, but what you tell me is mere fable, fiction, and falsehood." The Indian, offended, replied, "My brother, it seems your friends have not done you justice in your education; they have not well instructed you in the rules of common civility. You saw that we, who understand and practice those rules, believed all your stories, why do you refuse to believe ours?"

When any of them come into our towns, our people are apt to crowd round them, gaze upon them, and incommode them where they desire to be private; this they esteem great rudeness, and the effect of the want of instruction in the rules of civility and good manners. "We have," say they, "as much curiosity as you, and when you come into our towns, we wish for opportunities of looking at you; but for this purpose we hide ourselves behind bushes, where you are to pass, and never intrude ourselves into your company."

Their manner of entering one another's villages has likewise its rules. It is reckoned uncivil in travelling strangers, to enter a village abruptly, without giving notice of their approach. Therefore, as soon as they arrive within hearing, they stop and hollow, remaining there till invited to enter. Two old men usually come out to them, and lead them in. There is in every village a vacant dwelling, called the strangers' house. Here they are placed, while the old men go round from hut to hut, acquainting the inhabitants, that strangers are arrived, who are probably hungry and weary; and every one sends them what he can spare of victuals, and skins to repose on. When the strangers are refreshed, pipes and tobacco are brought; and then, but not before, conversation begins, with enquiries who they are, whither bound, what news, &c. and it usually ends with offers of service, if the strangers have occasion for guides, or any necessaries for continuing their journey; and nothing is exacted for the entertainment.

The same hospitality, esteemed among them as a principal virtue, is practised by private persons; of which *Conrad Weiser*, our [interpreter](#), gave me the following instance. He had been naturalized among the Six Nations, and spoke well the Mohuck language. In going through the Indian country, to carry a message from our governor to the council at Onondaga, he called at the habitation of Canassetego, an old acquaintance, who embraced him, spread furs for him to sit on, and placed before him some boiled beans and venison, and mixed some rum and water for his drink. When he was well refreshed, and had lit his pipe, Canassetego began to converse with him:

asked how he had fared the many years since they had seen each other, whence he then came, what occasioned the journey, &c. Conrad answered all his questions; and when the discourse began to flag, the Indian, to continue it, said, "Conrad, you have lived long among the white people, and know something of their customs; I have been sometimes at Albany, and have observed, that once in seven days they shut up their shops, and assemble all in the great house; tell me what it is for? What do they do there?" "They meet there," says Conrad, "to hear and learn *good things*." "I do not doubt," says the Indian, "that they tell you so; they have told me the same: but I doubt the truth of what they say, and I will tell you my reasons. I went lately to Albany to sell my skins and buy blankets, knives, powder, rum, &c. You know I used generally to deal with Hans Hanson; but I was a little inclined this time to try some other merchants. However, I called first upon Hans, and asked him what he would give for beaver. He said he could not give more than four shillings a pound: but, says he, I cannot talk on business now; this is the day when we meet together to learn *good things*, and I am going to the meeting. So I thought to myself, since I cannot do any business to-day, I may as well go to the meeting too, and I went with him. There stood up a man in black, and began to talk to the people very angrily. I did not understand what he said; but perceiving that he looked much at me, and at Hanson, I imagined he was angry at seeing me there; so I went out, sat down near the house, struck fire, and lit my pipe, waiting till the meeting should break up. I thought too, that the man had mentioned something of beaver, and I suspected it might be the subject of their meeting. So when they came out I accosted my merchant. Well, Hans, says I, I hope you have agreed to give more than four shillings a pound? No, says he, I cannot give so much, I cannot give more than three shillings and sixpence. I then spoke to several other dealers, but they all sung the same song, three and sixpence, three and sixpence. This made it clear to me that my suspicion was right; and that whatever they pretended of meeting to learn *good things*, the real purpose was to consult how to cheat Indians in the price of beaver. Consider but a little, Conrad, and you must be of my opinion. If they met so often to learn *good things*, they would certainly have learned some before this time. But they are still ignorant. You know our practice. If a white man, in travelling through our country, enters one of our cabins, we all treat him as I do you; we dry him if he is wet, we warm him if he is cold, and give him meat and drink, that he may allay his thirst and

hunger; and we spread soft furs for him to rest and sleep on: we demand nothing in return^[159]. But if I go into a white man's house at Albany, and ask for victuals and drink, they say, Where is your money? and if I have none, they say, Get out you Indian dog. You see they have not yet learned those little *good things*, that we need no meetings to be instructed in, because our mothers taught them to us when we were children; and therefore it is impossible their meetings should be, as they say, for any such purpose, or have any such effect; they are only to contrive *the cheating of Indians in the price of beaver*."

FOOTNOTES:

[158] This paper and the two next in order were published in separate pamphlets in this country, in the year 1784, and afterwards, in 1787, formed part of a small collection of our author's papers, printed for Dilly. It is from this collection we extract them. *Editor*.

[159] It is remarkable, that in all ages and countries, hospitality has been allowed as the virtue of those, whom the civilized were pleased to call Barbarians. The Greeks celebrated the Scythians for it, the Saracens possessed it eminently; and it is to this day the reigning virtue of the wild Arabs. St. Paul too, in the relation of his voyage and shipwreck, on the island of Melita, says, "The barbarous people shewed us no little kindness; for they kindled a fire, and received us every one, because of the present rain, and because of the cold."

The internal State of America; being a true Description of the Interest and Policy of that vast Continent.

There is a tradition, that, in the planting of New-England, the first settlers met with many difficulties and hardships; as is generally the case when a civilized people attempt establishing themselves in a wilderness country. Being piously disposed, they sought relief from Heaven, by laying their wants and distresses before the Lord, in frequent set days of fasting and prayer. Constant meditation and discourse on these subjects kept their minds gloomy and discontented; and, like the children of Israel, there were many disposed to return to that Egypt, which persecution had induced them to abandon. At length, when it was proposed in the assembly to proclaim another fast, a farmer of plain sense rose, and remarked, that the inconveniences they suffered, and concerning which they had so often wearied heaven with their complaints, were not so great as they might have expected, and were diminishing every day as the colony strengthened; that the earth began to reward their labour, and to furnish liberally for their subsistence; that the seas and rivers were found full of fish, the air sweet, the climate healthy; and, above all, that they were there in the full enjoyment of liberty, civil and religious: he therefore thought, that reflecting and conversing on these subjects would be more comfortable, as tending more to make them contented with their situation; and that it would be more becoming the gratitude they owed to the Divine Being, if, instead of a fast, they should proclaim a thanksgiving. His advice was taken; and from that day to this they have, in every year, observed circumstances of public felicity sufficient to furnish employment for a thanksgiving day; which is therefore constantly ordered and religiously observed.

I see in the public newspapers of different states frequent complaints of *hard times, deadness of trade, scarcity of money, &c. &c.* It is not my intention to assert or maintain, that these complaints are entirely without foundation. There can be no country or nation existing, in which there will not be some people so circumstanced, as to find it hard to gain a livelihood; people who are not in the way of any profitable trade, and with whom money is scarce, because they have nothing to give in exchange for it; and it

is always in the power of a small number to make a great clamour. But let us take a cool view of the general state of our affairs, and perhaps the prospect will appear less gloomy than has been imagined.

The great business of the continent is agriculture. For one artisan, or merchant, I suppose, we have at least one hundred farmers, by far the greatest part cultivators of their own fertile lands, from whence many of them draw not only food necessary for their subsistence, but the materials of their clothing, so as to need very few foreign supplies; while they have a surplus of productions to dispose of, whereby wealth is gradually accumulated. Such has been the goodness of Divine Providence to these regions, and so favourable the climate, that, since the three or four years of hardship in the first settlement of our fathers here, a famine or scarcity has never been heard of amongst us; on the contrary, though some years may have been more, and others less plentiful, there has always been provision enough for ourselves, and a quantity to spare for exportation. And although the crops of last year were generally good, never was the farmer better paid for the part he can spare commerce, as the published price currents abundantly testify. The lands he possesses are also continually rising in value with the increase of population; and, on the whole, he is enabled to give such good wages to those who work for him, that all who are acquainted with the old world must agree, that in no part of it are the labouring poor so generally well fed, well clothed, well lodged, and well paid, as in the United States of America.

If we enter the cities, we find, that, since the revolution, the owners of houses and lots of ground have had their interest vastly augmented in value; rents have risen to an astonishing height, and thence encouragement to increase building, which gives employment to an abundance of workmen, as does also the increased luxury and splendour of living of the inhabitants, thus made richer. These workmen all demand and obtain much higher wages than any other part of the world would afford them, and are paid in ready money. This rank of people therefore do not, or ought not, to complain of hard times; and they make a very considerable part of the city inhabitants.

At the distance I live from our American fisheries, I cannot speak of them with any degree of certainty; but I have not heard, that the labour of the valuable race of men employed in them is worse paid, or that they meet

with less success, than before the revolution. The whale-men indeed have been deprived of one market for their oil; but another, I hear, is opening for them, which it is hoped may be equally advantageous; and the demand is constantly increasing for their spermaceti candles, which therefore bear a much higher price than formerly.

There remain the merchants and shopkeepers. Of these, though they make but a small part of the whole nation, the number is considerable, too great indeed for the business they are employed in; for the consumption of goods in every country has its limits; the faculties of the people, that is, their ability to buy and pay, being equal only to a certain quantity of merchandize. If merchants calculate amiss on this proportion, and import too much, they will of course find the sale dull for the overplus, and some of them will say, that trade languishes. They should, and doubtless will, grow wiser by experience, and import less. If too many artificers in town, and farmers from the country, flattering themselves with the idea of leading easier lives, turn shopkeepers, the whole natural quantity of that business divided among them all may afford too small a share for each, and occasion complaints, that trading is dead; these may also suppose, that it is owing to scarcity of money, while, in fact, it is not so much from the fewness of buyers, as from the excessive number of sellers, that the mischief arises; and, if every shopkeeping farmer and mechanic would return to the use of his plough and working tools, there would remain of widows, and other women, shopkeepers sufficient for the business, which might then afford them a comfortable maintenance.

Whoever has travelled through the various parts of Europe, and observed how small is the proportion of people in affluence or easy circumstances there, compared with those in poverty and misery; the few rich and haughty landlords, the multitude of poor, abject, rack-rented, tythe-paying tenants, and half-paid and half-starved ragged labourers; and views here the happy mediocrity, that so generally prevails throughout these states, where the cultivator works for himself, and supports his family in decent plenty, will, methinks, see abundant reason to bless Divine Providence for the evident and great difference in our favour, and be convinced, that no nation known to us enjoys a greater share of human felicity.

It is true, that in some of the states there are parties and discords; but let us look back, and ask if we were ever without them? Such will exist

wherever there is liberty; and perhaps they help to preserve it. By the collision of different sentiments, sparks of truth are struck out, and political light is obtained. The different factions, which at present divide us, aim all at the public good: the differences are only about the various modes of promoting it. Things, actions, measures, and objects of all kinds, present themselves to the minds of men in such a variety of lights, that it is not possible we should all think alike at the same time on every subject, when hardly the same man retains at all times the same ideas of it. Parties are therefore the common lot of humanity; and ours are by no means more mischievous or less beneficial than those of other countries, nations, and ages, enjoying in the same degree the great blessing of political liberty.

Some indeed among us are not so much grieved for the present state of our affairs, as apprehensive for the future. The growth of luxury alarms them, and they think we are from that alone in the high road to ruin. They observe, that no revenue is sufficient without economy, and that the most plentiful income of a whole people from the natural productions of their country may be dissipated in vain and needless expences, and poverty be introduced in the place of affluence. This may be possible. It however rarely happens: for there seems to be in every nation a greater proportion of industry and frugality, which tend to enrich, than of idleness and prodigality, which occasion poverty; so that upon the whole there is a continual accumulation. Reflect what Spain, Gaul, Germany, and Britain were in the time of the Romans, inhabited by people little richer than our savages, and consider the wealth they at present possess, in numerous well-built cities, improved farms, rich moveables, magazines stocked with valuable manufactures, to say nothing of plate jewels, and coined money; and all this, notwithstanding their bad, wasteful, plundering governments, and their mad destructive wars; and yet luxury and extravagant living has never suffered much restraint in those countries. Then consider the great proportion of industrious frugal farmers inhabiting the interior parts of these American states, and of whom the body of our nation consists, and judge whether it is possible, that the luxury of our sea-ports can be sufficient to ruin such a country.—If the importation of foreign luxuries could ruin a people, we should probably have been ruined long ago; for the British nation claimed a right, and practised it, of importing among us not only the superfluities of their own production, but those of every nation under heaven; we bought and consumed them, and yet we flourished and grew

rich. At present our independent governments may do what we could not then do, discourage by heavy duties, or prevent by heavy prohibitions, such importations, and thereby grow richer; if, indeed, which may admit of dispute, the desire of adorning ourselves with fine clothes, possessing fine furniture, with elegant houses, &c. is not, by strongly inciting to labour and industry, the occasion of producing a greater value, than is consumed in the gratification of that desire.

The agriculture and fisheries of the United States are the great sources of our increasing wealth. He that puts a seed into the earth is recompensed, perhaps, by receiving forty out of it; and he who draws a fish out of our water, draws up a piece of silver.

Let us (and there is no doubt but we shall) be attentive to these, and then the power of rivals, with all their restraining and prohibiting acts, cannot much hurt us. We are sons of the earth and seas, and, like Antæus in the fable, if, in wrestling with a Hercules, we now and then receive a fall, the touch of our parents will communicate to us fresh strength and vigour to renew the contest.

Information to those who would remove to America.

Many persons in Europe having directly or by letters, expressed to the writer of this, who is well acquainted with North-America, their desire of transporting and establishing themselves in that country; but who appear to him to have formed, through ignorance, mistaken ideas and expectations of what is to be obtained there; he thinks it may be useful, and prevent inconvenient, expensive, and fruitless removals and voyages of improper persons, if he gives some clearer and truer notions of that part of the world, than appear to have hitherto prevailed.

He finds it is imagined by numbers, that the inhabitants of North America are rich, capable of rewarding, and disposed to reward, all sorts of ingenuity; that they are at the same time ignorant of all the sciences, and consequently, that strangers, possessing talents in the belles-lettres, fine arts, &c. must be highly esteemed, and so well paid, as to become easily rich themselves; that there are also abundance of profitable offices to be disposed of, which the natives are not qualified to fill; and that, having few persons of family among them, strangers of birth must be greatly respected, and of course easily obtain the best of those offices, which will make all their fortunes: that the governments too, to encourage emigrations from Europe, not only pay the expence of personal transportation, but give lands gratis to strangers, with negroes to work for them, utensils of husbandry, and stocks of cattle. These are all wild imaginations; and those who go to America with expectations founded upon them will surely find themselves disappointed.

The truth is, that though there are in that country few people so miserable as the poor of Europe, there are also very few that in Europe would be called rich; it is rather a general happy mediocrity that prevails. There are few great proprietors of the soil, and few tenants; most people cultivate their own lands, or follow some handicraft or merchandise; very few rich enough to live idly upon their rents or incomes, or to pay the high prices given in Europe for painting, statues, architecture, and the other works of art, that are more curious than useful. Hence the natural geniuses, that have arisen in America with such talents, have uniformly quitted that country for Europe, where they can be more suitably rewarded. It is true, that letters

and mathematical knowledge are in esteem there, but they are at the same time more common than is apprehended; there being already existing nine colleges or universities, viz. four in New England, and one in each of the provinces of New York, New Jersey, Pennsylvania, Maryland, and Virginia, all furnished with learned professors; besides a number of smaller academies: these educate many of their youth in the languages, and those sciences that qualify men for the professions of divinity, law, or physic. Strangers indeed are by no means excluded from exercising those professions; and the quick increase of inhabitants every where gives them a chance of employ, which they have in common with the natives. Of civil offices, or employments, there are few; no superfluous ones, as in Europe; and it is a rule established in some of the states, that no office should be so profitable as to make it desirable. The thirty-sixth article of the constitution of Pennsylvania runs expressly in these words: "As every freeman, to preserve his independence (if he has not a sufficient estate) ought to have some profession, calling, trade, or farm, whereby he may honestly subsist, there can be no necessity for, nor use in, establishing offices of profit; the usual effects of which are dependence and servility, unbecoming freemen, in the possessors and expectants; faction, contention, corruption, and disorder among the people. Wherefore, whenever an office, through increase of fees or otherwise, becomes so profitable, as to occasion many to apply for it, the profits ought to be lessened by the legislature."

These ideas prevailing more or less in all the United States, it cannot be worth any man's while, who has a means of living at home, to expatriate himself, in hopes of obtaining a profitable civil office in America; and as to military offices, they are at an end with the war, the armies being disbanded. Much less is it adviseable for a person to go thither, who has no other quality to recommend him but his birth. In Europe it has indeed its value; but it is a commodity that cannot be carried to a worse market than to that of America, where people do not enquire concerning a stranger, *What is he?* but *What can he do?* If he has any useful art, he is welcome; and if he exercises it, and behaves well, he will be respected by all that know him; but a mere man of quality, who on that account wants to live upon the public by some office or salary, will be despised and disregarded. The husbandman is in honour there, and even the mechanic, because their employments are useful. The people have a saying, that God Almighty is himself a mechanic, the greatest in the universe; and he is respected and

admired more for the variety, ingenuity, and utility of his handiworks, than for the antiquity of his family. They are pleased with the observation of a negro, and frequently mention it, that Boccarora (meaning the white man) make de black man workee, make de horse workee, make de ox workee, make ebery ting workee; only de hog. He de hog, no workee; he eat, he drink, he walk about, he go to sleep when he please, he libb like a gentleman. According to these opinions of the Americans, one of them would think himself more obliged to a genealogist, who could prove for him that his ancestors and relations for ten generations had been ploughmen, smiths, carpenters, turners, weavers, tanners, or even shoemakers, and consequently that they were useful members of society; than if he could only prove that they were gentlemen, doing nothing of value, but living idly on the labour of others, mere *fruges consumere nati*^[160], and otherwise *good for nothing*, till by their death their estates, like the carcase of the negro's gentleman-hog, come to be *cut up*.

With regard to encouragements for strangers from government, they are really only what are derived from good laws and liberty. Strangers are welcome, because there is room enough for them all, and therefore the old inhabitants are not jealous of them; the laws protect them sufficiently, so that they have no need of the patronage of great men; and every one will enjoy securely the profits of his industry. But if he does not bring a fortune with him, he must work and be industrious to live. One or two years residence give him all the rights of a citizen; but the government does not at present, whatever it may have done in former times, hire people to become settlers, by paying their passages, giving land, negroes, utensils, stock, or any other kind of emolument whatsoever. In short, America is the land of labour, and by no means what the English call Lubberland, and the French Pays de Cocagne, where the streets are said to be paved with half-peck loaves, the houses tiled with pancakes, and where the fowls fly about ready roasted, crying, *Come eat me!*

Who then are the kind of persons to whom an emigration to America may be advantageous? And what are the advantages they may reasonably expect?

Land being cheap in that country, from the vast forests still void of inhabitants, and not likely to be occupied in an age to come, insomuch that the propriety of an hundred acres of fertile soil full of wood may be

obtained near the frontiers, in many places, for eight or ten guineas, hearty young labouring men, who understand the husbandry of corn and cattle, which is nearly the same in that country as in Europe, may easily establish themselves there. A little money saved of the good wages they receive there, while they work for others, enables them to buy the land and begin their plantation, in which they are assisted by the good-will of their neighbours, and some credit. Multitudes of poor people from England, Ireland, Scotland, and Germany, have by this means in a few years become wealthy farmers, who, in their own countries, where all the lands are fully occupied, and the wages of labour low, could never have emerged from the mean condition wherein they were born.

From the salubrity of the air, the healthiness of the climate, the plenty of good provisions, and the encouragement to early marriages, by the certainty of subsistence in cultivating the earth, the increase of inhabitants by natural generation is very rapid in America, and becomes still more so by the accession of strangers; hence there is a continual demand for more artisans of all the necessary and useful kinds, to supply those cultivators of the earth with houses, and with furniture and utensils of the grosser sorts, which cannot so well be brought from Europe. Tolerably good workmen in any of those mechanic arts are sure to find employ, and to be well paid for their work, there being no restraints preventing strangers from exercising any art they understand, nor any permission necessary. If they are poor, they begin first as servants or journeymen; and if they are sober, industrious, and frugal, they soon become masters, establish themselves in business, marry, raise families, and become respectable citizens.

Also, persons of moderate fortunes and capitals, who, having a number of children to provide for, are desirous of bringing them up to industry, and to secure estates for their posterity, have opportunities of doing it in America, which Europe does not afford. There they may be taught and practise profitable mechanic arts, without incurring disgrace on that account, but on the contrary acquiring respect by such abilities. There small capitals laid out in lands, which daily become more valuable by the increase of people, afford a solid prospect of ample fortunes thereafter for those children. The writer of this has known several instances of large tracts of land, bought, on what was then the frontier of Pennsylvania, for ten pounds per hundred acres, which, when the settlements had been extended far

beyond them, sold readily, without any improvement made upon them, for three pounds per acre. The acre in America is the same with the English acre, or the acre of Normandy.

Those, who desire to understand the state of government in America, would do well to read the constitutions of the several states, and the articles of confederation that bind the whole together for general purposes, under the direction of one assembly, called the congress. These constitutions have been printed, by order of congress, in America; two editions of them have also been printed in London; and a good translation of them into French has lately been published at Paris.

Several of the princes of Europe of late, from an opinion of advantage to arise by producing all commodities and manufactures within their own dominions, so as to diminish or render useless their importations, have endeavoured to entice workmen from other countries, by high salaries, privileges, &c. Many persons, pretending to be skilled in various great manufactures, imagining, that America must be in want of them, and that the congress would probably be disposed to imitate the princes above mentioned, have proposed to go over, on condition of having their passages paid, lands given, salaries appointed, exclusive privileges for terms of years, &c. Such persons, on reading the articles of confederation, will find, that the congress have no power committed to them, or money put into their hands, for such purposes; and that if any such encouragement is given, it must be by the government of some separate state. This, however, has rarely been done in America; and when it has been done, it has rarely succeeded, so as to establish a manufacture, which the country was not yet so ripe for as to encourage private persons to set it up; labour being generally too dear there, and hands difficult to be kept together, every one desiring to be a master, and the cheapness of land inclining many to leave trades for agriculture. Some indeed have met with success, and are carried on to advantage; but they are generally such as require only a few hands, or wherein great part of the work is performed by machines. Goods that are bulky, and of so small value as not well to bear the expence of freight, may often be made cheaper in the country than they can be imported; and the manufacture of such goods will be profitable wherever there is a sufficient demand. The farmers in America produce indeed a good deal of wool and flax; and none is exported, it is all worked up; but it is in the way of

domestic manufacture, for the use of the family. The buying up quantities of wool and flax, with the design to employ spinners, weavers, &c. and form great establishments, producing quantities of linen and woollen goods for sale, has been several times attempted in different provinces; but those projects have generally failed, goods of equal value being imported cheaper. And when the governments have been solicited to support such schemes by encouragements, in money, or by imposing duties on importation of such goods, it has been generally refused, on this principle, that if the country is ripe for the manufacture, it may be carried on by private persons to advantage; and if not, it is a folly to think of forcing nature. Great establishments of manufacture require great numbers of poor to do the work for small wages; those poor are to be found in Europe, but will not be found in America, till the lands are all taken up and cultivated, and the excess of people, who cannot get land, want employment. The manufacture of silk, they say, is natural in France, as that of cloth in England, because each country produces in plenty the first material: but if England will have a manufacture of silk as well as that of cloth, and France of cloth as well as that of silk, these unnatural operations must be supported by mutual prohibitions, or high duties on the importation of each other's goods; by which means the workmen are enabled to tax the home consumer by greater prices, while the higher wages they receive makes them neither happier nor richer, since they only drink more and work less. Therefore the governments in America do nothing to encourage such projects. The people, by this means, are not imposed on either by the merchant or mechanic: if the merchant demands too much profit on imported shoes, they buy of the shoe-maker; and if he asks too high a price, they take them of the merchant: thus the two professions are checks on each other. The shoemaker, however, has, on the whole, a considerable profit upon his labour in America, beyond what he had in Europe, as he can add to his price a sum nearly equal to all the expences of freight and commission, risque or insurance, &c. necessarily charged by the merchant. And the case is the same with the workmen in every other mechanic art. Hence it is, that artisans generally live better and more easily in America than in Europe; and such as are good economists make a comfortable provision for age, and for their children. Such may, therefore, remove with advantage to America.

In the old long-settled countries of Europe, all arts, trades, professions, farms, &c. are so full, that it is difficult for a poor man who has children to

place them where they may gain, or learn to gain, a decent livelihood. The artisans, who fear creating future rivals in business, refuse to take apprentices, but upon conditions of money, maintenance, or the like, which the parents are unable to comply with. Hence the youth are dragged up in ignorance of every gainful art, and obliged to become soldiers, or servants, or thieves, for a subsistence. In America, the rapid increase of inhabitants takes away that fear of rivalry, and artisans willingly receive apprentices from the hope of profit by their labour, during the remainder of the time stipulated, after they shall be instructed. Hence it is easy for poor families to get their children instructed; for the artisans are so desirous of apprentices, that many of them will even give money to the parents, to have boys from ten to fifteen years of age bound apprentices to them, till the age of twenty-one; and many poor parents have, by that means, on their arrival in the country, raised money enough to buy land sufficient to establish themselves, and to subsist the rest of their family by agriculture. These contracts for apprentices are made before a magistrate, who regulates the agreement according to reason and justice, and, having in view the formation of a future useful citizen, obliges the master to engage by a written indenture, not only that, during the time of service stipulated, the apprentice shall be duly provided with meat, drink, apparel, washing, and lodging, and at its expiration with a complete new suit of clothes, but also, that he shall be taught to read, write, and cast accounts; and that he shall be well instructed in the art or profession of his master, or some other, by which he may afterwards gain a livelihood, and be able in his turn to raise a family. A copy of this indenture is given to the apprentice or his friends, and the magistrate keeps a record of it, to which recourse may be had, in case of failure by the master in any point of performance. This desire among the masters, to have more hands employed in working for them, induces them to pay the passages of young persons, of both sexes, who, on their arrival, agree to serve them one, two, three, or four years; those who have already learned a trade, agreeing for a shorter term, in proportion to their skill, and the consequent immediate value of their service; and those who have none, agreeing for a longer term, in consideration of being taught an art their poverty would not permit them to acquire in their own country.

The almost general mediocrity of fortune that prevails in America, obliging its people to follow some business for subsistence, those vices, that arise usually from idleness, are in a great measure prevented. Industry and

constant employment are great preservatives of the morals and virtue of a nation. Hence bad examples to youth are more rare in America, which must be a comfortable consideration to parents. To this may be truly added, that serious religion, under its various denominations, is not only tolerated, but respected and practised. Atheism is unknown there; infidelity rare and secret; so that persons may live to a great age in that country, without having their piety shocked by meeting with either an atheist or an infidel. And the Divine Being seems to have manifested his approbation of the mutual forbearance and kindness with which the different sects treat each other, by the remarkable prosperity with which he has been pleased to favour the whole country.

FOOTNOTE:

[\[160\]](#)

... born
Merely to eat up the corn. WATTS.

TO THE EARL OF BUCHAN^[161].

Concerning new Settlements in America.

Passy, March 17, 1783.

MY LORD,

I received the letter your lordship did me the honour of writing to me the 18th past, and am much obliged by your kind congratulations on the return of peace, which I hope will be lasting.

With regard to the terms on which lands may be acquired in America, and the manner of beginning new settlements on them, I cannot give better information than may be found in a book lately printed at London, under some such title as—*Letters from a Pensylvanian Farmer*, by Hector St. John. The only encouragement we hold out to strangers are, *a good climate, fertile soil, wholesome air and water, plenty of provisions and food, good pay for labour, kind neighbours, good laws, and a hearty welcome*. The rest depends on a man's own industry and virtue. Lands are cheap, but they must be bought. All settlements are undertaken at private expence; the public contributes nothing but defence and justice. I have long observed of your people, that their sobriety, frugality, industry and honesty, seldom fail of success in America, and of procuring them a good establishment among us.

I do not recollect the circumstance you are pleased to mention, of my having saved a citizen at St. Andrew's by giving a turn to his disorder; and I am curious to know, what the disorder was, and what the advice I gave, that proved so salutary^[162]. With great regard I have the honour to be, my lord, your lordship's most obedient and most humble servant,

B. FRANKLIN.

FOOTNOTES:

[161] From the Gentleman's Magazine, for July, 1794, to which it was communicated by the nobleman to whom it is addressed. *Editor.*

[162] It was a fever in which the Earl of Buchan, then lord Cadross, lay sick at St. Andrew's; and the advice was, not to blister, according to the old practice and the opinion of the learned Dr. Simson, brother of the celebrated geometrician at Glasgow. B.

A Comparison of the Conduct of the Ancient Jews, and of the Antifederalists in the United States of America.^[163]

A zealous advocate for the proposed federal constitution in a certain public assembly said, that "the repugnance of a great part of mankind to good government was such, that he believed, that if an angel from heaven was to bring down a constitution, formed there for our use, it would nevertheless meet with violent opposition." He was reproved for the supposed extravagance of the sentiment, and he did not justify it. Probably it might not have immediately occurred to him, that the experiment had been tried, and that the event was recorded in the most faithful of all histories, the Holy Bible; otherwise he might, as it seems to me, have supported his opinion by that unexceptionable authority.

The Supreme Being had been pleased to nourish up a single family, by continued acts of his attentive providence, till it became a great people: and having rescued them from bondage by many miracles, performed by his servant Moses, he personally delivered to that chosen servant, in presence of the whole nation, a constitution and code of laws for their observance, accompanied and sanctioned with promises of great rewards, and threats of severe punishments, as the consequence of their obedience or disobedience.

This constitution, though the Deity himself was to be at its head (and it is therefore called by political writers a theocracy) could not be carried into execution but by the means of his ministers; Aaron and his sons were therefore commissioned to be, with Moses, the first established ministry of the new government.

One would have thought, that the appointment of men, who had distinguished themselves in procuring the liberty of their nation, and had hazarded their lives in openly opposing the will of a powerful monarch, who would have retained that nation in slavery, might have been an appointment acceptable to a grateful people; and that a constitution, framed for them by the Deity himself, might on that account have been secure of an universal welcome reception. Yet there were, in every one of the thirteen

tribes, some discontented, restless spirits, who were continually exciting them to reject the proposed new government, and this from various motives.

Many still retained an affection for Egypt, the land of their nativity, and these, whenever they felt any inconvenience or hardship, though the natural and unavoidable effect of their change of situation, exclaimed against their leaders as the authors of their trouble: and were not only for returning into Egypt, but for stoning their deliverers^[164]. Those inclined to idolatry were displeased that their golden calf was destroyed. Many of the chiefs thought the new constitution might be injurious to their particular interests, that the profitable places would be *engrossed by the families and friends of Moses and Aaron*, and others, equally well born, excluded.^[165]—In Josephus, and the Talmud, we learn some particulars, not so fully narrated in the scripture. We are there told, that Corah was ambitious of the priesthood, and offended that it was conferred on Aaron; and this, as he said, by the authority of Moses only, *without the consent of the people*. He accused Moses of having, by various artifices, fraudulently obtained the government, and deprived the people of their liberties, and of conspiring with Aaron to perpetuate the tyranny in their family. Thus, though Corah's real motive was the supplanting of Aaron, he persuaded the people, that he meant only the public good; and they, moved by his insinuations, began to cry out, "Let us maintain the common liberty of our *respective tribes*; we have freed ourselves from the slavery imposed upon us by the Egyptians, and shall we suffer ourselves to be made slaves by Moses? If we must have a master, it were better to return to Pharaoh, who at least fed us with bread and onions, than to serve this new tyrant, who, by his operations, has brought us into danger of famine." Then they called in question the *reality of his conference* with God, and objected to the privacy of the meetings, and the preventing any of the people from being present at the colloquies, or even approaching the place, as grounds of great suspicion. They accused Moses also of *peculation*, as embezzling part of the golden spoons and the silver chargers, that the princes had offered at the dedication of the altar^[166], and the offerings of gold by the common people^[167], as well as most of the poll tax^[168]; and Aaron they accused of pocketing much of the gold of which he pretended to have made a molten calf. Besides peculation, they charged Moses with *ambition*; to gratify which passion, he had, they said, deceived the people, by promising to bring them to a land flowing with milk and

honey; instead of doing which, he had brought them *from* such a land; and that he thought light of all this mischief, provided he could make himself an *absolute prince*^[169]. That, to support the new dignity with splendour in his family, the partial poll tax, already levied and given to Aaron^[170], was to be followed by a general one^[171], which would probably be augmented from time to time, if he were suffered to go on promulgating new laws, on pretence of new occasional revelations of the divine will, till their whole fortunes were devoured by that aristocracy.

Moses denied the charge of peculation, and his accusers were destitute of proofs to support it; though *facts*, if real, are in their nature capable of proof. "I have not," said he (with holy confidence in the presence of God), "I have not taken from this people the value of an ass, nor done them any other injury." But his enemies had made the charge, and with some success among the populace; for no kind of accusation is so readily made, or easily believed, by knaves, as the accusation of knavery.

In fine, no less than two hundred and fifty of the principal men "famous in the congregation, men of renown^[172]," heading and exciting the mob, worked them up to such a pitch of phrenzy, that they called out, stone 'em, stone 'em, and thereby secure our liberties; and let us choose other captains, that may lead us back into Egypt, in case we do not succeed in reducing the Canaanites.

On the whole, it appears, that the Israelites were a people jealous of their newly acquired liberty, which jealousy was in itself no fault; but that, when they suffered it to be worked upon by artful men, pretending public good, with nothing really in view but private interest, they were led to oppose the establishment of the new constitution, whereby they brought upon themselves much inconvenience and misfortune. It farther appears, from the same inestimable history, that when, after many ages, the constitution had become old and much abused, and an amendment of it was proposed, the populace, as they had accused Moses of the ambition of making himself a prince, and cried out, stone him, stone him; so, excited by their high-priests and scribes, they exclaimed against the Messiah, that he aimed at becoming king of the Jews, and cried, crucify him, crucify him. From all which we may gather, that popular opposition to a public measure is no proof of its

impropriety, even though the opposition be excited and headed by men of distinction.

To conclude, I beg I may not be understood to infer, that our general convention was divinely inspired when it formed the new federal constitution, merely because that constitution has been unreasonably and vehemently opposed: yet, I must own, I have so much faith in the general government of the world by Providence, that I can hardly conceive a transaction of such momentous importance to the welfare of millions now existing, and to exist in the posterity of a great nation, should be suffered to pass without being in some degree influenced, guided and governed by that omnipotent, omnipresent and beneficent ruler, in whom all inferior spirits live, and move, and have their being.

FOOTNOTES:

[163] From the Repository, vol. II. p. 313. *Editor*.

[164] Numbers, chap. xiv.

[165] Numbers, chap. xvi. ver. 3. "And they gathered themselves together against Moses and against Aaron, and said unto them, ye take too much upon you, seeing all the congregations are holy, every one of them,—wherefore then lift ye up yourselves above the congregation."

[166] Numbers, chap. vii.

[167] Exodus, chapter xxxv. ver. 22.

[168] Numbers, chap. iii. and Exodus, chap. xxx.

[169] Numbers, chap. xvi. ver. 13. "Is it a small thing that thou hast brought us up out of a land flowing with milk and honey, to kill us in this wilderness, except thou make thyself altogether a prince over us?"

[170] Numbers, chap. iii.

[171] Exodus, chap. xxx.

[172] Numbers, chap. xvi.

MR. PRESIDENT,

I confess that I do not entirely approve of this constitution at present: but, Sir, I am not sure I shall never approve it; for having lived long, I have experienced many instances of being obliged, by better information, or fuller consideration, to change opinions, even on important subjects, which I once thought right, but found to be otherwise. It is, therefore, that, the older I grow, the more apt I am to doubt my own judgment, and to pay more respect to the judgment of others. Most men, indeed, as well as most sects in religion, think themselves in possession of all truth, and that whenever others differ from them, it is so far error. Steel, a protestant, in a dedication, tells the pope, that "the only difference between our two churches, in their opinions of the certainty of their doctrines is, the Romish church is infallible, and the church of England never in the wrong." But, though many private persons think almost as highly of their own infallibility as of that of their sect, few express it so naturally as a certain French lady, who, in a little dispute with her sister, said, I don't know how it happens, sister, but I meet with nobody but myself that is always in the right. *Il n'y a que moi qui a toujours raison.* In these sentiments, Sir, I agree to this constitution, with all its faults, if they are such, because I think a general government necessary for us, and there is no form of government but what may be a blessing, if well administered; and I believe farther, that this is likely to be well administered for a course of years, and can only end in despotism, as other forms have done before it, when the people shall become so corrupted as to need despotic government, being incapable of any other. I doubt too, whether any other convention we can obtain, may be able to make a better constitution. For when you assemble a number of men, to have the advantage of their joint wisdom, you inevitably assemble with those men, all their prejudices, their passions, their errors of opinion, their local interests, and their selfish views. From such an assembly can a perfect production be expected? It therefore astonishes me, sir, to find this system approaching so near to perfection as it does; and I think it will

astonish our enemies, who are waiting with confidence to hear, that our councils are confounded, like those of the builders of Babylon, and that our states are on the point of separation, only to meet hereafter for the purpose of cutting each other's throats.

Thus I consent, sir, to this constitution, because I expect no better, and because I am not sure, that this is not the best. The opinions I have had of its errors, I sacrifice to the public good. I have never whispered a syllable of them abroad. Within these walls they were born, and here they shall die. If every one of us, in returning to our constituents, were to report the objections he has had to it, and endeavour to gain partisans in support of them, we might prevent its being generally received, and thereby lose all the salutary effects and great advantages resulting naturally in our favour among foreign nations, as well as among ourselves, from our real or apparent unanimity. Much of the strength and efficiency of any government, in procuring and securing happiness to the people, depends on opinion, on the general opinion of the goodness of that government, as well as of the wisdom and integrity of its governors.

I hope therefore, that for our own sakes, as part of the people, and for the sake of our posterity, we shall act heartily and unanimously in recommending this constitution, wherever our influence may extend, and turn our future thoughts and endeavours to the means of having it well administered.

On the whole, sir, I cannot help expressing a wish, that every member of the convention, who may still have objections, would with me, on this occasion, doubt a little of his own infallibility, and, to make manifest our unanimity, put his name to this instrument.

[The motion was then made for adding the last formula, viz.

Done in Convention, by the unanimous consent, &c. which was agreed to, and added accordingly.]

FOOTNOTE:

[\[173\]](#) From the American Museum, vol. II. p. 558. *Editor.*

PAPERS
ON
MORAL SUBJECTS
AND
THE ECONOMY OF LIFE.

PAPERS
ON
MORAL SUBJECTS
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FROM THE AMERICAN WEEKLY MERCURY, FROM TUESDAY, JANUARY 28, TO
TUESDAY, FEBRUARY 4, 1728,—9.

MR. ANDREW BRADFORD,

I design this to acquaint you, that I, who have long been one of your courteous readers, have lately entertained some thought of setting up for an author myself; not out of the least vanity, I assure you, or desire of showing my parts, but purely for the good of my country.

I have often observed with concern, that your Mercury is not always equally entertaining. The delay of ships expected in, and want of fresh advices from Europe, make it frequently very dull; and I find the freezing of our river has the same effect on news as trade.—With more concern have I continually observed the growing vices and follies of my country folk: and though reformation is properly the concern of every man, that is, every one ought to mend one; yet it is too true in this case, that what is every body's business is no body's business, and the business is done accordingly. I therefore, upon mature deliberation, think fit to take no body's business wholly into my own hands; and, out of zeal for the public good, design to erect myself into a kind of censor morum; purposing, with your allowance, to make use of the Weekly Mercury as a vehicle, in which my remonstrances shall be conveyed to the world.

I am sensible I have, in this particular, undertaken a very unthankful office, and expect little besides my labour for my pains. Nay, it is probable, I may displease a great number of your readers, who will not very well like to pay ten shillings a year for being told of their faults. But as most people delight in censure, when they themselves are not the objects of it, if any are offended at my publicly exposing their private vices, I promise they shall have the satisfaction, in a very little time, of seeing their good friends and neighbours in the same circumstances.

However, let the fair sex be assured, that I shall always treat them and their affairs with the utmost decency and respect. I intend now and then to dedicate a chapter wholly to their service; and if my lectures any way

contribute to the embellishment of their minds, and brightening of their understandings, without offending their modesty, I doubt not of having their favour and encouragement.

It is certain, that no country in the world produces naturally finer spirits than ours, men of genius for every kind of science, and capable of acquiring to perfection every qualification, that is in esteem among mankind. But as few here have the advantage of good books, for want of which, good conversation is still more scarce, it would, doubtless, have been very acceptable to your readers, if, instead of an old out-of-date article from Muscovy or Hungary, you had entertained them with some well chosen extract from a good author. This I shall sometimes do, when I happen to have nothing of my own to say that I think of more consequence. Sometimes, I purpose to deliver lectures of morality of philosophy, and (because I am naturally inclined to be meddling with things that do not concern me) perhaps I may sometimes talk politics. And if I can by any means furnish out a weekly entertainment for the public, that will give a rational diversion, and at the same time be instructive to the readers, I shall think my leisure hours well employed: and if you publish this, I hereby invite all ingenious gentlemen and others (that approve of such an undertaking) to my assistance and correspondence.

It is like, by this time, you have a curiosity to be acquainted with my name and character. As I do not aim at public praise, I design to remain concealed: and there are such numbers of our family and relations at this time in the country, that, though I have signed my name at full length, I am not under the least apprehension of being distinguished and discovered by it. My character indeed, I would favour you with, but that I am cautious of praising myself, lest I should be told my trumpeter's dead: and I cannot find in my heart, at present, to say any thing to my own disadvantage.

It is very common with authors in their first performances, to talk to their readers thus, If this meets with a suitable reception, or, if this should meet with due encouragement, I shall hereafter publish, &c.—This only manifests the value they put on their own writings, since they think to frighten the public into their applause, by threatening, that unless you approve what they have already wrote, they intend never to write again; when perhaps it may not be a pin matter, whether they ever do or no. As I have not observ'd the critics to be more favourable on this account, I shall

always avoid saying any thing of the kind; and conclude with telling you, that if you send me a bottle of ink and a quire of paper by the bearer, you may depend on hearing further from,

Sir,

Your most humble servant,

THE BUSY-BODY.

The Busy-Body.—No. II.

FROM TUESDAY, FEBRUARY 4, TO TUESDAY, FEBRUARY 11, 1728,—9.

All fools have still an itching to deride,
And fain would be upon the laughing side.—POPE.

Monsieur Rochefocault tells us somewhere in his Memoirs, that the Prince of Condé delighted much in ridicule, and used frequently to shut himself up for half a day together, in his chamber, with a gentleman, that was his favourite, purposely to divert himself with examining what was the foible, or ridiculous side, of every noted person in the court. That gentleman said afterwards in some company, that he thought nothing was more ridiculous in any body, than this same humour in the prince; and I am somewhat inclined to be of this opinion. The general tendency there is among us to this embellishment (which I fear has too often grossly imposed upon my loving countrymen instead of wit) and the applause it meets with from a rising generation, fill me with fearful apprehensions for the future reputation of my country: a young man of modesty (which is the most certain indication of large capacities) is hereby discouraged from attempting to make any figure in life: his apprehensions of being outlaughed, will force him to continue in a restless obscurity, without having an opportunity of knowing his own merit himself, or discovering it to the world, rather than venture to expose himself in a place, where a pun or a sneer shall pass for wit, noise for reason, and the strength of the argument be judged by that of the lungs. Among these witty gentlemen let us take a view of Ridentius:

what a contemptible figure does he make with his train of paltry admirers? This wight shall give himself an hour's diversion with the cock of a man's hat, the heels of his shoes, an unguarded expression in his discourse, or even some personal defect; and the height of his low ambition is to put some one of the company to the blush, who perhaps must pay an equal share of the reckoning with himself. If such a fellow makes laughing the sole end and purpose of his life, if it is necessary to his constitution, or if he has a great desire of growing suddenly fat, let him eat; let him give public notice where any dull stupid rogues may get a quart of four-penny for being laugh'd at; but it is barbarously unhandsome, when friends meet for the benefit of conversation, and a proper relaxation from business, that one should be the butt of the company, and four men made merry at the cost of the fifth.

How different from this character is that of the good-natured, gay Eugenius? who never spoke yet but with a design to divert and please; and who was never yet baulked in his intention. Eugenius takes more delight in applying the wit of his friends, than in being admired himself: and if any one of the company is so unfortunate as to be touched a little too nearly, he will make use of some ingenious artifice to turn the edge of ridicule another way, chusing rather to make himself a public jest, than be at the pain of seeing his friend in confusion.

Among the tribe of laughers I reckon the pretty gentlemen, that write satyrs, and carry them about in their pockets, reading them themselves in all company they happen into; taking an advantage of the ill taste of the town, to make themselves famous for a pack of paltry, low nonsense, for which they deserve to be kicked, rather than admired, by all who have the least tincture of politeness. These I take to be the most incorrigible of all my readers; nay, I expect they will be squibbing at the Busy-Body himself. However, the only favour he begs of them is this, that if they cannot controul their overbearing itch of scribbling, let him be attacked in downright biting lyricks; for there is no satyr he dreads half so much, as an attempt towards a panegyrick.

FROM TUESDAY, FEBRUARY 11, TO TUESDAY, FEBRUARY 18, 1728,—9.

Non vultus instantis Tyranni
Mente quatit solida, nec auster,
Dux inquieti turbidus Adriæ,
Nec fulminantis magna Jovis manus.—HOR.

It is said, that the Persians, in their ancient constitution, had public schools, in which virtue was taught as a liberal art or science: and it is certainly of more consequence to a man, that he has learnt to govern his passions; in spite of temptation, to be just in his dealings, to be temperate in his pleasures, to support himself with fortitude under his misfortunes, to behave with prudence in all his affairs, and in every circumstance of life; I say, it is of much more real advantage to him to be thus qualified, than to be a master of all the arts and sciences in the world beside.

Virtue alone is sufficient to make a man great, glorious, and happy.—He that is acquainted with Cato, as I am, cannot help thinking as I do now, and will acknowledge he deserves the name, without being honoured by it. Cato is a man whom fortune has placed in the most obscure part of the country. His circumstances are such, as only put him above necessity, without affording him many superfluities: yet who is greater than Cato? I happened but the other day to be at a house in town, where, among others, were met, men of the most note in this place; Cato had business with some of them, and knocked at the door. The most trifling actions of a man, in my opinion, as well as the smallest features and lineaments of the face, give a nice observer some notion of his mind. Methought he rapped in such a peculiar manner, as seemed of itself to express there was one who deserved as well as desired admission. He appeared in the plainest country garb; his great coat was coarse, and looked old and thread bare; his linen was homespun; his beard, perhaps, of seven days growth; his shoes thick and heavy; and every part of his dress corresponding. Why was this man received with such concurring respect from every person in the room, even from those, who had never known him or seen him before? It was not an exquisite form of person or grandeur of dress, that struck us with admiration. I believe long habits of virtue have a sensible effect on the countenance: there was something in the air of his face, that manifested the true greatness of his mind; which likewise appeared in all he said, and in every part of his behaviour, obliging us to regard him with a kind of veneration. His aspect is

sweetened with humanity and benevolence, and at the same time emboldened with resolution, equally free from diffident bashfulness and an unbecoming assurance. The consciousness of his own innate worth and unshaken integrity renders him calm and undaunted in the presence of the most great and powerful, and upon the most extraordinary occasions. His strict justice and known impartiality make him the arbitrator and decider of all differences, that arise for many miles around him, without putting his neighbours to the charge, perplexity, and uncertainty of law-suits. He always speaks the thing he means, which he is never afraid or ashamed to do, because he knows he always means well; and therefore is never obliged to blush, and feel the confusion of finding himself detected in the meanness of a falsehood. He never contrives ill against his neighbour, and therefore is never seen with a lowring, suspicious aspect. A mixture of innocence and wisdom makes him ever seriously cheerful. His generous hospitality to strangers, according to his ability, his goodness, his charity, his courage in the cause of the oppressed, his fidelity in friendship, his humility, his honesty and sincerity, his moderation and his loyalty to the government, his piety, his temperance, his love to mankind, his magnanimity, his public spiritedness, and, in fine, his consummate virtue, make him justly deserve to be esteemed the glory of his country.

The brave do never shun the light,
Just are their thoughts, and open are their tempers;
Freely without disguise they love and hate;
Still are they found in the fair face of day,
And heaven and men are judges of their actions.—ROWE.

Who would not rather choose, if it were in his choice, to merit the above character, than be the richest, the most learned, or the most powerful man in the province without it?

Almost every man has a strong natural desire of being valued and esteemed by the rest of his species; but I am concerned and grieved to see how few fall into the right and only infallible method of becoming so. That laudable ambition is too commonly misapply'd and often ill employed. Some, to make themselves considerable, pursue learning; others grasp at wealth; some aim at being thought witty; and others are only careful to make the most of an handsome person: but what is wit, or wealth, or form, or learning, when compared with virtue? It is true, we love the handsome, we applaud the learned, and we fear the rich and powerful; but we even

worship and adore the virtuous. Nor is it strange; since men of virtue are so rare, so very rare to be found. If we were as industrious to become good, as to make ourselves great, we should become really great by being good, and the number of valuable men would be much increased; but it is a grand mistake to think of being great without goodness; and I pronounce it as certain, that there was never yet a truly great man, that was not at the same time truly virtuous.

O Cretico! thou sour philosopher! thou cunning statesman! thou art crafty, but far from being wise. When wilt thou be esteemed, regarded, and beloved like Cato? When wilt thou, among thy creatures, meet with that unfeigned respect and warm good-will that all men have for him? Wilt thou never understand, that the cringing, mean, submissive deportment of thy dependants, is (like the worship paid by Indians to the devil) rather through fear of the harm thou mayst do them, than out of gratitude for the favours they have received of thee? Thou art not wholly void of virtue; there are many good things in thee, and many good actions reported of thee. Be advised by thy friend: neglect those musty authors; let them be covered with dust, and moulder on their proper shelves; and do thou apply thyself to a study much more profitable, the knowledge of mankind and of thyself.

This is to give notice, that the Busy-Body strictly forbids all persons, from this time forward, of what age, sex, rank, quality, degree, or denomination soever, on any pretence, to inquire who is the author of this paper, on pain of his displeasure (his own near and dear relations only excepted).

It is to be observed, that if any bad characters happen to be drawn in the course of these papers, they mean no particular person, if they are not particularly applied.

Likewise, that the author is no party-man, but a general meddler.

N. B. Cretico lives in a neighbouring province.

FROM TUESDAY, FEBRUARY 18, TO TUESDAY, FEBRUARY 25, 1728,—9.

Nequid nimis.

In my first paper, I invited the learned and the ingenious to join with me in this undertaking; and I now repeat that invitation. I would have such gentlemen take this opportunity (by trying their talent in writing) of diverting themselves and friends, and improving the taste of the town. And because I would encourage all wit of our own growth and produce, I hereby promise, that whoever shall send me a little essay on some moral or other subject, that is fit for public view in this manner, (and not basely borrowed from any other author) I shall receive it with candour, and take care to place it to the best advantage. It will be hard, if we cannot muster up in the whole country a sufficient stock of sense to supply the Busy-Body at least for a twelve-month. For my own part, I have already professed, that I have the good of my country wholly at heart in this design, without the least sinister view; my chief purpose being to inculcate the noble principles of virtue, and depreciate vice of every kind. But as I know the mob hate instruction, and the generality would never read beyond the first line of my lectures, if they were actually filled with nothing but wholesome precepts and advice, I must therefore sometimes humour them in their own way. There are a set of great names in the province, who are the common objects of popular dislike. If I can now and then overcome my reluctance, and prevail with myself to satirize a little, one of these gentlemen, the expectation of meeting with such a gratification will induce many to read me through, who would otherwise proceed immediately to the foreign news. As I am very well assured the greatest men among us have a sincere love for their country, notwithstanding its ingratitude, and the insinuations of the envious and malicious to the contrary, so I doubt not but they will cheerfully tolerate me in the liberty I design to take for the end abovementioned.

As yet I have but few correspondents, though they begin now to increase. The following letter, left for me at the printer's, is one of the first I have received, which I regard the more for that it comes from one of the fair sex, and because I have myself oftentimes suffered under the grievance therein complained of.

To the Busy-Body.

SIR,

You having set yourself up for a censoror morum (as I think you call it) which is said to mean a reformer of manners, I know no person more proper to be applied to for redress in all the grievances we suffer from want of manners in some people. You must know, I am a single woman, and keep a shop in this town for a livelihood. There is a certain neighbour of mine, who is really agreeable company enough, and with whom I have had an intimacy of some time standing; but of late she makes her visits so exceedingly often, and stays so very long every visit, that I am tired out of all patience. I have no manner of time at all to myself; and you, who seem to be a wise man, must needs be sensible, that every person has little secrets and privacies, that are not proper to be exposed even to the nearest friend. Now I cannot do the least thing in the world, but she must know about it; and it is a wonder I have found an opportunity to write you this letter. My misfortune is, that I respect her very well, and know not how to disoblige her so much as to tell her, I should be glad to have less of her company; for if I should once hint such a thing, I am afraid she would resent it so as never to darken my door again.—But alas, Sir, I have not yet told you half my affliction. She has two children that are just big enough to run about and do pretty mischief: these are continually along with mamma, either in my room or shop, if I have ever so many customers or people with me about business. Sometimes they pull the goods off my low shelves down to the ground, and perhaps where one of them has just been making water. My friend takes up the stuff, and cries, "Oh! thou little wicked mischievous rogue!" But however, it has done no great damage; it is only wet a little, and so puts it up upon the shelf again. Sometimes they get to my cask of nails behind the counter, and divert themselves, to my great vexation, with mixing my ten-penny and eight-penny and four-penny together. I endeavour to conceal my uneasiness as much as possible, and with a grave look go to sorting them out. She cries, "Don't thee trouble thyself, neighbour. Let them play a little; I'll put all to rights before I go." But things are never so put to rights but that I find a great deal of work to do after they are gone. Thus, Sir, I have all the trouble and pesterment of children, without the pleasure of calling them my own; and they are now so used to being here that they will be content no where else. If she would have been so kind as to have moderated her visits to ten times a day, and staid but half an hour at a time, I should have been contented, and I believe never have given you this trouble. But this very

morning they have so tormented me that I could bear no longer; for while the mother was asking me twenty impertinent questions, the youngest got to my nails, and with great delight rattled them by handfuls all over the floor; and the other at the same time made such a terrible din upon my counter with a hammer, that I grew half distracted. I was just then about to make myself a new suit of pinnars, but in the fret and confusion I cut it quite out of all manner of shape, and utterly spoiled a piece of the first muslin. Pray, sir, tell me what I shall do. And talk a little against such unreasonable visiting in your next paper: though I would not have her affronted with me for a great deal, for sincerely I love her and her children, as well, I think, as a neighbour can, and she buys a great many things in a year at my shop. But I would beg her to consider, that she uses me unmercifully, though I believe it is only for want of thought. But I have twenty things more to tell you besides all this: there is a handsome gentleman that has a mind (I don't question) to make love to me; but he can't get the opportunity to——O dear, here she comes again; I must conclude

"Your's, &c.

"PATIENCE."

Indeed, it is well enough, as it happens, that she is come to shorten this complaint, which I think is full long enough already, and probably would otherwise have been as long again. However, I must confess, I cannot help pitying my correspondent's case, and in her behalf, exhort the visitor to remember and consider the words of the wise man, withdraw thy foot from the house of thy neighbour, lest he grow weary of thee and so hate thee. It is, I believe, a nice thing and very difficult, to regulate our visits in such a manner, as never to give offence by coming too seldom, or too often, or departing too abruptly, or staying too long. However, in my opinion, it is safest for most people, in a general way, who are unwilling to disoblige, to visit seldom, and tarry but a little while in a place; notwithstanding pressing invitations, which are many times insincere. And though more of your company should be really desired; yet in this case, too much reservedness is a fault more easily excused than the contrary.

Men are subject to various inconveniencies merely through lack of a small share of courage, which is a quality very necessary in the common

occurrences of life, as well as in a battle. How many impertinencies do we daily suffer with great uneasiness, because we have not courage enough to discover our dislike? And why may not a man use the boldness and freedom of telling his friends, that their long visits sometimes incommode him? On this occasion, it may be entertaining to some of my readers, if I acquaint them with the Turkish manner of entertaining visitors, which I have from an author of unquestionable veracity; who assures us, that even the Turks are not so ignorant of civility and the arts of endearment, but that they can practise them with as much exactness as any other nation, whenever they have a mind to show themselves obliging.

"When you visit a person of quality (says he) and have talked over your business, or the compliments, or whatever concern brought you thither, he makes a sign to have things served in for the entertainment, which is generally a little sweetmeat, a dish of sherbet, and another of coffee; all which are immediately brought in by the servants, and tendered to all the guests in order, with the greatest care and awfulness imaginable. At last comes the finishing part of your entertainment, which is, perfuming the beards of the company; a ceremony which is performed in this manner. They have for the purpose a small silver chaffing dish, covered with a lid full of holes, and fixed upon a handsome plate. In this they put some fresh coals, and upon them a piece of lignum aloes, and shutting it up, the smoke immediately ascends with a grateful odour through the holes of the cover. This smoke is held under every one's chin, and offered as it were a sacrifice to his beard. The bristly idol soon receives the reverence done to it, and so greedily takes in and incorporates the gummy steam, that it retains the savour of it, and may serve for a nosegay a good while after.

"This ceremony may perhaps seem ridiculous at first hearing; but it passes among the Turks for an high gratification. And I will say this in its vindication, that its design is very wise and useful. For it is understood to give a civil dismissal to the visitants, intimating to them, that the master of the house has business to do, or some other avocation, that permits them to go away as soon as they please; and the sooner after this ceremony the better. By this means you may, at any time, without offence, deliver yourself from being detained from your affairs by tedious and unseasonable visits; and from being constrained to use that piece of hypocrisy, so common in the world, of pressing those to stay longer with you, whom

perhaps in your heart you wish a great way off for having troubled you so long already."

Thus far my author. For my own part, I have taken such a fancy to this Turkish custom, that for the future I shall put something like it in practice. I have provided a bottle of right French brandy for the men, and citron water for the ladies. After I have treated with a dram, and presented a pinch of my best snuff, I expect all company will retire, and leave me to pursue my studies for the good of the public.

Advertisement.

I give notice, that I am now actually compiling, and design to publish in a short time, the true history of the rise, growth, and progress of the renowned Tiff Club. All persons who are acquainted with any facts, circumstances, characters, transactions, &c. which will be requisite to the perfecting and embellishment of the said work, are desired to communicate the same to the author, and direct their letters to be left with the printer hereof.

The letter signed Would-be-something is come to hand.

The Busy-Body.—No. V.

FROM TUESDAY, FEBRUARY 25, TO TUESDAY, MARCH 4, 1728,—9.

Vos, o patricius sanguis, quos vivere fas est,
Occipiti cæco, posticæ occurrite sannæ. PERSIUS.

This paper being design'd for a terror to evil doers, as well as a praise to them that do well, I am lifted up with secret joy to find, that my undertaking is approved, and encourag'd by the just and good, and that few are against me but those who have reason to fear me.

There are little follies in the behaviour of most men, which their best friends are too tender to acquaint them with; there are little vices and small crimes which the law has no regard to or remedy for: there are likewise great pieces of villany sometimes so craftily accomplished, and so

circumspectly guarded, that the law can take no hold of the actors. All these things, and all things of this nature, come within my province as Censor, and I am determined not to be negligent of the trust I have reposed in myself, but resolve to execute my office diligently and faithfully.

And that all the world may judge with how much humanity, as well as justice, I shall behave in this office; and that even my enemies may be convinced I take no delight to rake into the dunghill lives of vicious men; and to the end that certain persons may be a little eased of their fears, and relieved from the terrible palpitations they have lately felt and suffered, and do still suffer; I hereby graciously pass an act of general oblivion, for all offences, crimes, and misdemeanors of what kind soever, committed from the beginning of the year 1681, until the day of the date of my first paper, and promise only to concern myself with such as have been since and shall hereafter be committed. I shall take no notice who has (heretofore) raised a fortune by fraud and oppression, nor who by deceit and hypocrisy; what woman has been false to her good husband's bed, nor what man has, by barbarous usage or neglect, broke the heart of a faithful wife, and wasted his health and substance in debauchery; what base wretch has betrayed his friend, and sold his honesty for gold, nor what baser wretch first corrupted him, and then bought the bargain: all this, and much more of the same kind, I shall forget, and pass over in silence; but then it is to be observed, that I expect and require a sudden and general amendment.

These threatenings of mine, I hope will have a good effect, and, if regarded, may prevent abundance of folly and wickedness in others, and, at the same time, save me abundance of trouble: and that people may not flatter themselves with the hopes of concealing their loose misdemeanors from my knowledge, and in that view persist in evil doing, I must acquaint them, that I have lately entered into an intimacy with the extraordinary person, who some time since wrote me the following letter; and who, having a wonderful faculty, that enables him to discover the most secret iniquity, is capable of giving me great assistance in my designed work of reformation.

"MR. BUSY-BODY,

"I rejoice, sir, at the opportunity you have given me to be serviceable to you, and, by your means, to this province. You must know, that such have been the circumstances of my life, and such were the marvellous concurrences of my birth, that I have not only a faculty of discovering the actions of persons, that are absent or asleep, but even of the devil himself, in many of his secret workings, in the various shapes, habits, and names of men and women: and having travelled and conversed much, and met but with a very few of the same perceptions and qualifications, I can recommend myself to you as the most useful man you can correspond with. My father's father's father (for we had no grandfathers in our family) was the same John Bunyan that writ that memorable book, *The Pilgrim's Progress*, who had, in some degree, a natural faculty of second sight. This faculty (how derived to him our family memoirs are not very clear) was enjoyed by all his descendants, but not by equal talents. It was very dim in several of my first cousins, and probably had been nearly extinct in our particular branch, had not my father been a traveller. He lived, in his youthful days, in New England. There he married, and there was born my elder brother, who had so much of this faculty, as to discover witches in some of their occult performances. My parents transporting themselves to Great Britain, my second brother's birth was in that kingdom. He shared but a small portion of this virtue, being only able to discern transactions about the time of, and for the most part after, their happening. My good father, who delighted in the *Pilgrim's Progress*, and mountainous places, took shipping, with his wife, for Scotland, and inhabited in the Highlands, where myself was born; and whether the soil, climate, or astral influences, of which are preserved divers prognosticks, restored our ancestor's natural faculty of second sight, in a greater lustre to me, than it had shined in through several generations, I will not here discuss. But so it is, that I am possessed largely of it, and design, if you encourage the proposal, to take this opportunity of doing good with it, which I question not will be accepted of in a grateful way by many of your honest readers, though the discovery of my extraction bodes me no deference from your great scholars and modern philosophers. This my father was long ago aware of, and lest the name alone should hurt the fortunes of his children, he, in his shiftings from one country to another, wisely changed it.

"Sir, I have only this further to say, how I may be useful to you, and as a reason for my not making myself more known in the world: by virtue of

this great gift of nature, second-sightedness, I do continually see numbers of men, women, and children, of all ranks, and what they are doing, while I am sitting in my closet; which is too great a burthen for the mind, and makes me also conceit, even against reason, that all this host of people can see and observe me, which strongly inclines me to solitude, and an obscure living; and, on the other hand, it will be an ease to me to disburthen my thoughts and observations in the way proposed to you, by sir, your friend and humble servant."

I conceal this correspondent's name, in my care for his life and safety, and cannot but approve his prudence, in chusing to live obscurely. I remember the fate of my poor monkey: he had an illnatured trick of grinning and chattering at every thing he saw in petticoats: my ignorant country neighbours got a notion, that pug snarled by instinct at every female who had lost her virginity. This was no sooner generally believed, than he was condemned to death: by whom I could never learn, but he was assassinated in the night, barbarously stabbed and mangled in a thousand places, and left hanging dead on one of my gate posts, where I found him the next morning.

The Censor observing, that the itch of scribbling begins to spread exceedingly, and being carefully tender of the reputation of his country, in point of wit and good sense, has determined to take all manner of writings in verse or prose, that pretend to either, under his immediate cognizance; and accordingly, hereby prohibits the publishing any such for the future, till they have first passed his examination, and received his imprimatur: for which he demands as a fee only sixpence per sheet.

N. B. He nevertheless permits to be published, all satirical remarks on the Busy-Body, the above prohibition notwithstanding, and without examination, or requiring the said fees; which indulgence the small wits, in and about this city, are advised gratefully to accept and acknowledge.

The gentleman, who calls himself Sirronio, is directed, on receipt of this, to burn his great book of Crudities.

P. S. In compassion to that young man, on account of the great pains he has taken, in consideration of the character I have just received of him, that he is really good natured, and on condition he shows it to no foreigner, or

stranger of sense, I have thought fit to reprieve his said great book of Crudities from the flames, till further order.

Noli me tangere

I had resolved, when I first commenced this design, on no account to enter into a public dispute with any man; for I judged it would be equally unpleasant to me and my readers, to see this paper filled with contentious wrangling, answers, replies, &c. which is a way of writing that is endless, and, at the same time, seldom contains any thing that is either edifying or entertaining. Yet, when such a considerable man as Mr. —— finds himself concerned so warmly to accuse and condemn me, as he has done in Keimer's last Instructor, I cannot forbear endeavouring to say something in my own defence, from one of the worst of characters that could be given me by a man of worth. But as I have many things of more consequence to offer the public, I declare, that I will never, after this time, take notice of any accusations, not better supported with truth and reason; much less may every little scribbler, that shall attack me, expect an answer from the Busy-Body.

The sum of the charge delivered against me, either directly or indirectly, in the said paper, is this: not to mention the first weighty sentence concerning vanity and ill-nature, and the shrewd intimation, that I am without charity, and therefore can have no pretence to religion, I am represented as guilty of defamation and scandal, the odiousness of which is apparent to every good man, and the practice of it opposite to christianity, morality, and common justice, and, in some cases, so far below all these, as to be inhuman; as a blaster of reputations; as attempting, by a pretence, to screen myself from the imputation of malice and prejudice; as using a weapon, which the wiser and better part of mankind hold in abhorrence; and as giving treatment which the wiser and better part of mankind dislike on the same principles, and for the same reason, as they do assassination, &c.; and all this is inferred and concluded from a character I have wrote in my Number III.

In order to examine the justice and truth of this heavy charge, let us recur to that character. And here we may be surprized to find what a trifle has raised this mighty clamour and complaint, this grievous accusation!—The worst thing said of the person, in what is called my gross description (be he who he will to whom my accuser has applied the character of Cretico) is, that he is a sour philosopher, crafty, but not wise. Few humane characters can be drawn that will not fit some body, in so large a country as this; but one would think, supposing I meant Cretico a real person, I had sufficiently manifested my impartiality, when I said, in that very paragraph, that Cretico is not without virtue; that there are many good things in him, and many good actions reported of him; which must be allowed in all reason, very much to overbalance in his favour those worst words, sour tempered, and cunning. Nay, my very enemy and accuser must have been sensible of this, when he freely acknowledges, that he has been seriously considering, and cannot yet determine, which he would choose to be, the Cato or Cretico of that paper; since my Cato is one of the best of characters. Thus much in my own vindication. As to the only reasons there given, why I ought not to continue drawing characters, viz. Why should any man's picture be published which he never sat for; or his good name taken from him any more than his money or possessions, at the arbitrary will of another, &c. I have but this to answer: the money or possessions, I presume, are nothing to the purpose; since no man can claim a right either to those or a good name, if he has acted so as to forfeit them. And are not the public the only judges what share of reputation they think proper to allow any man? Supposing I was capable, and had an inclination, to draw all the good and bad characters in America, why should a good man be offended with me for drawing good characters? And if I draw ill ones, can they fit any but those that deserve them? And ought any but such to be concerned that they have their deserts? I have as great an aversion and abhorrence for defamation and scandal as any man, and would, with the utmost care, avoid being guilty of such base things: besides I am very sensible and certain, that if I should make use of this paper to defame any person, my reputation would be sooner hurt by it than his; and the Busy-Body would quickly become detestable; because, in such a case, as is justly observed, the pleasure arising from a tale of wit and novelty soon dies away in generous and honest minds, and is followed with a secret grief, to see their neighbours calumniated. But if I myself was actually the worst man in the province, and any one should draw my true

character, would it not be ridiculous in me to say, he had defamed and scandalized me, unless he had added in a matter of truth? If any thing is meant by asking, why any man's picture should be published which he never sat for? it must be, that we should give no character without the owner's consent. If I discern the wolf disguised in harmless wool, and contriving the destruction of my neighbour's sheep, must I have his permission, before I am allowed to discover and prevent him? If I know a man to be a designing knave, must I ask his consent, to bid my friends beware of him? If so, then, by the same rule, supposing the Busy-Body had really merited all his enemy had charged him with, his consent likewise ought to have been obtained, before so terrible an accusation was published against him.

I shall conclude with observing, that in the last paragraph save one of the piece now examined, much ill nature and some good sense are co-inhabitants (as he expresses it). The ill nature appears, in his endeavouring to discover satire, where I intended no such thing, but quite the reverse: the good sense is this, that drawing too good a character of any one is a refined manner of satire, that may be as injurious to him as the contrary, by bringing on an examination that undresses the person, and in the haste of doing it, he may happen to be stript of what he really owns and deserves. As I am Censor, I might punish the first, but I forgive it. Yet I will not leave the latter unrewarded; but assure my adversary, that in consideration of the merit of those four lines, I am resolved to forbear injuring him on any account in that refined manner.

I thank my neighbour P—— W——l for his kind letter.

The lions complained of shall be muzzled.

The Busy-Body.—No. VIII.

FROM TUESDAY, MARCH 20, TO THURSDAY, MARCH 27, 1729.

Quid non mortalia pectora cogis,
Auri sacra fames?———VIRGIL.

One of the greatest pleasures an author can have, is, certainly, the hearing his works applauded. The hiding from the world our names, while we publish our thoughts, is so absolutely necessary to this self-gratification, that I hope my well-wishers will congratulate me on my escape from the many diligent, but fruitless enquiries, that have of late been made after me. Every man will own, that an author, as such, ought to be hid by the merit of his productions only; but pride, party, and prejudice, at this time, run so very high, that experience shows we form our notions of a piece by the character of the author. Nay, there are some very humble politicians in and about this city, who will ask, on which side the writer is, before they presume to give their opinion of the thing wrote. This ungenerous way of proceeding I was well aware of before I published my first speculation; and therefore concealed my name. And I appeal to the more generous part of the world, if I have, since I appeared in the character of the Busy-Body, given an instance of my siding with any party more than another, in the unhappy divisions of my country; and I have, above all, this satisfaction in myself, that neither affection, aversion, or interest, have biassed me to use any partiality towards any man, or set of men; but whatsoever I find nonsensical, ridiculous, or immorally dishonest, I have, and shall continue openly to attack, with the freedom of an honest man, and a lover of my country.

I profess I can hardly contain myself, or preserve the gravity and dignity that should attend the censorial office, when I hear the odd and unaccountable expositions, that are put upon some of my works, through the malicious ignorance of some, and the vain pride of more than ordinary penetration in others; one instance of which many of my readers are acquainted with. A certain gentleman has taken a great deal of pains to write a key to the letter in my Number IV, wherein he has ingeniously converted a gentle satyr upon tedious and impertinent visitants, into a libel on some of the government. This I mention only as a specimen of the taste of the gentleman; I am, forsooth, bound to please in my speculations, not that I suppose my impartiality will ever be called in question on that account. Injustices of this nature I could complain of in many instances; but I am at present diverted by the reception of a letter, which, though it regards me only in my private capacity, as an adept, yet I venture to publish it for the entertainment of my readers.

"To Censor Morum, Esq. Busy-Body General of the Province of Pennsylvania, and the Counties of Newcastle, Kent, and Sussex upon Delaware.

"HONOURABLE SIR,

"I judge by your lucubrations, that you are not only a lover of truth and equity, but a man of parts and learning, and a master of science; as such I honour you. Know then, most profound sir, that I have, from my youth up, been a very indefatigable student in, and admirer of, that divine science, astrology. I have read over Scot, Albertus Magnus, and Cornelius Agrippa, above three hundred times; and was in hopes, by my knowledge and industry, to gain enough to have recompensed me for my money expended, and time lost in the pursuit of this learning. You cannot be ignorant, sir, (for your intimate second-sighted correspondent knows all things) that there are large sums of money hidden under ground in divers places about this town, and in many parts of the country: but alas, sir, notwithstanding I have used all the means laid down in the immortal authors before mentioned, and when they failed the ingenious Mr. P—d—I, with his mercurial wand and magnet, I have still failed in my purpose. This, therefore, I send, to propose and desire an acquaintance with you, and I do not doubt, notwithstanding my repeated ill fortune, but we may be exceedingly serviceable to each other in our discoveries; and that if we use our united endeavours, the time will come, when the Busy-Body, his second-sighted correspondent, and your very humble servant, will be three of the richest men in the province: and then, sir, what may we not do? A word to the wise is sufficient.

"I conclude with all demonstrable respect,

"Yours and Urania's Votary,

"TITAN PLEIADES."

In the evening after I had received this letter, I made a visit to my second-sighted friend, and communicated to him the proposal. When he had read it, he assured me, that to his certain knowledge, there is not at this time so much as one ounce of silver or gold hid under ground in any part of this province; for that the late and present scarcity of money had obliged those, who were living, and knew where they had formerly hid any, to take it up, and use it in their own necessary affairs: and as to all the rest, which was

buried by pirates and others in old times, who were never like to come for it, he himself had long since dug it all up, and applied it to charitable uses; and this he desired me to publish for the general good. For, as he acquainted me, there are among us great numbers of honest artificers and labouring people, who, fed with a vain hope of growing suddenly rich, neglect their business, almost to the ruining of themselves and families, and voluntarily endure abundance of fatigue in a fruitless search after imaginary hidden treasure. They wander through the woods and bushes by day, to discover the marks and signs; at midnight they repair to the hopeful spots with spades and pickaxes; full of expectation, they labour violently, trembling at the same time in every joint, through fear of certain malicious demons, who are said to haunt and guard such places. At length a mighty hole is dug, and perhaps several cartloads of earth thrown out; but, alas, no cag or iron pot is found! no seaman's chest crammed with Spanish pistoles, or weighty pieces of eight! Then they conclude, that through some mistake in the procedure, some rash word spoke, or some rule of art neglected, the guardian spirit had power to sink it deeper into the earth, and convey it out of their reach. Yet, when a man is once thus infatuated, he is so far from being discouraged by ill success, that he is rather animated to double his industry, and will try again and again in a hundred different places, in hopes at last of meeting with some lucky hit, that shall at once sufficiently reward him for all his expense of time and labour.

This odd humour of digging for money through a belief, that much has been hid by pirates formerly frequenting the river, has for several years been mighty prevalent among us; insomuch that you can hardly walk half a mile out of the town on any side, without observing several pits dug with that design, and perhaps some lately opened. Men, otherwise of very good sense, have been drawn into this practice, through an overweening desire of sudden wealth, and an easy credulity of what they so earnestly wished might be true. While the rational and almost certain methods of acquiring riches by industry and frugality are neglected or forgotten. There seems to be some peculiar charm in the conceit of finding money; and if the sands of Schuylkil were so much mixed with small grains of gold, that a man might in a day's time, with care and application, get together to the value of half a crown, I make no question but we should find several people employed there, that can with ease earn five shillings a day at their proper trades.

Many are the idle stories told of the private success of some people, by which others are encouraged to proceed; and the astrologers, with whom the country swarms at this time, are either in the belief of these things themselves, or find their advantage in persuading others to believe them; for they are often consulted about the critical times for digging, the methods of laying the spirit, and the like whimsies, which renders them very necessary to, and very much caressed by, the poor deluded money-hunters.

There is certainly something very bewitching in the pursuit after mines of gold and silver and other valuable metals, and many have been ruined by it. A sea-captain of my acquaintance used to blame the English for envying Spain their mines of silver, and too much despising or overlooking the advantages of their own industry and manufactures. For my part, says he, I esteem the banks of Newfoundland to be a more valuable possession than the mountains of Potosi; and when I have been there on the fishing account, have looked upon every cod pulled up into the vessel as a certain quantity of silver ore, which required only carrying to the next Spanish port to be coined into pieces of eight; not to mention the national profit of fitting out and employing such a number of ships and seamen. Let honest Peter Buckram, who has long, without success, been a searcher after hidden money, reflect on this, and be reclaimed from that unaccountable folly. Let him consider, that every stitch he takes when he is on his shop board is picking up part of a grain of gold, that will in a few days time amount to a pistole; and let Faber think the same of every nail he drives, or every stroke with his plane. Such thoughts may make them industrious, and of consequence in time they may be wealthy. But how absurd is it to neglect a certain profit for such a ridiculous whimsey: to spend whole days at the George, in company with an idle pretender to astrology, contriving schemes to discover what was never hidden, and forgetful how carelessly business is managed at home in their absence: to leave their wives and a warm bed at midnight (no matter if it rain, hail, snow, or blow a hurricane, provided that be the critical hour) and fatigue themselves with the violent exercise of digging for what they shall never find, and perhaps getting a cold that may cost their lives, or at least disordering themselves so as to be fit for no business beside for some days after. Surely this is nothing less than the most egregious folly and madness.

I shall conclude with the words of my discreet friend, Agricola, of Chester County, when he gave his son a good plantation:—"My son," says he, "I give thee now a valuable parcel of land; I assure thee I have found a considerable quantity of gold by digging there; thee mayst do the same; but thee must carefully observe this, Never to dig more than plow-deep."

FOOTNOTE:

[\[174\]](#) These are the "humorous pieces" mentioned by Dr. Franklin in his Memoirs, page 86. We are indebted for them to an American correspondent, who obtained a copy with great difficulty, some depredating hand having torn from the file of the Mercury, in the Philadelphia Library, several of the numbers containing the pieces in question. *Editor.*

The Way to Wealth, as clearly shown in the Preface of an old Pensylvania Almanack, intituled, Poor Richard Improved.^[175]

COURTEOUS READER,

I have heard, that nothing gives an author so great pleasure, as to find his works respectfully quoted by others. Judge, then, how much I must have been gratified by an incident I am going to relate to you. I stopped my horse lately, where a great number of people were collected, at an auction of merchants goods. The hour of the sale not being come, they were conversing on the badness of the times; and one of the company called to a plain clean old man, with white locks, 'Pray, Father Abraham, what think you of the times? Will not these heavy taxes quite ruin the country? How shall we ever be able to pay them? What would you advise us to?'—Father Abraham stood up, and replied, 'If you would have my advice, I will give it you in short, "for a word to the wise is enough," as Poor Richard says.' They joined in desiring him to speak his mind, and gathering round him, he proceeded as follows:

'Friends, says he, the taxes are, indeed, very heavy, and, if those laid on by the government were the only ones we had to pay, we might more easily discharge them; but we have many others, and much more grievous to some of us. We are taxed twice as much by our idleness, three times as much by our pride, and four times as much by our folly; and from these taxes the commissioners cannot ease or deliver us, by allowing an abatement. However, let us hearken to good advice, and something may be done for us; "God helps them that help themselves," as poor Richard says.

'I. It would be thought a hard government that should tax its people one tenth part of their time, to be employed in its service: but idleness taxes many of us much more; sloth, by bringing on diseases, absolutely shortens life. "Sloth, like rust, consumes faster than labour wears, while the used key is always bright," as poor Richard says. "But dost thou love life, then do not squander time, for that is the stuff life is made of," as poor Richard says. How much more than is necessary do we spend in sleep! forgetting, that

"the sleeping fox catches no poultry, and that there will be sleeping enough in the grave," as poor Richard says.

"If time be of all things the most precious, wasting time must be," as poor Richard says, "the greatest prodigality;" since, as he elsewhere tells us, "lost time is never found again; and what we call time enough always proves little enough:" let us then up and be doing, and doing to the purpose; so by diligence shall we do more with less perplexity. "Sloth makes all things difficult, but industry all easy; and he that riseth late, must trot all day, and shall scarce overtake his business at night; while laziness travels so slowly, that poverty soon overtakes him. Drive thy business, let not that drive thee; and early to bed, and early to rise, makes a man healthy, wealthy, and wise," as poor Richard says.

'So what signifies wishing and hoping for better times? We may make these times better, if we bestir ourselves. "Industry need not wish, and he that lives upon hope will die fasting. There are no gains without pains; then help hands, for I have no lands," or, if I have, they are smartly taxed. "He, that hath a trade, hath an estate; and he, that hath a calling, hath an office of profit and honour," as poor Richard says; but then the trade must be worked at, and the calling well followed, or neither the estate nor the office will enable us to pay our taxes. If we are industrious, we shall never starve; for, "at the working man's house, hunger looks in, but dares not enter." Nor will the bailiff or the constable enter, for "industry pays debts, while despair increaseth them." What though you have found no treasure, nor has any rich relation left you a legacy, "diligence is the mother of good luck, and God gives all things to industry. Then plow deep, while sluggards sleep, and you shall have corn to sell and to keep." Work while it is called to-day, for you know not how much you may be hindered to-morrow. "One to-day is worth two to-morrows," as poor Richard says; and farther, "never leave that till to-morrow, which you can do to-day." If you were a servant, would you not be ashamed that a good master should catch you idle? Are you then your own master? Be ashamed to catch yourself idle, when there is so much to be done for yourself, your family, your country, and your king. Handle your tools without mittens; remember, that "the cat in gloves catches no mice," as poor Richard says. It is true, there is much to be done, and perhaps you are weak-handed; but stick to it steadily, and you will see great effects, for

"constant dropping wears away stones; and by diligence and patience the mouse ate in two the cable; and little strokes fell great oaks."

'Methinks I hear some of you say, "must a man afford himself no leisure?" I will tell thee, my friend, what poor Richard says; "employ thy time well, if thou meanest to gain leisure; and since thou art not sure of a minute, throw not away an hour." Leisure is time for doing something useful; this leisure the diligent man will obtain, but the lazy man never; for "a life of leisure and a life of laziness are two things. Many, without labour, would live by their wits only, but they break for want of stock;" whereas industry gives comfort, and plenty, and respect. "Fly pleasures, and they will follow you. The diligent spinner has a large shift; and now I have a sheep and a cow, every body bids me good-morrow."

'II. But with our industry we must likewise be steady, settled, and careful, and oversee our own affairs with our own eyes, and not trust too much to others; for, as poor Richard says,

"I never saw an oft-removed tree,
Nor yet an oft-removed family,
That throve so well as those that settled be."

And again, "three removes is as bad as a fire;" and again, "keep thy shop, and thy shop will keep thee;" and again, "if you would have your business done, go, if not, send." And again,

"He that by the plough would thrive,
Himself must either hold or drive."

And again, "the eye of a master will do more work than both his hands;" and again, "want of care does us more damage than want of knowledge;" and again, "not to oversee workmen, is to leave them your purse open." Trusting too much to other's care is the ruin of many; for, "in the affairs of this world, men are saved, not by faith, but by the want of it;" but a man's own care is profitable; for, "if you would have a faithful servant, and one that you like, serve yourself. A little neglect may breed great mischief; for want of a nail the shoe was lost, and for want of a shoe the horse was lost, and for want of a horse the rider was lost," being overtaken and slain by the enemy; all for want of a little care about a horse-shoe nail.

'III. So much for industry, my friends, and attention to ones own business; but to these we must add frugality, if we would make our industry

more certainly successful. A man may, if he knows not how to save as he gets, "keep his nose all his life to the grind-stone, and die not worth a groat at last. A fat kitchen makes a lean will;" and

"Many estates are spent in the getting,
Since women for tea forsook spinning and knitting,
And men for punch forsook hewing and splitting."

"If you would be wealthy, think of saving, as well as of getting. The Indies have not made Spain rich, because her outgoes are greater than her incomes."

'Away then, with your expensive follies, and you will not then have so much cause to complain of hard times, heavy taxes, and chargeable families; for

"Women and wine, game and deceit,
Make the wealth small, and the want great."

And farther, "what maintains one vice, would bring up two children." You may think, perhaps, that a little tea, or a little punch now and then, diet a little more costly, clothes a little finer, and a little entertainment now and then, can be no great matter; but remember, "many a little makes a mickle." Beware of little expences; "a small leak will sink a great ship," as poor Richard says; and again, "who dainties love, shall beggars prove;" and moreover, "fools make feasts, and wise men eat them."

'Here you are all got together to this sale of fineries and nick-nacks. You call them *goods*, but if you do not take care, they will prove *evils* to some of you. You expect they will be sold cheap, and perhaps they may, for less than they cost; but, if you have no occasion for them, they must be dear to you. Remember what poor Richard says, "buy what thou hast no need of, and ere long thou shalt sell thy necessities." And again, "at a great penny-worth pause a while." He means, that perhaps the cheapness is apparent only, and not real; or the bargain, by straitening thee in thy business, may do thee more harm than good. For in another place he says, "many have been ruined by buying good pennyworths." Again, "it is foolish to lay out money in a purchase of repentance;" and yet this folly is practised every day at auctions, for want of minding the almanack. Many a one, for the sake of finery on the back, have gone with a hungry belly, and half starved their families; "silks and satins, scarlet and velvets, put out the kitchen fire," as poor Richard says. These are not the necessities of life, they can scarcely

be called the conveniences; and yet, only because they look pretty, how many want to have them? By these and other extravagancies, the genteel are reduced to poverty, and forced to borrow of those whom they formerly despised, but who, through industry and frugality, have maintained their standing; in which case it appears plainly, that "a ploughman on his legs is higher than a gentleman on his knees," as poor Richard says. Perhaps they have had a small estate left them, which they knew not the getting of; they think "it is day, and will never be night;" that a little to be spent out of so much is not worth minding; but "always taking out of the meal-tub, and never putting in soon comes to the bottom," as poor Richard says; and then, "when the well is dry, they know the worth of water." But this they might have known before, if they had taken his advice: "if you would know the value of money go and try to borrow some; for he that goes a borrowing goes a sorrowing," as poor Richard says; and indeed so does he that lends to such people, when he goes to get it in again. Poor Dick farther advises, and says,

"Fond pride of dress is sure a very curse,
Ere fancy you consult, consult your purse."

And again, "pride is as loud a beggar as want, and a great deal more saucy." When you have bought one fine thing, you must buy ten more, that your appearance may be all of a piece; but poor Dick says, "it is easier to suppress the first desire than to satisfy all that follow it:" and it is as truly folly for the poor to ape the rich, as for the frog to swell, in order to equal the ox.

"Vessels large may venture more,
But little boats should keep near shore."

It is, however, a folly soon punished; for, as poor Richard says, "pride that dines on vanity, sups on contempt; pride breakfasted with plenty, dined with poverty, and supped with infamy." And, after all, of what use is this pride of appearance, for which so much is risked, so much is suffered? It cannot promote health, nor ease pain; it makes no increase of merit in the person; it creates envy, it hastens misfortune.

'But what madness must it be to *run in debt* for these superfluities! We are offered, by the terms of this sale, six months credit; and that, perhaps, has induced some of us to attend it, because we cannot spare the ready money, and hope now to be fine without it. But ah! think what you do when

you run in debt; you give to another power over your liberty. If you cannot pay at the time, you will be ashamed to see your creditor, you will be in fear when you speak to him, you will make poor pitiful sneaking excuses, and, by degrees, come to lose your veracity, and sink into base, downright lying; for, "the second vice is lying, the *first* is running in debt," as poor Richard says; and again, to the same purpose, "lying rides upon debt's back;" whereas a free-born Englishman ought not to be ashamed nor afraid to see or speak to any man living. But poverty often deprives a man of all spirit and virtue. "It is hard for an empty bag to stand upright." What would you think of that prince, or of that government, who should issue an edict, forbidding you to dress like a gentleman or gentlewoman, on pain of imprisonment or servitude? Would you not say, that you were free, have a right to dress as you please, and that such an edict would be a breach of your privileges, and such a government tyrannical? And yet you are about to put yourself under that tyranny, when you run in debt for such dress! your creditor has authority, at his pleasure, to deprive you of your liberty, by confining you in gaol for life, or by selling you for a servant, if you should not be able to pay him. When you have got your bargain, you may, perhaps, think little of payment; but, as poor Richard says, "creditors have better memories than debtors; creditors are a superstitious sect, great observers of set-days and times." The day comes round before you are aware, and the demand is made before you are prepared to satisfy it; or, if you bear your debt in mind, the term, which at first seemed so long, will, as it lessens, appear extremely short: time will seem to have added wings to his heels as well as his shoulders. "Those have a short lent, who owe money to be paid at Easter." At present, perhaps, you may think yourselves in thriving circumstances, and that you can bear a little extravagance without injury; but

"For age and want save while you may,
No morning sun lasts a whole day."

Gain may be temporary and uncertain, but ever, while you live, expence is constant and certain; and, "it is easier to build two chimneys than to keep one in fuel," as poor Richard says: so "rather go to bed supperless than rise in debt."

"Get what you can, and what you get hold,
'Tis the stone that will turn all your lead into gold."

And when you have got the philosopher's stone, sure you will no longer complain of bad times, or the difficulty of paying taxes.

'IV. This doctrine, my friends, is reason and wisdom: but, after all, do not depend too much upon your own industry, and frugality, and prudence, though excellent things; for they may all be blasted, without the blessing of heaven; and therefore ask that blessing humbly, and be not uncharitable to those that at present seem to want it, but comfort and help them. Remember Job suffered, and was afterwards prosperous.

'And now, to conclude, "experience keeps a dear school, but fools will learn in no other," as poor Richard says, and scarce in that; for, it is true, "we may give advice, but we cannot give conduct:" however, remember this, "they that will not be counselled cannot be helped;" and farther, that "if you will not hear reason she will surely rap your knuckles," as poor Richard says.'

Thus the old gentleman ended his harangue. The people heard it and approved the doctrine; and immediately practised the contrary, just as if it had been a common sermon, for the auction opened and they began to buy extravagantly.—I found the good man had thoroughly studied my almanacks, and digested all I had dropt on those topics during the course of twenty-five years. The frequent mention he made of me must have tired any one else; but my vanity was wonderfully delighted with it, though I was conscious, that not a tenth part of the wisdom was my own, which he ascribed to me, but rather the gleanings that I had made of the sense of all ages and nations. However, I resolved to be the better for the echo of it; and, though I had at first determined to buy stuff for a new coat, I went away, resolved to wear my old one a little longer. Reader, if thou wilt do the same, thy profit will be as great as mine.

I am, as ever,

Thine to serve thee,

RICHARD SAUNDERS.

FOOTNOTE:

[175] Dr. Franklin, as I have been made to understand, for many years published the Pennsylvania Almanack, called *Poor Richard* [Saunders], and furnished it with various sentences and proverbs, which had principal relation to the topics of "industry, attention to one's own business, and frugality." The whole or chief of these sentences and proverbs he at last collected and digested in the above general preface, which his countrymen read with much avidity and profit. B. V.

[Advice to a Young Tradesman.](#)^[176]

Written Anno 1748.

TO MY FRIEND A.B.

As you have desired it of me, I write the following hints, which have been of service to me, and may, if observed, be so to you.

Remember, that *time* is money. He, that can earn ten shillings a day by his labour, and goes abroad, or sits idle one half of that day, though he spends but sixpence during his diversion or idleness, ought not to reckon *that* the only expence; he has really spent, or rather thrown away, five shillings besides.

Remember, that *credit* is money. If a man lets his money lie in my hands after it is due, he gives me the interest, or so much as I can make of it, during that time. This amounts to a considerable sum where a man has good and large credit, and makes good use of it.

Remember, that money is of a prolific generating nature. Money can beget money, and its offspring can beget more, and so on. Five shillings turned is six, turned again it is seven and three-pence, and so on till it becomes an hundred pounds. The more there is of it, the more it produces every turning, so that the profits rise quicker and quicker. He that kills a breeding sow destroys all her offspring to the thousandth generation. He that murders a crown destroys all that it might have produced, even scores of pounds.

Remember, that six pounds a year is but a groat a day. For this little sum (which may be daily wasted either in time or expence unperceived) a man of credit may, on his own security, have the constant possession and use of an hundred pounds. So much in stock, briskly turned by an industrious man, produces great advantage.

Remember this saying, "the good paymaster is lord of another man's purse." He that is known to pay punctually and exactly to the time he promises may at any time, and on any occasion, raise all the money his friends can spare. This is sometimes of great use. After industry and

frugality, nothing contributes more to the raising of a young man in the world than punctuality and justice in all his dealings: therefore, never keep borrowed money an hour beyond the time you promised, lest a disappointment shut up your friend's purse for ever.

The most trifling actions that affect a man's credit are to be regarded. The sound of your hammer at five in the morning, or nine at night, heard by a creditor, makes him easy six months longer: but if he sees you at a billiard-table, or hears your voice at a tavern, when you should be at work, he sends for his money the next day; demands it before he can receive it in a lump.

It shows, besides, that you are mindful of what you owe; it makes you appear a careful as well as an honest man, and that still increases your credit.

Beware of thinking all your own that you possess, and of living accordingly. It is a mistake that many people who have credit fall into. To prevent this, keep an exact account for some time, both of your expences and your income. If you take the pains at first to mention particulars, it will have this good effect: you will discover how wonderfully small trifling expences mount up to large sums, and will discern what might have been, and may for the future be saved, without occasioning any great inconvenience.

In short, the way to wealth, if you desire it, is as plain as the way to market. It depends chiefly on two words, *industry* and *frugality*; that is, waste neither *time* nor *money*, but make the best use of both. Without industry and frugality nothing will do, and with them every thing. He, that gets all he can honestly, and saves all he gets (necessary expences excepted), will certainly become *rich*—if that Being who governs the world, to whom all should look for a blessing on their honest endeavours, doth not, in his wise providence, otherwise determine.

AN OLD TRADESMAN.

FOOTNOTE:

[\[176\]](#) This paper and the hints that follow it are from the Repository, vol. II. p. 169 and 171, where, as they are placed under the head of original articles, we presume they first appeared. *Editor.*

Necessary Hints to those that would be Rich.

Written Anno 1736.

The use of money is all the advantage there is in having money.

For six pounds a year you may have the use of one hundred pounds, provided you are a man of known prudence and honesty.

He, that spends a groat a day idly, spends idly above six pounds a year, which is the price for the use of one hundred pounds.

He, that wastes idly a groat's worth of his time per day, one day with another, wastes the privilege of using one hundred pounds each day.

He, that idly loses five shillings worth of time, loses five shillings, and might as prudently throw five shillings into the sea.

He, that loses five shillings, not only loses that sum, but all the advantage that might be made by turning it in dealing, which, by the time that a young man becomes old, will amount to a considerable sum of money.

Again: he, that sells upon credit, asks a price for what he sells equivalent to the principal and interest of his money for the time he is to be kept out of it; therefore, he, that buys upon credit, pays interest for what he buys, and he, that pays ready money, might let that money out to use: so that he, that possesses any thing he has bought, pays interest for the use of it.

Yet, in buying goods, it is best to pay ready money, because he, that sells upon credit, expects to lose five per cent by bad debts; therefore he charges, on all he sells upon credit, an advance, that shall make up that deficiency.

Those, who pay for what they buy upon credit, pay their share of this advance.

He, that pays ready money, escapes, or may escape, that charge.

A penny sav'd is two-pence clear,
A pin a day's a groat a year.

At this time, when the general complaint is, that "money is scarce," it will be an act of kindness to inform the moneyless how they may reinforce their pockets. I will acquaint them with the true secret of money-catching, the certain way to fill empty purses, and how to keep them always full. Two simple rules, well observed, will do the business.

First, let honesty and industry be thy constant companions; and

Secondly, spend one penny less than thy clear gains.

Then shall thy hide-bound pocket soon begin to thrive, and will never again cry with the empty belly-ach: neither will creditors insult thee, nor want oppress, nor hunger bite, nor nakedness freeze thee. The whole hemisphere will shine brighter, and pleasure spring up in every corner of thy heart. Now, therefore, embrace these rules and be happy. Banish the bleak winds of sorrow from thy mind, and live independent. Then shalt thou be a man, and not hide thy face at the approach of the rich, nor suffer the pain of feeling little when the sons of fortune walk at thy right hand: for independency, whether with little or much, is good fortune, and placeth thee on even ground with the proudest of the golden fleece. Oh, then, be wise, and let industry walk with thee in the morning, and attend thee until thou reachest the evening hour for rest. Let honesty be as the breath of thy soul, and never forget to have a penny when all thy expences are enumerated and paid: then shalt thou reach the point of happiness, and independence shall be thy shield and buckler, thy helmet and crown; then shall thy soul walk upright, nor stoop to the silken wretch because he hath riches, nor pocket an abuse because the hand which offers it wears a ring set with diamonds.

FOOTNOTE:

^[177] From the American Museum, vol. II. p. 86. *Editor.*

New Mode of Lending Money.^[178]

Paris, April 22, 1784.

I send you herewith a bill for ten louis d'ors. I do not pretend to give such a sum. I only *lend* it to you. When you shall return to your country, you cannot fail getting into some business, that will in time enable you to pay all your debts. In that case, when you meet with another honest man in similar distress, you must *pay me* by lending this sum to him, enjoining him, to *discharge the debt* by a like operation, when he shall be able, and shall meet with such another opportunity. I hope it may thus go through many hands before it meet with a *knave* to stop its progress. This is a trick of mine for doing a good deal with a little money. I am not rich enough to afford *much* in good works, and so am obliged to be cunning and make the most of a *little*.

B. FRANKLIN.

FOOTNOTE:

^[178] From the Gentleman's Magazine, for September, 1797; communicated by the gentleman who received it. *Editor*.

TO THE AUTHORS OF THE JOURNAL.

MESSIEURS,

You often entertain us with accounts of new discoveries. Permit me to communicate to the public, through your paper, one, that has lately been made by myself, and which I conceive may be of great utility.

I was the other evening in a grand company, where the new lamp of Messrs. Quinquet and Lange was introduced, and much admired for its splendor; but a general enquiry was made, whether the oil it consumed was not in proportion to the light it afforded, in which case there would be no saving in the use of it. No one present could satisfy us in that point, which all agreed ought to be known, it being a very desirable thing to lessen, if possible, the expence of lighting our apartments, when every other article of family expence was so much augmented.

I was pleased to see this general concern for economy, for I love economy exceedingly.

I went home, and to bed, three or four hours after midnight, with my head full of the subject. An accidental sudden noise waked me about six in the morning, when I was surprised to find my room filled with light; and I imagined at first, that a number of those lamps had been brought into it: but, rubbing my eyes, I perceived the light came in at the windows. I got up and looked out to see what might be the occasion of it, when I saw the sun just rising above the horison, from whence he poured his rays plentifully into my chamber, my domestic having negligently omitted the preceding evening to close the shutters.

I looked at my watch, which goes very well, and found that it was but six o'clock; and still thinking it something extraordinary, that the sun should rise so early, I looked into the almanack, where I found it to be the hour given for his rising on that day. I looked forward too, and found he was to rise still earlier every day till towards the end of June; and that at no time in

the year he retarded his rising so long as till eight o'clock. Your readers, who with me have never seen any signs of sunshine before noon, and seldom regard the astronomical part of the almanack, will be as much astonished as I was, when they hear of his rising so early; and especially when I assure them, *that he gives light as soon as he rises*. I am convinced of this. I am certain of my fact. One cannot be more certain of any fact. I saw it with my own eyes. And, having repeated this observation the three following mornings, I found always precisely the same result.

Yet so it happens, that when I speak of this discovery to others, I can easily perceive by their countenances, though they forbear expressing it in words, that they do not quite believe me. One, indeed, who is a learned natural philosopher, has assured me, that I must certainly be mistaken as to the circumstance of the light coming into my room; for it being well known, as he says, that there could be no light abroad at that hour, it follows that none could enter from without; and that of consequence, my windows being accidentally left open, instead of letting in the light, had only served to let out the darkness: and he used many ingenious arguments to shew me how I might, by that means, have been deceived. I own, that he puzzled me a little, but he did not satisfy me; and the subsequent observations I made, as above mentioned, confirmed me in my first opinion.

This event has given rise in my mind to several serious and important reflections. I considered that, if I had not been awakened so early in the morning, I should have slept six hours longer by the light of the sun, and in exchange have lived six hours the following night by candle-light; and the latter being a much more expensive light than the former, my love of economy induced me to muster up what little arithmetic I was master of, and to make some calculations, which I shall give you, after observing that utility is, in my opinion, the test of value in matters of invention, and that a discovery which can be applied to no use, or is not good for something, is good for nothing.

I took for the basis of my calculation the supposition that there are 100,000 families in Paris, and that these families consume in the night half a pound of bougies, or candles per hour. I think this is a moderate allowance, taking one family with another; for though I believe some consume less, I know that many consume a great deal more. Then estimating seven hours per day, as the medium quantity between the time of

the sun's rising and ours, he rising during the six following months from six to eight hours before noon, and there being seven hours of course per night in which we burn candles, the account will stand thus:—

In the six months between the twentieth of March and the twentieth of September, there are

Nights	183
Hours of each night in which we burn candles	7
Multiplication gives for the total number of hours	1,281
These 1,281 hours multiplied by 100,000, the number of inhabitants give	128,100,000
One hundred twenty-eight millions and one hundred thousand hours, spent at Paris by candle-light, which, at half a pound of wax and tallow per hour, gives the weight of	64,050,000
Sixty-four millions and fifty thousand of pounds, which, estimating the whole at the medium price of thirty sols the pound, makes the sum of ninety- six millions and seventy-five thousand livres tournois	96,075,000

An immense sum! that the city of Paris might save every year, by the economy of using sunshine instead of candles.

If it should be said, that people are apt to be obstinately attached to old customs, and that it will be difficult to induce them to rise before noon, consequently my discovery can be of little use: I answer, *Nil desperandum*. I believe all who have common sense, as soon as they have learnt from this paper that it is day-light when the sun rises, will contrive to rise with him; and, to compel the rest, I would propose the following regulations:

First. Let a tax be laid of a louis per window, on every window that is provided with shutters to keep out the light of the sun.

Second. Let the same salutary operation of police be made use of to prevent our burning candles, that inclined us last winter to be more economical in burning wood; that is, let guards be placed in the shops of the

wax and tallow chandlers, and no family be permitted to be supplied with more than one pound of candles per week.

Third. Let guards also be posted to stop all the coaches, &c. that would pass the streets after sun-set, except those of physicians, surgeons, and midwives.

Fourth. Every morning, as soon as the sun rises, let all the bells in every church be set ringing; and if that is not sufficient, let cannon be fired in every street, to wake the sluggards effectually, and make them open their eyes to see their true interest.

All the difficulty will be in the first two or three days: after which the reformation will be as natural and easy as the present irregularity: for, *ce n'est que le premier pas qui coute*. Oblige a man to rise at four in the morning, and it is more than probable he shall go willingly to bed at eight in the evening; and, having had eight hours sleep, he will rise more willingly at four the morning following. But this sum of ninety-six millions and seventy-five thousand livres is not the whole of what may be saved by my economical project. You may observe, that I have calculated upon only one half of the year, and much may be saved in the other, though the days are shorter. Besides, the immense stock of wax and tallow left unconsumed during the summer will probably make candles much cheaper for the ensuing winter, and continue them cheaper as long as the proposed reformation shall be supported.

For the great benefit of this discovery, thus freely communicated and bestowed by me on the public, I demand neither place, pension, exclusive privilege, nor any other reward whatever. I expect only to have the honour of it. And yet I know there are little envious minds who will, as usual, deny me this, and say, that my invention was known to the ancients, and perhaps they may bring passages out of the old books in proof of it. I will not dispute with these people, that the ancients knew not the sun would rise at certain hours; they possibly had, as we have, almanacks that predicted it: but it does not follow from thence, that they knew *he gave light as soon as he rose*. This is what I claim as my discovery. If the ancients knew it, it might have been long since forgotten, for it certainly was unknown to the moderns, at least to the Parisians, which to prove, I need use but one plain simple argument. They are as well-instructed, judicious and prudent a

people as exist any where in the world, all professing, like myself, to be lovers of economy; and, from the many heavy taxes required from them by the necessities of the state, have surely an abundant reason to be economical. I say it is impossible, that so sensible a people, under such circumstances, should have lived so long by the smoaky, unwholesome and enormously expensive light of candles, if they had really known, that they might have had as much pure light of the sun for nothing.

I am, &c.

An ABONNE.

FOOTNOTE:

[\[179\]](#) "A translation of this letter appeared in one of the daily papers of Paris about the year 1784. The following is the original piece, with some additions and corrections made in it by the author." Note by the editor of the Repository, from which we extract the letter. *Editor.*

TO JOHN ALLEYNE, ESQ. [\[180\]](#)

[On early Marriages.](#)

Craven Street, Aug. 9, 1768.

DEAR JACK,

You desire, you say, my impartial thoughts on the subject of an early marriage, by way of answer to the numberless objections, that have been made by numberless persons, to your own. You may remember, when you consulted me on the occasion, that I thought youth on both sides to be no objection. Indeed, from the marriages that have fallen under my observation, I am rather inclined to think, that early ones stand the best chance of happiness. The temper and habits of the young are not yet become so stiff and uncomplying, as when more advanced in life; they form more easily to each other, and hence many occasions of disgust are removed. And if youth has less of that prudence, which is necessary to manage a family, yet the parents and elder friends of young married persons are generally at hand to afford their advice, which amply supplies that defect; and by early marriage, youth is sooner formed to regular and useful life; and possibly some of those accidents or connections, that might have injured the constitution, or reputation, or both, are thereby happily prevented. Particular circumstances of particular persons may possibly sometimes make it prudent to delay entering into that state; but in general, when nature has rendered our bodies fit for it, the presumption is in nature's favour, that she has not judged amiss in making us desire it. Late marriages are often attended, too, with this further inconvenience, that there is not the same chance that the parents shall live to see their offspring educated. "Late children," says the Spanish proverb, "are early orphans." A melancholy reflection to those whose case it may be! With us in America, marriages are generally in the morning of life; our children are therefore educated and settled in the world by noon; and thus, our business being done, we have an afternoon and evening of cheerful leisure to ourselves, such as our friend at present enjoys. By these early marriages we are blessed with more children; and from the mode among us, founded by nature, of every mother suckling

and nursing her own child, more of them are raised. Thence the swift progress of population among us, unparalleled in Europe. In fine, I am glad you are married, and congratulate you most cordially upon it. You are now in the way of becoming a useful citizen; and you have escaped the unnatural state of celibacy for life—the fate of many here, who never intended it, but who, having too long postponed the change of their condition, find, at length, that it is too late to think of it, and so live all their lives in a situation, that greatly lessens a man's value. An odd volume of a set of books bears not the value of its proportion to the set: what think you of the odd half of a pair of scissars? it cannot well cut any thing; it may possibly serve to scrape a trencher.

Pray make my compliments and best wishes acceptable to your bride. I am old and heavy, or I should ere this have presented them in person. I shall make but small use of the old man's privilege, that of giving advice to younger friends. Treat your wife always with respect; it will procure respect to you, not only from her, but from all that observe it. Never use a slighting expression to her, even in jest; for slights in jest, after frequent bandyings, are apt to end in angry earnest. Be studious in your profession, and you will be learned. Be industrious and frugal, and you will be rich. Be sober and temperate, and you will be healthy. Be in general virtuous, and you will be happy. At least, you will, by such conduct, stand the best chance for such consequences. I pray God to bless you both! being ever your affectionate friend,

B. FRANKLIN.

FOOTNOTE:

[\[180\]](#) From the Gentleman's Magazine for May 1789. *Editor.*

TO DOCTOR MATHER OF BOSTON^[181].

Effect of early Impressions on the Mind.

REV. SIR,

I received your kind letter, with your excellent advice to the people of the United States, which I read with great pleasure, and hope it will be duly regarded. Such writings, though they may be lightly passed over by many readers, yet, if they make a deep impression on one active mind in a hundred, the effects may be considerable.

Permit me to mention one little instance, which, though it relates to myself, will not be quite uninteresting to you. When I was a boy, I met with a book entitled, "Essays to do good," which I think was written by your father. It had been so little regarded by a former possessor, that several leaves of it were torn out; but the remainder gave me such a turn of thinking, as to have an influence on my conduct through life: for I have always set a greater value on the character of a doer of good, than any other kind of reputation; and if I have been, as you seem to think, a useful citizen, the public owes the advantage of it to that book.

You mention your being in your seventy-eighth year. I am in my seventy ninth. We are grown old together. It is now more than sixty years since I left Boston; but I remember well both your father and grandfather, having heard them both in the pulpit, and seen them in their houses. The last time I saw your father was in the beginning of 1724, when I visited him after my first trip to Pennsylvania. He received me in his library; and, on my taking leave, showed me a shorter way out of the house, through a narrow passage, which was crossed by a beam overhead. We were still talking as I withdrew, he accompanying me behind, and I turning partly towards him, when he said hastily, "Stoop, stoop!" I did not understand him, till I felt my head hit against the beam. He was a man who never missed any occasion of giving instruction; and upon this he said to me: "You are young, and have the world before you: stoop as you go through it, and you will miss many hard thumps." This advice, thus beat into my heart, has frequently been of use to

me: and I often think of it, when I see pride mortified, and misfortunes brought upon people by their carrying their heads too high.

I long much to see again my native place; and once hoped to lay my bones there. I left it in 1723. I visited it in 1733, 1743, 1753, and 1763; and in 1773 I was in England. In 1775 I had a sight of it, but could not enter, it being in possession of the enemy. I did hope to have been there in 1783, but could not obtain my dismissal from this employment here; and now I fear I shall never have that happiness. My best wishes however attend my dear country, "*esto perpetua*." It is now blessed with an excellent constitution: may it last for ever!

This powerful monarchy continues its friendship for the United States. It is a friendship of the utmost importance to our security, and should be carefully cultivated. Britain has not yet well digested the loss of its dominion over us; and has still at times some flattering hopes of recovering it. Accidents may increase those hopes, and encourage dangerous attempts. A breach between us and France would infallibly bring the English again upon our backs: and yet we have some wild beasts among our countrymen, who are endeavouring to weaken that connection.

Let us preserve our reputation, by performing our engagements; our credit, by fulfilling our contracts; and our friends, by gratitude and kindness: for we know not how soon we may again have occasion for all of them.

With great and sincere esteem,

I have the honour to be,

Reverend Sir,

Your most obedient and most humble servant,

B. FRANKLIN.

Passy, May 12, 1784.

FOOTNOTE:

[\[181\]](#) From the American Museum, Vol. VII. p. 100. *Editor.*

Passy, Nov. 10, 1779.

I received my dear friend's two letters, one for Wednesday, and one for Saturday. This is again Wednesday. I do not deserve one for to day, because I have not answered the former. But indolent as I am, and averse to writing, the fear of having no more of your pleasing epistles, if I do not contribute to the correspondence, obliges me to take up my pen: and as Mr. B. has kindly sent me word, that he sets out to-morrow to see you; instead of spending this Wednesday evening, as I have done its name-sakes, in your delightful company, I sit down to spend it in thinking of you, in writing to you, and in reading over and over again your letters.

I am charmed with your description of Paradise, and with your plan of living there; and I approve much of your conclusion, that in the mean time, we should draw all the good we can from this world. In my opinion, we might all draw more good from it than we do, and suffer less evil, if we would but take care not to give too much for *whistles*. For to me it seems, that most of the unhappy people we meet with, are become so by neglect of that caution.

You ask, what I mean? You love stories, and will excuse my telling one of myself.

When I was a child, at seven years old, my friends, on a holiday, filled my pocket with coppers. I went directly to a shop where they sold toys for children; and being charmed with the sound of a *whistle*, that I met by the way in the hands of another boy, I voluntarily offered him all my money for it. I then came home, and went whistling all over the house, much pleased with my *whistle*, but disturbing all the family. My brothers, and sisters, and cousins, understanding the bargain I had made, told me I had given four times as much for it as it was worth. This put me in mind what good things I might have bought with the rest of the money; and they laughed at me so much for my folly, that I cried with vexation; and the reflection gave me more chagrin, than the *whistle* gave me pleasure.

This however was afterwards of use to me, the impression continuing on my mind; so that often, when I was tempted to buy some unnecessary thing, I said to myself, *Don't give too much for the whistle*; and so I saved my money.

As I grew up, came into the world, and observed the actions of men, I thought I met with many, very many, who *gave too much for the whistle*.

When I saw any one too ambitious of court favours, sacrificing his time in attendance on levees, his repose, his liberty, his virtue, and perhaps his friends, to attain it, I have said to myself, *This man gives too much for his whistle*.

When I saw another fond of popularity, constantly employing himself in political bustles, neglecting his own affairs, and ruining them by that neglect, *He pays, indeed, says I, too much for his whistle*.

If I knew a miser, who gave up every kind of comfortable living, all the pleasure of doing good to others, all the esteem of his fellow-citizens, and the joys of benevolent friendship, for the sake of accumulating wealth, *Poor man, says I, you pay too much for your whistle*.

When I meet a man of pleasure, sacrificing every laudable improvement of the mind, or of his fortune, to mere corporeal sensations, and ruining his health in their pursuit, *Mistaken man, says I, you are providing pain for yourself, instead of pleasure: you give too much for your whistle*.

If I see one fond of appearance, of fine clothes, fine houses, fine furniture, fine equipages, all above his fortune, for which he contracts debts, and ends his career in a prison, *Alas, says I, he has paid dear, very dear, for his whistle*.

When I see a beautiful, sweet-tempered girl, married to an ill-natured brute of a husband, *What a pity it is, says I, that she has paid so much for a whistle!*

In short, I conceived, that great part of the miseries of mankind were brought upon them by the false estimates they had made of the value of things, and by their giving too much for their *whistles*.

Yet I ought to have charity for these unhappy people, when I consider, that with all this wisdom of which I am boasting, there are certain things in

the world so tempting, for example, the apples of king John, which happily are not to be bought; for if they were put to sale by auction, I might very easily be led to ruin myself in the purchase, and find, that I had once more given too much for the *whistle*.

Adieu, my dearest friend, and believe me ever yours very sincerely and with unalterable affection,

B. FRANKLIN.

FOOTNOTE:

[\[182\]](#) This story has generally been supposed to have been written by Dr. Franklin for his nephew: but it seems, by the introductory paragraphs, which we have no where seen prefixed to the story but in a small collection of our author's works printed at Paris, to have been addressed to some female relative. The two concluding paragraphs, which are from the same source, are equally new to us. *Editor.*

I address myself to all the friends of youth, and conjure them to direct their compassionate regards to my unhappy fate, in order to remove the prejudices of which I am the victim. There are twin sisters of us: and the two eyes of man do not more resemble, nor are capable of being upon better terms with each other, than my sister and myself, were it not for the partiality of our parents, who make the most injurious distinctions between us. From my infancy, I have been led to consider my sister as a being of a more elevated rank. I was suffered to grow up without the least instruction, while nothing was spared in her education. She had masters to teach her writing, drawing, music, and other accomplishments; but if by chance I touched a pencil, a pen, or a needle, I was bitterly rebuked: and more than once I have been beaten for being awkward, and wanting a graceful manner. It is true, my sister associated me with her upon some occasions; but she always made a point of taking the lead, calling upon me only from necessity, or to figure by her side.

But conceive not, sirs, that my complaints are instigated merely by vanity—No; my uneasiness is occasioned by an object much more serious. It is the practice in our family, that the whole business of providing for its subsistence falls upon my sister and myself. If any indisposition should attack my sister—and I mention it in confidence upon this occasion, that she is subject to the gout, the rheumatism and cramp, without making mention of other accidents—what would be the fate of our poor family? Must not the regret of our parents be excessive, at having placed so great a difference between sisters, who are so perfectly equal? Alas! we must perish from distress: for it would not be in my power even to scrawl a suppliant petition for relief, having been obliged to employ the hand of another in transcribing the request, which I have now the honour to prefer to you.

Condescend, sirs, to make my parents sensible of the injustice of an exclusive tenderness, and of the necessity of distributing their care and affection among all their children equally.

I am, with a profound respect,

Sirs,

Your obedient servant,

THE LEFT HAND.

FOOTNOTE:

[\[183\]](#) From the American Museum, Vol. VII. p. 265. *Editor.*

There are two sorts of people in the world, who, with equal degrees of health and wealth, and the other comforts of life, become, the one happy, and the other miserable. This arises very much from the different views in which they consider things, persons, and events; and the effect of those different views upon their own minds.

In whatever situation men can be placed, they may find conveniences and inconveniences; in whatever company, they may find persons and conversation more or less pleasing: at whatever table, they may meet with meats and drinks of better and worse taste, dishes better and worse dressed; in whatever climate, they will find good and bad weather: under whatever government, they may find good and bad laws, and good and bad administration of those laws; in whatever poem, or work of genius, they may see faults and beauties; in almost every face, and every person, they may discover fine features and defects, good and bad qualities.

Under these circumstances, the two sorts of people above mentioned fix their attention, those, who are disposed to be happy, on the conveniences of things, the pleasant parts of conversation, the well-dressed dishes, the goodness of the wines, the fine weather, &c. and enjoy all with cheerfulness. Those, who are to be unhappy, think and speak only of the contraries. Hence they are continually discontented themselves, and, by their remarks, sour the pleasures of society, offend personally many people, and make themselves every where disagreeable. If this turn of mind was founded in nature, such unhappy persons would be the more to be pitied. But as the disposition to criticise, and to be disgusted, is, perhaps, taken up originally by imitation, and is, unawares, grown into a habit, which, though at present strong, may nevertheless be cured, when those who have it are convinced of its bad effects on their felicity; I hope this little admonition may be of service to them, and put them on changing a habit, which, though in the exercise it is chiefly an act of imagination, yet has serious consequences in life, as it brings on real griefs and misfortunes. For, as many are offended by, and nobody loves, this sort of people, no one shows

them more than the most common civility and respect, and scarcely that; and this frequently puts them out of humour, and draws them into disputes and contentions. If they aim at obtaining some advantage in rank or fortune, nobody wishes them success, or will stir a step, or speak a word, to favour their pretensions. If they incur public censure or disgrace, no one will defend or excuse, and many join to aggravate their misconduct, and render them completely odious. If these people will not change this bad habit, and condescend to be pleased with what is pleasing, without fretting themselves and others about the contraries, it is good for others to avoid an acquaintance with them; which is always disagreeable, and sometimes very inconvenient, especially when one finds oneself entangled in their quarrels.

An old philosophical friend of mine was grown, from experience, very cautious in this particular, and carefully avoided any intimacy with such people. He had, like other philosophers, a thermometer, to show him the heat of the weather, and a barometer, to mark when it was likely to prove good or bad; but there being no instrument invented to discover, at first sight, this unpleasing disposition in a person, he, for that purpose, made use of his legs; one of which was remarkably handsome, the other, by some accident, crooked and deformed. If a stranger, at the first interview, regarded his ugly leg more than his handsome one, he doubted him. If he spoke of it, and took no notice of the handsome leg, that was sufficient to determine my philosopher to have no further acquaintance with him. Every body has not this two-legged instrument; but every one, with a little attention, may observe signs of that carping, fault-finding disposition, and take the same resolution of avoiding the acquaintance of those infected with it, I therefore advise those critical querulous, discontented, unhappy people, that, if they wish to be respected and beloved by others, and happy in themselves, they should *leave off looking at the ugly leg*.

FOOTNOTE:

[\[184\]](#) From the Columbian Magazine, Vol. I. p. 61. *Editor*.

Playing at chess is the most ancient and most universal game known among men; for its original is beyond the memory of history, and it has, for numberless ages, been the amusement of all the civilized nations of Asia, the Persians, the Indians, and the Chinese. Europe has had it above a thousand years; the Spaniards have spread it over their part of America, and it begins lately to make its appearance in these states. It is so interesting in itself, as not to need the view of gain to induce engaging in it; and thence it is never played for money. Those, therefore, who have leisure for such diversions, cannot find one that is more innocent; and the following piece, written with a view to correct (among a few young friends) some little improprieties in the practice of it, shows, at the same time, that it may, in its effects on the mind, be not merely innocent, but advantageous, to the vanquished as well as the victor.

The game of chess is not merely an idle amusement. Several very valuable qualities of the mind, useful in the course of human life, are to be acquired or strengthened by it, so as to become habits, ready on all occasions. For life is a kind of chess, in which we have often points to gain, and competitors or adversaries to contend with, and in which there is a vast variety of good and ill events, that are, in some degree, the effects of prudence or the want of it. By playing at chess, then, we may learn,

I. *Foresight*, which looks a little into futurity, and considers the consequences that may attend an action: for it is continually occurring to the player, "If I move this piece, what will be the advantage of my new situation? What use can my adversary make of it to annoy me? What other moves can I make to support it, and to defend myself from his attacks?"

II. *Circumspection*, which surveys the whole chess-board, or scene of action, the relations of the several pieces and situations, the dangers they are respectively exposed to, the several possibilities of their aiding each other, the probabilities that the adversary may take this or that move, and

attack this or the other piece, and what different means can be used to avoid his stroke, or turn its consequences against him.

III. *Caution*, not to make our moves too hastily. This habit is best acquired by observing strictly the laws of the game, such as, "If you touch a piece, you must move it somewhere: if you set it down, you must let it stand:" and it is therefore best that these rules should be observed, as the game thereby becomes more the image of human life, and particularly of war; in which, if you have incautiously put yourself into a bad and dangerous position, you cannot obtain your enemy's leave to withdraw your troops, and place them more securely, but you must abide all the consequences of your rashness.

And, lastly, we learn by chess the habit of *not being discouraged by present bad appearances in the state of our affairs*, the habit of *hoping for a favourable change*, and that of *persevering in the search of resources*. The game is so full of events, there is such a variety of turns in it, the fortune of it is so subject to sudden vicissitudes, and one so frequently, after long contemplation, discovers the means of extricating oneself from a supposed insurmountable difficulty, that one is encouraged to continue the contest to the last, in hopes of victory by our own skill, or at least of getting a stale mate, by the negligence of our adversary. And whoever considers, what in chess he often sees instances of, that particular pieces of success are apt to produce presumption, and its consequent inattention, by which the loss may be recovered, will learn not to be too much discouraged by the present success of his adversary, nor to despair of final good fortune upon every little check he receives in the pursuit of it.

That we may, therefore, be induced more frequently to choose this beneficial amusement, in preference to others, which are not attended with the same advantages, every circumstance which may increase the pleasures of it should be regarded; and every action or word that is unfair, disrespectful, or that in any way may give uneasiness, should be avoided, as contrary to the immediate intention of both the players, which is to pass the time agreeably.

Therefore, first, if it is agreed, to play according to the strict rules; then those rules are to be exactly observed by both parties, and should not be

insisted on for one side, while deviated from by the other—for this is not equitable.

Secondly, if it is agreed, not to observe the rules exactly, but one party demands indulgencies, he should then be as willing to allow them to the other.

Thirdly, no false move should ever be made to extricate yourself out of difficulty, or to gain an advantage. There can be no pleasure in playing with a person once detected in such unfair practice.

Fourthly, if your adversary is long in playing you ought not to hurry him, or express any uneasiness at his delay. You should not sing, nor whistle, nor look at your watch, nor take up a book to read, nor make a tapping with your feet on the floor, or with your fingers on the table, nor do any thing that may disturb his attention. For all these things displease; and they do not show your skill in playing, but your craftiness or your rudeness.

Fifthly, you ought not to endeavour to amuse and deceive your adversary, by pretending to have made bad moves, and saying, that you have now lost the game, in order to make him secure and careless, and inattentive to your schemes: for this is fraud and deceit, not skill in the game.

Sixthly, you must not, when you have gained a victory, use any triumphing or insulting expression, nor show too much pleasure; but endeavour to console your adversary, and make him less dissatisfied with himself, by every kind of civil expression, that may be used with truth, such as, "you understand the game better than I, but you are a little inattentive;" or, "you play too fast;" or, "you had the best of the game, but something happened to divert your thoughts, and that turned it in my favour."

Seventhly, if you are a spectator while others play, observe the most perfect silence. For if you give advice, you offend both parties, him against whom you give it, because it may cause the loss of his game, him in whose favour you give it, because, though it be good and he follows it, he loses the pleasure he might have had, if you had permitted him to think until it had occurred to himself. Even after a move or moves, you must not, by replacing the pieces, show how it might have been placed better: for that displeases, and may occasion disputes and doubts about their true situation. All talking to the players lessens or diverts their attention, and is therefore

unpleasing. Nor should you give the least hint to either party, by any kind of noise or motion. If you do, you are unworthy to be a spectator. If you have a mind to exercise or show your judgment, do it in playing your own game, when you have an opportunity, not in criticising, or meddling with, or counselling the play of others.

Lastly, if the game is not to be played rigorously, according to the rules above mentioned, then moderate your desire of victory over your adversary, and be pleased with one over yourself. Snatch not eagerly at every advantage offered by his unskilfulness or inattention; but point out to him kindly, that by such a move he places or leaves a piece in danger and unsupported; that by another he will put his king in a perilous situation, &c. By this generous civility (so opposite to the unfairness above forbidden) you may, indeed, happen to lose the game to your opponent, but you will win what is better, his esteem, his respect, and his affection, together with the silent approbation and good-will of impartial spectators.

FOOTNOTE:

[\[185\]](#) This letter has appeared in too many forms in this country, and is too well known to be Dr. Franklin's, to require being authenticated. *Editor.*

[The Art of procuring Pleasant Dreams.](#)^[186]

INSCRIBED TO MISS ****,

Being written at her request.

As a great part of our life is spent in sleep, during which we have sometimes pleasing, and sometimes painful dreams, it becomes of some consequence to obtain the one kind, and avoid the other; for, whether real or imaginary, pain is pain, and pleasure is pleasure. If we can sleep without dreaming, it is well that painful dreams are avoided. If, while we sleep, we can have any pleasing dreams, it is, as the French say, *tant gagné*, so much added to the pleasure of life.

To this end, it is, in the first place, necessary, to be careful in preserving health, by due exercise, and great temperance; for, in sickness, the imagination is disturbed; and disagreeable, sometimes terrible, ideas are apt to present themselves. Exercise should precede meals, not immediately follow them: the first promotes, the latter, unless moderate, obstructs digestion. If, after exercise, we feed sparingly, the digestion will be easy and good, the body lightsome, the temper cheerful, and all the animal functions performed agreeably. Sleep, when it follows, will be natural and undisturbed, while indolence, with full feeding, occasions nightmares and horrors inexpressible: we fall from precipices, are assaulted by wild beasts, murderers, and demons, and experience every variety of distress. Observe, however, that the quantities of food and exercise are relative things: those who move much may, and indeed ought, to eat more; those who use little exercise should eat little. In general, mankind, since the improvement of cookery, eat about twice as much as nature requires. Suppers are not bad, if we have not dined; but restless nights naturally follow hearty suppers, after full dinners. Indeed, as there is a difference in constitutions, some rest well after these meals; it costs them only a frightful dream, and an apoplexy, after which they sleep till doomsday. Nothing is more common in the newspapers, than instances of people, who, after eating a hearty supper, are found dead a-bed in the morning.

Another means of preserving health, to be attended to, is the having a constant supply of fresh air in your bed-chamber. It has been a great mistake, the sleeping in rooms exactly closed, and in beds surrounded by curtains. No outward air that may come into you is so unwholesome, as the unchanged air, often breathed, of a close chamber. As boiling water does not grow hotter by longer boiling, if the particles that receive greater heat can escape; so living bodies do not putrify, if the particles, as fast as they become putrid, can be thrown off. Nature expels them by the pores of the skin and the lungs, and in a free open air they are carried off; but, in a close room, we receive them again and again, though they become more and more corrupt. A number of persons crowded into a small room thus spoil the air in a few minutes, and even render it mortal, as in the Black Hole at Calcutta. A single person is said to spoil only a gallon of air per minute, and therefore requires a longer time to spoil a chamber full; but it is done, however, in proportion, and many putrid disorders hence have their origin. It is recorded of Methusalem, who, being the longest liver, may be supposed to have best preserved his health, that he slept always in the open air; for, when he had lived five hundred years, an angel said to him: "Arise, Methusalem, and build thee an house, for thou shalt live yet five hundred years longer." But Methusalem answered and said, "If I am to live but five hundred years longer it is not worth while to build me an house—I will sleep in the air, as I have been used to do." Physicians, after having for ages contended, that the sick should not be indulged with fresh air, have at length discovered, that it may do them good. It is therefore to be hoped, that they may in time discover likewise, that it is not hurtful to those who are in health, and that we may be then cured of the *aërophobia*, that at present distresses weak minds, and make them choose to be stifled and poisoned, rather than leave open the window of a bed-chamber, or put down the glass of a coach.

Confined air, when saturated with perspirable matter^[187], will not receive more; and that matter must remain in our bodies, and occasion diseases: but it gives some previous notice of its being about to be hurtful, by producing certain uneasinesses, slight indeed at first, such as, with regard to the lungs, is a trifling sensation, and to the pores of the skin a kind of restlessness, which is difficult to describe, and few that feel it know the cause of it. But we may recollect, that sometimes, on waking in the night, we have, if warmly covered, found it difficult to get asleep again. We turn often without

finding repose in any position. This figettiness, to use a vulgar expression for want of a better, is occasioned wholly by an uneasiness in the skin, owing to the retension of the perspirable matter—the bed-clothes having received their quantity, and, being saturated, refusing to take any more. To become sensible of this by an experiment, let a person keep his position in the bed, but throw off the bed-clothes, and suffer fresh air to approach the part uncovered of his body; he will then feel that part suddenly refreshed; for the air will immediately relieve the skin, by receiving, licking up, and carrying off, the load of perspirable matter that incommoded it. For every portion of cool air, that approaches the warm skin, in receiving its part of that vapour, receives therewith a degree of heat, that rarifies and renders it lighter, when it will be pushed away, with its burthen, by cooler and therefore heavier fresh air; which, for a moment, supplies its place, and then, being likewise changed and warmed, gives way to a succeeding quantity. This is the order of nature, to prevent animals being infected by their own perspiration. He will now be sensible of the difference between the part exposed to the air, and that which, remaining sunk in the bed, denies the air access: for this part now manifests its uneasiness more distinctly by the comparison, and the seat of the uneasiness is more plainly perceived, than when the whole surface of the body was affected by it.

Here, then, is one great and general cause of unpleasing dreams. For when the body is uneasy, the mind will be disturbed by it, and disagreeable ideas of various kinds will, in sleep, be the natural consequences. The remedies, preventative and curative, follow:

1. By eating moderately (as before advised for health's sake) less perspirable matter is produced in a given time; hence the bed-clothes receive it longer before they are saturated; and we may, therefore, sleep longer, before we are made uneasy by their refusing to receive any more.

2. By using thinner and more porous bed-clothes, which will suffer the perspirable matter more easily to pass through them, we are less incommoded, such being longer tolerable.

3. When you are awakened by this uneasiness, and find you cannot easily sleep again, get out of bed, beat up and turn your pillow, shake the bed-clothes well, with at least twenty shakes, then throw the bed open, and leave it to cool; in the meanwhile, continuing undrest, walk about your chamber,

till your skin has had time to discharge its load, which it will do sooner as the air may be drier and colder. When you begin to feel the cold air unpleasant, then return to your bed, and you will soon fall asleep, and your sleep will be sweet and pleasant. All the scenes presented to your fancy will be of the pleasing kind. I am often as agreeably entertained with them, as by the scenery of an opera. If you happen to be too indolent to get out of bed, you may, instead of it, lift up your bed-clothes with one arm and leg, so as to draw in a good deal of fresh air, and, by letting them fall, force it out again. This, repeated twenty times, will so clear them of the perspirable matter they have imbibed, as to permit your sleeping well for some time afterwards. But this latter method is not equal to the former.

Those who do not love trouble, and can afford to have two beds, will find great luxury in rising, when they wake in a hot bed, and going into the cool one. Such shifting of beds would also be of great service to persons ill of a fever, as it refreshes and frequently procures sleep. A very large bed, that will admit a removal so distant from the first situation as to be cool and sweet, may in a degree answer the same end.

One or two observations more will conclude this little piece. Care must be taken when you lie down, to dispose your pillow so as to suit your manner of placing your head, and to be perfectly easy; then place your limbs so as not to bear inconveniently hard upon one another, as, for instance, the joints of your ancles: for though a bad position may at first give but little pain and be hardly noticed, yet a continuance will render it less tolerable, and the uneasiness may come on while you are asleep, and disturb your imagination.

These are the rules of the art. But though they will generally prove effectual in producing the end intended, there is a case in which the most punctual observance of them will be totally fruitless. I need not mention the case to you, my dear friend, but my account of the art would be imperfect without it. The case is, when the person, who desires to have pleasant dreams, has not taken care to preserve, what is necessary above all things,

A GOOD CONSCIENCE.

FOOTNOTES:

[186] From the Columbian Magazine, vol. I. p. 64. *Editor*.

[187] What physicians call the perspirable matter, is that vapour which passes off from our bodies, from the lungs, and through the pores of the skin. The quantity of this is said to be five-eighths of what we eat.

Midnight, October 22, 1780.

Franklin.—Eh! Oh! Eh! What have I done to merit these cruel sufferings?

Gout.—Many things; you have ate and drank too freely, and too much indulged those legs of yours in their indolence.

Franklin.—Who is it that accuses me?

Gout.—It is I, even I, the gout.

Franklin.—What! my enemy in person?

Gout.—No, not your enemy.

Franklin.—I repeat it; my enemy: for you would not only torment my body to death, but ruin my good name: you reproach me as a glutton and a tipler; now all the world that knows me will allow, that I am neither the one nor the other.

Gout.—The world may think as it pleases: it is always very complaisant to itself, and sometimes to its friends; but I very well know, that the quantity of meat and drink proper for a man, who takes a reasonable degree of exercise, would be too much for another, who never takes any.

Franklin.—I take—Eh! Oh!—as much exercise—Eh!—as I can, Madam Gout. You know my sedentary state, and on that account, it would seem, Madam Gout, as if you might spare me a little, seeing it is not altogether my own fault.

Gout.—Not a jot: your rhetoric and your politeness are thrown away; your apology avails nothing. If your situation in life is a sedentary one, your amusements, your recreations, at least, should be active. You ought to walk or ride; or, if the weather prevents that, play at billiards. But let us examine your course of life. While the mornings are long, and you have leisure to go abroad, what do you do? Why, instead of gaining an appetite for breakfast,

by salutary exercise, you amuse yourself with books, pamphlets, or newspapers, which commonly are not worth the reading. Yet you eat an inordinate breakfast, four dishes of tea, with cream, and one or two buttered toasts, with slices of hung beef, which I fancy are not things the most easily digested. Immediately afterward you sit down to write at your desk, or converse with persons who apply to you on business. Thus the time passes till one, without any kind of bodily exercise. But all this I could pardon, in regard, as you say, to your sedentary condition. But what is your practice after dinner. Walking in the beautiful gardens of those friends with whom you have dined would be the choice of men of sense: yours is to be fixed down to chess, where you are found engaged for two or three hours! This is your perpetual recreation, which is the least eligible of any for a sedentary man, because, instead of accelerating the motion of the fluids, the rigid attention it requires helps to retard the circulation and obstruct internal secretions. Wrapt in the speculations of this wretched game, you destroy your constitution. What can be expected from such a course of living, but a body replete with stagnant humours, ready to fall a prey to all kinds of dangerous maladies, if I, the gout, did not occasionally bring you relief by agitating these humours, and so purifying or dissipating them. If it was in some nook or alley in Paris, deprived of walks, that you played awhile at chess after dinner, this might be excusable, but the same taste prevails with you in Passey, Auteuil, Montmartre, or Sanoy, places where there are the finest gardens and walks, a pure air, beautiful women, and most agreeable and instructive conversation; all which you might enjoy by frequenting the walks! But these are rejected for this abominable game of chess. Fie, then, Mr. Franklin! But amidst my instructions, I had almost forgot to administer my wholesome corrections: so take that twinge—and that.

Franklin.—Oh! Eh! Oh!—Ohhh! As much instruction as you please, Madam Gout, and as many reproaches, but pray, Madam, a truce with your corrections!

Gout.—No, sir, no—I will not abate a particle of what is so much for your good—therefore—

Franklin.—Oh! Ehhh!—It is not fair to say I take no exercise, when I do very often, going out to dine, and returning in my carriage.

Gout.—That of all imaginable exercise is the most slight and insignificant, if you allude to the motion of a carriage suspended on springs. By observing the degree of heat obtained by different kinds of motion we may form an estimate of the quantity of exercise given by each. Thus, for example, if you turn out to walk in winter with cold feet, in an hour's time you will be in a glow all over; ride on horseback, the same effect will scarcely be perceived by four hours round trotting: but if you loll in a carriage, such as you have mentioned, you may travel all day, and gladly enter the last inn to warm your feet by a fire. Flatter yourself then no longer, that half an hour's airing in your carriage deserves the name of exercise. Providence has appointed few to roll in carriages, while he has given to all a pair of legs, which are machines infinitely more commodious and serviceable. Be grateful, then, and make a proper use of yours. Would you know, how they forward the circulation of your fluids, in the very action of transporting you from place to place? observe when you walk, that all your weight is alternately thrown from one leg to the other; this occasions a great pressure on the vessels of the foot, and repels their contents. When relieved, by the weight being thrown on the other foot, the vessels of the first are allowed to replenish, and by a return of this weight, this repulsion again succeeds; thus accelerating the circulation of the blood. The heat produced in any given time depends on the degree of this acceleration: the fluids are shaken, the humours attenuated, the secretions facilitated, and all goes well; the cheeks are ruddy, and health is established. Behold your fair friend at Auteuil: a lady who received from bounteous nature more really useful science, than half a dozen such pretenders to philosophy, as you, have been able to extract from all your books. When she honours you with a visit, it is on foot. She walks all hours of the day, and leaves indolence and its concomitant maladies to be endured by her horses. In this see at once the preservative of her health and personal charms. But you, when you go to Auteuil, must have your carriage, though it is no farther from Passy to Auteuil, than from Auteuil to Passy.

Franklin.—Your reasonings grow very tiresome.

Gout.—I stand corrected. I will be silent and continue my office: take that, and that.

Franklin.—Oh! Ohh! Talk on, I pray you!

Gout.—No, no; I have a good number of twinges for you to-night, and you may be sure of some more to-morrow.

Franklin.—What, with such a fever! I shall go distracted. Oh! Eh! Can no one bear it for me?

Gout.—Ask that of your horses; they have served you faithfully.

Franklin.—How can you so cruelly sport with my torments?

Gout.—Sport? I am very serious. I have here a list of your offences against your own health distinctly written, and can justify every stroke inflicted on you.

Franklin.—Read it then.

Gout.—It is too long a detail; but I will briefly mention some particulars.

Franklin.—Proceed—I am all attention.

Gout.—Do you remember how often you have promised yourself, the following morning, a walk in the grove of Boulogne, in the garden de la Muette, or in your own garden, and have violated your promise, alledging, at one time, it was too cold, at another too warm, too windy, too moist, or what else you pleased; when in truth it was too nothing, but your insuperable love of ease?

Franklin.—That I confess may have happened occasionally, probably ten times in a year.

Gout.—Your confession is very far short of the truth; the gross amount is one hundred and ninety-nine times.

Franklin.—Is it possible?

Gout.—So possible that it is fact; you may rely on the accuracy of my statement. You know Mr. B——'s gardens, and what fine walks they contain; you know the handsome flight of an hundred steps, which lead from the terrace above to the lawn below. You have been in the practice of visiting this amiable family twice a week after dinner, and as it is a maxim of your own, that "a man may take as much exercise in walking a mile up and down stairs, as in ten on level ground," what an opportunity was here for you to have had exercise in both these ways? Did you embrace it, and how often?

Franklin.—I cannot immediately answer that question.

Gout.—I will do it for you; not once.

Franklin.—Not once?

Gout.—Even so. During the summer you went there at six o'clock. You found the charming lady, with her lovely children and friends, eager to walk with you, and entertain you with their agreeable conversation: and what has been your choice? Why to sit on the terrace, satisfying yourself with the fine prospect, and passing your eye over the beauties of the garden below, without taking one step to descend and walk about in them. On the contrary, you call for tea, and the chess-board; and lo! you are occupied in your seat till nine o'clock, and that beside two hours play after dinner; and then, instead of walking home, which would have bestirred you a little, you step into your carriage. How absurd to suppose, that all this carelessness can be reconcileable with health, without my interposition!

Franklin.—I am convinced now of the justness of poor Richard's remark, that, "Our debts and our sins are always greater than we think for."

Gout.—So it is! you philosophers are sages in your maxims, and fools in your conduct.

Franklin.—But do you charge among my crimes, that I return in a carriage from Mr. B——'s?

Gout.—Certainly: for having been seated all the while, you cannot object the fatigue of the day, and cannot want therefore the relief of a carriage.

Franklin.—What then would you have me do with my carriage?

Gout.—Burn it, if you choose; you would at least get heat out of it once in this way; or if you dislike that proposal, here's another for you: observe the poor peasants who work in the vineyards and grounds about the villages of Passy, Anteuil, Chaillois, &c.; you may find every day among these deserving creatures, four or five old men and women, bent and perhaps crippled by weight of years, and too long and too great labour. After a most fatiguing day, these people have to trudge a mile or two to their smoky huts. Order your coachmen to set them down. That is an act that will be good for your soul; and at the same time, after your visit to the B——'s, if you return on foot, that will be good for your body.

Franklin.—Ah! how tiresome you are.

Gout.—Well then, to my office; it should not be forgotten, that I am your physician. There.

Franklin.—Ohhh! what a devil of a physician!

Gout.—How ungrateful are you to say so! Is it not I, who, in the character of your physician, have saved you from the palsy, dropsy, and apoplexy? one or other of which would have done for you long ago, but for me.

Franklin.—I submit, and thank you for the past, but intreat the discontinuance of your visits for the future: for in my mind one had better die, than be cured so dolefully. Permit me just to hint, that I have also not been unfriendly to *you*. I never feed physician, or quack of any kind, to enter the list against you; if then you do not leave me to my repose, it may be said you are ungrateful too.

Gout.—I can scarcely acknowledge that as any objection. As to quacks, I despise them: they may kill you, indeed, but cannot injure me. And as to regular physicians, they are at last convinced, that the gout, in such a subject as you are, is no disease, but a remedy; and wherefore cure a remedy?—but to our business—There.—

Franklin.—Oh! Oh!—for heaven's sake leave me; and I promise faithfully never more to play at chess, but to take exercise daily, and live temperately.

Gout.—I know you too well. You promise fair; but, after a few months of good health, you will return to your old habits; your fine promises will be forgotten like the forms of the last year's clouds. Let us then finish the account and I will go. But I leave you with an assurance, of visiting you again at a proper time and place; for my object is your good, and you are sensible now, that I am your real friend.

FOOTNOTE:

[\[188\]](#) We have no authority for ascribing this paper to Dr. Franklin, but its appearance, with his name, in a small collection of his works printed a few years ago at Paris, and cited before, page 480. As the rest of the papers in that collection are genuine, this probably is also genuine. What we give is a translation. *Editor.*

TO MISS HUBBARD.

[On the Death of Relatives.](#)^[189]

Philadelphia, Feb. 22, 1756.

I condole with you. We have lost a most dear and valuable relation^[190]. But it is the will of God and nature, that these mortal bodies be laid aside, when the soul is to enter into real life. This is rather an embryo state, a preparation for living. A man is not completely born until he be dead. Why then should we grieve, that a new child is born among the immortals, a new member added to their happy society? We are spirits. That bodies should be lent us, while they can afford us pleasure, assist us in acquiring knowledge, or doing good to our fellow-creatures, is a kind and benevolent act of God. When they become unfit for these purposes, and afford us pain instead of pleasure, instead of an aid become an incumbrance, and answer none of the intentions for which they were given, it is equally kind and benevolent, that a way is provided by which we may get rid of them. Death is that way. We ourselves, in some cases, prudently choose a partial death. A mangled painful limb, which cannot be restored, we willingly cut off. He, who plucks out a tooth, parts with it freely, since the pain goes with it: and he, who quits the whole body, parts at once with all pains, and possibilities of pains and diseases, it was liable to, or capable of making him suffer.

Our friend and we were invited abroad on a party of pleasure, which is to last for ever. His chair was ready first, and he is gone before us. We could not all conveniently start together: and why should you and I be grieved at this, since we are soon to follow, and know where to find him?

Adieu.

B. FRANKLIN.

FOOTNOTES:

[\[189\]](#) From the Columbian Magazine, Vol. I, p. 208. *Editor*.

[\[190\]](#) Dr. Franklin's brother, Mr. John Franklin.

TO MADAME BRILLIANT.

[The Ephemera an Emblem of human Life.](#)^[191]

You may remember, my dear friend, that when we lately spent that happy day, in the delightful garden and sweet society of the Moulin Joly, I stopt a little in one of our walks, and staid some time behind the company. We had been shown numberless skeletons of a kind of little fly, called an ephemera, whose successive generations, we were told, were bred and expired within the day. I happened to see a living company of them on a leaf, who appeared to be engaged in conversation. You know I understand all the inferior animal tongues: my too great application to the study of them is the best excuse I can give for the little progress I have made in your charming language. I listened through curiosity to the discourse of these little creatures; but as they, in their national vivacity, spoke three or four together, I could make but little of their conversation. I found, however, by some broken expressions that I heard now and then, they were disputing warmly on the merit of two foreign musicians, one a *cousin*, the other a *muschetto*; in which dispute they spent their time, seemingly as regardless of the shortness of life, as if they had been sure of living a month. Happy people! thought I, you live certainly under a wise, just, and mild government, since you have no public grievances to complain of, nor any subject of contention, but the perfections or imperfections of foreign music. I turned my head from them to an old grey-headed one, who was single on another leaf, and talking to himself. Being amused with his soliloquy, I put it down in writing, in hopes it will likewise amuse her to whom I am so much indebted for the most pleasing of all amusements, her delicious company, and heavenly harmony.

"It was," says he, "the opinion of learned philosophers of our race, who lived and flourished long before my time, that this vast world, the Moulin Joly, could not itself subsist more than eighteen hours: and I think there was some foundation for that opinion; since, by the apparent motion of the great luminary, that gives life to all nature, and which in my time has evidently declined considerably towards the ocean at the end of our earth, it must then

finish its course, be extinguished in the waters that surround us, and leave the world in cold and darkness, necessarily producing universal death and destruction. I have lived seven of those hours; a great age, being no less than four hundred and twenty minutes of time. How very few of us continue so long? I have seen generations born, flourish, and expire. My present friends are the children and grand-children of the friends of my youth, who are now, alas no more! And I must soon follow them; for, by the course of nature, though still in health, I cannot expect to live above seven or eight minutes longer. What now avails all my toil and labour, in amassing honey-dew on this leaf, which I cannot live to enjoy! What the political struggles I have been engaged in, for the good of my com-patriot inhabitants of this bush, or my philosophical studies, for the benefit of our race in general! for in politics (what can laws do without morals?) our present race of ephemeræ will in a course of minutes become corrupt, like those of other and older bushes, and consequently as wretched: and in philosophy how small our progress! Alas! art is long, and life is short! My friends would comfort me with the idea of a name, they say, I shall leave behind me; and they tell me, I have lived long enough to nature and to glory. But what will fame be to an ephemera, who no longer exists? and what will become of all history in the eighteenth hour, when the world itself, even the whole Moulin Joly, shall come to its end, and be buried in universal ruin?"——

To me, after all my eager pursuits, no solid pleasures now remain, but the reflection of a long life spent in meaning well, the sensible conversation of a few good lady ephemeræ, and now and then a kind smile and a tune from the ever amiable Brilliant.

B. FRANKLIN.

FOOTNOTE:

[191] From the American Museum, Vol. VIII. p. 183. It was written during the author's residence at Passy, and a translation of it at that time appeared in one of the Parisian periodical publications. This appears to be the original piece. *Editor.*

APPENDIX:

CONTAINING

1. PAPERS PROPER FOR INSERTION, BUT OMITTED, IN THE PRECEDING
VOLUMES:

AND

2. LETTERS BY SEVERAL EMINENT PERSONS, ILLUSTRATIVE OF DR. FRANKLIN'S
MANNERS AND CHARACTER.

APPENDIX, No. I.

CONTAINING PAPERS PROPER FOR INSERTION, BUT OMITTED, IN

THE PRECEDING VOLUMES.

June 2, 1725.

SIR,

Having lately been in the northern parts of America, I have brought from thence a purse made of the *asbestos*, a piece of the stone, and a piece of the wood, the pithy part of which is of the same nature, and called by the inhabitants salamander cotton. As you are noted to be a lover of curiosities, I have informed you of these: and if you have any inclination to purchase or see them, let me know your pleasure, by a line directed for me at the Golden Fan in Little Britain, and I will wait upon you with them.

I am, sir,

Your most humble servant,

B. FRANKLIN.

P. S. I expect to be out of town in two or three days, and therefore beg an immediate answer.

FOOTNOTE:

^[192] From the Gentleman's Magazine, for [], 1780, where it appears among other original letters to Sir Hans Sloane, from different persons. *Editor.*

[No date.]

DEAR SIR,

Understanding that an account of our dear departed friend, Mr. Peter Collinson, is intended to be given to the public, I cannot omit expressing my approbation of the design. The characters of good men are exemplary, and often stimulate the well disposed to an imitation, beneficial to mankind, and honourable to themselves. And as you may be unacquainted with the following instances of his zeal and usefulness in promoting knowledge, which fell within my observation, I take the liberty of informing you, that in 1730, a subscription library being set on foot at Philadelphia, he encouraged the design by making several very valuable presents to it, and procuring others from his friends: and as the library company had a considerable sum arising annually to be laid out in books, and needed a judicious friend in London to transact the business for them, he voluntarily and cheerfully undertook that service, and executed it for more than thirty years successively, assisting in the choice of books, and taking the whole care of collecting and shipping them, without ever charging or accepting any consideration for his trouble. The success of this library (greatly owing to his kind countenance and good advice) encouraged the erecting others in different places on the same plan; and it is supposed, there are now upwards of thirty subsisting in the several colonies, which have contributed greatly to the spreading of useful knowledge in that part of the world; the books he recommended being all of that kind, and the catalogue of this first library being much respected and followed by those libraries that succeeded.

During the same time he transmitted to the directors of the library the earliest accounts of every new European improvement in agriculture and the arts, and every philosophical discovery; among which, in 1745, he sent over an account of the new German experiments in electricity, together with a glass tube, and some directions for using it so as to repeat those experiments. This was the first notice I had of that curious subject, which I

afterwards prosecuted with some diligence, being encouraged by the friendly reception he gave to the letters I wrote to him upon it. Please to accept this small testimony of mine to his memory, for which I shall ever have the utmost respect; and believe me, with sincere esteem, dear sir,

Your most humble servant,

B. FRANKLIN.

FOOTNOTE:

[\[193\]](#) From the London Magazine, for April, 1776. *Editor*.

Letter respecting Captain Cook.

To all captains and commanders of armed ships, acting by commission from the congress of the United States of America, now in war with Great Britain.

GENTLEMEN,

A ship having been fitted out from England, before the commencement of this war, to make discoveries of new countries in unknown seas, under the conduct of that most celebrated navigator, Captain Cook,—an undertaking truly laudable in itself, as the increase of geographical knowledge facilitates the communication between distant nations, in the exchange of useful products and manufactures, and the extension of arts whereby the common enjoyments of human life are multiplied and augmented, and science of other kinds increased, to the benefit of mankind in general.—This is therefore most earnestly to recommend to every one of you, that in case the said ship, which is now expected to be soon in the European seas on her return, should happen to fall into your hands, you would not consider her as an enemy, nor suffer any plunder to be made of the effects contained in her, nor obstruct her immediate return to England, by detaining her or sending her into any other part of Europe or America, but that you would treat the said captain Cook and his people with all civility and kindness, affording them, as common friends to mankind, all the assistance in your power, which they may happen to stand in need of. In so doing, you will not only gratify the generosity of your own dispositions, but there is no doubt of your obtaining the approbation of the congress^[194], and your own American owners.

I have the honour to be, gentlemen,

Your most obedient, &c.

B. FRANKLIN,

Minister plenipotentiary from the congress of the
United States to the court of France.

*At Passy, near Paris,
this 10th day of March, 1779.*

FOOTNOTE:

[\[194\]](#) Dr. Kippis, in his Life of Captain Cook, had asserted, upon what he deemed unquestionable authority, that Dr. Franklin's orders were instantly reversed, and that it was directed by congress, to seize captain Cook, if an opportunity of doing it occurred: but, finding that the information was false, he addressed a letter to the editor of the Gentleman's Magazine, in September, 1795, publicly acknowledging his mistake.

In the American Museum, from which we have taken Dr. Franklin's letter, the correspondent who communicated the letter says, that "the generous proceeding of Dr. Franklin in writing it was so well known in England, and the sentiments it manifested so much approved by the government there, that, when Cook's Voyage was printed, the admiralty sent to Dr. Franklin a copy of the same in three volumes quarto, accompanied with the elegant collection of plates, and a very polite letter from lord Howe, signifying, that the present was made with his majesty's express approbation; and the royal society having, in honour of that illustrious navigator, one of their members, struck some gold medals to be distributed among his friends and the friends of his voyage, one of those medals, was also sent to Dr. Franklin, by order of the society, together with a letter from their worthy president, sir Joseph Banks, expressing likewise, that it was sent with the approbation of his majesty." *Editor.*

An Address to the Public, from the Pennsylvania Society for promoting the Abolition of Slavery, and the Relief of free Negroes, unlawfully held in Bondage.^[195]

It is with peculiar satisfaction, we assure the friends of humanity, that, in prosecuting the design of our association, our endeavours have proved successful, far beyond our most sanguine expectations.

Encouraged by this success, and by the daily progress of that luminous and benign spirit of liberty, which is diffusing itself throughout the world, and humbly hoping for the continuance of the divine blessing on our labours, we have ventured to make an important addition to our original plan, and do, therefore, earnestly solicit the support and assistance of all, who can feel the tender emotions of sympathy and compassion, or relish the exalted pleasure of beneficence.

Slavery is such an atrocious debasement of human nature, that its very extirpation, if not performed with solicitous care, may sometimes open a source of serious evils.

The unhappy man, who has long been treated as a brute animal, too frequently sinks beneath the common standard of the human species. The galling chains, that bind his body, do also fetter his intellectual faculties, and impair the social affections of his heart. Accustomed to move like a mere machine, by the will of a master, reflection is suspended; he has not the power of choice; and reason and conscience have but little influence over his conduct, because he is chiefly governed by the passion of fear. He is poor and friendless—perhaps worn out by extreme labour, age, and disease.

Under such circumstances, freedom may often prove a misfortune to himself, and prejudicial to society.

Attention to emancipated black people, it is therefore to be hoped, will become a branch of our national police; but as far as we contribute to promote this emancipation, so far that attention is evidently a serious duty incumbent on us, and which we mean to discharge to the best of our judgment and abilities.

To instruct, to advise, to qualify those, who have been restored to freedom, for the exercise and enjoyment of civil liberty, to promote in them habits of industry, to furnish them with employments suited to their age, sex, talents, and other circumstances, and to procure their children an education calculated for their future situation in life; these are the great outlines of the annexed plan, which we have adopted, and which we conceive will essentially promote the public good, and the happiness of these our hitherto too much neglected fellow-creatures.

A plan so extensive cannot be carried into execution without considerable pecuniary resources, beyond the present ordinary funds of the society. We hope much from the generosity of enlightened and benevolent freemen, and will gratefully receive any donations or subscriptions for this purpose, which may be made to our treasurer, James Starr, or to James Pemberton, chairman of our committee of correspondence.

Signed by order of the society,

B. FRANKLIN, PRESIDENT.

*Philadelphia,
9th of November, 1789.*

FOOTNOTE:

[\[195\]](#) In an American periodical publication, this address and the plan that follows it are ascribed to the pen of Dr. Franklin, which induces us to give them a place here. *Editor.*

Plan for improving the Condition of the Free Blacks.

The business relative to free blacks shall be transacted by a committee of twenty-four persons, annually elected by ballot, at the meeting of this society, in the month called April; and in order to perform the different services with expedition, regularity, and energy, this committee shall resolve itself into the following sub-committees, viz:

I.

A committee of inspection, who shall superintend the morals, general conduct, and ordinary situation of the free negroes, and afford them advice and instruction, protection from wrongs, and other friendly offices.

II.

A committee of guardians, who shall place out children and young people with suitable persons, that they may (during a moderate time of apprenticeship, or servitude) learn some trade or other business of subsistence. The committee may effect this partly by a persuasive influence on parents and the persons concerned; and partly by co-operating with the laws, which are, or may be enacted for this, and similar purposes: in forming contracts on these occasions, the committee shall secure to the society, as far as may be practicable, the right of guardianship over the persons so bound.

III.

A committee of education, who shall superintend the school-instruction of the children and youth of the free blacks; they may either influence them to attend regularly the schools, already established in this city, or form others with this view; they shall, in either case, provide, that the pupils may receive such learning, as is necessary for their future situation in life; and especially a deep impression of the most important, and generally acknowledged moral and religious principles. They shall also procure and preserve a regular record of the marriages, births, and manumissions of all free blacks.

IV.

A committee of employ, who shall endeavour to procure constant employment for those free negroes who are able to work: as the want of this would occasion poverty, idleness, and many vicious habits. This committee will, by sedulous enquiry, be enabled to find common labour for a great number; they will also provide, that such, as indicate proper talents, may learn various trades, which may be done by prevailing upon them to bind themselves for such a term of years, as shall compensate their masters for the expence and trouble of instruction and maintenance. The committee may attempt the institution of some useful and simple manufactures, which require but little skill, and also may assist, in commencing business, such as appear to be qualified for it.

Whenever the committee of inspection shall find persons of any particular description requiring attention, they shall immediately direct them to the committee, of whose care they are the proper objects.

In matters of a mixed nature, the committees shall confer, and, if necessary, act in concert. Affairs of great importance shall be referred to the whole committee.

The expence, incurred by the prosecution of this plan, shall be defrayed by a fund, to be formed by donations, or subscriptions, for these particular purposes, and to be kept separate from the other funds of this society.

The committee shall make a report of their proceedings, and of the state of their stock, to the society, at their quarterly meetings, in the months called April and October.

Philadelphia,
26th October, 1789.

Some wit of old—such wits of old there were—
Whose hints show'd meaning, whose allusions care,
By one brave stroke to mark all human kind,
Call'd clear blank paper ev'ry infant mind;
When still, as opening sense her dictates wrote,
Fair virtue put a seal, or vice a blot.

The thought was happy, pertinent, and true;
Methinks a genius might the plan pursue.
I (can you pardon my presumption), I—
No wit, no genius, yet for once will try.

Various the papers various wants produce,
The wants of fashion, elegance, and use.
Men are as various: and, if right I scan,
Each sort of *paper* represents some *man*.

Pray note the fop—half powder and half lace—
Nice, as a bandbox were his dwelling-place:
He's the *gilt-paper*, which apart you store,
And lock from vulgar hands in the 'scrutoire.

Mechanics, servants, farmers, and so forth,
Are *copy-paper*, of inferior worth;
Less priz'd, more useful, for your desk decreed,
Free to all pens, and prompt at ev'ry need.

The wretch, whom av'rice bids to pinch and spare,
Starve, cheat, and pilfer, to enrich an heir,
Is coarse *brown-paper*; such as pedlars choose
To wrap up wares, which better men will use.

Take next the miser's contrast, who destroys
Health, fame, and fortune, in a round of joys.
Will any paper match him? Yes, throughout,
He's a true *sinking-paper*, past all doubt.

The retail politician's anxious thought
Deems *this* side always right, and *that* stark nought;
He foams with censure; with applause he raves—
A dupe to rumours, and a tool of knaves;
He'll want no type his weakness to proclaim,
While such a thing as *fools-cap* has a name.

The hasty gentleman, whose blood runs high,
Who picks a quarrel, if you step awry,
Who can't a jest, or hint, or look endure:
What's he? What? *Touch-paper* to be sure.

What are our poets, take them as they fall,
Good, bad, rich, poor, much read, not read at all?

Them and their works in the same class you'll find;
They are the mere *waste-paper* of mankind.

Observe the maiden, innocently sweet,
She's fair *white-paper*, an unsullied sheet;
On which the happy man, whom fate ordains,
May write his *name*, and take her for his pains.

One instance more, and only one I'll bring;
'Tis the *great man* who scorns a little thing,
Whose thoughts, whose deeds, whose maxims are his own,
Form'd on the feelings of his heart alone:
True genuine *royal-paper* is his breast;
Of all the kinds most precious, purest, best.

FOOTNOTE:

[\[196\]](#) We have been told, that this poem is not Franklin's, and the name of some other person was at the time mentioned to us as the author; but as we have forgotten both the name and the authority, and as the poem has been ascribed to Dr. Franklin in the American Museum, we think it not right to omit it. *Editor.*

Plain Truth; or serious Considerations on the present State of the City of Philadelphia, and Province of Pensylvania:

BY A TRADESMAN OF PHILADELPHIA ^[197].

Capta urbe, nihil fit reliqui victis. Sed, per deos immortales, vos ego appello, qui semper domos, villas, signa, tabulas vestras, tantæ æstimationis fecistis; si ista, cujuscumque modi sint, quæ amplexamini, retinere, si voluptatibus vestris otium præbere vultis; expergiscimini aliquando, & capessite rempublicam. Non agitur nunc de sociorum injuriis; *libertas & anima* nostra in dubio est. Dux hostium cum exercitu supra caput est. Vos cunctamini etiam nunc, & dubitatis quid faciatis? Scilicet, res ipsa aspera est, sed vos non timetis eam. Imo vero maxime; sed inertîâ & mollitiâ animi, alius alium expectantes, cunctamini; videlicet, diis immortalibus confisi, qui hanc rempublicam in maximis periculis servavere *non votis, neque suppliciis muliebribus, auxilia deorum parantur*: vigilando, agendo, bene consulendo, prospere omnia cedunt. Ubi socordiæ tete atque ignaviæ tradideris, nequicquam deos implores; irati, infestique sunt.

M. POR. CAT. IN SALUST.

It is said, the wise Italians make this proverbial remark on our nation, viz. The English *feel*, but they do not *see*. That is, they are sensible of inconveniences when they are present, but do not take sufficient care to prevent them: their natural courage makes them too little apprehensive of danger, so that they are often surprised by it, unprovided of the proper means of security. When it is too late, they are sensible of their imprudence: after great fires, they provide buckets and engines: after a pestilence, they think of keeping clean their streets and common sewers: and when a town has been sacked by their enemies, they provide for its defence, &c. This kind of *after-wisdom* is indeed so common with us, as to occasion the vulgar, though very insignificant saying, *When the steed is stolen, you shut the stable door*.

But the more insensible we generally are of public danger and indifferent when warned of it, so much the more freely, openly, and earnestly, ought such as apprehend it to speak their sentiments; that, if possible, those who seem to sleep may be awakened, to think of some means of avoiding or preventing the mischief, before it be too late.

Believing therefore, that it is my *duty*, I shall honestly speak my mind in the following paper.

War, at this time, rages over a great part of the known world; our newspapers are weekly filled with fresh accounts of the destruction it every where occasions. Pensylvania, indeed, situate in the centre of the colonies, has hitherto enjoyed profound repose; and though our nation is engaged in a

bloody war, with two great and powerful kingdoms, yet, defended, in a great degree, from the French, on the one hand, by the northern provinces, and from the Spaniards, on the other, by the southern, at no small expence to each, our people have, till lately, slept securely in their habitations.

There is no British colony, excepting this, but has made some kind of provision for its defence; many of them have therefore never been attempted by an enemy; and others, that were attacked, have generally defended themselves with success. The length and difficulty of our bay and river have been thought so effectual a security to us, that hitherto no means have been entered into, that might discourage an attempt upon us, or prevent its succeeding.

But whatever security this might have been while both country and city were poor, and the advantage to be expected scarce worth the hazard of an attempt, it is now doubted, whether we can any longer safely depend upon it. Our wealth, of late years much encreased, is one strong temptation, our defenceless state another, to induce an enemy to attack us; while the acquaintance they have lately gained with our Bay and river, by means of the prisoners and flags of truce they have had among us; by spies which they almost every where maintain, and perhaps from traitors among ourselves; with the facility of getting pilots to conduct them; and the known absence of ships of war, during the greatest part of the year, from both Virginia and New York, ever since the war began, render the appearance of success to the enemy far more promising, and therefore highly encrease our danger.

That our enemies may have spies abroad, and some even in these colonies, will not be made much doubt of, when it is considered, that such has been the practice of all nations in all ages, whenever they were engaged, or intended to engage, in war. Of this we have an early example in the book of Judges (too pertinent to our case, and therefore I must beg leave a little to enlarge upon it) where we are told, *Chap. xviii, v. 2. That the children of Dan sent of their family five men from their coasts to spie out the land, and search it, saying, Go, search the land.* These Danites it seems were at this time not very orthodox in their religion, and their spies met with a certain idolatrous priest of their own persuasion, v. 3, and they said to him, *Who brought thee hither? What makest thou in this place? And what hast thou here?* [Would to God no such priests were to be found among us]. And they

said unto him, v. 5. *Ask counsel of God, that we may know, whether our way which we go shall be prosperous: and the priest said unto them, Go in peace; before the Lord is your way wherein you go.* [Are there no priests among us, think you, that might, in the like case, give an enemy as good encouragement? It is well known, that we have numbers of the same religion with those, who of late encouraged the French to invade our Mother Country.] *And they came, verse 7, to Laish, and saw the people that were therein, how they dwelt CARELESS, after the manner of the Zidonians, QUIET and SECURE.* They *thought* themselves secure, no doubt; and as they *never had been* disturbed, vainly imagined they *never should*. It is not unlikely, that some might see the danger they were exposed to by living in that *careless* manner; but that, if these publicly expressed their apprehensions, the rest reproached them as timorous persons, wanting courage or confidence in their gods, who (they might say) had hitherto protected them. But the spies, verse 8, returned, and said to their countrymen, verse 9, *Arise, that we may go up against them; for we have seen the land, and behold it is very good! And are ye still? Be not slothful to go.* Verse 10, *when ye go, ye shall come to a people SECURE;* [that is, a people that apprehend no danger, and therefore have made no provision against it; great encouragement this!] *and to a large land, and a place where there is no want of any thing.* What could they desire more? Accordingly we find, in the following verses, that *six hundred men only, appointed with weapons of war*, undertook the conquest of this *large land*; knowing that 600 men, armed and disciplined, would be an over-match perhaps for 60,000, unarmed, undisciplined, and off their guard. And when they went against it, the idolatrous priest, verse 17, *with his graven image, and his ephod, and his seraphim, and his molten image*, [plenty of superstitious trinkets] joined with them, and, no doubt, gave them all the intelligence and assistance in his power; his heart, as the text assures us, *being glad*, perhaps for reasons more than one. And now, what was the fate of poor Laish! The 600 men being arrived, found, as the spies had reported, a people QUIET and SECURE, verse 20, 21, *And they smote them with the edge of the sword, and burnt the city with FIRE; and there was no DELIVERER, because it was far from Zidon.*—Not so far from Zidon, however, as Pennsylvania is from Britain; and yet we are, if possible, more *careless* than the people of Laish! As the scriptures are given for our

reproof, instruction and warning, may we make a due use of this example, before it be too late!

And is our *country*, any more than our city, altogether free from danger? Perhaps not. We have, it is true, had a long peace with the Indians: but it is a long peace indeed, as well as a long lane, that has no ending. The French know the power and importance of the Six Nations, and spare no artifice, pains or expence, to gain them to their interest. By their priests they have converted many to their religion, and these^[198] have openly espoused their cause. The rest appear irresolute what part to take; no persuasions, though enforced with costly presents, having yet been able to engage them generally on our side, though we had numerous forces on their borders, ready to second and support them. What then may be expected, now those forces are, by orders from the crown, to be disbanded, when our boasted expedition is laid aside, through want (as it may appear to them) either of strength or courage; when they see, that the French and their Indians, boldly, and with impunity, ravage the frontiers of New York, and scalp the inhabitants; when those few Indians, that engaged with us against the French, are left exposed to their resentment: when they consider these things, is there no danger that, through disgust at our usage, joined with fear of the French power, and greater confidence in their promises and protection than in ours, they may be wholly gained over by our enemies, and join in the war against us? If such should be the case, which God forbid, how soon may the mischief spread to our frontier countries? And what may we expect to be the consequence, but desertion of plantations, ruin, bloodshed and confusion!

Perhaps some in the city, towns, and plantations near the river, may say to themselves, "An Indian war on the frontiers will not affect us; the enemy will never come near our habitations; let those concerned take care of themselves." And others who live in the country, when they are told of the danger the city is in from attempts by sea, may say, "What is that to us? The enemy will be satisfied with the plunder of the town, and never think it worth his while to visit our plantations: let the town take care of itself."—These are not mere suppositions, for I have heard some talk in this strange manner. But are these the sentiments of true Pennsylvanians, of fellow-countrymen, or even of men, that have common sense or goodness? Is not the whole province one body, united by living under the same laws, and

enjoying the same privileges? Are not the people of city and country connected as relations, both by blood and marriage, and in friendships equally dear? Are they not likewise united in interest, and mutually useful and necessary to each other? When the feet are wounded, shall the head say, it is not me; I will not trouble myself to contrive relief! Or if the head is in danger, shall the hands say, we are not affected, and therefore will lend no assistance! No. For so would the body be easily destroyed: but when all parts join their endeavours for its security, it is often preserved. And such should be the union between the country and the town; and such their mutual endeavours for the safety of the whole. When New England, a distant colony, involved itself in a grievous debt to reduce Cape Breton, we freely gave four thousand pounds for *their* relief. And at another time, remembering that Great Britain, still more distant, groaned under heavy taxes in supporting the war, we threw in our mite to their assistance, by a free gift of three thousand pounds: and shall country and town join in helping strangers (as those comparatively are) and yet refuse to assist each other?

But whatever different opinions we have of our security in other respects, our TRADE, all seem to agree, is in danger of being ruined in another year. The great success of our enemies, in two different cruizes this last summer in our bay, must give them the greatest encouragement to repeat more frequently their visits, the profit being almost certain, and the risk next to nothing. Will not the first effect of this be, an enhancing of the price of all foreign goods to the tradesman and farmer, who use or consume them? For the rate of insurance will increase, in proportion to the hazard of importing them; and in the same proportion will the price of those goods increase. If the price of the tradesman's work, and the farmer's produce, would increase equally with the price of foreign commodities, the damage would not be so great: but the direct contrary must happen. For the same hazard or rate of insurance, that raises the price of what is imported, must be deducted out of, and lower the price of what is exported. Without this addition and deduction, as long as the enemy cruize at our capes, and take those vessels that attempt to *go out*, as well as those that endeavour to *come in*, none can afford to trade, and business must be soon at a stand. And will not the consequences be, a discouragement of many of the vessels that used to come from other places to purchase our produce, and thereby a turning of the trade to ports that can be entered with less danger, and capable of

furnishing them with the same commodities, as New York, &c.; a lessening of business to every shopkeeper, together with multitudes of bad debts, the high rate of goods discouraging the buyers, and the low rates of their labour and produce, rendering them unable to pay for what they had bought; loss of employment to the tradesman, and bad pay for what little he does; and lastly, loss of many inhabitants, who will retire to other provinces not subject to the like inconveniences; whence a lowering of the value of lands, lots, and houses.

The enemy, no doubt, have been told, that the people of Pennsylvania are Quakers, and against all defence, from a principle of conscience; this, though true of a part, and that a small part only of the inhabitants, is commonly said of the whole; and what may make it look probable to strangers is, that in fact, nothing is done by any part of the people towards their defence. But to refuse defending one's self, or one's country, is so unusual a thing among mankind, that possibly they may not believe it, till by experience, they find they can come higher and higher up our river, seize our vessels, land and plunder our plantations and villages, and retire with their booty unmolested. Will not this confirm the report, and give them the greatest encouragement to strike one bold stroke for the city, and for the whole plunder of the river?

It is said by some, that the expence of a vessel, to guard our trade, would be very heavy, greater than perhaps all the enemy can be supposed to take from us at sea would amount to; and that it would be cheaper for the government to open an insurance office, and pay all losses. But is this right reasoning? I think not; for what the enemy takes is clear loss to us, and gain to him; increasing his riches and strength, as much as it diminishes ours, so making the difference double; whereas the money, paid our own tradesmen for building and fitting out a vessel of defence, remains in the country, and circulates among us; what is paid to the officers and seamen, that navigate her, is also spent ashore, and soon gets into other hands; the farmer receives the money for her provisions, and, on the whole, nothing is clearly lost to the country but her wear and tear, or so much as she sells for at the end of the war less than her first cost. This loss, and a trifling one it is, is all the inconvenience; but how many and how great are the conveniences and advantages! and should the enemy, through our supineness and neglect to provide for the defence both of our trade and country, be encouraged to

attempt this city, and after plundering us of our goods, either *burn it*, or put it to ransom, how great would that loss be! besides the confusion, terror, and distress, so many hundreds of families would be involved in!

The thought of this latter circumstance so much affects me, that I cannot forbear expatiating somewhat more upon it. You have, my dear countrymen and fellow citizens, riches to tempt a considerable force to unite and attack you, but are under no ties or engagements to unite for your defence. Hence, on the first alarm, *terror* will spread over all; and as no man can with certainty depend that another will stand by him, beyond doubt very many will seek safety by a speedy flight. Those, that are reputed rich, will flee, through fear of torture, to make them produce more than they are able. The man, that has a wife and children, will find them hanging on his neck, beseeching him with tears to quit the city, and save his life, to guide and protect them in that time of general desolation and ruin. All will run into confusion, amidst cries and lamentations, and the hurry and disorder of departers, carrying away their effects. The few that remain will be unable to resist. *Sacking* the city will be the first, and *burning* it, in all probability, the last act of the enemy. This, I believe, will be the case, if you have timely notice. But what must be your condition, if suddenly surprized, without previous alarm, perhaps in the night! Confined to your houses, you will have nothing to trust to but the enemy's mercy. Your best fortune will be, to fall under the power of commanders of king's ships, able to controul the mariners; and not into the hands of *licentious privateers*. Who can, without the utmost horror, conceive the miseries of the latter! when your persons, fortunes, wives, and daughters, shall be subject to the wanton and unbridled rage, rapine, and lust, of negroes, mulattoes, and others, the vilest and most abandoned of mankind^[199]. A dreadful scene! which some may represent as exaggerated. I think it my duty to warn you: judge for yourselves.

It is true, with very little notice, the rich may shift for themselves. The means of speedy flight are ready in their hands; and with some previous care to lodge money and effects in distant and secure places, though they should lose much, yet enough may be left them, and to spare. But most unhappily circumstanced indeed are we, the middling people, the tradesmen, shopkeepers, and farmers of this province and city! We cannot all fly with our families; and if we could, how shall we subsist? No; we and they, and what little we have gained by hard labour and industry, must bear

the brunt: the weight of contributions, extorted by the enemy (as it is of taxes among ourselves) must be surely borne by us. Nor can it be avoided, as we stand at present; for though we are numerous, we are quite defenceless, having neither forts, arms, union, nor discipline. And though it were true, that our trade might be protected at no great expence, and our country and our city easily defended, if proper measures were but taken; yet, who shall take these measures? Who shall pay that expence? On whom may we fix our eyes with the least expectation, that they will do any thing for our security? Should we address that wealthy and powerful body of people, who have ever since the war governed our elections, and filled almost every seat in our assembly; should we intreat them to consider, if not as friends, at least as legislators, that *protection* is as truly due from the government to the people, as *obedience* from the people to the government; and that if, on account of their religious scruples, they themselves could do no act for our defence, yet they might retire, relinquish their power for a season, quit the helm to freer hands during the present tempest, to hands, chosen by their own interest too, whose prudence and moderation, with regard to them, they might safely confide in; secure, from their own native strength, of resuming again their present station, whenever it shall please them: should we remind them, that the public money, raised *from all*, belongs *to all*; that since they have, for their own ease, and to secure themselves in the quiet enjoyment of their religious principles (and may they long enjoy them) expended such large sums to oppose petitions, and engage favourable representations of their conduct, if they themselves could by no means be free to appropriate any part of the public money for our defence; yet it would be no more than justice, to spare us a reasonable sum for that purpose, which they might easily give to the king's use as heretofore, leaving all the appropriation to others, who would faithfully apply it as we desired: should we tell them, that though the treasury be at present empty, it may soon be filled by the outstanding public debts collected; or at least credit might be had for such a sum, on a single vote of the assembly: that though *they* themselves may be resigned and easy under this naked, defenceless state of the country, it is far otherwise with a very great part of the people; with *us*, who can have no confidence that God will protect those, that neglect the use of rational means for their security; nor have any reason to hope, that our losses, if we should suffer any, may be made up by collections in our favour at home. Should we conjure them by

all the ties of neighbourhood, friendship, justice, and humanity, to consider these things; and what distraction, misery, and confusion, what desolation and distress, may possibly be the effect of their *unseasonable* predominancy and perseverance; yet all would be in vain: for they have already been, by great numbers of the people, petitioned in vain. Our late governor did for years solicit, request, and even threaten them in vain. The council have since twice remonstrated to them in vain. Their religious prepossessions are unchangeable, their obstinacy invincible. Is there then the least hope remaining, that from that quarter any thing should arise for our security?

And is our prospect better, if we turn our eyes to the strength of the opposite party, those great and rich men, merchants and others, who are ever railing at Quakers for doing what their principles seem to require, and what in charity we ought to believe they think their duty, but take no one step themselves for the public safety. They have so much wealth and influence, if they would use it, that they might easily, by their endeavours and example, raise a military spirit among us, make us fond, studious of, and expert in, martial discipline, and affect every thing that is necessary, under God, for our protection. But *envy* seems to have taken possession of their hearts, and to have eaten out and destroyed every generous, noble, public-spirited sentiment. *Rage* at the disappointment of their little schemes for power, gnaws their souls, and fills them with such cordial hatred to their opponents, that every proposal, by the execution of which *those* may receive benefit as well as themselves, is rejected with indignation. "What," say they, "shall we lay out our money to protect the trade of Quakers? Shall we fight to defend Quakers? No; let the trade perish, and the city burn; let what will happen, we shall never lift a finger to prevent it." Yet the Quakers have *conscience* to plead for their resolution not to fight, which these gentlemen have not. Conscience with you, gentlemen, is on the other side of the question: conscience enjoins it as a *duty* on you (and indeed I think it such on every man) to defend your country, your friends, your aged parents, your wives, and helpless children: and yet you resolve not to perform this duty, but act contrary to your own consciences, because the Quakers act according to theirs. Till of late, I could scarce believe the story of him, who refused to pump in a sinking ship, because one on board, whom he hated, would be saved by it as well as himself. But such, it seems, is the unhappiness of human nature, that our passions, when violent, often are too hard for the united force of reason, duty, and religion.

Thus unfortunately are we circumstanced at this time, my dear countrymen and fellow-citizens; we, I mean, the middling people; the farmers, shopkeepers, and tradesmen of this city and country. Through the dissensions of our leaders, through mistaken principles of religion, joined with a love of worldly power, on the one hand; through pride, envy, and implacable resentment on the other; our lives, our families, and little fortunes, dear to us as any great man's can be to him, are to remain continually exposed to destruction, from an enterprising, cruel, now well-informed, and by success encouraged, enemy. It seems as if heaven, justly displeased at our growing wickedness, and determined to punish^[200] this once-favoured land, had suffered our chiefs to engage in these foolish and mischievous contentions, for *little posts* and *paltry distinctions*, that our hands might be bound up, our understandings darkened and misled, and every means of our security neglected. It seems as if our greatest men, our *cives nobilissimi*^[201] of both parties, had sworn the ruin of the country, and invited the French, our most inveterate enemy to destroy it. Where then shall we seek for succour and protection? The government we are immediately under denies it to us; and if the enemy comes, we are *far from Zidon, and there is no deliverer near*. Our case is dangerously bad; but perhaps there is yet a remedy, if we have but the prudence and the spirit to apply it.

If this new flourishing city, and greatly improving colony, is destroyed and ruined, it will not be for want of numbers of inhabitants able to bear arms in its defence. It is computed, that we have at least (exclusive of the Quakers) sixty thousand fighting men, acquainted with fire arms, many of them hunters and marksmen, hardy and bold. All we want is order, discipline, and a few cannon. At present we are like the separate filaments of flax before the thread is formed, without strength, because without connection; but UNION would make us strong, and even formidable. Though the *great* should neither help nor join us; though they should even oppose our uniting, from some mean views of their own, yet, if we resolve upon it, and it please God to inspire us with the necessary prudence and vigour, it *may* be effected. Great numbers of our people are of British race, and though the fierce fighting animals of those happy islands are said to abate their native fire and intrepidity, when removed to a foreign clime, yet with the people it is not so; our neighbours of New England afford the world a

convincing proof, that Britons, though a hundred years transplanted, and to the remotest part of the earth, may yet retain, even to the third and fourth descent, that zeal for the public good, that military prowess, and that undaunted spirit, which has in every age distinguished their nation. What numbers have we likewise of *those brave people*, whose fathers in the last age made so glorious a stand for our religion and liberties, when invaded by a powerful French army, joined by Irish Catholics, under a bigotted popish king! Let the memorable siege of Londonderry, and the signal actions of the Iniskillingers, by which the heart of that prince's schemes was broken, be perpetual testimonies of the courage and conduct of those noble warriors! Nor are there wanting amongst us, thousands of *that warlike* nation, whose sons have ever since the time of Cæsar maintained the character he gave their fathers, of joining the most *obstinate courage* to all the other military virtues: I mean the brave and steady Germans. Numbers of whom have actually borne arms in the service of their respective princes; and if they fought well for their tyrants and oppressors, would they refuse to unite with us in defence of their newly acquired and most precious liberty and property? Were this union formed, were we once united, thoroughly armed and disciplined, was every thing in our power done for our security, as far as human means and foresight could provide, we might then, with more propriety, humbly ask the assistance of Heaven, and a blessing on our lawful endeavours. The very fame of our strength and readiness would be a means of discouraging our enemies; for it is a wise and true saying, that *one sword often keeps another in the scabbard*. The way to secure peace is to be prepared for war. They, that are on their guard, and appear ready to receive their adversaries, are in much less danger of being attacked, than the supine, secure and negligent. We have yet a winter before us, which may afford a good and almost sufficient opportunity for this, if we seize and improve it with a becoming vigour. And if the hints contained in this paper are so happy as to meet with a suitable disposition of mind in his countrymen and fellow-citizens, the writer of it will, in a few days, lay before them a form of an ASSOCIATION for the purposes herein mentioned, together with a practicable scheme for raising the money necessary for the defence of our trade, city, and country, without laying a burthen on any man.

May the God of wisdom, strength, and power, the Lord of the armies of Israel, inspire us with prudence in this time of danger, take away from us all the seeds of contention and division, and unite the hearts and counsels of

all of us, of whatever sect or nation, in one bond of peace, brotherly love, and generous public spirit; may he give us strength and resolution to amend our lives, and remove from among us every thing that is displeasing to him; afford us his most gracious protection, confound the designs of our enemies, and give peace in all our borders, is the sincere prayer of

A TRADESMAN of Philadelphia.

FOOTNOTES:

[197] For this pamphlet we are indebted to the same American correspondent, who furnished us with the papers intitled *The Busy-Body*: but it came too late for insertion in its proper place, which, agreeably to its date, is at the commencement of the present volume. Dr. W. Smith, in his eulogium on our author, delivered before the American philosophical society, speaks of this production as follows: "In 1744, a Spanish privateer, having entered the Bay of Delaware, ascended as high as Newcastle, to the great terror of the citizens of Philadelphia. On this occasion Franklin wrote his first political pamphlet called *Plain Truth*, to exhort his fellow-citizens to the bearing of arms; which laid the foundation of those military associations, which followed, at different times, for the defence of the country." We presume that Dr. Smith is correct in his date, but the copy sent us by our correspondent, which is the second edition, was printed in 1747. *Editor.*

[198] The praying Indians.

[199] By accounts, the ragged crew of the Spanish privateer that plundered Mr. Liston's, and another plantation, a little below Newcastle, was composed of such as these. The *honour* and *humanity* of their officers may be judged of, by the treatment they gave poor captain Brown, whom they took with Martin's ship in returning from their cruize. Because he bravely defended himself and vessel longer than they expected, for which every generous enemy would have esteemed him, did they, after he had struck and submitted, barbarously *stab* and *murder* him, though on his knees begging quarter!

[200] When God determined to punish his chosen people, the inhabitants of Jerusalem, who, though breakers of his other laws, were scrupulous observers of that ONE, which required keeping holy the Sabbath-day; he suffered even the strict observation of that command to be their ruin: for Pompey, observing that they then obstinately refused to fight, made a general assault on that day, took the town, and butchered them with as little mercy as he found resistance.

JOSEPHUS.

[201] *Conjuravere cives nobilissimi patriam incendere; GALLORUM GENTEM, infestissimam nomini Romano, ad bellum arcessunt.*

CAT. IN SALUST.

[Four Letters^{\[202\]} to George Whatley, Esq. Treasurer of the Foundling Hospital, London.](#)

Letter I.

Passy, near Paris, Aug. 21, 1784.

MY DEAR OLD FRIEND,

I received your kind letter of May 3, 1783. I am ashamed that it has been so long unanswered. The indolence of old age, frequent indisposition, and too much business, are my only excuses. I had great pleasure in reading it, as it informed me of your welfare.

Your excellent little work, "The Principles of Trade," is too little known. I wish you would send me a copy of it by the bearer, my grandson and secretary, whom I beg leave to recommend to your civilities. I would get it translated and printed here, and if your bookseller has any quantity of them left, I should be glad he would send them to America. The ideas of our people there, though rather better than those that prevail in Europe, are not so good as they should be: and that piece might be of service among them.

Since and soon after the date of your letter, we lost, unaccountably as well as unfortunately, that worthy, valuable young man you mention, your namesake Maddeson. He was infinitely regretted by all that knew him.

I am sorry your favourite charity does not go on as you could wish it. It is shrunk indeed by your admitting only 60 children in a year. What you have told your brethren respecting America is true. If you find it difficult to dispose of your children in England, it looks as if you had too many people. And yet you are afraid of emigration. A subscription is lately set on foot here to encourage and assist mothers in nursing their infants themselves at home; the practice of sending them to the *Enfans Trouvés* having risen here to a monstrous excess, as by the annual bills it appears they amount to near one third of the children born in Paris. This subscription is likely to succeed, and may do a great deal of good, though it cannot answer all the purposes of a foundling hospital.

Your eyes must continue very good, since you are able to write so small a hand without spectacles. I cannot distinguish a letter even of large print, but am happy in the invention of double spectacles, which, serving for distant objects as well as near ones, make my eyes as useful to me as ever they were. If all the other defects and infirmities of old age could be as easily and cheaply remedied, it would be worth while, my friend, to live a good deal longer. But I look upon death to be as necessary to our constitutions as sleep. We shall rise refreshed in the morning.—Adieu, and believe me ever,

Your's most affectionately,

B. FRANKLIN.

Letter II.

Passy, May 19, 1785.

DEAR OLD FRIEND,

I received the very good letter you sent me by my grandson, together with your resemblance, which is placed in my chamber and gives me great pleasure: there is no trade, they say, without returns, and therefore I am punctual in making those you have ordered. I intended this should have been a long epistle, but I am interrupted, and can only add, that I am ever,

Yours, most affectionately,

B. FRANKLIN.

My grandson presents his most affectionate respects.

Letter III.

Passy, May 23, 1785.

DEAR OLD FRIEND,

I sent you a few lines the other day with the medallion, when I should have written more, but was prevented by the coming in of a *bavard*, who

worried me till evening. I bore with him, and now you are to bear with me, for I shall probably *bavarder* in answering your letter.

I am not acquainted with the saying of Alphonsus, which you allude to as a sanctification of your rigidity in refusing to allow me the plea of old age as an excuse for my want of exactitude in correspondence. What was that saying?—You do not, it seems, feel any occasion for such an excuse, though you are, as you say, rising 75, but I am rising (perhaps more properly falling) 80—and I leave the excuse with you till you arrive at that age; perhaps you may then be more sensible of its validity, and see fit to use it for yourself.

I must agree with you, that the gout is bad, and that the stone is worse. I am happy in not having them both together, and I join in your prayer, that you may live till you die without either. But I doubt the author of the epitaph you sent me is a little mistaken, when, speaking of the world, he says, that

————— He ne'er car'd a pin
What they said or may say of the mortal within.

It is so natural to wish to be well spoken of, whether alive or dead, that I imagine he could not be quite exempt from that desire, and that at least he wished to be thought a wit, or he would not have given himself the trouble of writing so good an epitaph to leave behind him. Was it not worthy of his care, that the world should say he was an honest and a good man? I like better the concluding sentiment in the old song, called the old man's wish, wherein, after wishing for a warm house in a country town, an easy horse, some good old authors, ingenious and cheerful companions, pudding on Sundays, with stout ale and a bottle of burgundy, &c. &c. in separate stanzas, each ending with this burden,

May I govern my passions with absolute sway,
And grow wiser and better as strength wears away,
Without gout or stone by a gentle decay—

he adds for the last stanza,

With courage undaunted may I face my last day,
And when I am gone may the better sort say,
In the morning when sober, in the evening when mellow,
He's gone—and not left behind him his fellow.
For he govern'd his passions, &c.

What signifies our wishing? Things happen after all as they will happen. I have sung that *wishing song* a thousand times when I was young, and now find at fourscore, that the three contraries have befallen me, being subject to the gout, and the stone, and not being yet master of all my passions. Like the proud girl in my country, who wished and resolved not to marry a parson, nor a presbyterian, nor an Irishman, and at length found herself married to an Irish presbyterian parson! You see I have some reason to wish that in a future state I may not only be *as well as I was*, but a little better. And I hope it: for I too, with your poet, *trust in God*. And when I observe, that there is great frugality as well as wisdom in his works, since he has been evidently sparing, both of labour and materials; for by the various wonderful inventions of propagation, he has provided for the continual peopling his world with plants and animals without being at the trouble of repeated new creations; and by the natural reduction of compound substances to their original elements, capable of being employed in new compositions, he has prevented the necessity of creating new matter; for that the earth, water, air, and perhaps fire, which being compounded, form wood, do, when the wood is dissolved, return, and again become air, earth, fire and water:—I say, that when I see nothing annihilated, and not even a drop of water wasted, I cannot suspect the annihilation of souls, or believe that he will suffer the daily waste of millions of minds ready made that now exist, and put himself to the continual trouble of making new ones. Thus finding myself to exist in the world, I believe I shall in some shape or other always exist. And with all the inconveniences human *life* is liable to, I shall not object to a new edition of mine; hoping, however, that the errata of the last may be corrected.

I return your note of children received in the foundling hospital at Paris, from 1741 to 1755 inclusive, and I have added the years preceding, as far back as 1710, together with the general christenings of the city; and the years succeeding, down to 1770. Those since that period I have not been able to obtain. I have noted in the margin the gradual increase, viz. from every tenth child so thrown upon the public, till it comes to every third. Fifteen years have passed since the last account, and probably it may now amount to one half. Is it right to encourage this monstrous deficiency of natural affection? A surgeon I met with here excused the women of Paris, by saying seriously, that they *could not* give suck, *Car, dit-il, ils n'ont point de tetons*. He assured me it was a fact, and bade me look at them, and

observe how flat they were on the breast; they have nothing more there, says he, than I have upon the back of my hand. I have since thought that there might be some truth in his observation, and that possibly Nature finding they made no use of bobbies, has left off giving them any. Yet since Rousseau, with admirable eloquence pleaded for the rights of children to their mother's milk, the mode has changed a little, and some ladies of quality now suckle their infants and find milk enough. May the mode descend to the lower ranks, till it becomes no longer the custom to pack their infants away, as soon as born, to the *Enfants Trouvés*, with the careless observation, that the king is better able to maintain them. I am credibly informed, that nine-tenths of them die there pretty soon; which is said to be a great relief to the institution, whose funds would not otherwise be sufficient to bring up the remainder. Except the few persons of quality above-mentioned, and the multitude who send to the hospital, the practice is to hire nurses in the country, to carry out the children and take care of them there. Here is an office for examining the health of nurses and giving them licences. They come to town on certain days of the week in companies to receive the children, and we often meet trains of them on the road returning to the neighbouring villages with each a child in arms. But those who are good enough to try this way of raising their children are often not able to pay the expence, so that the prisons of Paris are crowded with wretched fathers and mothers confined *pour mois de nourrice*; though it is laudably a favourite charity to pay for them, and set such prisoners at liberty. I wish success to the new project of assisting the poor to keep their children at home, because I think there is no nurse like a mother (or not many) and that if parents did not immediately send their infants out of their sight, they would in a few days begin to love them, and thence be spurred to greater industry for their maintenance. This is a subject you understand better than I, and therefore, having perhaps said too much, I drop it. I only add to the notes a remark from the history of the Academy of Sciences, much in favour of the foundling institution.

The Philadelphia bank goes on, as I hear, very well. What you call the Cincinnati institution is no institution of our government, but a private convention among the officers of our late army, and so universally disliked by the people, that it is supposed it will be dropped. It was considered as an attempt to establish something like an hereditary rank or nobility. I hold with you that it was wrong; may I add, that all descending honours are

wrong and absurd; that the honour of virtuous actions appertains only to him that performs them, and is in its nature incommunicable. If it were communicable by descent, it must also be divisible among the descendants, and the more ancient the family the less would be found existing in any one branch of it; to say nothing of the greater chance of unlucky interruptions.

Our constitution seems not to be well understood with you. If the congress were a permanent body, there would be more reason in being jealous of giving it powers. But its members are chosen annually, and cannot be chosen more than three years successively, nor more than three years in seven, and any of them may be recalled at any time, whenever their constituents shall be dissatisfied with their conduct. They are of the people, and return again to mix with the people, having no more durable pre-eminence than the different grains of sand in an hour-glass. Such an assembly cannot easily become dangerous to liberty. They are the servants of the people, sent together to do the people's business and promote the public welfare; their powers must be sufficient, or their duties cannot be performed. They have no profitable appointments, but a mere payment of daily wages, such as are scarcely equivalent to their expences, so that having no chance for great places and enormous salaries or pensions, as in some countries, there is no briguing or bribing for elections. I wish old England were as happy in its government, but I do not see it. Your people, however, think their constitution the best in the world, and affect to despise ours. It is comfortable to have a good opinion of one's self, and of every thing that belongs to us, to think one's own religion, king, and wife, the best of all possible wives, kings, and religions. I remember three Greenlanders, who had travelled two years in Europe, under the care of some Moravian missionaries, and had visited Germany, Denmark, Holland and England, when I asked them at Philadelphia (when they were in their way home) whether, now they had seen how much more commodiously the white people lived by the help of the arts, they would not chuse to remain among us—their answer was, that they were pleased with having had an opportunity of seeing many fine things, *but they chose to live in their own country*: which country, by the way, consisted of rock only, for the Moravians were obliged to carry earth in their ship from New York, for the purpose of making there a cabbage garden!

By Mr. Dollond's saying, that my double spectacles could only serve particular eyes, I doubt he has not been rightly informed of their construction, I imagine it will be found pretty generally true, that the same convexity of glass through which a man sees clearest and best at the distance proper for reading, is not the best for greater distances. I therefore had formerly two pair of spectacles, which I shifted occasionally, as in travelling I sometimes read and often want to regard the prospects. Finding this change troublesome, and not always sufficiently ready, I had the glasses cut out and half of each kind associated in the same circle, the least convex, for distant objects the upper half, and the most convex, for reading, the lower half: by this means, as I wear my spectacles constantly, I have only to move my eyes up or down, as I want to see distinctly far or near, the proper glasses being always ready. This I find more particularly convenient since my being in France; the glasses that serve me best at table to see what I eat, being the best to see the faces of those on the other side of the table who speak to me, and when one's ears are not well accustomed to the sounds of a language, a sight of the movements in the features of him that speaks helps to explain; so that I understand French better by the help of my spectacles.

My intended translator of your piece, the only one I know who understands *the subject* as well as the two languages, which a translator ought to do, or he cannot make so good a translation, is at present occupied in an affair that prevents his undertaking it; but that will soon be over.—I thank you for the notes. I should be glad to have another of the printed pamphlets.

We shall always be ready to take your children, if you send them to us; I only wonder, that since London draws to itself and consumes such numbers of your country people, your country should not, to supply their places, want and willingly receive the children you have to dispose of. That circumstance, together with the multitude who voluntarily part with their freedom as men, to serve for a time as lacqueys, or for life as soldiers in consideration of small wages, seems to me a proof that your island is over-peopled, and yet it is afraid of emigrations! Adieu, my dear friend, and believe me ever,

Yours, very affectionately,

B. FRANKLIN.

Letter IV.

Philadelphia, May 18, 1787.

I received duly my good old friend's letter of the 19th of February, with a copy of one from Mr. Williams, to whom I shall communicate it when I see him, which I expect soon to do. He is generally a punctual correspondent, and I am surprised you have not heard from him.

I thank you much for your notes on banks; they are just and solid, as far as I can judge of them. Our bank here has met with great opposition, partly from envy, and partly from those who wish an emission of more paper-money, which they think the bank influence prevents. But it has stood all attacks, and went on well notwithstanding the assembly repealed its charter; a new assembly has restored it; and the management is so prudent, that I have no doubt of its continuing to go on well. The dividend has never been less than 6 per cent, nor will that be augmented for some time, as the surplus profit is reserved to face accidents. The dividend of 11 per cent, which was once made, was from a circumstance scarce avoidable. A new company was proposed, and prevented only by admitting a number of new partners. As many of the first set were averse to this, and chose to withdraw; it was necessary to settle their accounts; so all were adjusted, the profits shared that had been accumulated, and the new and old proprietors jointly began on a new and equal footing. Their notes are always instantly paid on demand, and pass on all occasions as readily as silver, because they will always produce silver.

Your medallion is in good company, it is placed with those of Lord Chatham, Lord Camden, Marquis of Rockingham, Sir George Savil, and some others, who honoured me with a share of friendly regard when in England. I believe I have thanked you for it, but I thank you again.

I believe with you, that if our plenipotentiary is desirous of concluding a treaty of commerce, he may need patience. But if I were in his place, and not otherwise instructed, I should be apt to say, Take your own time, gentlemen. If the treaty cannot be made as much to your advantage as to ours, don't make it. I am sure the want of it is not more to our disadvantage

than to yours. Let the merchants on both sides treat with one another.
Laissez les faire.

I have never considered attentively the congress scheme for coining, and I have it not now at hand, so that at present I can say nothing to it. The chief uses of coining seem to be ascertaining the fineness of the metals, and saving the time that would otherwise be spent in weighing to ascertain the quantity. But the convenience of fixed values to pieces is so great as to force the currency of some whose stamp is worn off, that should have assured their fineness, and which are evidently not of half their due weight; this is the case at present with the sixpences in England, which one with another do not weigh three-pence.

You are now 78, and I am 82. You tread fast upon my heels: but, though you have more strength and spirit, you cannot come up with me till I stop; which must now be soon; for I am grown so old as to have buried most of the friends of my youth; and I now often hear persons, whom I knew when children, called *old* Mr. such a one, to distinguish them from their sons now men grown, and in business; so that by living twelve years beyond *David's* period, I seem to have intruded myself into the company of posterity, when I ought to have been a-bed and asleep. Yet had I gone at 70, it would have cut off 12 of the most active years of my life, employed too in matters of the greatest importance; but whether I have been doing good or mischief, is for time to discover. I only know that I intended well, and I hope all will end well.

Be so good as to present my affectionate respects to Dr. Rowley. I am under great obligations to him, and shall write to him shortly. It will be a pleasure to him to hear that my malady does not grow sensibly worse, and that is a great point: for it has always been so tolerable, as not to prevent my enjoying the pleasures of society, and being cheerful in conversation. I owe this in a great measure to his good counsels.

Adieu, my dear friend, and believe me ever,

Yours, most affectionately,

B. FRANKLIN.

Geo. Whatley, Esq.

FOOTNOTE:

[\[202\]](#) These letters did not come into our possession till the preceding sheets and even the subsequent appendix were printed. We are indebted for them to Mr. I. T. Rutt, the originals of which were put into his hands about twelve years ago by a relation of his, the nephew of the gentleman to whom they were addressed. "Mr. Whatley, the friend of Dr. Franklin," Mr. Rutt informs us, "had engaged in mercantile pursuits, and was for some time a British consul in the Mediterranean. During the latter years of his life, he devoted his time to various objects of public utility, for which he was well qualified, and particularly attached himself to the interests of the Foundling Hospital, of which he was the treasurer. He died in 1791, aged 82, having survived his correspondent not quite a year." *Editor.*

APPENDIX, No. II.

CONTAINING LETTERS, BY SEVERAL EMINENT PERSONS,
ILLUSTRATIVE OF DR. FRANKLIN'S MANNERS AND CHARACTER.



Letter from the late Dr. Price to a Gentleman in America.

Hackney, June 19, 1790.

DEAR SIR,

I am hardly able to tell you how kindly I take the letters with which you favour me. Your last, containing an account of the death of our excellent friend, Dr. Franklin, and the circumstances attending it, deserves my particular gratitude. The account which he has left of his life will show, in a striking example, how a man, by talents, industry, and integrity, may rise from obscurity to the first eminence and consequence in the world; but it brings his history no lower than the year 1757, and I understand, that since he sent over the copy, which I have read, he has been able to make no additions to it. It is with a melancholy regret I think of his death; but to death we are all bound by the irreversible order of nature, and in looking forward to it, there is comfort in being able to reflect—that we have not lived in vain, and that all the useful and virtuous shall meet in a better country beyond the grave.

Dr. Franklin, in the last letter I received from him, after mentioning his age and infirmities, observes, that it has been kindly ordered by the author of nature, that, as we draw nearer the conclusion of life, we are furnished with more helps to wean us from it, among which one of the strongest is the loss of dear friends. I was delighted with the account you gave in your letter of the honour shown to his memory at Philadelphia, and by congress; and yesterday I received a high additional pleasure, by being informed, that the national assembly of France had determined to go into mourning for him^[203].—What a glorious scene is opened there! The annals of the world furnish no parallel to it. One of the honours of our departed friend is, that he has contributed much to it.

I am, with great respect,

Your obliged and very

humble servant,

RICHARD PRICE.

FOOTNOTE:

[\[203\]](#) Congress ordered a general mourning throughout the United States for a month: the national assembly of France decreed, that the assembly do wear mourning for three days, that a funeral oration be delivered by M. Mirabeau, the elder, and that the president write a letter of condolence to congress: and the common-council of Paris paid the extraordinary tribute, of attending in a body at a funeral oration, delivered by the Abbe Fauchet, in the Rotunda of the market-place, which was hung with black, illuminated with chandeliers and rows of lamps, and decorated with suitable devices. *Editor.*

I feel both the wish and the duty to communicate, in compliance with your request, whatever, within my knowledge, might render justice to the memory of our great countryman, Dr. Franklin, in whom philosophy has to deplore one of its principal luminaries extinguished. But my opportunities of knowing the interesting facts of his life have not been equal to my desire of making them known.

I can only, therefore, testify in general, that there appeared to me more respect and veneration attached to the character of Dr. Franklin in France, than to that of any other person in the same country, foreign or native. I had opportunities of knowing particularly, how far these sentiments were felt by the foreign ambassadors and ministers at the court of Versailles. The fable of his capture by the Algerines, propagated by the English newspapers, excited no uneasiness, as it was seen at once to be a dish cooked up to please certain readers; but nothing could exceed the anxiety of his diplomatic brethren on a subsequent report of his death, which, although premature, bore some marks of authenticity.

I found the ministers of France equally impressed with his talents and integrity. The count de Vergennes, particularly, gave me repeated and unequivocal demonstrations of his entire confidence in him.

When he left Passy, it seemed as if the village had lost its patriarch. On taking leave of the court, which he did by letter, the king ordered him to be handsomely complimented, and furnished him with a litter and mules of his own, the only kind of conveyance the state of his health could bear.

The succession to Dr. Franklin, at the court of France, was an excellent school of humility to me. On being presented to any one, as the minister of America, the common-place question was, "*c'est vous Monsieur, qui remplacez le Docteur Franklin?*"—is it you, sir, who replace Dr. Franklin? I generally answered—"No one can replace him, sir; I am only his successor."

I could here relate a number of those *bon mots*, with which he was used to charm every society, as having heard many of them; but these are not your object. Particulars of greater dignity happened not to occur, during his stay of nine months after my arrival in France.

A little before that time, Argand had invented his celebrated lamp, in which the flame is spread into a hollow cylinder, and thus brought into contact with the air, within as well as without. Dr. Franklin had been on the point of the same discovery. The idea had occurred to him; but he had tried a bullrush as a wick, which did not succeed. His occupations did not permit him to repeat and extend his trials to the introduction of a larger column of air, than could pass through the stem of a bullrush.

About that time, also, the king of France gave him a signal testimony of respect, by joining him with some of the most illustrious men of the nation to examine that ignis-fatuus of philosophy, the animal magnetism of the maniac, Mesmer; the pretended effects of which had astonished all Paris. From Dr. Franklin's hand, in conjunction with his brethren of the learned committee, that compound of fraud and folly was unveiled, and received its death-wound. After this nothing very interesting was before the public, either in philosophy or politics, during his stay; and he was principally occupied in winding up his affairs, and preparing for his return to America.

These small offerings to the memory of our great and dear friend (whom time will be making still greater, while it is spunging us from its records) must be accepted by you, sir, in that spirit of love and veneration for him, in which they are made; and not according to their insignificancy in the eyes of a world, which did not want this mite to fill up the measure of his worth.

His death was an affliction which was to happen to us at some time or other. We have reason to be thankful he was so long spared; that the most useful life should be the longest also; that it was protracted so far beyond the ordinary span allotted to humanity, as to avail us of his wisdom and virtue, in the establishment of our freedom in the west; and to bless him with a view of its dawn in the east, where men seemed till now to have learned every thing—but *how to be free*.

FOOTNOTE:

[\[204\]](#) Extracted from the Eulogium on Dr. Franklin, delivered by Dr. W. Smith, before the American philosophical society. *Editor.*

SIR,

I have just read in the Monthly Review, vol. 36, p. 357, that the late Mr. Pennant said of Dr. Franklin, that, "living under the protection of our mild government, he was secretly playing the incendiary, and too successfully inflaming the minds of our fellow subjects in America, till that great explosion happened, which for ever disunited us from our once happy colonies."

As it is in my power, as far as my testimony will be regarded, to refute this charge, I think it due to our friendship to do it. It is probable, that no person now living was better acquainted with Dr. Franklin and his sentiments on all subjects of importance, than myself, for several years before the American war. I think I knew him as well as one man can generally know another. At that time I spent the winters in London, in the family of the Marquis of Lansdown, and few days passed without my seeing more or less of Dr. Franklin; and the last day that he passed in England, having given out that he should depart the day before, we spent together, without any interruption, from morning till night.

Now he was so far from wishing for a rupture with the colonies, that he did more than most men would have done, to prevent it. His constant advice to his countrymen, he always said, was "to bear every thing from England, however unjust;" saying, that "it could not last long, as they would soon outgrow all their hardships." On this account Dr. Price, who then corresponded with some of the principal persons in America, said, he began to be very unpopular there. He always said, "If there must be a war, it will be a war of ten years, and I shall not live to see the end of it." This I have heard him say many times.

It was at his request, enforced by that of Dr. Fothergil, that I wrote an anonymous pamphlet, calculated to show the injustice and impolicy of a war with the colonies, previous to the meeting of a new parliament. As I then lived at Leeds, he corrected the press himself, and, to a passage, in

which I lamented the attempt to establish arbitrary power in so large a part of the British empire, he added the following clause, "to the imminent danger of our most valuable commerce, and of that national strength, security, and felicity, which depend on union and on liberty."

The unity of the British empire, in all its parts, was a favourite idea of his. He used to compare it to a beautiful China vase, which, if once broken, could never be put together again: and so great an admirer was he at the time of the British constitution, that he said he saw no inconvenience from its being extended over a great part of the globe. With these sentiments he left England; but when, on his arrival in America, he found the war begun, and that there was no receding, no man entered more warmly into the interests of what he then considered as *his country*, in opposition to that of Great Britain. Three of his letters to me, one written immediately on his landing, and published in the collection of his Miscellaneous Works, p. 365, 552, and 555^[206], will prove this.

By many persons, Dr. Franklin is considered as having been a cold-hearted man, so callous to every feeling of humanity, that the prospect of all the horrors of a civil war could not affect him. This was far from being the case. A great part of the day abovementioned that we spent together, he was looking over a number of American newspapers, directing me what to extract from them for the English ones; and, in reading them, he was frequently not able to proceed for the tears literally running down his cheeks. To strangers he was cold and reserved; but where he was intimate, no man indulged to more pleasantry and good humour. By this he was the delight of a club, to which he alludes in one of the letters above referred to, called the *whig-club*, that met at the London coffee-house, of which Dr. Price, Dr. Kippis, Mr. John Lee, and others of the same stamp, were members.

Hoping that this vindication of Dr. Franklin will give pleasure to many of your readers, I shall proceed to relate some particulars relating to his behaviour, when lord Loughborough, then Mr. Wedderburn, pronounced his violent invective against him at the privy-council, on his presenting the complaints of the province of Massachusetts (I think it was) against their governor. Some of the particulars may be thought amusing.

On the morning of the day on which the cause was to be heard, I met Mr. Burke, in Parliament-street, accompanied by Dr. Douglas, afterwards bishop of Carlisle; and after introducing us to each other, as men of letters, he asked me whither I was going? I said I could tell him where I *wished* to go. He then asking me where that was, I said to the privy-council, but that I was afraid I could not get admission. He then desired me to go along with him. Accordingly I did; but when we got into the anti-room, we found it quite filled with persons as desirous of getting admission as ourselves. Seeing this, I said, we should never get through the crowd. He said, "Give me your arm;" and locking it fast in his, he soon made his way to the door of the privy-council. I then said, Mr. Burke, you are an excellent leader; he replied, "I wish other persons thought so too."

After waiting a short time, the door of the privy-council opened, and we entered the first, when Mr. Burke took his stand behind the first chair next to the president, and I behind that the next to his. When the business was opened, it was sufficiently evident, from the speech of Mr. Wedderburn, who was counsel for the governor, that the real object of the court was to insult Dr. Franklin. All this time he stood in a corner of the room, not far from me, without the least apparent emotion.

Mr. Dunning, who was the leading counsel on the part of the colony, was so hoarse, that he could hardly make himself heard; and Mr. Lee, who was the second, spoke but feebly in reply; so that Mr. Wedderburn had a complete triumph. At the sallies of his sarcastic wit, all the members of the council, the president himself (Lord Gower) not excepted, frequently laughed outright. No person belonging to the council behaved with decent gravity, except Lord North, who, coming late, took his stand behind the chair opposite to me.

When the business was over, Dr. Franklin, in going out, took me by the hand, in a manner that indicated some feeling. I soon followed him, and going through the anti-room, saw Mr. Wedderburn there surrounded with a circle of his friends and admirers. Being known to him, he stepped forwards as if to speak to me; but I turned aside, and made what haste I could out of the place.

The next morning I breakfasted with the doctor, when he said, "He had never before been so sensible of the power of a good conscience; for that if

he had not considered the thing for which he had been so much insulted, as one of the best actions of his life, and what he should certainly do again in the same circumstances, he could not have supported it." He was accused of clandestinely procuring certain letters, containing complaints against the governor, and sending them to America, with a view to excite their animosity against him, and thus to embroil the two countries. But he assured me, that he did not even know that such letters existed, till they were brought to him as agent for the colony, in order to be sent to his constituents; and the cover of the letters on which the direction had been written, being lost, he only guessed at the person to whom they were addressed, by the contents.

That Dr. Franklin, notwithstanding he did not show it at the time, was much impressed by the business of the privy council, appeared from this circumstance: when he attended there, he was dressed in a suit of Manchester velvet; and Silas Dean told me, that, when they met at Paris to sign the treaty between France and America, he purposely put on that suit.

Hoping that this communication will be of some service to the memory of Dr. Franklin, and gratify his friends,

I am, sir, your's, &c.

J. PRIESTLEY.

Northumberland, Nov. 10, 1802.

FOOTNOTES:

[205] Inserted in the number for February, 1803. *Editor.*

[206] Answering to page [] of the present volume. *Editor.*

FINIS.

JAMES CUNDEE, PRINTER,
Ivy Lane, Paternoster Row.

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TRANSCRIBER'S NOTE

Obvious typographical errors and punctuation errors have been corrected after careful comparison with other occurrences within the text and consultation of external sources.

For consistency and clarity, the pound abbreviation 'l.' has been italicized, so for example '123,321l.' has been replaced by '123,321*l.*' in the etext.

For consistency, the date and salutation at the beginning of each letter, and the closing and name at the end of each letter, have been put on separate lines (they were sometimes placed on the same line in the original printed text).

Three or more asterisks, sometimes spaced, were used by the editor to indicate omitted text, and sometimes '— — —' or '——' were used. Missing names were indicated by '——' or by '****'. For this reason thought breaks in the text are indicated by two blank lines, not by a line of asterisks.

A deliberate blank space in the text is indicated by [].

All the changes noted in the Errata ([pg.vi](#)) have been applied to the text.

Many Footnotes have the signature 'B. V.' rather than 'Editor'. This is explained in Vol 1 p 399 Footnote [90], and is copied below for the reader's convenience:—

Wherever this signature occurs, the note is taken from a volume of Dr. Franklin's writings, entitled Political, Miscellaneous, and Philosophical Pieces, printed for Johnson, 1779. The editor of that volume, though a young man at the time, had already evinced extraordinary talents, and was the friend and correspondent of our author. As he has chosen to withhold his name, we conceive ourselves not entitled to disclose it: but we shall take the freedom of an acquaintance to use the notes occasionally, deeming them in many instances valuable historical records. Editor.

Except for those changes noted below, misspelling in the text, and inconsistent or archaic usage, have been retained. For example, compleat; controul; inclose; smoaky; Pensylvania; Massachussets; New-England, New England; shopkeeper, shop-keeper.

In addition:

[Pg.vi Errata](#). Page '59' replaced by '39'.

[Pg.11](#). 'infringment' replaced by 'infringement'.

[Pg.23](#). 'would he' replaced by 'would be'.

[Pg.29](#). 'and slso to' replaced by 'and also to'.

[Pg.31](#). 'proably give' replaced by 'probably give'.

[Pg.39](#). 'iron mafacture' replaced by 'iron manufacture'.

[Pg.47](#). 'thesettlers;' replaced by 'the settlers;'.

[Pg.59 FN \[16\]](#) 'our anthor' replaced by 'our author'.

[Pg.70](#). 'provice for' replaced by 'province for'.

[Pg.71](#). 'Twightwee' replaced by 'Twigtwee'.

[Pg.74](#). 'in theuse' replaced by 'in the use'.

[Pg.81](#). 'poll-tax of sen' replaced by 'poll-tax of ten'.

[Pg 84](#). 'Lower Countries' replaced by 'Lower Counties'.
[Pg 90](#). 'msy inspire' replaced by 'may inspire'.
[Pg 95 FN \[26\]](#) 'Observatious' replaced by 'Observations'.
[Pg 104](#). 'meer names' replaced by 'mere names'.
[Pg 126 FN \[44\]](#) '3,353,337' replaced by the correct total '3,363,337'.
[Pg 129 FN \[46\]](#) 'those swo' replaced by 'those two'.
[Pg 131](#). 'Londom' replaced by 'London'.
[Pg 188](#). 'satisfacton' replaced by 'satisfaction'.
[Pg 196](#). 'farewel-speech' replaced by 'farewell speech'.
[Pg 204](#). 'sauction' replaced by 'sanction'.
[Pg 234 FN \[78\]](#) 'Great Britian' replaced by 'Great Britain'.
[Pg 235](#). 'cruel idsult' replaced by 'cruel insult'.
[Pg 238 FN \[79\]](#) 'ttroups' replaced by 'troops'.
[Pg 253 FN \[87\]](#) 'repeal or' replaced by 'repeal of'.
[Pg 267](#). 'Snpposing' replaced by 'Supposing'.
[Pg 267 et seq.](#) Seventeen instances of '2.' replaced by 'Q.'
[Pg 281](#). 'T. In my opinion' replaced by 'A. In my opinion'.
[Pg 283](#). 'Q. I suppose' replaced by 'A. I suppose'.
[Pg 292 FN \[99\]](#) ' slave' replaced by 'a slave.'.
[Pg 295 FN \[101\]](#) 'froward child' replaced by 'forward child'.
[Pg 307](#). 'vice-gerent' replaced by 'vice-regent'.
[Pg 315](#). 'adn villains' replaced by 'and villains'.
[Pg 319 FN \[120\]](#) 'wolud be' replaced by 'would be'.
[Pg 332 FN \[130\]](#) 'Wedderburne' replaced by 'Wedderburn'.
[Pg 354](#). Missing anchor for Footnote [148] added.
[Pg 361](#). 'la royanté' replaced by 'la royauté'.
[Pg 361](#). 'send yon' replaced by 'send you'.
[Pg 389](#). 'our intrepreater' replaced by 'our interpreter'.
[Pg 399](#). 'genuises' replaced by 'geniuses'.
[Pg 475](#). Missing anchor for Footnote [180] added.
[Pg 524 FN \[197\]](#) 'who furnised' replaced by 'who furnished'.
[Pg 537](#). 'sentimeat' replaced by 'sentiment'.
[Pg 550*](#). 'oo muc h' replaced by 'too much'.
Index [Pg 4i](#). 'Animalcnles' replaced by 'Animalcules'.
Index [Pg 29i](#). 'relation between' replaced by 'relation between'.

The Index covers all three volumes and was originally printed at the end of Volume 1 only. It has been copied to the end of Volume 2 and 3 as a convenience for the reader.

The Index had no page numbers in the original text; page numbers from 1i to 36i have been added for completeness. For clarity, some volume identifiers (i. or ii. or iii.) have been added, or removed, in the Index. Only references within this volume have been hyperlinked.

The Index has some references to page numbers with a *, eg 551*. These are valid references; the book printer inserted pages 543*-556* between pages 542 and 543 in Vol iii.

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